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TITLE 3—THE PRESIDENT

EXECUTIVE ORDER 10671

FLEET ADMIRAL ERNEST J. KING

As a mark of respect to the memory of Fleet Admiral Ernest J. King, it is hereby ordered, pursuant to the provisions of Section 4 of Proclamation 3044 of March 1, 1954, that until interment the flag of the United States shall be flown at half-staff on all buildings, grounds, and naval vessels of the Federal Government in the District of Columbia and throughout the United States and its Territories and possessions.

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
June 26, 1956.

[F. R. Doc. 56-5203; Filed, June 27, 1956; 12:15 p. m.]

TITLE 7—AGRICULTURE

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

PART 905—HANDLING OF MILK IN THE OKLAHOMA CITY, OKLA., MARKETING AREA

ORDER AMENDING THE ORDER, AS AMENDED

§ 905.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of each of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order, as amended, regulating the handling of milk in the Oklahoma City, Oklahoma, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the order, as amended, and as hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order, as amended and as hereby further amended, regulates the handling of milk in the same manner as, and is applicable only to persons in the respective classes of industrial and commercial activity specified in a marketing agreement upon which a hearing has been held.

(b) *Additional findings.* It is necessary in the public interest to make this order amending the order, as amended, effective not later than July 1, 1956. Any delay beyond July 1, 1956 in the effective date of this order amending the order, as amended, would defeat the purpose of this amendment because it applies only through July 1956. The changes effected by this order amending the order, as amended, do not require of persons affected substantial or extensive preparation prior to the effective date. In view of the foregoing, it is found that good cause exists for making this order effective July 1, 1956 (see sec. 4 (c) Administrative Procedure Act, 5 U. S. C. 1003 (c)).

(c) *Determinations.* It is hereby determined that handlers (excluding cooperative associations of producers who are not engaged in processing, distributing or shipping milk covered by this order amending the order, as amended, which is marketed within the Oklahoma City, Oklahoma, marketing area) of more than 50 percent of the milk which is marketed within the said marketing area, refused or failed to sign the proposed marketing agreement regulating

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(As of January 1, 1956)

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Title 6 ($1.75)

Title 7: Parts 210–899 (Rev., 1955) with Supplement ($4.50)

Title 26 (1954) Parts 1–220 (Rev., 1955) ($2.00)

Titles 47 and 48 ($2.25)

Previously announced: Title 3, 1955 Supp. ($2.00); Titles 4 and 5 ($1.00); Title 7: Parts 1–209 ($1.25), Parts 900–959 (Rev., 1955) ($6.00), Part 960 to end (Rev., 1955) with Supplement ($5.85); Title 8 ($0.50); Title 9 ($0.70); Titles 10–13 ($0.70); Title 14: Parts 1–399 ($2.50), Part 400 to end ($1.00); Title 15 ($1.00); Title 16 ($1.25); Title 17 ($0.60); Title 18 ($0.50); Title 19 ($0.50); Title 20 ($1.00); Title 21 (Rev., 1955) ($5.50); Titles 22 and 23 ($1.00); Title 24 ($0.75); Title 25 ($0.50); Title 26: Parts 1–79 ($0.35), Parts 80–169 ($0.50), Parts 170–182 ($0.30), Parts 183–299 ($0.35), Part 300 to end, Ch. I, and Title 27 ($1.00); Titles 28 and 29 ($1.25); Titles 30 and 31 ($1.25); Title 32: Parts 1–399 ($0.60), Parts 400–699 ($0.65), Parts 700–799 ($0.35), Parts 800–1099 ($0.40), Part 1100 to end ($0.35); Title 32A (Rev., 1955) ($1.25); Title 33 ($1.50); Titles 35–37 ($1.00); Title 39 (Rev., 1955) ($4.25); Titles 40–42 ($0.65); Title 43 ($0.50); Title 46: Parts 1–145 ($0.60), Part 146 to end ($1.25); Title 49: Parts 1–70 ($0.60), Parts 71–90 ($1.00), Parts 91–164 ($0.50), Part 165 to end ($0.65)

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the handling of milk in the said marketing area, and it is hereby further determined that;

(1) The refusal or failure of such handlers to sign said proposed marketing agreement tends to prevent the effectuation of the declared policy of the act;

(2) The issuance of this order amending the order, as amended, is the only practical means, pursuant to the declared policy of the act, of advancing the interests of producers of milk which is produced for sale in the said marketing area; and

(3) The issuance of this order amending the order, as amended, is approved or favored by at least two-thirds of the producers who, during the determined representative period (May 1956) were engaged in the production of milk for sale in the said marketing area.

Order relative to handling. It is therefore ordered that on and after the effective date hereof the handling of milk in the Oklahoma City, Oklahoma, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order, as amended, is hereby further amended as follows:

1. Delete the period (.) at the end of § 905.65 (a), substitute therefor a colon (:) and add the following: *"Provided,* That deliveries during the months of September 1955 through December 1955 to a plant whose operations have since been transferred to an approved plant shall be used in the computation of daily average bases effective through July 1956 for producers who became producers through such transfer of operations."

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608 c)

Issued at Washington, D. C., this 22d day of June 1956, to be effective on and after the 1st day of July 1956.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 56-5092; Filed, June 27, 1956; 8:46 a. m.]

PART 914—NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

ORDER AMENDING ORDER, AS AMENDED, REGULATING HANDLING

§ 914.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations made in connection with the issuance of this order; and all of said previous findings and determinations are hereby ratified and affirmed except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and the applicable rules of practice and procedure effective thereunder (7 CFR Part 900), a public hearing was held on January 27, 1956, at Los Angeles, California, upon proposed amendments to Marketing Agreement No. 117, as amended, and Order No. 14, as amended (7 CFR Part 914) regulating the handling of navel oranges grown in Arizona and designated part of California. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act, including the establishment and maintenance of such orderly marketing conditions for navel oranges grown in Arizona and designated part of California as will provide, in the interests of producers and consumers, an orderly flow thereof to market throughout its normal marketing season to avoid unreasonable fluctuations in supplies and prices;

(2) The said order, as amended, and as hereby further amended, regulates the handling of navel oranges grown in the designated production area in the same manner as, and is applicable only to persons in the respective classes of industrial and commercial activity, specified in the marketing agreement upon which hearings have been held;

(3) The said order, as amended, and as hereby further amended, is limited in its application to the smallest regional production area that is practicable, consistently with carrying out the declared policy of the act; and the issuance of several orders applicable to subdivisions of such production area would not effectively carry out the declared policy of the act;

(4) The said order, as amended, and as hereby further amended, prescribes, so far as practicable, such different terms, applicable to different parts of the production area, as are necessary to give due recognition to differences in the production and marketing of such oranges; and

(5) All handling of navel oranges, as defined herein, is in the current of interstate or foreign commerce or directly burdens, obstructs, or affects such commerce.

(b) *Determinations.* It is hereby determined that:

(1) The agreement amending the marketing agreement, as amended, regulating the handling of Navel oranges grown in Arizona and designated part of California, upon which the aforesaid public hearing was held, has been signed by handlers (excluding cooperative associations of producers who were not engaged in processing, distributing, or shipping the oranges covered by this order) who, during the period beginning November 1, 1954, and ending October 31, 1955, both dates inclusive, handled not less than 80 percent of the volume of oranges covered by said order, as amend-

ed, and as hereby further amended; and

(2) The issuance of this order, amending the aforesaid order, is favored or approved by producers who, during the determined representative period (November 1, 1954, through October 31, 1955), produced for market, within Arizona and the designated part of California, at least two-thirds of the volume of Navel oranges produced for market within the said production area.

It is, therefore, ordered, That, on and after the effective date hereof, the handling of navel oranges grown in Arizona and designated part of California shall be in conformity to, and in compliance with, the terms and conditions of the aforesaid order, as amended, and as hereby further amended as follows:

1. Delete the provisions of § 914.15 and substitute in lieu thereof the following:

§ 914.15 *Carton.* "Carton" means the standard container number 58 as defined in section 828.83 of the Agricultural Code of California, as amended, of a capacity of approximately 38½ pounds of oranges, or such other container and capacity as may be established by the committee with the approval of the Secretary, or the equivalent thereof.

2. Delete the provisions of § 914.17 and substitute in lieu thereof the following:

§ 914.17 *Carload.* "Carload" means a quantity of oranges equivalent to 924 cartons of oranges, or such other quantity of oranges as may be established by the committee with the approval of the Secretary.

3. Amend the provisions of § 914.21 by deleting therefrom the date "November 1" and substituting in lieu thereof the date "October 1."

4. Amend the provisions of § 914.31 by adding at the end of the section the following: "Whenever specifically authorized or approved by the committee, an alternate member shall be reimbursed for reasonable expenses necessarily incurred by him in attending committee meetings and shall receive compensation at the rate provided in this section, notwithstanding that the committee member for whom he serves as alternate also attends such meetings."

5. Amend the provisions of § 914.32 as follows:

a. Delete the first sentence thereof and substitute in lieu thereof the following: "The committee shall, as soon as practicable after the marketing of the crop is completed, prepare and mail an annual report to the Secretary and to each handler and grower of record."

b. Delete therefrom the words following (d) and substitute in lieu thereof the following: "notice of the time and place of an open meeting, to be held as soon as practicable after the mailing of the annual report, to review the whole record of the operations of this part."

6. Amend the provisions of paragraph (e) of § 914.53 *Prorate bases* by inserting the following as a part of the last sentence in such paragraph: "; and, in the event the change in control of oranges is occasioned by a bona fide transfer of the ownership of the real property on which such oranges were produced, the person gaining the control of such oranges shall have his quantity of oranges available for current shipment adjusted by adding thereto a quantity of oranges equal to that which is so deducted."

7. Amend the provisions of § 914.55 by deleting therefrom the first sentence and substituting in lieu thereof the following: "During any week for which the Secretary has fixed the total quantity of oranges which may be handled, any person who has received an allotment for such week, and whose total allotment is not loaned, or is not required for the repayment of an allotment loan or as a deduction for a prior overshipment, may handle in addition to his allotment an amount of such oranges equivalent to 10 percent of his allotment, or one carload, whichever is the greater."

8. Amend the provisions of § 914.57 by adding a new paragraph (e) as follows:

(e) No allotment may be loaned from one handler to another when such loan is brought about by the payment of a consideration.

9. Amend the provisions of § 914.64 by inserting the following immediately after the first sentence of such section: "When any such size regulation restricts the handling of a portion of a specified size, the quantity of such size that may be handled by a handler during a particular week shall be established as a percentage of (a) the weekly allotment issued to such handler when volume regulation is in effect, and (b) the total weekly volume handled by such handler when volume regulation is not in effect."

10. Insert the following new sentence immediately preceding the last sentence of § 914.52 *Issuance of volume regulations:* "Such regulation may be made effective, as authorized by the act, irrespective of whether the season average price for navel oranges is in excess of the parity price specified therefor in the act."

11. Amend the provisions of § 914.71 by deleting therefrom the word "box" and substituting in lieu thereof the word "carton."

12. Immediately preceding the closing of the parenthesis at the end of § 914.2 *Act* insert the following: "; 68 Stat. 906, 1047."

13. Amend the provisions of § 914.83 (c) (3) by deleting from the last sentence thereof the date "September 15" and substituting in lieu thereof the date "March 15."

(48 Stat. 31, as amended; 7 U. S. C. 601 et seq.)

Issued at Washington, D. C., this 22d day of June 1956, to become effective 30 days after publication in the FEDERAL REGISTER.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 56-5120; Filed, June 27, 1956; 8:53 a. m.]

[Valencia Orange Reg. 61, Amdt. 2]

PART 922—VALENCIA ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

LIMITATION OF HANDLING

Findings. 1. Pursuant to the marketing agreement and Order No. 22, as amended (7 CFR Part 922; 21 F. R. 4392), regulating the handling of Valencia oranges grown in Arizona and designated part of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and upon the basis of other available information, it is hereby found that the limitation of handling of such valencia oranges, as hereinafter provided, will tend to effectuate the declared policy of the act.

2. It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule making procedure, and postpone the effective date of this amendment until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.), in that (i) the requirements of the said marketing agreement and the amendments (21 F. R. 4392) to the said order make this amendment necessary; (ii) such amendment should be made effective as soon as practicable since shipments of Valencia oranges are now being made from Districts 1 and 3 subject to size restrictions, and handlers should be permitted to utilize, as quickly as possible, the revised method of computing the portion of their shipments of oranges which may be smaller than 2.31 inches in diameter; (iii) the provisions of this amendment are well known to handlers of Valencia oranges as the result of the public hearing, decisions, and other procedures (20 F. R. 9972; 21 F. R. 2384, 3022, 4392) in connection with the marketing agreement and the issuance of the amendments to the order; and (iv) compliance with this amendment will not require any preparation on the part of persons subject thereto which cannot be completed prior to the effective time hereof.

Order, as amended. The provisions in paragraph (b) of § 922.361 (Valencia Orange Regulation 61, as amended; 21 F. R. 2038, 3964) are hereby amended to read as follows:

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., June 29, 1956, and ending at 12:01 a. m., P. s. t., February 3, 1957, no handler shall handle any Valencia oranges grown in District 1 or in District 3 which are smaller than 2.31 inches in diameter, which shall be the largest measurement at a right angle to a straight line running from the stem to the blossom end of the fruit, except that a tolerance of 5 percent, by count, of oranges smaller than such minimum diameter shall be permitted in any type of container: *Provided*, That, in addition to such tolerance, each handler may, during each calendar week of the aforesaid period, handle a quantity of such oranges which are smaller than 2.31 inches in diameter but not smaller than

2.20 inches in diameter, except that a tolerance of 5 percent, by count, of oranges smaller than 2.20 inches in diameter shall be permitted in any container of oranges which are smaller than 2.31 inches in diameter, if such quantity does not exceed (i) 5 percent of the weekly allotment issued to such handler for such week, or (ii) when volume regulation is not in effect, 5 percent of the total weekly volume of Valencia oranges handled by such handler during such week.

(2) As used in this section, "handle," "handler," "District 1," and "District 3" shall have the same meaning as when used in said order.

Effective time. The provisions of this amendment shall become effective at 12:01 a. m., P. s. t., June 29, 1956.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 26, 1956.

[SEAL] S. R. SMITH,
Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 56-5170; Filed, June 27, 1956; 8:59 a. m.]

[Valencia Orange Regulation 65, Amdt. 2]

PART 922—VALENCIA ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

LIMITATION OF HANDLING

Findings. 1. Pursuant to the marketing agreement and Order No. 22, as amended (7 CFR Part 922; 21 F. R. 4392), regulating the handling of Valencia oranges grown in Arizona and designated part of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and upon the basis of other available information, it is hereby found that the limitation of handling of such Valencia oranges, as hereinafter provided, will tend to effectuate the declared policy of the act.

2. It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule making procedure, and postpone the effective date of this amendment until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.), in that (i) the requirements of the said marketing agreement and the amendments (21 F. R. 4392) to the said order make this amendment necessary; (ii) such amendment should be made effective as soon as practicable since shipments of Valencia oranges are now being made from District 2 subject to size restrictions, and handlers should be permitted to utilize, as quickly as possible, the revised method of computing the portion of their shipments of oranges which may be smaller than 2.31 inches in diameter; (iii) the provisions of this amendment are well known to handlers of Valencia oranges as the result of the public hearing, decisions, and other procedures (20 F. R. 9972; 21 F. R. 2384, 3022, 4392) in connection with the marketing agreement and the issuance of the amendments to the order; and (iv) compliance with this amendment will not require any preparation on the part of persons subject thereto which cannot be completed prior to the effective time hereof.

Order, as amended. The provisions in paragraph (b) of § 922.365 (Valencia Orange Regulation 65, as amended; 21 F. R. 2717, 3965) are hereby amended to read as follows:

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., June 29, 1956, and ending at 12:01 a. m., P. s. t., February 3, 1957, no handler shall handle any Valencia oranges grown in District 2 which are smaller than 2.31 inches in diameter, which shall be the largest measurement at a right angle to a straight line running from the stem to the blossom end of the fruit, except that a tolerance of 5 percent, by count, of oranges smaller than such minimum diameter shall be permitted in any type of container: *Provided*, That, in addition to such tolerance, each handler may, during each calendar week of the aforesaid period, handle a quantity of such oranges which are smaller than 2.31 inches in diameter but not smaller than 2.20 inches in diameter, except that a tolerance of 5 percent, by count, of oranges smaller than 2.20 inches in diameter shall be permitted in any container of oranges which are smaller than 2.31 inches in diameter, if such quantity does not exceed (i) 5 percent of the weekly allotment issued to such handler for such week, or (ii) when volume regulation is not in effect 5 percent of the total weekly volume of Valencia oranges handled by such handler during such week.

(2) As used in this section, "handle," "handler," and "District 2" shall have the same meaning as when used in said order.

Effective time. The provisions of this amendment shall become effective at 12:01 a. m., P. s. t., June 29, 1956.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 26, 1956.

[SEAL] S. R. SMITH,
Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 56-5169; Filed, June 27, 1956; 8:58 a. m.]

TITLE 6—AGRICULTURAL CREDIT

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PART 10—FEDERAL LAND BANKS GENERALLY

INTEREST RATES ON LOANS MADE THROUGH ASSOCIATIONS

Inasmuch as approval has been given to an interest rate of 5 percent per annum on loans by the Federal Land Bank of Springfield applied for through associations on and after July 1, 1956, § 10.54 of Title 6 of the Code of Federal Regulations (21 F. R. 3737) is hereby amended, effective July 1, 1956, by substituting "5" for "4½" as the interest rate for the Federal Land Bank of Springfield.

(Secs. 12 "Second," 17, 39 Stat. 370, 375, as amended; 12 U. S. C. 771 "Second", 831)

[SEAL] A. T. ESGATE,
Acting Governor.

[F. R. Doc. 56-5122; Filed, June 27, 1956; 8:53 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 54117]

PART 8—LIABILITY FOR DUTIES; ENTRY OF IMPORTED MERCHANDISE

DESIGNATION OF MERCHANDISE TO BE EXAMINED

When portions of a lot of foreign merchandise in a nonprivileged status in a foreign-trade zone have been entered for consumption, collectors of customs have been designating packages or quantities of each portion separately entered to be opened and examined for the purpose of appraisement or otherwise and ordering such packages or quantities to be sent to the public stores or other places for such purposes.

It is found that the designation for examination of packages from each portion from one zone lot of uniform merchandise covered by one invoice is not necessary under certain conditions for the purpose of amply protecting the revenue.

To incorporate this change, § 8.22 of the Customs Regulations is amended by designating the material now following the caption as paragraph "(a)", and by adding a new paragraph (b), as follows:

(b) When a portion of a zone lot of nonprivileged foreign merchandise, which merchandise is covered by one invoice and the contents and value of packages of such merchandise are uniform or the merchandise is identical as to character and value although differing as to quantity and aggregate value per package, has been entered and packages or quantities thereof have been designated for examination for customs purposes designation of packages or quantities for examination from subsequent portions of such zone lot of merchandise under entries for consumption by the same importer at the same port of entry, and which entries identify the first consumption entry of a portion of such lot entered by that importer, need not be made except that the collector may designate for examination any packages or quantities of any such subsequent portions if in his discretion he deems such examination necessary or advisable.

(Sec. 499, 46 Stat. 728, as amended; 19 U. S. C. 1499)

(Secs. 499, 624, 46 Stat. 728, as amended, 759; 19 U. S. C. 1499, 1624)

[SEAL] RALPH KELLY,
Commissioner of Customs.

Approved: June 21, 1956.

DAVID KENDALL,
Acting Secretary of the Treasury.

[F. R. Doc. 56-5121; Filed, June 27, 1956; 8:53 a. m.]

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 201]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

PROCEDURE ALTERATIONS

The standard instrument approach procedure alterations appearing hereinafter are adopted to become effective when indicated in order to promote safety. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 609 is amended as follows:

NOTE: Where the general classification (LFR, VAR, ADF, ILS, GCA, or VOR), location, and procedure number (if any) of any procedure in the amendments which follow, are identical with an existing procedure, that procedure is to be substituted for the existing one, as of the effective date given, to the extent that it differs from the existing procedure; where a procedure is canceled, the existing procedure is revoked; new procedures are to be placed in appropriate alphabetical sequence within the section amended.

1. The low frequency range procedures prescribed in § 609.6 are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles. Elevations and latitudes are in feet, MSL. Ceilings are in feet above airport elevation.

If an LFR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport, authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums				If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	2 engines or less		More than 2 engines (more than 65 knots)	
								65 knots or less	More than 65 knots		
1	2	3	4	5	6	7	8	9	10	11	12
PENSACOLA, FLA. Municipal, 121'. SBRAZ-PNS. Procedure No. 1. Amendment No. 9. Effective date: July 21, 1956. Supersedes Amendment 8, dated July 8, 1954. Major changes: Revise transitions. Revise courses due variation. Convert to nautical miles. Change airport name form Hagler to Municipal.	Pensacola VOR	100—6.0	1,700	E side of S course: 161° outbound. 341° inbound. 1,200' within 10 miles. Beyond 10 miles not authorized.	700	341—1.8	T-dn C-dn S-dn 35 A-dn	300-1 400-1 400-1 800-2	300-1 500-1 400-1 800-2	300-½ 500-1½ 400-1 800-2	Within 1.8 miles turn right, climb to 1,200' on S course (161) within 10 miles. CAUTION: Danger area beyond 10 miles.
	Gonzalez LF intersection	161—10.0	1,200								
	Millview LF intersection	078—11.0	1,700								

2. The terminal very high frequency omnirange (TVOR) procedures prescribed in § 609.9 are amended to read in part:

TVOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses, and radials are magnetic. NOTE: Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.

If a TVOR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for an en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility; class and identification; procedure No. (TVOR); effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance from int. runway center line extended and final course to approach end of runway	Ceiling and visibility minimums				If visual contact not established at TVOR, or if landing not accomplished
							Condition	2 engines or less		More than 2 engines; more than 65 knots	
								65 knots or less	More than 65 knots		
1	2	3	4	5	6	7	8	9	10	11	12
LANCASTER, PA. Municipal, 403'. TVOR-LRP. TVOR-8. Amendment No. 1. Effective date: July 21, 1956. Supersedes Amendment Original, dated May 5, 1956. Major change: Revises straight-in landing minimums. Facility owned and operated by the Lancaster Airport Authority.	Lancaster Intersection	066—3.8	2,000	S side of course: 262° outbound. 082° inbound. 2,000' within 10 miles of TVOR.	#800	075—0.57	T-dn C-dn S-dn 8 A-dn	300-1 500-1 400-1 800-2	300-1 600-1 400-1 800-2	---------- ---------- ---------- ----------	Climb to 2,000' on radial 082° within 10 miles and return to TVOR at 2,000'. #Maintain 1,200' until after passing Landisville Intersection. If aircraft not equipped to identify Landisville Intersection*, ceiling minimum of 800' is applicable for landing. *Intersection Lancaster, Pa., TVOR 262° radial and Harrisburg, Pa., 115° radial or 138° bearing to Lancaster, Pa. Radiobeacon. CAUTION: 1,490' tower 17 miles SW of airport. Do not descend below 2,000' on final approach until past Harrisburg, Pa., VOR 120° radial.
	Lancaster Radiobeacon	061—4.2	2,000								
	Landisville Intersection* (final).	082—5	#800								
LANCASTER, PA. Municipal, 403'. TVOR-LRP. TVOR-33. Amendment No. 1. Effective date: July 21, 1956. Supersedes Amendment Original, dated May 5, 1956. Major changes: Revises landing minimums. Facility owned and operated by the Lancaster Airport Authority.	Lancaster Radiobeacon	061—4.2	2,000	N side of course: 136° outbound. 316° inbound. 2,000' within 10 miles.	900	307—0.32	T-dn C-dn A-dn	300-1 500-1 800-2	300-1 500-1 800-2	---------- ---------- ----------	Climb to 2,000' on radial 316° within 10 miles. Make left turn and return to Lancaster TVOR at 2,000'.
	Lancaster Intersection	066—3.8	2,000								

3. The instrument landing system procedures prescribed in § 609.11 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.

If an ILS instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below:

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope intercept inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums				If visual contact not established upon descent to authorized landing minimums or if landing not accomplished—
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	2 engines or less: 65 knots or less	2 engines or less: More than 65 knots	More than 2 engines (more than 65 knots)	
1	2	3	4	5	6	7	8	9	10	11	12	13	14
EVANSVILLE, IND. Dress Memorial, 389'. ILS-EVV. LOM-EV. Procedure No. 1. Combination ILS,-ADF. Amendment No. 4. Effective date: July 21, 1956. Supersedes Amendment 3, dated July 15, 1954. Major changes: (1) New form converted to knots; (2) back course transition deleted; (3) columns 8 and 9 raised, glide slope changed; (4) column 14 and air carrier notes revised.	Intersection EVV-VOR R062 and 254 bearing to LOM.	LOM	254—14.8	1,800	N side of NE course: 035° outbound. 215° inbound. 1,800' within 10 miles.	ILS 1,800 / ADF 1,300	1,704—3.9	632—0.5	T-dn C-d C-n	300-1 600-1 600-2	300-1 600-1 600-2	*200-½ 600-1½ 600-2	Within 3.9 miles after passing LOM, make left climbing turn, climb to 2,000' on 180° track from LMM (or airport) to R80, proceed to EVV-VOR on R80. If further instructions not received, hold SW of VOR at 2,000'. When directed by ATC: (1) Make climbing right turn, climb to 2,000' on 330 track from LMM (or airport) to R355 and proceed outbound on R355 within 20 miles of EVV-VOR.
	Intersection EVV-VOR R077 and 284 bearing to LOM.	LOM	284—16.1	1,800					S-dn 21 **ILS	400-1	400-1	400-1	
	Intersection EVV-VOR R030 and 190 bearing to LOM.	LOM	190—17.4	1,800					S-d 21 ADF	500-1	500-1	500-1	
	EVV-VOR	LOM	051—16.9	2,000					S-n 21 ADF	500-1½	500-1½	500-1½	
									A-dn #ILS	600-2	600-2	600-2	
									ADF	800-2	800-2	800-2	
													CAUTION: Radio tower 975' mean sea level 3.6 miles SW of airport. AIR CARRIER NOTES: Sliding scale authorized only on runways 3-21 and 18-36. *300-1 on runways 9 and 27. **500-1 required with glide slope inoperative. Inoperative ILS components provisions regarding approach lights not applicable. #All installed components of ILS must be operating, otherwise, alternate minimums of 800-2 apply.
MILWAUKEE, WIS. General Mitchell, 698'. ILS-MKE. LOM-MK. Procedure No. 1. Combination ILS-ADF. Amendment No. 8. Effective date: June 21, 1956. Supersedes Amendment 7, dated May 9, 1956. Major changes: ILS straight-in minimums raised due to obstructions.	MKE-LFR	LOM	195—2.2	2,000	E side of S course: 180° outbound. 000° inbound. 2,000' within 10 miles.	ILS 2,000 / ADF 1,400 over LOM	2,035—4.0	918—0.5	T-dn C-dn	300-1 600-1	300-1 600-1	200-½ 600-1½	Within 4 miles after passing LOM, climb to 2,700' on N course. MKE-LFR within 20 miles, or when directed by ATC, make left climbing turn to 2,300' and intercept 100R MKE-VOR and proceed to MKE-VOR. *Descent to 2,000' authorized after passing intersection inbound.
	Franksville FM (final)	LOM	354—6.5	ILS 2,000					S-dn 1 ILS	300-1	300-1	300-1	
	Franksville FM (final)	LOM	354—6.5	ADF 1,400					ADF	400-1	400-1	400-1	
	MKE VOR	LOM	127—22.6	2,300					A-dn ILS	600-2	600-2	600-2	
	Intersection N course MKE LFR and ILS S course.	LOM	186—3.7	2,000					ADF	800-2	800-2	800-2	
	Genesee FM	LOM	106—21.7	2,000									
	Racine Intersection VHF.	LOM	302—11.3	*3,000									
	Cardinal Intersection VHF.	LOM	186—14.8	2,700									

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope interception inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums				If visual contact not established upon descent to authorized landing minimums or if landing not accomplished—
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	2 engines or less: 65 knots or less	2 engines or less: More than 65 knots	More than 2 engines (more than 65 knots)	
1	2	3	4	5	6	7	8	9	10	11	12	13	14
PENSACOLA, FLA. Municipal, 121'. ILS-IPNS. LOM-PN. Combination ILS-ADF. Procedure No. 1. Amendment No. 1. Effective date: July 21, 1956. Supersedes Amendment Original, dated September 24, 1954. Major changes: Revise transitions. Revise approach course due variation. Revise missed approach distance. Convert to nautical miles.	Pensacola VOR	OM	055—8.0	1,700	E side of N course: 343° outbound. 163° inbound. 1,300' within 10 miles. Beyond 10 miles not authorized.	1,300 ADF	1,266—3.7	329—0.5	T-dn	300-1	300-1	200-½	Climb to 1,200' on S course ILS or within 3.7 miles of LOM (ADF), climb to 1,200' on course of 163° within 10 miles. CAUTION: Warning area beyond 10 miles. No approach lights. *400-¾ required when glide path not utilized. Procedure turn nonstandard due control area limits.
									C-dn	400-1	500-1	500-1¼	
	Pensacola LFR	LOM	343—6.5	1,200		700 over LOM			S-dn 17				
	Gonzalez VHF (Intersection (final).	OM	163—3.0	ILS 1,200 ADF 700					*ILS	300-¾	300-¾	300-¾	
									ADF	400-1	400-1	400-1	
	Gonzalez LF Intersection (final).	LOM	163—3.6	ILS 1,300 ADF 700					A-dn				
									ILS	600-2	600-2	600-2	
									ADF	800-2	800-2	800-2	
PENSACOLA, FLA. Municipal, 122'. ILS-IPNS. Procedure No. 2. (Back course ILS localizer.) Amendment Original. Effective date: July 21, 1956.	Pensacola VOR	Blanchard Intersection.	100—8.0	1,700	E side of S course: 163° outbound. 343° inbound. 1,200' within 10 miles of Blanchard Intersection. Beyond 10 miles not authorized due danger area.	No glide slope.	Blanchard Intersection to Runway 35 343°—1.8 miles.		T-dn	300-1	300-1	200-½	Within 1.8 miles, turn right climb to 1,200' on S course of ILS within 10 miles. CAUTION: Danger area beyond 10 miles.
									C-dn	400-1	500-1	500-1¼	
	Gonzalez VHF Intersection.	Blanchard Intersection.	163—10.0	1,200		700 over Blanchard Intersection			S-dn 35	400-1	400-1	400-1	
									A-dn	800-2	800-2	800-2	

4. The ground controlled approach procedures prescribed in § 609.13 are amended to read in part:

GCA STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. NOTE: Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.

If a GCA instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with GCA to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a PAR approach, or for more than 30 seconds during an ASR approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

City and State; airport name; airport elevation; effective date	Radar terminal area; maneuvering altitudes by sectors and limiting distances	Ceiling and visibility minimums								Missed approach procedure
		Runway No.	* Condition	Precision approach (PAR)			Surveillance approach (ASR)			
				2 engines or less		More than 2 engines	2 engines or less		More than 2 engines	
				65 knots or less	Over 65 knots	Over 65 knots	65 knots or less	Over 65 knots	Over 65 knots	
1	2	3	4	5	6	7	8	9	10	11
ATLANTA, GA. Atlanta, 1,024'. Procedure No. 1. Amendment Original. Effective date: Commissioning of facility approximately July 21, 1956.	Sectors measured from airport. 0-360, 3,000' within 25 miles. 070-290, 2,200' within 15 miles.	All	T-dn	300-1	300-1	200-½	300-1	300-1	200-½	9R and 3, climb to 3,000' and proceed to Conyers Intersection via E course ILS or climb to 3,000' on NE course. ATL LFR within 20 miles. 15R, climb to 2,200', turn right and proceed to ATL VOR or proceed on SE course of ATL LFR within 20 miles. 27L, 33L, climb to 3,000' and proceed to Campbellton Intersection via W course. ILS, or turn left and proceed on SW course of ATL LFR within 20 miles.
		9R, 15R, 27L, 33L, 3.	C-dn	400-1	500-1	500-1½	400-1	500-1	500-1½	
		9R	S-dn	200-½	200-½	200-½	400-1	400-1	400-1	
		15R	S-dn	----------	----------	----------	500-1	500-1	500-1	
		27L, 33L, 3	S-dn	----------	----------	----------	400-1	400-1	400-1	
BOSTON-BEDFORD, MASS. Hanscom, 135'. Procedure No. 1. Amendment Original. Effective date: July 21, 1956. This procedure premised on the use of USAF GCA.	All directions 2,000' within 15 miles.	All	T-dn	300-1	300-1	200-½	300-1	300-1	200-½	Make an immediate left turn to 330°, climb to 2,000', then go direct to Bedford "HW" facility or as approach control directs. Loss of communications procedure: Climb to 2,000', then go direct to Bedford "HW" facility or as approach control directs. CAUTION: 570' mean sea level tower 3 miles NE of airport.
		All	C-dn	300-1	500-1	500-1½	500-1	500-1	500-1½	
		11	S-dn	400-1	400-1	400-1	500-1	500-1	500-1	
		5	S-dn	----------	----------	----------	500-1	500-1	500-1	
GALENA, ALASKA. Galena Airport, 120'. Procedure No. 1. Amendment No. 3. Effective date: June 21, 1956. Supersedes Amendment 2, dated April 14, 1956. Major changes: Correct bearing error in column 11.	Transition to Galena GCA 4,000' from Galena LFR.	25	S-dn	200-½	200-½	200-½	----------	----------	----------	Climb to 3,000' on W course (245°) within 22 miles.
		All runways	T-dn	300-1	300-1	200-½	----------	----------	----------	
			C-dn	400-1	500-1	500-1½	----------	----------	----------	
			A-dn	600-2	600-2	600-2	----------	----------	----------	

These procedures shall become effective on the dates indicated on the procedures.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

[SEAL]

JAMES T. PYLE,
Acting Administrator of Civil Aeronautics.

[F. R. Doc. 56-4768; Filed, June 27, 8:45 a. m.]

TITLE 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

Subchapter B—Trade Practice Conference Rules

[File No. 21-335]

PART 36—POULTRY HATCHING AND BREEDING INDUSTRY

Due proceedings having been held under the trade practice conference procedure in pursuance of the Act of Congress approved September 26, 1914, as amended (Federal Trade Commission Act), and other provisions of law administered by the Commission:

It is now ordered, That the trade practice rules of Group I and Group II, as hereinafter set forth, which have been approved and received, respectively, by the Commission in this proceeding, be promulgated as of June 30, 1956.

Statement by the Commissioner. Trade Practice rules for the poultry hatching and breeding industry, as hereinafter set forth, are promulgated by the Federal Trade Commission under the trade practice conference procedure. Such rules constitute a revision and extension of the trade practice rules for the baby chick industry promulgated by the Commission on September 15, 1948, and supersede the 1948 rules.

The industry for which these rules are established is composed of persons, firms, corporations, and organizations engaged in the marketing of any kind or kinds of live poultry for growing, breeding, or egg or meat production, and of poultry eggs for hatching use. The live poultry mentioned includes, but is not limited to, chicks, poults, goslings, and ducklings.

The rules are directed to the prevention and elimination of various practices deemed to be violative of laws administered by the Commission. They are to be applied to such end and to the exclusion of any acts or practices which suppress competition or otherwise restrain trade.

Proceedings for the establishment of these rules were instituted upon application of the American Poultry and Hatchery Federation. After due consideration of proposals received, proposed rules for the poultry hatching and breeding industry were published by the Commission and made available to all industry members and other interested or affected parties upon public notice whereby they were afforded opportunity to present their views, including such pertinent information, suggestions, or amendments as they desired to offer and to be heard in the premises. Pursuant to such notice, public hearings were held at Kansas City, Missouri, and at Washington, D. C., on February 13 and 29, 1956, respectively, and all matters there presented, or otherwise received in the proceedings, were duly considered by the Commission.

Thereafter, and upon full consideration of the entire matter, final action was taken by the Commission whereby it approved and received, respectively, the Group I and Group II rules as hereinafter set forth. The Group II rules are not of the type presently the subject of a general study by the Commission.

Such rules become operative thirty (30) days from the date of promulgation.

The rules. These rules promulgated by the Commission are designed to foster and promote the maintenance of fair competitive conditions in the interest of protecting industry, trade, and the public. It is to this end, and to the exclusion of any act or practice which fixes or controls prices through combination or agreement, or which unreasonably restrains trade or suppresses competition, or otherwise unlawfully injures, destroys, or prevents competition, that the rules are to be applied.

GROUP I

General statement. The unfair trade practices embraced in the rules herein are considered to be unfair methods of competition, unfair or deceptive acts or practices, or other illegal practices, prohibited under laws administered by the Federal Trade Commission; and appropriate proceedings in the public interest will be taken by the Commission to prevent the use, by any person, partnership, corporation, or other organization subject to its jurisdiction, of such unlawful practices in commerce.

Sec.

36.0 The industry and its products.

GROUP I

36.1 Misrepresentation of products.
36.2 Deceptive concealment of material facts.
36.3 Deceptive claims relating to National Poultry Improvement Plan or National Turkey Improvement Plan.
36.4 Guarantees, warranties, etc.
36.5 Deceptive testimonials.
36.6 Deceptive claims respecting freedom or immunity from disease.
36.7 Substitution of chicks different from those ordered.
36.8 Fictitious prices.
36.9 Misrepresenting offer as "special," etc.
36.10 Misrepresenting chicks as from high-performance stock.
36.11 Misrepresentation as to yields of eggs, as to chicks from hens with purported high egg-laying records, as to chicks from high egg-producing stock, etc.
36.12 Misuse of words "hatchery," "chickery," "chick nursery," "farm," "poultry farm," "breeding farm," and related representations.
36.13 Deception as to transportation or c. o. d. charges.
36.14 Deceptive representations as to earnings, etc.
36.15 Use of the word "free."
36.16 Deception by means of "bogus independents," "chick outlets," etc.
36.17 Misrepresentation respecting new breed of poultry.
36.18 Misuse of the term "strain."
36.19 Misuse of term "dominant white," etc.
36.20 Misrepresentation as to breeding, etc.
36.21 False or misleading price quotations, etc.
36.22 Defamation of competitors or false disparagement of their products.
36.23 Prohibited sales below cost.
36.24 Prohibited discrimination.
36.25 Aiding or abetting use of unfair trade practices.

GROUP II

36.101 Shipping chicks to fictitious consignees, etc.
36.102 Failure to give notice of change in shipping schedule.

AUTHORITY: §§ 36.0 to 36.102 issued under sec. 6, 38 Stat. 721; 15 U. S. C. 46. Interpret or apply sec. 5, 38 Stat. 719, as amended; 15 U. S. C. 45.

§ 36.0 *The industry and its products.* Members of the industry to which the rules have application are persons, firms, corporations, and organizations engaged in the marketing of any kind or kinds of live poultry for growing, breeding, or egg or meat production, and of poultry eggs for hatching use. The live poultry mentioned includes, but is not limited to, chicks, poults, goslings, and ducklings.

NOTE: As used in these rules, the word "chicks" shall be construed to include all kinds of live young poultry.

§ 36.1 *Misrepresentation of products.* In the sale, offering for sale, or distribution of industry products, it is an unfair trade practice for any member of the industry to make or publish, or cause to be made or published, any statement or representation (whether in the form of advertisement, trade promotional literature, mark, stamp, brand, label, depiction, photograph, illustration, radio or television broadcast, or otherwise) concerning:

(a) The grade, quantity, breed, strain, cross, pedigree, type, sex, sexing, culling, quick maturity, uniform development, livability, vigor, strength, character, nature, origin, weight, color, size, egg-producng, meat-producing, or other qualities of such products; or

(b) The production, sale, distribution, or delivery thereof; or

(c) The supervision, endorsement, or approval of any poultry breeding, hatching, or other operation by Federal, State, or other authority, or any official connection with such Federal, State, or other authority; or

(d) Any other matter relating to the poultry hatching or breeding business or to any of its products which, directly or by implication, is false, misleading, or deceptive in any respect.

NOTE: The inhibitions of this section are to be understood as applicable to representations or implications, such as "A," "AA," "AAA," etc., that any industry product conforms to the requirements of any grade or quality standard when (1) no such grade or quality standard exists, or (2) no disclosure of the identity of such standard, whether private, official, or otherwise, is made, or (3) when the member's product does not conform to such grade or quality standard.

[Rule 1]

§ 36.2 *Deceptive concealment of material facts.* (a) In advertising, offering for sale, or selling industry products, it is an unfair trade practice for any member of the industry to fail to disclose any material facts relating to such products when such failure has the capacity and tendency or effect of misleading or deceiving purchasers or prospective purchasers of such products.

(b) Among the practices inhibited by this section are the following:

(1) Filling chick orders with chicks which are wholly or predominantly cockerels without having disclosed this fact to the purchaser prior to sale.

(2) Offering chicks for sale without disclosing, prior to shipment, the fact that such chicks are cockerels of one sort

or another when such is the case, or are of a different breed or breeds than indicated in the offer, or that such chicks will be shipped upon dates later or different from those specified or implied.

(3) Representing that the parent flocks of chicks contain certain desirable types of males or females without disclosure of the approximate percentage or proportion of the flocks accounted for by such types. [Rule 2]

§ 36.3 *Deceptive claims relating to National Poultry Improvement Plan or National Turkey Improvement Plan.* (a) In connection with the sale, offering for sale, or distribution of industry products, it is an unfair trade practice for any industry member to represent or imply that he is a participant in the National Poultry Improvement Plan[1] or the National Turkey Improvement Plan,[1] when such is not the fact.

NOTE: In order to avoid deception of purchasers or prospective purchasers of industry products, all industry members discontinuing participation in the National Poultry Improvement Plan, or the National Turkey Improvement Plan, shall immediately remove and discontinue the use of all signs, promotional literature, labels, and other representations or indications that they are still participating in any such Plan or Plans.

(b) In connection with the sale, offering for sale, or distribution of industry products, it is an unfair trade practice to use any of the terminology of the National Poultry Improvement Plan or the National Turkey Improvement Plan (such as "U. S. Approved," "U. S. Pullorum-Typhoid Clean," etc.), or any abbreviation or simulation of such terminology, as descriptive of industry products to which such terms are not fully applicable in accordance with the requirements therefor specified in such Plans. [Rule 3]

§ 36.4 *Guarantees, warranties, etc.* (a) In the sale, offering for sale, or distribution of industry products, it is an unfair trade practice for any industry member:

(1) To represent that any industry product is guaranteed unless, in close conjunction with such representation, the identity of the guarantor, the extent and nature of the guarantee, and any material conditions or limitations relating to the liability of the guarantor under the guarantee, are adequately and nondeceptively disclosed; or

(2) To offer or use any guarantee respecting an industry product under which the guarantor fails to observe his obligations thereunder; or

(3) To offer or use any guarantee which is otherwise deceptive or unfair.

(b) This section shall be applicable not only to guarantees but also to warranties, to purported guarantees and warranties, and to any promise or representation in the nature of a guarantee or warranty. [Rule 4]

§ 36.5 *Deceptive testimonials.* In the sale, offering for sale, or distribution of industry products, it is an unfair trade practice for any industry member to use or cause to be used, any testimonial which is false or misleading in any material respect. Among the kinds of testimonials inhibited by this section are the following:

(a) Testimonials containing inaccurate statements as to results obtained from industry products of any certain kind or type; or

(b) Testimonials regarding results obtained from industry products purchased from a certain seller or sellers which, by reason of inaccurate statements therein contained, or absence of disclosure of relevant facts, have the capacity and tendency or effect of deceiving purchasers or prospective purchasers of industry products. [Rule 5]

§ 36.6 *Deceptive claims respecting freedom or immunity from disease.* (a) In the sale, offering for sale, or distribution of industry products, it is an unfair trade practice for any industry member to advertise, describe, or otherwise represent or imply, that chicks or hatching eggs are free from any or all diseases when such is not the fact.

NOTE: At present there exist no tests, inoculations, vaccinations, etc., which poultry disease experts consider adequate to assure that chicks or hatching eggs are completely and absolutely free from any or all poultry diseases. Accordingly, such claims as "disease free," "pullorum free," or "100 percent pullorum free," must not be made by industry members.

Requirements applicable to claims and representations respecting tests, inoculations, vaccinations, and treatments for poultry diseases are set forth in paragraphs (b) and (c) of this section.)

(b) In the sale, offering for sale, or distribution of industry products, it is an unfair trade practice for any industry member to advertise, describe, or otherwise represent or imply, that chicks or hatching eggs come from birds or flocks which have been tested for pullorum, typhoid, and/or other disease or diseases, when:

(1) Such birds or flocks have not been tested for the particular disease or diseases during the current season; or

(2) The tests applied are not recognized by poultry disease experts as effective; or

(3) The methods used in making the tests, the number, timing, or manner of applying them, the qualifications of the person or persons making them, or other attendant circumstances, are not such as to assure of effectiveness of the tests.

(c) In the sale, offering for sale, or distribution of industry products, it is an unfair trade practice for any industry member to advertise, describe, or otherwise represent or imply, that chicks have been vaccinated, inoculated, or treated for any disease or diseases, when such is not the fact, or when the vaccination, inoculation, or treatment applied is of a kind not recognized by poultry disease experts as effective, or when the method used in the vaccination, inoculation, or treatment, or the timing or extent of the vaccination, inoculation, or treatment, the qualifications of the person or persons making the vaccination, inoculation, or treatment, or other attendant circumstances, are not such as to assure of their effectiveness. (See also the first paragraph of the note which follows paragraph (a) of this section.) [Rule 6]

§ 36.7 *Substitution of chicks different from those ordered.* (a) It is an unfair trade practice to advertise, describe, or otherwise represent, chicks as being of a certain strain, grade, trade name, or quality, and, upon receipt of orders for such chicks, filling same with chicks of a different strain, grade, trade name, or quality, without first obtaining the consent of the purchasers to such substitutions.

(b) It is also an unfair trade practice, upon receiving orders for industry products of a certain kind, strain, grade, trade name, or quality, to fill such orders with a different kind, strain, grade, trade name, or quality, without first obtaining consent of the purchaser to such substitution. [Rule 7]

§ 36.8 *Fictitious prices.* It is an unfair trade practice to sell or offer for sale industry products at prices purported to be reduced from what are in fact fictitious prices, or to sell or offer for sale such products at a purported reduction in price when such purported reduction is in fact fictitious or is otherwise misleading or deceptive. [Rule 8]

§ 36.9 *Misrepresenting offer as "special," etc.* It is an unfair trade practice to represent an offer as "special" with reference to price, terms, or otherwise, when it is in fact a regular offer; or otherwise to use the term "special" or any term or word of similar import, as descriptive of any offer, in a manner, or under conditions, having the capacity and tendency or effect of misleading or deceiving purchasers or prospective purchasers as to the true nature of the offer. [Rule 9]

§ 36.10 *Misrepresenting chicks as from high-performance stock.* It is an unfair trade practice to advertise, descibe, or otherwise represent that chicks sold or offered for sale are the progeny of, are descended from, are closely related to, or are of the strain of, high-performance stock or poultry, when such is not the fact. [Rule 10]

§ 36.11 *Misrepresentation as to yields of eggs, as to chicks from hens with purported high egg-laying records, as to chicks from high egg-producing stock, etc.*—(a) *Misrepresentation as to yields of eggs.* It is an unfair trade practice to represent, directly or by implication, through advertising or otherwise, that high yields of eggs are received from all or any flocks of a particular seller or producer when such is not the fact, or when such is untrue in whole or in part.

(b) *Misrepresentation as to chicks from hens with purported high egg-laying records.* It is an unfair trade practice to represent, directly or by implication, through advertising or otherwise, that chicks are produced by hens having certain purported high egg-laying records when the records of such hens have not been adequately established and the period of time and the method used are not clearly disclosed in the advertising.

[1] These Plans have been promulgated by the United States Department of Agriculture and are contained in the Code of Federal Regulations, 9 CFR Parts 145, 146, and 147.

(c) *Misrepresenting chicks as from high egg-producing stock, etc.* It is an unfair trade practice to represent, directly or by implication, through advertising or otherwise, that chicks offered for sale are of high egg-producing stock when such qualities have not been established, or when such representation is otherwise false, misleading, or deceptive. [Rule 11]

§ 36.12 *Misuse of words "hatchery," "chickery," "chick nursery," "farm," "poultry farm," "breeding farm," and related representations.* In the sale, offering for sale, or distribution of chicks, it is an unfair trade practice for any member of the industry, by trade or corporate name, through advertising or otherwise:

(a) To hold himself out as owning or operating a hatchery, chickery, chick nursery, poultry farm, poultry breeding business, or as being the producer of chicks, or as operating incubators or producing chicks under claimed or specified conditions, when such is not the fact; or

(b) To use the terms "hatchery," "farm," "poultry farm," "breeding farm," or similar representations, in such manner as to have the capacity and tendency or effect of misleading or deceiving purchasers or prospective purchasers into the belief that the chicks have been produced in a hatchery or on a farm, poultry farm, or breeding farm, of said industry member, when such is not the fact.

(c) Nothing in this section, however, shall be construed as prohibiting an industry member, who actually owns and operates a farm primarily devoted to the production of chicks, from selling, offering for sale, or distributing, under a trade, corporate, or other name containing the word "farm," chicks produced from flocks of cooperating farms along with chicks produced on such member's own farm, if and when the industry member has and exercises direct supervision and control over all operations and conditions material to the quality, health, and vigor of all said chicks, including selection of the breeding stock of which such chicks are the progeny, and all breeding and disease-control practices. [Rule 12]

§ 36.13 *Deception as to transportation or C. O. D. charges.* (a) It is an unfair trade practice to sell or offer to sell chicks, through advertising or otherwise, in such manner as to have the capacity and tendency or effect of misleading or deceiving purchasers or prospective purchasers into the belief that the prices quoted for such chicks are the prepaid or delivered prices when such is not the fact.

(b) It is an unfair trade practice, by failing correctly to inform customers, or by other deception, to cause purchasers to believe that transportation costs will not be charged against them in C. O. D. charges or otherwise, when such is not true in fact. [Rule 13]

§ 36.14 *Deceptive representations as to earnings, etc.* It is an unfair trade practice to make false, misleading, or deceptive statements or representations regarding opportunities for making money or of actual or probable earnings of agents or dealers handling hatching eggs, chicks, or other poultry, or of purchasers raising chicks or other poultry. [Rule 14]

§ 36.15 *Use of the word "free."* In connection with the sale, offering for sale, or distribution of industry products, it is an unfair trade practice to use the word "free," or any other word or words of similar import, in advertisements or in other offers to purchasers or prospective purchasers, as descriptive of any product or service, which is not an unconditional gift, under the following circumstances:

(a) When all the conditions, obligations, or other prerequisites to the receipt and retention of the "free" product or service offered are not clearly and conspicuously set forth at the outset so as to leave no reasonable probability that the terms of the offer will be misunderstood; and, regardless of such disclosure:

(b) When, with respect to any product required to be purchased in order to obtain the "free" product or service, the offerer (1) increases the ordinary and usual price of such industry product, or (2) reduces its quality, or (3) reduces the quantity or size thereof.

NOTE: The disclosure required by paragraph (a) of this section shall appear in close conjunction with the word "free" (or other word or words of similar import) wherever such word first appears in each advertisement or offer. A disclosure in the form of a footnote, to which reference is made by use of an asterisk or other symbol placed next to the word "free," will not be regarded as compliance.

[Rule 15]

§ 36.16 *Deception by means of "bogus independents," "chick outlets," etc.* It is an unfair trade practice for any member of the industry:

(a) To represent, directly or by implication, that a certain chick outlet is independent of, or in competition with, said member, when such is not the fact; or

(b) To fail to disclose that any such outlet is not independent of, or not in competition with, said member, under circumstances where the failure to make such disclosure has the capacity and tendency or effect of misleading or deceiving purchasers or prospective purchasers. [Rule 16]

§ 36.17 *Misrepresentation respecting new breed of poultry.* (a) It is an unfair trade practice to offer for sale, sell, advertise, describe, or otherwise represent, directly or by implication, any chicks or other poultry as being a new breed or as being the progeny of a new breed, when such is not the fact.

(b) This section shall not be construed as preventing chicks or other poultry from being described as a new breed if and when they meet the following definition or specification for a new breed as proposed by the industry and no deception is practiced in relation to such designation or description:

New Breed. A group of birds which are of similar size, shape, and skin color and differ from existing breeds in these characters or in the combination of these characters, and the varieties within the breed have similar plumage color and pattern, comb type, and other distinguishing physical characteristics, all of the characteristics of the breed and variety being demonstrated as having been reproduced with a high degree of uniformity.

[Rule 17]

§ 36.18 *Misuse of the term "strain."* It is an unfair trade practice to represent, through advertising or otherwise, directly or by implication, chicks as being of a breeder's strain, unless such chicks are first or second generation progeny of stock originating from eggs produced by the breeder, or are from stock purchased from the breeder of the strain and mated each subsequent generation only to males secured from such breeder, or the vendor of such chicks is designated by the breeder as a multiplier of such stocks.

NOTE: The term "strain" as used in this section means poultry bearing a given name produced through at least five generations of closed flock breeding.

[Rule 18]

§ 36.19 *Misuse of term "dominant white," etc.* It is an unfair trade practice to represent, through advertising or otherwise, directly or by implication, chickens as "dominant white," or by similar expressions, unless such chickens, when used as either male or female parents in combination with any chickens, produce only progeny that is generally predominantly white in color: *Provided, however,* That when the surface color of such progeny is other than white, the under color must be white. [Rule 19]

§ 36.20 *Misrepresentation as to breeding, etc.* (a) In the sale or offering for sale of poultry, chicks, or hatching eggs, it is an unfair trade practice to make any statement or representation relating to the breeding incident to the production of any such products, or to use any term or designation as descriptive thereof which denotes or implies a certain kind or extent of breeding employed in the production of such products, which has the capacity and tendency or effect of deceiving purchasers or prospective purchasers of such poultry, chicks, or eggs.

(b) For the purpose of this section and in its application, the following terms are acceptable when used in accordance with their respective definitions:

Crossbred. The first generation poultry, chicks, or eggs produced by crossing two different breeds or varieties, or first-generation combinations of breeds or varieties.

Inbred line. A group of inbred chicks resulting from breeding closely related poultry and in which the individuals in question have an average coefficient of inbreeding of 37.5% (equivalent to two generations of brother-sister matings).

In-crossbred. The first generation poultry, chicks, or eggs produced by crossing two inbred lines, first-generation combinations of inbred lines, or the crossing of an inbred line with a first-generation combination of inbred lines.

NOTE: To some purchasers and prospective purchasers of chicks and hatching eggs, the term "hybrid" implies application of genetic principles similar to those employed in the production of hybrid seed corn, and to others the application of a selective system of breeding dissimilar to that employed in the production of hybrid seed corn.

The term is generally regarded as denoting a superior quality and vigor resulting from systematic breeding and shall only be used to describe chicks and hatching eggs having such superior quality and vigor.

In the interest of avoiding deception of purchasers and prospective purchasers, industry members desiring to use the term "hybrid" as descriptive of such chicks and hatching eggs shall, in addition, confine the use thereof to established industry products obtained by crossing different inbred lines, or by crossing different breeds, varieties, strains, or lines, and shall qualify the word "hybrid" by stating in immediate conjunction therewith the type of cross used in the production of the industry product, such as "inbred line-cross hybrid" or "inbred hybrid," "crossbred hybrid," "strain-cross hybrid," "line-cross hybrid," etc.

Industry members will be expected to maintain adequate breeding records showing the establishment of the advertised product.

[Rule 20]

§ 36.21 *False or misleading price quotations, etc.* It is an unfair trade practice for any member of the industry to publish or circulate price quotations, price lists, or terms or conditions of sale or purchase, which directly, or by reason of concealment of any material limitations, have the capacity and tendency or effect of deceiving purchasers or prospective purchasers. [Rule 21]

§ 36.22 *Defamation of competitors or false disparagement of their products.* The defamation of competitors by falsely imputing to them dishonorable conduct, inability to perform contracts, questionable credit standing, or by other false representations, or the false disparagement of the products of competitors in any respect, or of their business methods, selling prices, values, credit terms, policies, or services, is an unfair trade practice.

NOTE: Among the practices inhibited by this section is that of an industry member promoting or attempting to promote the sale of his chicks by reference to egg-laying tests or contests in which chickens of the same kind, breed, or type as the chicks being offered for sale by the industry member, and chickens of the same or another kind, breed, or type, have participated and are being compared, when, by reason of the circumstances under which such tests or contests have been conducted or absence of disclosure of material facts relating thereto (such as comparative size and weight of eggs), the results of such tests or contests do not accurately and fairly reflect the comparative egg-laying abilities of the different kinds, breeds, or types.

[Rule 22]

§ 36.23 *Prohibited sales below cost.* (a) The practice of selling industry products at a price less than the cost thereof to the seller, with the purpose or intent, and where the effect is, or where there is a reasonable probability that the effect will be, to substantially injure, suppress, or stifle competition or tend to create a monopoly, is an unfair trade practice.

(b) This section is not to be construed as prohibiting all sales below cost, but only such selling below the seller's cost as is resorted to and pursued with the wrongful intent or purpose referred to and where the effect is, or where there is reasonable probability that the effect will be, to substantially injure, suppress, or stifle competition or to create a monopoly. Among the situations in which the requisite purpose or intent would ordinarily be lacking are cases in which such sales were: (1) Of seasonal goods near the conclusion of the season; (2) of perishable goods in respect to which deterioration is imminent; (3) of obsolescent goods; (4) made under judicial process; or (5) made in bona fide discontinuance of business in the goods concerned.

(c) As used in the foregoing paragraphs of this section, the term "cost" means the respective seller's cost and not an average cost in the industry whether such average cost be determined by an industry cost survey or some other method. It consists of the total outlay or expenditure by the seller in the acquisition, production, and distribution of the products involved, and comprises all elements of cost such as labor, material, depreciation, taxes (except taxes on net income and such other taxes as are not properly applicable to cost), and general overhead expenses, incurred by the seller in the acquisition, manufacture, processing, preparation for marketing, sale, and delivery of the products. Not to be included are dividends or interest on borrowed or invested capital, or nonoperating losses, such as fire losses and losses from the sale or exchange of capital assets. Operating cost should not be reduced by items of nonoperating income, such as income from investments, and gain on the sale of capital assets.

(d) Nothing in this section shall be construed as relieving an industry member from compliance with any of the requirements of the Robinson-Patman Act. [Rule 23]

§ 36.24 *Prohibited discrimination*[3]— (a) *Prohibited discriminatory prices, or rebates, refunds, discounts, credits, etc., which effect unlawful price discrimination.* It is an unfair trade practice for any member of the industry engaged in commerce, in the course of such commerce, to grant or allow, secretly or openly, directly or indirectly, any rebate, refund, discount, credit, or other form of price differential, where such rebate, refund, discount, credit, or other form of price differential, effects a discrimination in price between different purchasers of goods of like grade and quality, where either or any of the purchasers involved therein are in commerce, and where the effect thereof may be substantially to lessen competition or tend to create a monopoly in any line of commerce, or to injure, destroy, or prevent competition with any person who either grants or knowingly receives the benefit of such discrimination, or with customers of either of them: *Provided, however:*

(1) That the goods involved in any such transaction are sold for use, consumption, or resale within any place under the jurisdiction of the United States;

(2) That nothing contained in paragraph (a) of this section shall prevent differentials which make only due allowance for differences in the cost of manufacture, sale, or delivery resulting from the differing methods or quantities in which such commodities are to such purchasers sold or delivered;

(3) That nothing contained in this section shall prevent persons engaged in selling goods, wares, or merchandise in commerce from selecting their own customers in bona fide transactions and not in restraint of trade;

(4) That nothing contained in paragraph (a) of this section shall prevent price changes from time to time where made in response to changing conditions affecting the market for or the marketability of the goods concerned, such as but not limited to actual or imminent deterioration of perishable goods, distress sales under court process, or sales in good faith in discontinuance of business in the goods concerned.

(b) *Prohibited brokerage and commissions.* It is an unfair trade practice for any member of the industry engaged in commerce, in the course of such commerce, to pay or grant, or to receive or accept, anything of value as a commission, brokerage, or other compensation, or any allowance or discount in lieu thereof, except for services rendered in connection with the sale or purchase of goods, wares, or merchandise, either to the other party to such transaction or to an agent, representative, or other intermediary therein where such intermediary is acting in fact for or in behalf, or is subject to the direct or indirect control, of any party to such transaction other than the person by whom such compensation is so granted or paid.

(c) *Prohibited advertising or promotional allowances, etc.* It is an unfair trade practice for any member of the industry engaged in commerce to pay or contract for the payment of advertising or promotional allowances or any other thing of value to or for the benefit of a customer of such member in the course of such commerce as compensation or in consideration for any services or facilities furnished by or through such customer in connection with the processing, handling, sale, or offering for sale of any products or commodities manufactured, sold, or offered for sale by such member, unless such payment or consideration is available on proportionally equal terms to all other customers competing in the distribution of such products or commodities.

(d) *Prohibited discriminatory services or facilities.* It is an unfair trade practice for any member of the industry engaged in commerce to discriminate in favor of one purchaser against another purchaser or purchasers of a commodity bought for resale, with or without processing, by contracting to furnish or furnishing, or by contributing to the furnishing of, any services or facilities con-

[3] As used in this section, the word "commerce" means "trade or commerce among the several States and with foreign nations, or between the District of Columbia or any Territory of the United States and any State, Territory, or foreign nation, or between any insular possessions or other places under the jurisdiction of the United States, or between any such possession or place and any State or Territory of the United States or the District of Columbia or any foreign nation, or within the District of Columbia or any Territory or any insular possession or other place under the jurisdiction of the United States."

nected with the processing, handling, sale, or offering for sale of such commodity so purchased upon terms not accorded to all competing purchasers on proportionally equal terms.

(e) *Inducing or receiving an illegal discrimination in price.* It is an unfair trade practice for any member of the industry engaged in commerce, in the course of such commerce, knowingly to induce or receive a discrimination in price which is prohibited by the foregoing provisions of this section.

(f) *Exemptions.* The inhibitions of this section shall not apply to purchases of their supplies for their own use by schools, colleges, universities, public libraries, churches, hospitals, and charitable institutions not operated for profit.

NOTE: In complaint proceedings charging discrimination in price or services or facilities furnished, and upon proof having been made of such discrimination, the burden of rebutting the prima facie case thus made by showing justification shall be upon the person charged; and unless justification shall be affirmatively shown, the Commission is authorized to issue an order terminating the discrimination: *Provided, however,* That nothing contained in this section shall prevent a seller rebutting the prima facie case thus made by showing that his lower price or the furnishing of services or facilities to any purchaser or purchasers was made in good faith to meet an equally low price of a competitor, or the services or facilities furnished by a competitor. See section 2 (b), Clayton Act.

[Rule 24]

§ 36.25 *Aiding or abetting use of unfair trade practices.* It is an unfair trade practice for any person, firm, or corporation to aid, abet, coerce, or induce another, directly or indirectly, to use or promote the use of any unfair trade practice specified in the rules in this part.

GROUP II

Compliance with trade practice provisions embraced in Group II rules is considered to be conducive to sound business methods and it to be encouraged and promoted individually or through voluntary cooperation exercised in accordance with existing law. Nonobservance of Group II rules does not per se constitute violation of law. Where, however, the practice of not complying with such rules is followed in a manner as to result in unfair methods of competition or unfair or deceptive acts or practices in commerce, corrective proceedings in respect thereto may be instituted by the Commission as in the case of violation of Group I rules.

§ 36.101 *Shipping chicks to fictitious consignees, etc.* The industry condemns the practice of disposing of chicks by shipping them to fictitious consignees or without an order from, or consent of, the consignee, necessitating the sale of such undeliverable shipments at public auction by agents of the common carrier in order to secure payment for transportation costs. Such practice is deemed by the industry to be harmful to the chicks and to facilitate the spread of disease. [Rule A]

§ 36.102 *Failure to give notice of change in shipping schedule.* The industry condemns the practice of failing to give proper notice to customers of any change in shipping schedule thereby causing inconvenience and loss to purchasers. [Rule B]

Promulgated by the Federal Trade Commission June 30, 1956.

Issued: June 25, 1956.

[SEAL] ROBERT M. PARRISH, *Secretary.*

[F. R. Doc. 56-5112; Filed, June 27, 1956; 8:51 a. m.]

PART 178—BABY CHICK INDUSTRY

CROSS REFERENCE: For supersedure of the trade practice rules for the baby chick industry contained in Part 178, see Part 36 of this subchapter, *supra.*

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

Subchapter B—Food and Food Products

PART 120—TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

TOLERANCES FOR RESIDUES OF CALCIUM CYANIDE

A petition was filed with the Food and Drug Administration requesting the establishment of tolerances for residues of calcium cyanide in or on buckwheat grain, oat grain, and grain sorghum.

The Secretary of Agriculture has certified that this pesticide chemical is useful for the purposes for which tolerances are being established.

After consideration of the data submitted in the petition and other relevant material which show that the tolerances established in this order will protect the public health, and by virtue of the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 408 (d) (2), 68 Stat. 512; 21 U. S. C. 346a (d) (2)) and delegated to the Commissioner of Food and Drugs by the Secretary (21 CFR 120.7 (g)), the regulations for tolerances for pesticide chemicals in or on raw agricultural commodities (21 CFR Part 120; 21 F. R. 581) are amended by changing § 120.125 to read as follows:

§ 120.125 *Tolerances for residues of calcium cyanide.* A tolerance of 25 parts per million is established for residues of calcium cyanide, calculated as hydrogen cyanide, in or on each of the following grains: Barley, buckwheat, corn, oat, rice, rye, sorghum, wheat.

Any person who will be adversely affected by the foregoing order may, at any time prior to the thirtieth day from the effective date thereof, file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington 25, D. C., written objections thereto. Objections shall show wherein the person filing will be adversely affected by this order, specify with particularity the provisions of the order deemed objectionable and reasonable grounds for the objections, and request a public hearing upon the objections. Objections may be accompanied by a memorandum or brief in support thereof. All documents shall be filed in quintuplicate.

Effective date. This order shall be effective upon publication in the FEDERAL REGISTER.

(Sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 371. Interprets or applies sec. 408, 68 Stat. 511; 21 U. S. C. 346a)

Dated: June 22, 1956.

[SEAL] GEO. P. LARRICK, *Commissioner of Food and Drugs.*

[F. R. Doc. 56-5093; Filed, June 27, 1956; 8:46 a. m.]

PART 141a—PENICILLIN AND PENICILLIN-CONTAINING DRUGS; TESTS AND METHODS OF ASSAY

PART 141c — CHLORTETRACYCLINE (OR TETRACYCLINE) AND CHLORTETRACYCLINE- (OR TETRACYCLINE-) CONTAINING DRUGS; TESTS AND METHODS OF ASSAY

PART 146a—CERTIFICATION OF PENICILLIN AND PENICILLIN-CONTAINING DRUGS

PART 146c—CERTIFICATION OF CHLORTETRACYCLINE (OR TETRACYCLINE) AND CHLORTETRACYCLINE- (OR TETRACYCLINE-) CONTAINING DRUGS

MISCELLANEOUS AMENDMENTS

By virtue of the authority vested in the Secretary of Health, Education, and Welfare by the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 507, 59 Stat. 463, 61 Stat. 11, 63 Stat. 409, 67 Stat. 389; sec. 701, 52 Stat. 1055; 21 U. S. C. 357, 371) and delegated to the Commissioner of Food and Drugs by the Secretary (20 F. R. 1996), the regulations for tests and methods of assay for antibiotic and antibiotic-containing drugs (21 CFR 141a, 141c) and certification of antibiotic and antibiotic-containing drugs (21 CFR 146a, 146c; 21 F. R. 131) are amended as indicated below:

1. In § 141a.32 *Procaine penicillin and buffered crystalline penicillin for aqueous injection, paragraph* (b) (3) (iii) is amended by changing the words "5.0 milliliters" in the first sentence to read "0.5 milliliter".

2. Part 141a is amended by adding the following new sections:

§ 141a.91 *Hydrabamine penicillin V (penicillin V hydrabamine salt)*—(a) *Potency.* Using the penicillin V working standard as the standard of comparison, proceed as directed in § 141a.75.

(b) *Toxicity.* Proceed as directed in § 141a.4, except use physiological salt solution as the diluent and inject 0.25 milliliter of a suspension containing 4,000 units per milliliter.

(c) *Moisture.* Proceed as directed in § 141a.26 (e).

(d) *pH.* Proceed as directed in § 141a.5 (b), using a saturated aqueous solution prepared by adding approximately 5 milligrams per milliliter.

(e) *Microscopical test for crystallinity.* Proceed as directed in § 141a.5 (c).

(f) *Hydrabamine extinction coefficient.* Place in a 125-milliliter separatory funnel an accurately weighed sample of approximately 100 milligrams. Add 20.0 milliliters of spectrophotometric grade chloroform and 20.0 milliliters of 0.5 *N* NaOH. Shake well for 1 minute. Allow the layers to separate, filter the lower chloroform layer through a cotton pledget, and collect the clear chloroform solution. Save the upper alkaline layer. Dilute 5.0 milliliters of the clear chloroform filtrate to 25.0 milliliters with spectrophotometric grade chloroform. Determine the absorbance of this chloroform solution at the absorption peak at 276 mμ, using a suitable ultraviolet spectrophotometer and quartz cells. Set the instrument to 100-percent transmission with chloroform. If a recording spectrophotometer is used, record the ultraviolet absorption spectrum from 250–290 mμ. If a nonrecording spectrophotometer is used, 5.0 milliliters of the chloroform filtrate should be diluted to 50.0 milliliters with chloroform. Determine the absorbance of the solution at the 276 mμ absorption peak, using a slit width of 0.5 millimeter or less. (The exact position of the peak should be determined for the particular instrument used.) Calculate the hydrabamine extinction coefficient as follows:

$$E^{1\%}_{1\text{ cm.}} = \frac{\text{Absorbance at 276 m}\mu}{\text{Grams of sample per 100 ml.}}$$

(g) *Penicillin V content.* Dilute 5.0 milliliters of the alkaline layer described in paragraph (f) of this section to 25.0 milliliters with distilled water. Determine the absorbance of the sample at the absorption peak at 276 mμ, using 0.1 *N* NaOH to set the instrument to 100-percent transmission. If a recording spectrophotometer is used, record the ultraviolet absorption spectrum from 250–290 mμ. If a nonrecording spectrophotometer is used, dilute 5.0 milliliters of the alkaline layer to 50 milliliters with distilled water and determine the absorbance at the 276 mμ absorption peak.

$$\text{Percent penicillin V} = \frac{\text{Absorbance at 276 m}\mu \times 10{,}000}{\text{Grams of sample (per 100 ml.)} \times 31.5 \times 54.1}$$

where:

31.5 is the $E^{1\%}_{1\text{ cm.}}$ (specific absorbance) of pure penicillin V similarly treated, and

54.1 is the percentage of penicillin V in pure hydrabamine penicillin V.

§ 141a.92 *Hydrabamine penicillin V oral suspension*—(a) *Potency.* Using the penicillin V working standard as the standard of comparison, proceed as directed in § 141a.76 (a). Its potency is satisfactory if it contains not less than 85 percent of the number of units per milliliter that it is represented to contain.

(b) *pH.* Proceed as directed in § 141a.5 (b), using the undiluted aqueous suspension.

3. Section 141c.222 *Tetracycline hydrochloride oral suspension* * * * is amended as follows:

a. The section headnote is amended by inserting the words "; *tetracycline oral suspension*" immediately after the words "*tetracycline calcium oral suspension.*"

b. Paragraph (b) *Moisture* is amended by inserting the words ", tetracycline oral suspension," immediately after the words "tetracycline hydrochloride oral suspension".

4. Part 141c is amended by adding the following new section:

§ 141c.229 *Tetracycline-nystatin oral suspension*—(a) *Potency*—(1) *Tetracycline content.* Proceed as directed in § 141c.222 (a). Its content of tetracycline is satisfactory if it contains not less than 85 percent of the number of milligrams that it is represented to contain.

(2) *Nystatin content.* Use 5 milliliters of the sample and proceed as directed in § 141c.224 (a) (1) (ii). Its content of nystatin is satisfactory if it contains not less than 85 percent of the number of units that it is represented to contain.

(b) *Moisture.* Proceed as directed in § 141a.7 (c) of this chapter.

5. Part 146a is amended by adding the following new sections:

§ 146a.72 *Hydrabamine penicillin V (penicillin V hydrabamine salt)*—(a) *Standards of identity, strength, quality, and purity.* Hydrabamine penicillin V is the crystalline hydrabamine salt of penicillin V. It contains not less than 90 percent of the hydrabamine salt of penicillin V. It is so purified and dried that:

(1) Its potency is not less than 825 units per milligram.

(2) It is nontoxic.

(3) Its moisture content is not more than 2 percent.

(4) Its pH in a saturated aqueous solution is not less than 3.0 and not more than 6.5.

(5) Its extinction coefficient $E^{1\%}_{1\text{ cm.}}$ is not less than 8.0 at 276 mμ.

(b) *Packaging.* In all cases the immediate container shall be a tight container as defined by the U. S. P. and shall be of such composition as will not cause any change in the strength, quality, or purity of the contents beyond any limit therefor in applicable standards, except that minor changes so caused that are normal and unavoidable in good packaging, storage, and distribution practice shall be disregarded.

(c) *Labeling.* Each package shall bear on its outside wrapper or container and the immediate container, as hereinafter indicated, the following:

(1) The batch mark.

(2) The number of units per milligram and the number of grams in the immediate container.

(3) The statement "Expiration date _____," the blank being filled in with the date that is 12 months after the month during which the batch was certified.

(4) The statement "For use in the manufacture of nonparenteral drugs only."

(5) The statement "Caution: Federal law prohibits dispensing without prescription."

(d) *Request for certification; samples.* (1) In addition to complying with the requirements of § 146.2 of this chapter, a person who requests certification of a batch shall submit with his request a statement showing the batch mark, the number of packages of each size in the batch, and the date on which the latest assay of the drug comprising such batch was completed. Such request shall be accompanied or followed by the results of tests and assays made by him on the batch for potency, toxicity, moisture, pH, crystallinity, the penicillin V content, and extinction coefficient.

(2) Such person shall submit with his request an acurately representative sample of the batch, consisting of 10 packages, each containing approximately 300 milligrams taken from a different part of such batch, packaged in accordance with the requirements of paragraph (b) of this section.

(e) *Fees.* The fee for the services rendered with respect to each batch under the regulations in this part shall be:

(1) $4.00 for each immediate container in the sample submitted in accordance with paragraph (d) (2) of this section.

(2) If the Commissioner considers that investigations other than examination of such immediate containers are necessary to determine whether or not such batch complies with the requirements of § 146.3 of this chapter for the issuance of a certificate, the cost of such investigations.

The fee prescribed by subparagraph (1) of this paragraph shall accompany the request for certification unless such fee is covered by an advance deposit maintained in accordance with § 146.8 (d) of this chapter.

§ 146a.73 *Hydrabamine penicillin V oral suspension.* Hydrabamine penicillin V oral suspension conforms to all requirements and is subject to all procedures prescribed by § 146a.98 for hydrabamine penicillin G oral suspension, except that:

(a) Hydrabamine penicillin V is used in lieu of hydrabamine penicillin G. The hydrabamine penicillin V used conforms to the requirements of § 146a.72 (a).

(b) Its pH is not less than 4.5 and not more than 6.5.

(c) In lieu of the directions prescribed by § 146a.98 (d) (2) (ii), a person who requests certification of a batch shall submit in connection with his request results of the tests and assays made by him on an accurately representative sample of the hydrabamine penicillin V used in making the batch for potency, toxicity, moisture, pH, crystallinity, the penicillin V content, and the extinction coefficient.

6. Section 146c.221 *Tetracycline hydrochloride for intramuscular use* is amended in the following respects:

a. Paragraph (a) *Standards of identity* * * * is amended by adding at the end of the first sentence the following

new words: "and with or without one or more suitable and harmless vitamin substances."

b. Paragraph (c) *Labeling* is amended in subparagraph (1) (iv) by changing the colon after the word "certified" to a comma and adding the following new clause: "except that if it contains one or more vitamin substances the blank is filled in with the date that is 12 months after the month during which the batch was certified:".

c. Paragraph (c) is amended by renumbering subparagraph (3) as (4) and inserting a new subparagraph (3), reading as follows, between subparagraph (2) and renumbered subparagraph (4):

(3) On the label and labeling, if it contains one or more vitamin substances, after the name "Tetracycline hydrochloride for intramuscular use", the words "with vitamin ____" (the blank being filled in with the name of the vitamin ingredient used), or "with vitamins" (if it contains more than one vitamin ingredient), in juxtaposition with such name.

d. In paragraph (c), renumbered subparagraph (4) is amended in subdivision (iii) by changing the period at the end thereof to a comma and adding the following new clause: "except that if it contains one or more vitamin substances it shall bear the statement 'Inject immediately after the solution is prepared from the drug.'".

7. In § 146c.222 the section headnote and paragraph (a) are changed to read as follows:

§ 146c.222 *Tetracycline hydrochloride oral suspension (tetracycline hydrochloride homogenized mixture); tetracycline hydrochloride oral solution; tetracycline calcium oral suspension; tetracycline oral suspension*—(a) *Standards of identity, strength, quality, and purity.* Tetracycline hydrochloride oral suspension, tetracycline hydrochloride oral solution, and tetracycline calcium oral suspension are tetracycline hydrochloride or tetracycline calcium prepared from tetracycline hydrochloride. Tetracycline oral suspension is prepared from tetracycline. Each drug contains one or more suitable and harmless suspending and dispersing agents (unless it is tetracycline hydrochloride oral solution), with or without one or more suitable sulfonamides, and with or without one or more suitable and harmless colorings, flavorings, buffer substances, and preservatives, suspended or dissolved in a suitable and harmless vehicle. If it is tetracycline hydrochloride oral suspension or tetracycline oral suspension, it may contain one or more suitable and harmless vitamin substances. Each milliliter shall contain not less than the equivalent of 25 milligrams of tetracycline hydrochloride. Its moisture content is not more than 2 percent if it is tetracycline hydrochloride oral suspension or tetracycline oral suspension and not more than 7 percent if it is tetracycline hydrochloride oral solution. Its pH is not less than 2.0 and not more than 3.5 if it is tetracycline hydrochloride oral solution and not less than 7.0 and not more than 8.0 if it is tetracycline calcium oral suspension. The tetracycline hydrochloride used conforms to the standards prescribed by § 146c.218 (a), except § 146c.218 (a) (2), (4), and (5). The tetracycline used conforms to the standards prescribed by § 146c.220 (a). Each other substance used, if its name is recognized in the U. S. P. or N. F., conforms to the standards prescribed therefor by such official compendium.

b. Paragraph (c) *Labeling* is amended by inserting in subparagraph (3) (i) the words "or tetracycline oral suspension" immediately after the words "tetracycline hydrochloride oral suspension" at both places at which they appear.

c. Paragraph (d) *Request for certification* * * * is amended by inserting the words "or tetracycline" immediately after the words "tetracycline hydrochloride" in subparagraphs (1), (2) (ii), and (3) (ii).

d. Paragraph (d) is further amended by inserting the words ", tetracycline oral suspension," immediately after the words "tetracycline hydrochloride oral suspension" in subparagraph (2) (i).

8. Part 146c is amended by adding the following new section:

§ 146c.229 *Tetracycline-nystatin oral suspension.* Tetracycline-nystatin oral suspension is a suspension that conforms to all the requirements and procedures prescribed by § 146c.222 for tetracycline oral suspension, except that:

(a) Each milliliter contains not less than 25,000 units of nystatin. The nystatin used conforms to the standards prescribed by § 146c.224 (a).

(b) In addition to the labeling prescribed for tetracycline oral suspension, each package shall bear on its label or labeling the number of units of nystatin in each milliliter of the batch.

(c) In addition to complying with the requirements of § 146c.222 (d), a person who requests certification of a batch shall submit with his request a statement showing the batch mark and (unless they were previously submitted) the results and the date of the latest tests and assays of the nystatin used in making the batch for potency, toxicity, pH, moisture, and specific rotation. He shall also submit in connection with his request a sample consisting of not less than six immediate containers of the batch and (unless it was previously submitted) a sample consisting of 10 packages, each containing approximately equal portions of not less than 300 milligrams of the nystatin used in making the batch.

(d) The fee for the services rendered with respect to each container in the sample of nystatin submitted in accordance with the requirements prescribed therefor by paragraph (c) of this section shall be $4.00.

Notice and public procedure are not necessary prerequisites to the promulgation of this order, and I so find, since it was drawn in collaboration with interested members of the affected industry and since it would be against public interest to delay providing for the amendments set forth above.

Effective date. This order shall become effective upon publication in the FEDERAL REGISTER, since both the public and the affected industry will benefit by the earliest effective date, and I so find.

(Sec. 701, 52 Stat. 1055; 21 U. S. C. 371. Interpret or apply sec. 507, 59 Stat. 463, as amended; 21 U. S. C. 357)

Dated: June 22, 1956.

[SEAL] GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 56-5094; Filed, June 27, 1956; 8:47 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter I—Office of the Secretary of Defense

Subchapter C—Military Personnel

PART 54—RESERVE FORCES ACTIVE DUTY FOR TRAINING FOR BASIC TRAINING

Sec.
54.1 Purpose.
54.2 Applicability.
54.3 Policy.
54.4 Implementation.

AUTHORITY: §§ 54.1 to 54.4 issued under R. S. 161; 5 U. S. C. 22. Interpret or apply 62 Stat. 604, 66 Stat. 481; 50 U. S. C. App. 45, 10 U. S. C. 1a.

§ 54.1 *Purpose.* The purpose of this part is to prescribe uniform policy:

(a) Governing active-duty-for-training programs established to provide basic training for persons enlisting directly into the Reserve Forces in draft-deferred status.

(b) Pertaining to certain aspects of programs for direct enlistment into the Reserve Forces.

§ 54.2 *Applicability.* This part is applicable to all military departments offering active duty for training for basic training to individuals who enlist directly into the Reserve Forces under provisions of subsection 6 (c), paragraph (2), 62 Stat. 604, 50 App. U. S. C. 451, or section 262, 66 Stat. 481, 10 U. S. C. 1a. Active duty for training for basic training may include, in addition to recruit or basic individual training, basic unit training and various types of specialist training.

§ 54.3 *Policy.* (a) The primary objective of the active-duty-for-training programs dealt with herein is to provide the Reserve Forces with trained young men.

(b) Except as provided in paragraph (c) of this section, the period of active duty for training for basic training shall be of six consecutive months duration.

(c) As approved by the Secretary of Defense, special programs of active duty for training for basic training of less than six months may be established to provide recruit training alone for individuals entering the Reserve Forces under provisions of subsection 6 (c), paragraph (2), clause (A), 62 Stat. 604, 50 App. U. S. C. 451. The period of active duty for training for basic training under such special programs, however, in addition to being less than six months shall also be of less than three consecutive months duration, including travel time.

(d) In the case of a military service accepting enlistments under authority of section 262, 66 Stat. 481, 10 U. S. C. 1a, or subsection 6 (c), paragraph (2), clause

(C), 62 Stat. 604, 50 App. U. S. C. 451, the Department concerned shall submit its proposed annual enlistment quotas therefor with its annual manpower programs to the Secretary of Defense for approval.

(1) Approval by the Secretary of Defense will be on the advice of the Joint Chiefs of Staff, taking into consideration the need to maintain a military manpower pool of such size as to provide an adequate source of long-term volunteers for the Active Forces.

(2) Approved quotas for enlistments under section 262, 66 Stat. 481, 10 U. S. C. 1a, and for entry into active duty for training for basic training of persons enlisted under subsection 6 (c), paragraph (2), clause (C), 62 Stat. 604, 50 App. U. S. C. 451, shall be within the 250,000 annual maximum imposed by law.

(e) Irrespective of quotas allocated in accordance with paragraph (d) of this section, no enlistment shall be accepted under section 262, 66 Stat. 481, 10 U. S. C. 1a, if such enlistment would cause the strength of the Ready Reserve authorized for the component concerned to be exceeded. Subject to this limitation and to related Department of Defense policies and programs, such as Qualitative Distribution, enlistment of qualified individuals within quotas allocated shall be on a first-come-first-accepted basis.

(f) Members of the Reserve enlisted under provisions of section 262, 66 Stat. 481, 10 U. S. C. 1a, and those enlisted under provisions of subsection 6 (c), paragraph (2), clause (C), 62 Stat. 604, 50 App. U. S. C. 451, who volunteer therefor, shall be ordered to active duty for training for basic training under authority contained in subsection 262 (c), 66 Stat. 481, U. S. C. 1a.

(g) Members of the Army National Guard of the United States or Air National Guard of the United States who volunteer to undergo active duty for training for basic training shall be ordered thereto under authority of subsection 233 (d), 66 Stat. 481, 10 U. S. C. 1a.

§ 54.4 *Implementation*—(a) *National Guard.* Except in the case of special programs under § 54.3 (c), members of the Army National Guard of the United States or Air National Guard of the United States may not be ordered to active duty for training for basic training after they have passed the 20th anniversary of their birth.

(b) *Reserve (17 to 18½ years of age).* Within quotas allocated, Services employing the enlistment programs provided by section 262, 66 Stat. 481, 10 U. S. C. 1a, or subsection 6 (c), paragraph (2), clause (C), 62 Stat. 604, 50 App. U. S. C. 451, are permitted to have on hand at any time a total number awaiting commencement of six months active duty for training, excluding those deferred because of high school enrollment, not to exceed planned input into the active-duty-for-training program for the three subsequent months. This provision is made to afford a means of obtaining reasonably level training loads.

(c) *Reserve (critically skilled over 18½ years of age).* Under Executive Order 10650, Regulations Governing the Selection of Certain Persons who have Critical Skills for Enlistment in Units of the Ready Reserve of the Armed Forces, dated 6 January 1956, published at 21 F. R. 167, the Selective Service System will select individuals over 18½ years of age who have critical skills and are engaged in civilian occupations in critical defense supporting industry or in a research activity affecting national defense, for enlistment under the provisions of section 262, 66 Stat. 481, 10 U. S. C. 1a.

(1) Such individuals will count against the annual maximum of 250,000 imposed by law, but will not be included within quotas allocated under provisions of § 54.3 (d).

(2) When such individuals are selected for this program, the Selective Service System will notify the individual and the appropriate Service.

C. E. WILSON,
Secretary of Defense.

JUNE 21, 1956.

[F. R. Doc. 56-5089; Filed, June 27, 1956; 8:45 a. m.]

Chapter XIV—The Renegotiation Board

Subchapter B—Renegotiation Board Regulations Under the 1951 Act

PART 1453—MANDATORY EXEMPTIONS FROM RENEGOTIATION

RAW MATERIALS

Section 1453.2 (b) *Raw materials* is amended by making the following changes in the list following subparagraph (3):

1. Delete "metallic titanium" and substitute "titanium sponge, as originally produced directly from the ore."

2. Delete "metallic zirconium" and substitute "zirconium sponge, as originally produced directly from the ore."

(Sec. 109, 65 Stat. 22; U. S. C. App. Sup. 1219)

Dated: June 22, 1956.

THOMAS COGGESHALL,
Chairman.

[F. R. Doc. 56-5113; Filed, June 27, 1956; 8:51 a. m.]

PART 1471—ASSIGNMENT OF CONTRACTORS FOR RENEGOTIATION

HOW ASSIGNMENT IS MADE

Section 1471.2 *How assignment is made* is amended by deleting the last sentence of paragraph (e) thereof.

(Sec. 109, 65 Stat. 22; 50 U. S. C. App. Sup. 1219)

Dated: June 22, 1956.

THOMAS COGGESHALL,
Chairman.

[F. R. Doc. 56-5114; Filed, June 27, 1956; 8:52 a. m.]

PART 1473—CLEARANCE PROCEDURE

NOTIFICATION OF DETERMINATION BY REGIONAL BOARD

Section 1473.2 *Determination by Regional Board* is amended by inserting, after the first sentence thereof, the following: "The Regional Board will notify the contractor of the action taken by the Regional Board."

(Sec. 109, 65 Stat. 22; 50 U. S. C. App. Sup. 1219)

Dated: June 22, 1956.

THOMAS COGGESHALL,
Chairman.

[F. R. Doc. 56-5115; Filed, June 27, 1956; 8:52 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

[Circular 1955]

PART 101—GENERAL REGULATIONS INVOLVING APPLICATIONS AND ENTRIES

OFFICE HOURS OF LAND OFFICES; WHEN DOCUMENT IS FILED

Effective 30 days from publication hereof in the FEDERAL REGISTER a new center head and section are added to Part 101 as follows:

FILING OF DOCUMENTS

§ 101.20 *Office hours of land offices; when document is filed.* (a) Land offices and the Washington office of the Bureau of Land Management are open to the public for the filing of documents and inspection of records during the hours specified below on Monday through Friday of each week, with the exception of national holidays, the Monday following each national holiday which falls on a Sunday, and days upon which the office may be closed by Presidential or other administrative order. The hours during which the land offices and the Washington office are open to the public for the filing of documents and inspection of records are from 10:00 a. m. to 3:00 p. m., standard time or daylight saving time, whichever is in effect at the city in which each office is located.

(b) Any document required or permitted to be filed under the regulations of this chapter, which is received in the Land office or the Washington office, either in the mail or by personal delivery when the office is not open to the public shall be deemed to be filed as of the day and hour the office next opens to the public.

(c) Any document required by law, regulation or decision to be filed within a stated period, the last day of which falls on a day the land office or the Washington Office is officially closed, shall be deemed to be timely filed if it is received in the appropriate office on the next day the office is open to the public.

FRED A. SEATON,
Secretary of the Interior.

JUNE 21, 1956.

[F. R. Doc. 56-5099; Filed, June 27, 1956; 8:48 a. m.]

Appendix—Public Land Orders

[Public Land Order 1307]

NEW MEXICO

PARTIALLY REVOKING EXECUTIVE ORDERS NO. 6276 OF SEPTEMBER 8, 1933 AND NO. 6583 OF FEBRUARY 3, 1934, WHICH WITHDREW LANDS TO AID THE STATE OF NEW MEXICO IN MAKING EXCHANGE SELECTIONS

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 6276 of September 8, 1933, and No. 6583 of February 3, 1934, withdrawing public lands to aid the State of New Mexico in making exchange selections, which were partially revoked by Public Land Order No. 1247 of November 4, 1955, are hereby revoked so far as they affect the following-described lands:

In Executive Order No. 6276

[1500537]

NEW MEXICO PRINCIPAL MERIDIAN

T. 9 S., R. 7 W.,
Sec. 14, SW¼NW¼, N½SW¼, and SE¼SW¼;
Sec. 15, E½NE¼ and SW¼SE¼;
Sec. 22, SE¼ and N½SW¼.
T. 22 S., R. 7 W.,
Sec. 34, lots 1 and 2.

In Executive Order No. 6583

[1506978]

T. 31 S., R. 18 W.,
Sec. 5, NW¼;
Sec. 6, SE¼SE¼, W½SE¼, and SE¼SW¼.

The areas described aggregate 901.28 acres.

The restored lands are too rough and mountainous for cultivation, but they have limited value for grazing.

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the non-mineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the homestead, desert land, and small tract laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on July 28, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on October 27, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on October 27, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on October 27, 1956.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Sante Fe, New Mexico.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

JUNE 22, 1956.

[F. R. Doc. 56–5097; Filed, June 27, 1956; 8:48 a. m.]

[Public Land Order 1308]

[1338665]

NEVADA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 5105 OF MAY 3, 1929, WHICH WITHDREW CERTAIN LANDS PENDING DETERMINATION AS TO ADVISABILITY OF INCLUDING THEM IN NATIONAL MONUMENT

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 5105 of May 3, 1929, which temporarily withdrew certain lands in Nevada pending determination as to the advisability of including them in a national monument, is hereby revoked so far as it affects the following-described lands:

That area of unsurveyed land east of Timber Mountain bounded on the north by latitude 37°10'20", on the south by latitude 37°77'46", and lying between meridians of longitude 116°20'16", and 116°23'28", comprising an area nine square miles and including what is known as Fortymile Canyon Pueblo.

The released lands are withdrawn, with other lands, by Executive Order No. 8578 of October 29, 1940 and No. 9019 of January 12, 1942, for use of the Department of the Army as an aerial gunnery and bombing range.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

JUNE 22, 1956.

[F. R. Doc. 56–5098; Filed, June 27, 1956; 8:48 a. m.]

TITLE 36—PARKS, FORESTS, AND MEMORIALS

Chapter I—National Park Service, Department of the Interior

PART 1—GENERAL RULES AND REGULATIONS

LIMITATIONS ON SPEED

Paragraph (a) of §1.42, entitled *Limitations on speed*, is amended to read as follows:

§ 1.42 *Limitations on speed.* (a) Limitations on speed of vehicles except in emergencies as provided in paragraph (b) of this section are as follows:

(1) Basic speed rule:

(i) No person shall drive a vehicle upon a highway at a speed greater than is reasonable and prudent, having due regard to the traffic, surface and width of the highway, the hazard at intersections, and any other condition then existing.

(ii) No person shall drive at a speed which is greater than will permit the driver to exercise full control of the vehicle and to decrease speed or to stop as may be necessary to avoid colliding with any person, vehicle, or other conveyance on or entering the highway in compliance with legal requirements and with the duty of drivers and other persons using the highways to exercise due care.

(2) 15 miles per hour:

(i) In all campgrounds, parking areas, and places of public assemblage.

(ii) Upon that portion of the highway which passes through or borders upon a scene of emergency such as forest fires, highway repairs or construction, automobile accidents, or simliar emergency.

(iii) In any business or residence area.

(iv) Upon approaching within 50 feet and in traversing an intersection of highways where the driver's view in either direction along any intersecting highway within a distance of 200 feet is obstructed, except that when travelling upon a through highway or at a traffic controlled intersection, the district speed applies.

(3) 45 miles per hour upon all other paved, public roads in the parks, unless a different limit is prescribed for a particular road or roads by special regulation.

(4) Any speed in violation of the speeds designated in subparagraphs (2) and (3) of this paragraph shall be prima facie evidence of violation of subparagraph (1) of this paragraph.

(Sec. 3, 39 Stat. 535, as amended; 16 U. S. C. 3)

FRED A. SEATON,
Secretary of the Interior.

JUNE 21, 1956.

[F. R. Doc. 56-5102; Filed, June 27, 1956; 8:49 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules, Amdt. 2-22]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

MISCELLANEOUS AMENDMENTS

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 13th day of June 1956;

The Commission having under consideration promulgation of a new Part 21, Rules Governing Domestic Public Radio Services (other than Maritime Mobile), and the need for effecting, simultaneously, certain editorial changes in Part 2 of its rules so as to conform the latter part to the former; and

It appearing that such revisions in Part 2 of the rules are interpretative and editorial in nature and that Notice of Proposed Rule Making therefor is not required, as provided in section 4 (a) of the Administrative Procedure Act; under authority of sections 4 (i) and 303 of the Communications Act of 1934, as amended;

It is ordered, That, the changes in Part 2 of the rules as set forth below are adopted effective September 4, 1956.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: June 20, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Amendments To Part 2, Frequency Allocation And Radio Treaty Matters: General Rules and Regulations:

1. In § 2.1 *Definitions*, amend the definition "Domestic fixed public service" to read as follows:

Domestic fixed public service. A fixed service, the stations of which are open to public correspondence, for radiocommunication between points all of which lie within: (a) the 48 states and the District of Columbia, or (b) within a single territory or possession of the United States. In cases where service is afforded on frequences above 30 Mc, facilities within the United States for communication with facilities in Canada or Mexico and facilities for communication between United States territories and possessions in the Carribbean area are also deemed to be in the domestic Fixed Public Service.

2. In § 2.104 (a) (5), amend footnote "NG5" to read as follows:

(NG5) Fixed stations in the Domestic Fixed Public Service and control stations in the Domestic Public Radio Services may be authorized to use any of the frequencies in the band 72-76 Mc indicated in column 10, on the conditions that (a) harmful interference will not be caused to the reception of television stations on channels 4 or 5 and (b) that harmful interference will not be caused to operational fixed stations.

[F. R. Doc. 56-4969; Filed, June 27, 1956; 8:45 a. m.]

[Docket No. 10821; FCC 56-553]

[New Part 21; Rules Amdt. 6-8]

PART 6—PUBLIC RADIOCOMMUNICATION SERVICES (OTHER THAN MARITIME MOBILE)

PART 21—DOMESTIC PUBLIC RADIO SERVICES (OTHER THAN MARITIME MOBILE)

In the matter of promulgation of Part 21, rules governing domestic public radio services.

1. On December 29, 1953, the Commission released a Notice of Proposed Rule Making in the above-entitled matter. The Notice of Proposed Rule Making was published in the FEDERAL REGISTER on January 7, 1954, and the time allowed for filing comments, which was extended to April 26, 1954, upon notice in the FEDERAL REGISTER on March 2, 1954, has expired. The purpose of the proposed rules is to delete from Part 6 of the rules those provisions which relate to domestic radio services (§ 6.101, et seq., to end of Part 6) and to transfer such provisions, with certain amendments and additions, to a new part designated as Part 21. This new part sets forth the rules and regulations applicable to all domestic common carrier radio services other than Aeronautical, Maritime, and certain Alaskan and Special Emergency Services. Thus, the new part contains rules for the regular operation of such communications common carrier services as Land Mobile, and those operations heretofore described as Experimental, which included Microwave Relay, Short Haul Toll, Rural Radiotelephone, TV Pickup, TV-STL, Domestic Control, Repeater, etc., which were authorized under the provisions of Part 5 of the Commission's rules.

2. Comments directed to the matters involved in this rule-making proceeding were received from, or in behalf of, the following parties: Aircall, Inc.; Aircall-Chicago, Inc.; Alexander's Answering Service; All America Cables and Radio, Inc.; American Telephone and Telegraph Company; Anderson, W. L.; Central Committee On Radio Facilities of the American Petroleum Institute; Citizens Utilities Company; Cook, Donald R.; Crane Lake Telephone Company; Duluth, Missabe and Iron Range Railway Company; Federal Telephone and Radio Company; General Electric Company; Hav-A-Call, Inc.; Hawaiian Telephone Company; Lenkurt Electric Company, Inc.; McKean, Farrell A.; Minnesota Telephone Association, Inc.; Mitchell, Oliver C.; Motorola, Inc.; National Mobile Radio System; Peninsular Telephone Company; Porto Rico Telephone Company; Radio Corporation of America; Radio Corporation of Porto Rico; Radio Dispatch Service of Rochester, Inc.; Radio-Electronics-Television Manufacturers Association; Riggs, Kenneth A.; Rural Electrification Administration; Schiller, Solomon; Special Industrial Radio Service Association; Stromberg-Carlson Company; Telanserphone, Inc.; Telesecretarial Service, Inc.; Tidewater Telephone Company; The Western Union Telegraph Company; WKY Radiophone Company.

3. None of the above-named persons requested that a hearing be held to resolve the points of contention set forth in their comments. However, the Central Committee on Radio Facilities of the American Petroleum Institute and the Special Industrial Radio Service Association requested that finalization of the proceeding in Docket No. 10821 concerning use of frequencies above 890 Mc be delayed until after finalization of the proceedings in related Docket Nos. 10315, 10345 and 10797. The comments relative to Docket Nos. 10315 and 10345 are now moot inasmuch as the proceedings therein were finalized on June 30, 1954 and August 4, 1954, respectively, by Reports and Orders of the Commission. In accordance therewith, appropriate provisions have been incorporated into Part 21. In our opinion, the pendency of certain proposals in Docket No. 10797, which proposes to amend Part 2 frequency allocations above 890 Mc, and in Docket No. 11442 which proposed ISM use of 915 MC in accordance with the provisions of Part 18 of our rules, which are the subjects of substantial contention, does not justify delay in acting in the instant proceeding which will establish the Domestic Public Radio Services in Part 21 on a regular service basis upon the frequencies presently available to such common carrier operations under the existing table of frequency allocations. If, and when, any change is effected in those allocations, appropriate changes will be made in Part 21. The magnitude of domestic common carrier fixed radio operations has achieved such proportions that the "experimental" aspects have long since disappeared and the licensing of such facilities under Part 5 of the Commission's rules governing the experimental radio services should be terminated as soon as practicable.

4. Part 21 will, for the first time, set forth in a consolidated publication the various provisions relating to the domestic use of radio by communications common carriers. It is also anticipated that the removal of the fixed station operations from an "experimental" category

will further stimulate the expansion of the communications common carrier industry in areas requiring the use of radio.

5. On February 3, 1954, the Commission wrote to the Radio-Electronics-Television Manufacturers Association and to the Central Committee on Radio Facilities of the American Petroleum Institute requesting compilation, on a comparative basis, of data on operational requirements and necessary technical standards for private microwave systems and equipments. In commenting in this proceeding, the above-mentioned organizations, as well as the Special Industrial Radio Service Association and Motorola, Inc., have recommended that we delay finalization of the proceedings on Part 21 above 890 Mc, pending receipt and study of the information requested in the Commission's letters of February 3, 1954. The material submitted in this connection was compiled by the Commission's staff for use in a government-industry conference on private use of microwave frequencies, looking toward the promulgation of rules and regulations governing a new "Operational Microwave Radio Service" to be designated as Part 22, in lieu of the proposals which were embodied in Docket No. 10500 (withdrawn on October 28, 1953) for regulation of microwave operations in the Public Safety, Industrial and Land Transportation Services. Conferences relative thereto were held in Washington, D. C. on March 14 and 15, 1955, and again on April 5, 6 and 7, 1955. While a considerable amount of progress was made in these conferences toward drafting a new Part 22 of the rules, observation of the proceedings disclosed considerable divergence of opinion among industry representatives relative to the technical standards which should be established for microwave equipment and the subdivision of the various microwave bands available for private system operation under the existing table of frequency allocations. It appears that substantial time will be required to iron out these differences before firm recommendations on standards can be made to the Commission with a view to their promulgation in a rule-making proceeding. In view of the fact that the experimental rules in Part 5 contain the barest minimum of standards applicable to the common carrier microwave operations, which already represent investment in the order of nine figures, we are of the opinion that further delay in establishing standards for the common carrier radio services cannot be justified. Accordingly, in finalizing the proceedings in Part 21, we have prescribed standards which are in accord with present techniques in the art and which are in successful use by the common carrier industry. However, these standards should be viewed as of an interim nature until such time as experience indicates that further changes are necessary. Except for the frequency bands 890–940 Mc and 7050–7125 Mc, no channeling has been prescribed for the microwave radio bands. If, and when, such channeling appears necessary and desirable, it will also be proposed in further rule-making proceedings, and any required uniformity between this Part (21) and Part 22, as finally evolved, will be achieved in like manner.

6. The various comments relating to definitions contained in Subpart A will be discussed in connection with the separate Subparts of Part 21 to which they pertain.

7. In connection with Subpart B—Applications and Licenses, the various comments are disposed of as follows:

Section 21.15 (a): It was suggested that "and directivity" be deleted from this rule. In lieu thereof, the words "and orientation" have been substituted to make the intent more clear.

Section 21.15 (b): This section has been revised to avoid the necessity for making repetitive showings with each application of the applicant's legal, financial, technical and other qualifications to be a licensee.

Section 21.15 (d) and (e): These sections have been revised to eliminate the repetitive aspects of § 21.15 (b).

Section 21.15 (f): It was suggested that the filing of FCC Form 401–A be limited to those cases where it is essential in connection with determination of antenna obstruction marking requirements. This suggestion has been adopted and this section has been revised accordingly. However, a new rule requiring the filing of antenna data essential to the Commission in respects not relating to determination of antenna obstruction marking requirements has been designated as § 21.15 (g).

Section 21.15 (g) (3): United States Independent Telephone Association, hereafter referred to as USITA, objects to this rule as burdensome and on the basis that the applicant must already meet such requirements in other parts of the rules. A reading of this section discloses it is applicable only to persons who are not rendering public communication service for hire, but are subscribers to service rendered by communications common carriers. In view of the section being inapplicable to carriers, the USITA objection appears to be without foundation. Accordingly, the rule is retained and is redesignated as § 21.15 (i).

Section 21.15 (h): American Telephone and Telegraph Company, hereafter referred to as A T & T, commenting in behalf of the telephone companies of the Bell System, requests deletion of this rule as superfluous. We are of the opinion that it is necessary that we have knowledge of the information required therein, among other things, for the effective administration of the Domestic Public Radio Services. Accordingly, this rule is being retained and is redesignated as § 21.15 (j).

Section 21.15 (j): USITA and A T & T contend that data required by this section is an unnecessary and costly burden on the applicant and should not be required by the Commission. Lenkurt Electric Co., Inc., requested that the stations used for point-to-point communications be exempt from filing such data. In addition, USITA expressed the belief that the procedures and information required by Section 21.15 (j) do not fall in the classification of regulatory matters within the jurisdiction of the Commission. In response thereto, we wish to point out that, in Docket No. 9046, the Commission's Report and Order of April 27, 1949, establishing the Domestic Public Land Mobile Radio Services stated, "In granting authorizations for the establishment of common carrier mobile telephone systems in any service area, the Commission proposes to permit the rendition of service on an interference-free basis only, i. e., not more than one licensee will normally be authorized to operate on a given frequency or frequencies in any service area". Broadly speaking, communications common carriers are in the business of selling communications time to their subscribers. It is our position that the public, who are paying for such communications time, are entitled to expect reliable service and to be able to communicate without being subjected to harmful interference. In reaffirmation of this principle, we wish to emphasize that it is equally applicable to all common carrier radio services operating under the provisions of this Part. Section 303 of the Communications Act of 1934, as amended, gives the Commission power to "Make such regulations not inconsistent with law as it may deem necessary to prevent interference between stations and to carry out the provisions of this Act * * *" Under these provisions, we are empowered to require the filing of the type of data set forth in § 21.15 (j) of this part and we are of the opinion that such information is necessary in our regulation of radio to ensure the establishment of radio facilities in a manner which will not cause interference to other radio stations. Accordingly, § 21.15 (j) has been retained and has been redesignated as § 21.15 (l). However, it will be noted that the section has been revised to make it applicable specifically to base stations to be operated in the Domestic Public Land Mobile Radio Service by applicants who are not engaged in providing public wire line communication service. In affording the relief requested by Lenkurt and other wire line carriers under this section, the Commission reserves the right to require the filing of such information by applicants, permittees and licensees in any case where the Commission, in its own discretion, believes such information is necessary.

Section 21.15 (n): This section sets forth the criteria which must be met in obtaining station assignments in the 72–76 Mc band, pursuant to the policy established in Docket No. 10315.

Section 21.17: In accordance with the suggestion of A T & T, this section has been reworded to clarify that amendments to applications may be submitted in letter form.

Section 21.29 (b): A T & T suggested amendment of this section to provide for use of blanket applications in cases where auxiliary test stations and base stations are to be located together. This

suggestion has been rejected because the application form does not readily lend itself to such combination without considerable risk of confusion in attempting separation of the base and auxiliary test station information throughout the blanket application.

Section 21.29 (f): In accordance with the suggestion of A T & T, this section has been amended to permit the use of a blanket application when requesting renewal of a group of station licenses in the same service where the renewal requested is in exact accordance with the terms of the previous authorizations.

Section 21.30: In accordance with the suggestion of A T & T, this section has been amended to allow 18 months after the date of grant of a construction permit to complete the station construction of point-to-point microwave facilities.

Section 21.32: This section has been amended to specify specific license renewal dates, upon the recommendation of Hawaiian Telephone Company and USITA. The A T & T recommendation that all common carrier licenses be issued for a 5 year period is rejected because certain services governed by this Part are comparatively new and we believe that effective regulation requires that such licenses be issued for shorter periods so that they may be reviewed at more frequent intervals.

8. In connection with Subpart C—Technical Standards, the various comments filed are disposed of as follows:

Section 21.101: On the basis of comments submitted by Citizens Utilities Company, Peninsular Telephone Company, Porto Rico Telephone Company, Tidewater Telephone Company and A T & T, this section has been revised to impose a frequency tolerance requirement of 0.005 percent below 1,000 Mc, with provision being made to permit equipment heretofore authorized below 50 Mc to continue to operate until January 1, 1959, with a frequency tolerance within 0.01 percent. In addition, provision has been made to permit equipment heretofore authorized in the 890–940 Mc band to continue to operate with a frequency tolerance within 0.03 percent, subject to the condition that no harmful interference is caused to any other radio station. The section has also been revised around the concept of a reference frequency, which is defined in § 21.1.

Section 21.102: On the basis of comments submitted by various interested parties, this section has been revised to prescribe only the accuracy of the frequency checking equipment and to require that its operation shall be independent of the frequency control elements of the transmitter being measured.

Section 21.103: This section has been added setting forth the standards and limitations governing authorization and use of frequencies in the 72–76 Mc band, in accordance with the policy established in Docket No. 10315.

Section 21.104: Paragraph (d) of this section has been renumbered as § 21.105. As proposed, paragraphs (a), (b) and (c) of this section set forth definitions, as pointed out in the A T & T comments, and have, therefore, been transferred to § 21.1. With regard to paragraph (b), General Electric suggested the possibility of defining "occupied bandwidth" in terms of extra band radiation density. However, in the absence of a concrete proposal by General Electric, their suggestion has not been adopted. The definition of occupied bandwidth, as heretofore set forth, conforms to the universally recognized definition contained in Chapter I of the International Radio Regulations (Atlantic City, 1947). The comments of National Mobile Radio System regarding this section are disposed of in connection with § 21.105 (a).

Section 21.105 (a): This section has been redesignated as § 21.106 (a). In commenting thereon, National Mobile Radio System's plea that it is impractical for miscellaneous common carriers to measure bandwidth of emission, because laboratory instruments are required, is without merit. The need for such measurements to insure that the radio system at all times conforms to the technical performance requirements of the applicable rules is evident. There are a number of organizations equipped with the necessary instruments who, for a fee, will perform the measuring service. Thus, if a licensee does not wish himself to purchase the necessary equipment, etc., he may have the service performed by others.

Section 21.105: Paragraph (a) of this section has been redesignated as § 21.106 (a). Following the A T & T recommendation that the requirements for suppression of spurious and harmonic emission be related to the center frequency of the authorized band, and be specified in relation to the output power of the transmitter, a new § 21.106 (b) has been substituted for § 21.105 (a) and (b). We believe that application of this section also to pulse modulated transmitters is preferable to the Federal Telephone and Radio Company's suggestion that spurious and harmonic emission of pulse transmitters be attenuated to a fixed level of 0.0001 watt, as measured at the transmitter output. Paragraph (d) of § 21.105 (d) has been redesignated as paragraph (c).

Section 21.106 (b): This section has been redesignated as § 21.107 (b). In accordance with the comments filed by various miscellaneous common carriers, this table has been revised to provide for use of transmitters having maximum rated power output of 350 watts in the 30–50 Mc frequency range, in order to accommodate use of transmitters presently authorized for one-way signaling service in the Domestic Public Land Mobile Radio Service. The Western Union Telegraph Company stated that the power limitation of 100 watts in the 500–10,000 Mc frequency range is unduly restrictive and should be raised to not less than 1,000 watts to provide for transmission beyond the horizon. A T & T also commented along similar lines. We are of the opinion that a great deal of development work is still necessary to determine the suitability of such microwave radio transmission for common carrier service, as well as the interference aspects of such transmissions upon other radio installations. In view thereof, Western Union's and A T & T's suggestions appear to be premature and have not been incorporated into these rules. In appropriate cases, upon applications submitted pursuant to the provisions of Part 5 of the Commission's rules governing the experimental radio services, persons wishing to develop engineering data relative to microwave radio transmission beyond the horizon may be authorized to do so.

Section 21.106 (c): General Electric Company and The Western Union Telegraph Company expressed the opinion that the input parameters of current and voltages applied to vacuum tubes in the final radio frequency stage of a transmitter are a matter to be determined by the design requirements of the equipment and should not be the subject of regulation. In view of these comments, this section has been deleted from the rules.

Section 21.106 (d): Various interested parties commented on this section, indicating impracticability of requiring base stations to maintain their power rigidly within limits 10 percent above and 15 percent below the authorized power. In a number of instances, the opposition appears to be based upon a misunderstanding that such limits apply to fixed stations in point-to-point fixed radio services, whereas the power limits specified in this rule are applicable only to base stations in the Domestic Public Land Mobile Radio Service. In view of the foregoing, the power limits within which base stations must operate have been broadened to 20 percent above and 25 percent below the authorized power. This rule has been redesignated as § 21.107 (c). Comment was also filed objecting to the provision requiring notification to the Commission in cases where base stations are unable to operate within prescribed power limits for periods in excess of 10 days. We are of the opinion that the majority of service interruptions due to such cause can be readily corrected within such time and that such reporting will not be unduly burdensome. Accordingly, no change in that respect has been made in this rule.

Section 21.106 (e): This section, requiring manufacturers of radio transmitters to specify an efficiency factor for the final radio frequency stage, has been deleted.

Section 21.107 (a): This rule has been redesignated as § 21.108 (a) and has been revised to permit multi or omni-directional antennas to be used in other than the domestic Public Land Mobile Radio Service, upon specific authorization. We believe this change will satisfy the objections filed by Minnesota Telephone Association, Inc., Duluth; Missabe & Iron Range Railway Company; A T & T; USITA and Motorola, Inc.

Section 21.107 (b): This section has been redesignated as § 21.108 (b). Although it was suggested by Porto Rico Telephone Company that the maximum permissible beam width of the main lobe of radiation from directional antennas should be narrowed considerably, and we recognize that this may be feasible in many instances, we have not prescribed narrower limits in order to allow latitude for the use of easily transportable equipment which is frequently used in estab-

lishment of service on short notice and is sometimes required to be installed at relatively inaccessible locations. However, the Commission desires that, to the extent practicable, the beam widths of directional antennas be held to a minimum. While General Electric Company mentioned that the prescribed beam widths would preclude the employment of corner reflectors now in wide use at 960 Mc, which frequency band is not assignable to stations authorized under this Part, they have failed to show the beam widths necessary to accommodate use of such antennas or to show that use of such antennas is a necessity. Similarly, in pointing out the necessity for measurement and testing of certain combinations of parabola-reflectors (periscope) antennas to determine whether they meet the subject rule requirements, A T & T failed to show that these requirements could not be readily satisfied by use of other types of antennas.

Section 21.107 (c): This section has been redesignated as § 21.108 (c) and, in view of The Western Union Telegraph Company comments, has been revised to reduce the required secondary lobe suppression from 20 db to 13 db on frequencies above 500 Mc, in order to permit use of cross-polarization and horizontal polarization.

Section 21.107 (d): This section, with slight modification, has been redesignated as § 21.109 (a).

Section 21.107 (e): A T & T suggested modification of this section to permit substitution of antennas without prior authorization, provided no substantial change in pattern results and that the new antennas do not cause obstruction to air navigation. Accordingly, this section has been revised and redesignated as § 21.109 (b).

Section 21.108 (d): A new section bearing this designation has been added to clarify the applicability of certain rules to the use of passive reflectors.

Section 21.108: This section has been redesignated as § 21.110 and, in accordance with suggestions filed by A T & T, Motorola, Inc., and Duluth, Missabe & Iron Range Railway Company, has been revised to permit use of other types of polarization by various stations upon a satisfactory showing that improved transmission would result and that potentially harmful interference to other radio installations would be reduced. In addition, provision has also been made for Rural Subscriber stations in the Rural Radio Service to employ vertical polarization when authorized to communicate with base stations in the Domestic Public Land Mobile Radio Service.

Section 21.109: This section has been redesignated as § 21.111. A T & T suggested that this section be revised to place complete responsibility for maintaining, painting and illuminating of an antenna structure upon the party to whom a construction permit under which the supporting structure was installed was issued, unless there is filed with the Commission a signed and verified copy of an agreement to the effect that another party has assumed the responsibility. We believe that a written agreement, in all cases, is desirable as it leaves no doubt in the minds of any of the parties as to which party is responsible therefor.

Section 21.111: This section has been redesignated as § 21.113. A T & T raised the question whether specification of geographical coordinates of antenna structures to the nearest one-tenth minute was not adequate. In our opinion, accuracy to the nearest second of latitude and longitude is necessary.

Section 21.112: This section has been redesignated as § 21.114 and, in view of comments filed by Motorola, Inc., and A T & T, has been revised to clarify its applicability only to mobile stations in the Local Television Transmission Service and to fixed stations authorized to operate at temporary fixed locations.

Section 21.113: This section has been redesignated as § 21.115 without material revision. Andrew G. Haley, commenting on behalf of 8 miscellaneous common carriers in the land mobile service, suggested that the eight radials be required to be drawn along the eight cardinal directions in order to obtain uniformity among applicants. This suggestion has been accepted and the section has been revised along the line of § 3.684 (d) of Part 3 of the rules. General Electric Company expressed the opinion that the determination of elevation of average terrain was applicable to the broadcasting services and not to the common carrier radio services. In our opinion, such terrain information is definitely of concern to the radio services regulated by this part, particularly in engineering base station assignments into the available frequencies in the land mobile radio service on an interference-free basis. In that respect, the engineering problems are very similar to those in the radio broadcast services. Inasmuch as average terrain information of the nature indicated in this section is primarily of concern where miscellaneous common carrier stations are involved in the domestic public land mobile radio service, the filing of such information in a routine manner is being required only for such stations. In view thereof, the objections of various other parties to the application of this section to point-to-point radio facilities are moot. However, the Commission reserves the right to require the filing of such information in any case where it is deemed necessary.

Section 21.114: This section has been redesignated as § 21.116. Comments filed by A T & T and USITA suggested deletion of this section. However, the retention thereof is considered desirable in view of the information contained therein and in consequence of the action taken with regard to the preceding section of these rules.

Section 21.115: This section has been redesignated as § 21.117. General Electric Company stated that, since the type of material contained in this section is usually found in handbooks and textbooks, it should be deleted from this Part. However, despite the publication of such information elsewhere, experience has shown that a great many applicants apparently do not refer to such material and consequently file applications for stations at sites which subsequently turn out to be unsatisfactory for the purpose intended. As a consequence, the inauguration of satisfactory public service is delayed pending filing and action upon new applications and move of the station to a new site. In view of the foregoing, we believe the public interest will be served by retention of this section. In accordance with the suggestion of A T & T, the last sentence of the footnote to paragraph (a) has been deleted. As requested by Lenkurt Electric Company, Inc., paragraph (c) has been revised to show the manner in which propagation tests should be conducted when such tests are required by the Commission.

Section 21.116: This section has been redesignated as § 21.118. Paragraph (a) has been revised to clarify that the manner of installation of transmitters and their operating positions shall be such as not to be accessible to, or capable of being operated by, persons other than those duly authorized by the licensee. A new § 21.118 (b) has been added prescribing use and location of a modulation filter in those cases where a modulation limiter is employed. Section 21.116 (b) has been rewritten as § 21.118 (d) making provision therein for licensees to make certain changes in transmitter control point location without prior approval from the Commission, in accordance with suggestion filed by A T & T. In addition, the requirement that each station be equipped with at least one control point has been limited to those installations which are required to have a licensed radio operator or permit holder on duty and in charge of the station's operations during the normal rendition of service. We believe that this change will satisfy the objections registered in connection with § 21.116 (c) by General Electric Company, A T & T, and The Western Union Telegraph Company which appear to have been submitted in relation to operation of stations which normally are authorized to operate without licensed operators on duty and in charge of the transmitter during the normal rendition of service. Relative thereto, and in accordance with the suggestion filed by Federal Telephone and Radio Company, a new § 21.118 (g) has been added pertaining to automatic alarm facilities.

Section 21.118: This section has been redesignated § 21.120. A T & T objected to the provisions of the section on the basis that the tests necessary to obtain type acceptance or approval of radio equipment will cause unwarranted delay in issuance of station authorizations, that such procedures have no real significance in determining the interfering effect that may actually result from the use of the equipment, that the proposed regulations will be so expensive and difficult to fulfill, that they discourage and stifle the use of radio, and that more stress should be placed on cooperative efforts in eliminating interference as it arises and less on endeavoring to avoid the possibility of all interference by regulation. As pointed out by General Electric Company, this section relates to the program for certification of equipment acceptable for licensing set forth in Docket No. 10798, which proceedings were the subject of a decision on May

11, 1955 by Memorandum Opinion and Order of the Commission.

Section 21.121: This section has been added, in accordance with comments filed by A T & T, to permit licensees in these services greater latitude in replacement of transmitters without prior Commission authorization.

9. In connection with Subpart D—Technical Operation, the various comments are disposed of as follows:

Section 21.202: A T & T objected to the requirement that all transmitters be required to have an executed transmitter identification card or metal tag affixed thereto. A T & T points out that FCC personnel inspecting radio installations will generally be accompanied by persons capable of giving the requisite information. We believe such affixed identification to be desirable, particularly where a number of transmitters are installed at a site shared by several licensees. The attachment of such identification does not constitute an unreasonable burden upon any licensee. In view of the foregoing, the A T & T comments are deemed to be of insufficient merit to warrant deletion of this section.

Section 21.205 (c): A T & T suggested deletion from this section of the requirement that, where installation, servicing or maintenance of transmitters is performed by unlicensed personnel, the facilities thereafter shall initially be placed in operation and be determined to be operating properly by a first or second class licensed radio operator. We believe that, in order to have reasonable assurance that transmitting equipment is operating properly in all cases, such provision is necessary. Accordingly, the A T & T suggestion is rejected.

Section 21.205 (h) (2): A T & T suggested deletion of this section on the grounds that persons at dispatch points do not actually operate the base station. If this be the case, the A T & T concept of a dispatch point is erroneous. In Part 6 of the rules, § 6.407 (d) defines a dispatch point as "an operating position" and § 6.407 (g) (3) clearly shows that dispatch point circuits are intended to be arranged so that persons at a dispatch point can operate the transmitter of a base station. This provision is carried forward in Part 21 and the suggestion of A T & T is rejected.

Section 21.205 (i): A T & T requested that this section be revised to permit central office stations, inter-office stations, and auxiliary test stations to be operated without licensed radio personnel and without effective operational control of licensed radio personnel. We are of the opinion that the responsible operating personnel should be in a position to know when their transmitters are radiating, to know the manner of performance of such facilities at all times, and to exercise effective operational control over those facilities. Accordingly, this section is retained without alteration.

Section 21.205 (j): Following the reasoning of A T & T with respect to § 21.205 (i), they requested like revision of this section. For similar reasons, this section is retained.

Second 21.205 (l): This section has been revised to relax the requirement that the quality of transmission over unattended stations be under the constant scrutiny of licensed operators, as suggested by A T & T. However, a provision has been made relative thereto in Section 21.118 (g) which requires use of automatic alarm facilities in such cases.

Section 21.205 (o): This section has been revised in accordance with comments filed by A T & T.

Section 21.207 (a): Subparagraphs (3) and (4) of this section have been revised in accordance with comments filed by A T & T.

Section 21.207 (b): Subparagraph (2) of this section has been revised to conform to the provisions of revised § 21.107 (c) of the rules adopted herein. The comments filed by Lenkurt, A T & T and Motorola on subparagraph (2) of this section relate to their comments on § 21.106 (d) which were taken into consideration when the latter section was revised. Section 21.207 (b) (3) has been revised as suggested by A T & T.

Section 21.208 (e): The requirement that the technical log of a station be kept in a permanently bound book has been deleted, in view of the comments filed by A T & T, National Mobile Radio System, Oliver C. Mitchell, and Radio Dispatch Service of Rochester, Inc. This section has been expanded by addition of subparagraph (3) which requires that details of functioning of automatic alarm facilities and failure or erratic operation of transmitters be recorded in the technical log of the station. The provisions of former subparagraph (3) of this section are now contained in § 21.208 (h).

Sections 21.208 (f) and (h): These sections have been combined and are redesignated as § 21.208 (g).

Section 21.208 (i): The requirement that logs be kept in ink or indelible pencil has been deleted from this section in accordance with the suggestion of A T & T.

Section 21.212 (a): This section has been broadened to permit equipment tests to be conducted on point-to-point microwave stations at any time during the term of the construction permit, as was suggested by A T & T.

Section 21.208 (b) (1): A T & T suggested the deletion of this section on the premise that the Commission is automatically placed on notice that service tests have begun when application for license has been filed with the Commission. A T & T has apparently overlooked the fact that such applications are filed in Washington, D. C. and not with the Commission's field offices. In view thereof, the rule requirement does not involve duplication of effort and the suggestion of A T & T is denied.

Section 21.207 (c): A T & T suggested deletion of this section on the grounds that it is difficult to make transmitter measurements in the field. This suggestion is rejected. The Commission believes that it is essential to know the modulation and radiation characteristics of transmitters which are in service. Subparagraph (3) of this section has been revised to require such determination to be made at intervals not to exceed one year, in lieu of the six-month interval heretofore proposed.

Section 21.207 (d): A T & T suggested that permission be included for the measurements required on mobile units to be made at other times than at six-month intervals. The rules allow the prescribed measurements to be made at any time within the prescribed time limits, which have been revised as indicated above. In addition, A T & T requested that this section be revised to allow the power measurements of § 21.207 (b) to be made at a test or service bench. Section 21.107 (b) is not applicable to mobile units.

Section 21.207 (e): In some instances, persons who are not licensed radio operators may be qualified to make accurate radio frequency measurements. However, this is not necessarily the case. Accordingly, we believe that the provisions of this section are necessary to ensure compliance with the technical provisions of Part 21. The requirements of this section do not appear to be unduly burdensome or unreasonable. In view of the foregoing, the suggestion of A T & T that the licensed radio operator aspects of this section be deleted is rejected.

Section 21.213: In response to the comments filed by A T & T, a subparagraph (4) in paragraph (b) of this section has been added to permit a TV-Pickup or TV-STL station to identify itself by the call sign of the broadcast station for which it is rendering service. The suggestion of USITA that stations also be permitted to identify themselves by various other means, such as by the name of the city in which the control point is located, or the name of the city or principal area served, is rejected. No showing has been made that other permissible methods of identification are unsatisfactory and the necessity for the suggested changes is not evident. The prompt identification of the emissions of a station is necessary if freedom from harmful interference to the operation of other stations is to be preserved.

10. In connection with Subpart E—Miscellaneous, the various comments are disposed of as follows:

Section 21.303 (a): A T & T and Lenkurt suggested the deletion of this section. However, their comments fail to show that the provisions thereof would restrict or impair their radio operations or that the requirements of this rule would not be in the public interest, convenience or necessity. The rule is retained.

Section 21.303 (b): The language of this section has been revised as suggested by A T & T.

11. In connection with Subpart G—Domestic Public Land Mobile Radio Service, the various comments are disposed of as follows:

Section 21.501 (a): Duluth, Missabe and Iron Range Railway Company and A T & T advocate splitting of the radio channels allocated to this service and, in addition, the former recommends that the additional channels derived through channel-splitting be specifically allocated for assignment to stations in the Rural Radio Service. The Commission believes implementation of split channel operation in the various radio services

prior to finalization of the split-channel proceeding now pending in Docket No. 11253 would be premature. The reallocation of frequencies was not contemplated in the rule-making proceeding in this Docket. Accordingly, the suggestion that the Rural Radio Service be allocated the extra channels derived from channel-splitting is inappropriate in this proceeding. Such a reallocation is properly a matter for a separate frequency reallocation wherein all parties in interest would be afforded equal opportunity to participate. Duluth, Missabe and Iron Range Railway Company also suggested that the frequencies in the 35–44 Mc band, listed in this section, be made available for assignment to fixed stations in the Rural Radio Service. Because of the severe long range interference to land mobile system operations from fixed station operations in the past, it has been the Commission's policy to refrain from permitting other than land mobile system operations on these frequencies. In view of the foregoing, the aforementioned suggestions of A T & T and Duluth, Missabe and Iron Range Railway Company are not adopted.

Section 21.501 (b) and (c): In response to the suggestions by A T & T, Oliver C. Mitchell, Donald R. Cook, Kenneth A. Riggs and W. L. Anderson, the footnote to this section has been revised to allow an extra 5 years, to April 1, 1961, for amortization of equipment being used for control and repeater functions. Such operations should be performed via wireline circuits or, where this is not feasible, on frequencies specifically allocated to the fixed service.

Section 21.501 (f): In response to comments by A T & T, the footnote to this section has been revised to avoid the impression that continuous aural monitoring is required. The A T & T recommendation that additional frequencies be listed in this section has been dealt with in relation to the footnote to paragraphs (b) and (c) of § 21.501.

Sections 21.502 and 21.503: The comments of A T & T, USITA and National Mobile Radio System take issue with the provisions of these sections because variations in topography and radio wave propagation in different areas do not lend themselves universally to use of a fixed table of minimum mileage separations between co-channel stations. We do not dispute the accuracy of these observations and, accordingly, provision has been made in § 21.503 for station assignments to be made at greater or lesser mileage separations wherever it appears necessary or feasible in any particular case. We feel that these sections will serve as a guide to persons filing applications in the Domestic Public Land Mobile Radio Service and will eliminate the filing of many applications which have little chance of being granted because of potential co-channel interference aspects. The suggestion that these sections be deleted from the proposed rules is rejected.

Section 21.504: A T & T suggested that definition of reliable service area of a base station is unnecessary. The section is retained inasmuch as it will serve as a useful guide in the establishment of stations in this service.

Section 21.505: Comments objecting to the retention of this section were filed by USITA, A T & T, Oliver C. Mitchell and Motorola. The provisions of this section do not contemplate that base stations now having antennas over 500 feet in height above average terrain will be required to reduce antenna heights or to make a showing of need for their existing antenna heights. The rule, as proposed, makes adequate provision for authorizing higher antenna heights where such installations are, in the opinion of the Commission, warranted. The suggestions of the parties commenting on this rule are rejected.

Section 21.506: A T & T recommended deletion of the ceiling placed on effective radiated power, whereas National Mobile Radio System believes this limitation on effective radiated power is a definite improvement. The recommendation of A T & T is rejected. We believe the limitation to be necessary to the effective regulation of this service.

Sections 21.507 and 21.508: These sections were revised and combined as § 21.507. The suggestion by A T & T that type FO emission be authorized without specific showing of need is without merit. The indiscriminate use of unmodulated emission may lead to serious interference problems affecting the services of other stations and should not be authorized in the land mobile service except upon careful consideration on a case by case basis. The A T & T comment with relation to authorized bandwidth and split-channel operation is premature and is rejected in view of the pending split-channel proceeding in Docket No. 11253.

Section 21.509: General Electric commented that this section was inadequate in definition and subject to interpretation. In view of their failure to elaborate, we are unable to evaluate such comment. The A T & T suggestion that the maximum permissible modulating frequency be raised from 3,000 to 4,200 cycles per second is rejected. Such a change appears to be in the wrong direction, particularly in view of the prospects of channel-splitting, contemplated in Docket No. 11253, which may require modulating frequencies to be limited to less than 3,000 cycles per second. As elsewhere indicated, the split-channel aspects of A T & T's suggestion are premature and their recommendation relative to paragraph (c) of this section is not adopted. Paragraph (d) of this section has been redesignated as paragraph (e) of § 21.508 and has been revised to limit its applicability to single channel transmitters only. In addition, in recognition of comments filed by The Western Union Telegraph Company, a new § 21.508 (f) has been written to provide for operation of stations using facsimile transmission.

Section 21.510: The suggestion by Duluth, Missabe and Iron Range Railway Company that installations which are not intended to operate while in motion be permitted to operate in the Domestic Public Land Mobile Radio Service is provided for under paragraph (f) of this section which has been redesignated at paragraph (e) of § 21.509.

Section 21.510 (a): This section has been redesignated as § 21.509 (a). Mobile-to-mobile communications through the base station are permissible under this section and Motorola's suggestion that rule changes be made to provide therefor is unnecessary.

Section 21.510 (b): At the suggestion of A T & T this section has been appropriately revised and has been redesignated at § 21.509 (b).

Section 21.510 (b) (5): At A T & T's request this section has been revised for clarity and has been redesignated as § 21.509 (b) (5).

Section 21.510 (j): In accordance with the comments of A T & T and National Mobile Radio System, this section has been deleted.

Section 21.510 (k): A T & T, General Electric and Motorola suggested changes which have been made in this rule, now redesignated as § 21.509 (j).

Section 21.512: This rule has been redesignated as § 21.511 (a) and has been revised to make the provision applicable only to miscellaneous common carriers. A new § 21.511 (b) has been added to cover communication service of wire-line communications common carrier's to their own mobile units.

Section 21.515: This section has been redesignated as § 21.514 (a). A new paragraph (b) has been added thereto to cover responsibility for operational control and maintenance of transient mobile units.

12. In connection with Subpart H—Rural Radio Service, the various comments are disposed of as follows:

Section 21.601: Andrew G. Haley, commenting on behalf of a group of 8 miscellaneous common carriers, recommends that common carrier operations upon frequencies formerly allocated to television and FM broadcast stations (i. e., 76–88 Mc and 98–108 Mc in the Territory of Hawaii only) be subject to no interference being caused to these broadcast services. This matter was given due consideration in the frequency reallocation proceeding in Docket No. 10094 and it is inappropriate to argue that question here since Docket No. 10094 has been finalized.

Section 21.601 (a): All America Cables and Radio, Inc., and Radio Corporation of Porto Rico have requested reallocation, from the Domestic Public Land Mobile Radio Service in Puerto Rico and Virgin Islands to the Rural Radio Service, of certain frequencies which are listed herein between 152 and 162 Mc. As we have mentioned elsewhere, this is not a frequency reallocation proceeding and consideration of this proposal herein is inappropriate. In this connection, attention is invited to the rule-making proceeding finalized in Docket No. 11498 which provided other frequencies exclusively for communications common carrier requirements for public point-to-point service in the Carribean area. Accordingly, these comments are moot.

Section 21.601 (b): Frequencies in the 890–940 Mc band have been listed for assignment in the Rural Radio Service as suggested by the comments filed by A T & T, REA and Hawaiian Telephone Company. Several other parties commenting on the proposed rules also urged

that as many frequencies as possible be furnished for the Rural Radio Service. The rule previously designated as § 21.601 (b) has been redesignated as § 21.601 (c).

Section 21.603 (a): As suggested by A T & T's comment, this rule has been changed to include types A1, A2, F1 and F2 emission to provide for telegraphy.

Section 21.603 (b): As suggested by Hawaiian Telephone Company's comments, this rule has been revised to provide for use of types A1, A2, A3, A4, F1, F2, F3 and F4 emission outside the continental limits of the United States, without necessity for making a special showing as previously indicated.

Section 21.605 (b): Lenkurt Electric Co., Inc., A T & T, The Western Union Telegraph Company and Hawaiian Telephone Company recommended deletion of modulation limiter requirements for multi-channel transmitters, in order to avoid excessive distortion of the transmitted intelligence and because of unavailability of suitable modulation limiters for such purposes. Accordingly, this rule has been revised and redesignated as § 21.605 (d).

Section 21.608: A T & T and Motorola suggested simplifying the requirements of this section. It is to be noted that one aspect of Rural Subscriber Service contemplates the construction of a multiplicity of circuits between central offices, while another aspect contemplates the construction of a single channel between a central office and a rural subscriber. It is felt that the data required by this section, insofar as multiple channel construction projects are involved, are necessary for the effective regulation of this service. A new § 21.609 has been added which requires different and substantially less data in support of applications contemplating the construction of radio facilities to provide service between central offices and rural subscribers.

Section 21.609: This section has been redesignated § 21.610. Motorola commented on this by suggesting that the condition that "provision of wire line facilities is not practicable" would preclude relief in a case where such facilities are practicable but not available. We have modified this section to take care of this point.

13. In connection with Subpart I—Intercity Radio Service, the various comments are disposed of as follows:

At the suggestion of various parties, this service has been redesignated as the Point-to-Point Microwave Radio Service. WKY Radiophone Company recommended that these rules prescribe transmission standards of quality which common carriers must meet in rendering service for hire. We are of the opinion that the quality of service which will be provided to a subscriber should be adequately described in the carrier's tariff applicable thereto. If the standards of quality as described therein are inadequate to meet the subscriber's requirements, the subscriber should make such fact known to the carrier and any appropriate regulatory agencies with a view to having the applicable tariff amended to provide the desired service.

Section 21.701 (b): Stromberg-Carlson Company urged reallocation of 2450–2500 Mc band for the exclusive use of common carrier fixed station operations, with emphasis on the need for removal of radar type speed meter operation from this band because the operation of these devices at random sites is a constant threat of causing harmful interference to communications circuits operating in the same band and geographical area. Since this proceeding is not an allocation proceeding, this comment may not properly be considered.

Section 21.701 (c): The suggestion of A T & T that all of the frequencies allocated to the Domestic Public Land Mobile Radio Service in the 152–162 Mc band and 450–460 Mc band be made available for use by control stations in the Point-to-Point Microwave Radio Service is rejected. We believe this function should be performed either by wire lines or upon frequencies allocated exclusively for fixed station operations, thus protecting the basic needs of the mobile service against conflicting fixed usage.

Section 21.701 (e): Hawaiian Telephone Company's request that a new paragraph (e) be added listing the frequency bands 76–88 Mc and 98–100 Mc has not been adopted since Subpart I of these rules is primarily a microwave radio service and the frequencies mentioned are in the VHF part of the radio spectrum. We believe, however, that changes made in Subpart H of the rules will provide for the various types of service which Hawaiian Telephone Company is presently providing.

Section 21.703: Upon request of A T & T, Citizens Utilities Company, Peninsular Telephone Company, Porto Rico Telephone Company, Tidewater Telephone Company, and Federal Telephone and Radio Company, this section has been revised to permit pulse type of emission to be used in the 890–940 Mc band. In addition, at the request of Lenkurt Electric Company, Inc., the provisions of paragraph (e) of this section have been revised for clarity.

Section 21.704 (b): This section has been revised to limit its application to single channel transmitters since comments filed by Lenkurt Electric Company, Inc., and Hawaiian Telephone Company brought out the difficulty of equipping multi-channel transmitters with modulation limiters without introduction of excessive distortion of transmitted intelligence.

Section 21.706: To avoid duplicate filings where the same information is involved in applications filed pursuant to this part and Part 63, Lenkurt suggests that the requirements of this part be waived where the required information has been submitted to the Commission in connection with Part 63 applications. This suggestion is being adopted in paragraph (b) of this section. A T & T suggests that, where a series of related applications are involved, the data be supplied for the entire series and not for each individual station and that the data required be substantially reduced. The first suggestion is incorporated in the footnote to this section. The latter suggestion has been adopted in part, to provide only for the submission of data in given cross-sections and for the principal circuit groups on existing facilities and on the proposed facilities.

Section 21.707. A new section has been added to provide for authorization of fixed stations to operate at temporary fixed locations in connection with the rendition of service of a temporary nature. Persons operating communication facilities under the provisions of this section will be expected to undertake such coordination as may be necessary, prior to commencement of operations, to avoid harmful interference being caused to any other radio system operating under the provisions of this part.

14. In connection with Subpart J—Local Television Program Transmission Service, the various comments are disposed of as follows:

This subpart has been redesignated as the Local Television Transmission Service.

Section 21.801: A T & T's recommendation that the bands of microwave frequencies allocated exclusively to the common carrier fixed service be listed as available under this subpart appears unnecessary. The provisions of Subpart I of these rules appears to be of sufficiently broad scope to permit the "closed circuit" and other operations mentioned in A T & T's comment. We believe the addition of § 21.707 will enable common carriers to meet diversified operational requirements of temporary nature. A T & T's recommendation that the frequency band 6425–6575 Mc be designated for the exclusive use of common carriers is not a matter to be decided in this proceeding. This matter is presently under consideration in Docket No. 10797.

Section 21.804: The A T & T recommendation that provision be made for authorizing bandwidths up to 30 Mc wide in the frequency band 5925–7125 Mc has been adopted in part. The Commission did not adopt the recommendation with respect to frequencies in the 6575–7125 Mc band because common carriers, except those operating international control stations which are not authorized under this Part, are ineligible to operate in the 6575–6875 Mc band and because the 30 Mc bandwidths are incompatible with the channel widths established in the 6875–7125 Mc band in Part 4 of the Commission's rules. Operation with such greater channel widths would undoubtedly lead to cases of harmful interference to adjacent channels used by other stations.

Section 21.806: In accordance with the suggestion by A T & T, this section has been revised to provide for operation of TV Pickup stations, via remote control, for periods not in excess of 6 months.

15. In order to effect a convenient transition to this new rule part by existing stations (now designated experimental) which are eligible for authorization under these new rules, the following procedure will be followed. Since all such existing experimental authorizations expire November 1, 1956, the licensee of each such facility shall, 60 days prior to November 1, 1956, file an appropriate application on FCC Form 405 requesting both modification and renewal of the applicable license in the appropriate new service. A separate ap-

plication shall be filed for each licensed facility. If, however, on and after the effective date of these rules, a licensee or permit holder files an application requiring the issuance of a new instrument of authorization, and such instrument of authorization is issued prior to November 1, 1956, such new instrument of authorization will be issued with such new service designation as may be appropriate under these rules. All pending applications for affected experimental authorizations as of this date shall be deemed automatically modified to request appropriate authorization pursuant to these rules. Finally, existing affected experimental construction permits and licenses, whether or not specifically converted by the issuance of new instruments to appropriate services under these rules shall, from and after the effective date hereof, be governed by the appropriate provisions of these rules and the grantees of such instruments shall be required to comply in all respects therewith.

16. In view of the considerations and determinations related above, and pursuant to the authority contained in sections 4 (i) and 303 of the Communications Act of 1934, as amended, it is ordered, effective September 4, 1956, that:

(1) Part 21, Domestic Public Radio Services (other than Maritime Mobile), as set forth below is adopted, and the proceedings in Docket No. 10821 are terminated.

(2) Part 6, Public Radiocommunication Services (other than Maritime Mobile) is amended by the deletion of §§ 6.101 thru 6.603, which are superseded by new Part 21, herein adopted.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Adopted: June 13, 1956.

Released: June 20, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
MARY JANE MORRIS,
Secretary.

PART 21—DOMESTIC PUBLIC RADIO SERVICES (OTHER THAN MARITIME MOBILE)

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AUTHORITY: §§ 21.0 to 21.806 issued, under sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interpret or apply sec. 303, 49 Stat. 1082, as amended; 47 U. S. C. 303.

§ 21.0 *Basis and purpose.* (a) The basis for the rules in this part is the Communications Act of 1934, as amended, and applicable treaties and agreements to which the United States is a party. The rules in this part are issued pursuant to the authority contained in Titles II and III of the Communications Act of 1934, as amended, which vests authority in the Federal Communications Commission to regulate common carriers of interstate and foreign communications and to regulate radio transmissions and issue licenses for radio stations.

(b) The purpose of the rules and regulations in this part is to prescribe the manner in which portions of the radio spectrum may be made available for the use of radio for domestic communication common carrier operations which require transmitting facilities on land.

SUBPART A—DEFINITIONS

§ 21.1 *Definitions.* As used in this part:

Antenna power gain. The square of the ratio of the root-mean-square free space field intensity produced at one mile in the horizontal plane, in millivolts per meter for one kilowatt antenna input power to 137.6 mv/m. This ratio should be expressed in decibels (db). (If specified for a particular direction, antenna power gain is based on the field strength in that direction only.)

Antenna power input. The radio frequency peak or RMS power, as the case may be, supplied to the antenna from the antenna transmission line and its associated impedance matching network.

Antenna structure. The term "antenna structure" includes the radiating system and its supporting structures.

Assigned frequency. The frequency coinciding with the center of the radio frequency channel in which the station is authorized to work. This frequency does not necessarily correspond to any frequency in an emission.

Authorized frequency. The frequency assigned to a station by the Commission and specified in the instrument of authorization.

Authorized power. The power assigned to a radio station by the Commission and specified in the instrument of authorization. The authorized power does not necessarily correspond to the power used by the Commission for purposes of its Master Frequency Record (MFR) and notification to the Bureau of the International Telecommunications Union.

Auxiliary test station. A fixed station used for test transmissions only, operating on mobile station frequencies from a specified fixed location, for the purpose of determining the performance of fixed receiving equipment which is remotely located from the base station with which it is associated, or where the receiving equipment is located with the base station and both are remotely located from the control point of the station.

Bandwidth occupied by an emission. The band of frequencies comprising 99 percent of the total radiated power extended to include any discrete frequency on which the power is at least 0.25 percent of the total radiated power.

Base station. A land station in the land mobile service carrying on a service with land mobile stations.[1]

Carrier. In a frequency stabilized system, the sinusoidal component of a modulated wave whose frequency is independent of the modulating wave; or the output of a transmitter when the modulating wave is made zero; or a wave generated at a point in the transmitting system and subsequently modulated by the signal; or a wave generated locally at the receiving terminal which when combined with the side bands in a suitable detector, produces the modulating wave.

Carrier frequency. The frequency of the carrier.

Central office. A landline termination center used for switching and interconnection of public message communication circuits.

Central office station. A fixed station used for transmitting communications to rural subscriber stations associated therewith.

Communication common carrier. Any person engaged in rendering communication service for hire to the public.

Control point. A control point is an operating position at which an operator responsible for the operation of the transmitter is stationed and which is under the control and supervision of the licensee.

Control station. A fixed station the transmissions of which are used to control automatically the emissions or operations of another radio station at a specified location, or automatically to transmit to an alarm center telemetering information relative to the operation of such stations.

Dispatch communication. Two-way voice communication, normally of not more than one minute's duration, between common carrier base and land mobile stations, or between a common carrier land mobile station and a landline telephone station not connected to a public message telephone system.

Dispatch point. A dispatch point is a base station operating position, operated by a subscriber, which is under the control and supervision of the base station licensee.

Domestic fixed public service. A fixed service, the stations of which are open to public correspondence, for radiocommunication between points all of which lie within: (a) the 48 states and the District of Columbia, or (b) within a single territory or possession of the United States.[2]

Domestic public land mobile radio service. A public communication service for hire between land mobile stations wherever located and their associated base stations which are located within the continental limits of the United States or its territories and possessions, or between land mobile stations in the United States and base stations in Canada.

Domestic public radio service. The land mobile and domestic fixed public services the stations of which are open to public correspondence.[2]

Effective radiated power. The product of the antenna power input and the antenna power gain. This product should be expressed in watts. (If specified for a particular direction, effective radiated power is based on the antenna power gain in that direction only.)

Exchange. A unit of a communication company or companies for the administration of communication service in a specified area, which usually embraces a city, town, or village and its environs, and consisting of one or more central offices, together with the associated plant, used in furnishing communication service in that area.

Exchange area. The geographic area included within the boundaries of an exchange.

Facsimile. A system of telecommunication for the transmission of fixed images with a view to their reception in a permanent form.

Fixed service. A service of radiocommunication between specified fixed points.

Fixed station. A station in the fixed service.

Frequency tolerance. The frequency tolerance, expressed as a percentage or in cycles per second, is the maximum permissible deviation, with respect to the reference frequency of the corresponding characteristic frequency of an emission.

General communication. Two-way voice communication, through a base station, between a common carrier land mobile station and a landline telephone station connected to a public message landline telephone system, or between two common carrier land mobile stations via a base station.

Harmful interference. Any radiation or any induction which endangers the functioning of a radionavigation service or of a safety service or obstructs or repeatedly interrupts a radio service.

Inter-office station. A fixed station in the domestic fixed public service which is used exclusively for interconnection of telephone central offices.

Landing area. A landing area means any locality, either of land or water, including airports and intermediate landing fields, which is used, or approved for use for the landing and take-off of aircraft, whether or not facilities are provided for the shelter, servicing, or repair of aircraft, or for receiving or discharging passengers or cargo.

Land mobile service. A mobile service between base stations and land mobile stations, or between land mobile stations.

Land mobile station. A mobile station in the land mobile service capable of surface movement within the geographical limits of a country or continent.

Land station. A station in the mobile service not intended for operation while in motion.

Local television transmission service. A domestic public radio communication service for the transmission of television material and related communications.

Message center. The point at which messages from members of the public are accepted by the carrier for transmission to the addressee.

Microwave auxiliary station. A mobile station used in connection with (1) the alignment of microwave transmitting

[1] In certain cases, also communicates with fixed stations and vessels.

[2] In cases where service is afforded on frequencies above 30 Mc, facilities within the United States for communication with facilities in Canada or Mexico and facilities for communication between United States territories and possessions in the Carribean area are also deemed to be in the domestic fixed public service.

[3] Parts 7 and 8 of this chapter are applicable to Maritime services. Part 9 is applicable to Aeronautical services; and Part 14 is applicable to certain Alaskan services.

and receiving antenna systems and equipment, (2) coordination of microwave radio survey operations, and (3) cue and contact control of television pickup station operations.

Microwave frequencies. As used in this part, this term refers to frequencies of 890 Mc. and above.

Miscellaneous common carriers. Communications common carriers which are not engaged in the business of providing either a public landline message telephone service or public message telegraph service.

Mobile service. A service of radiocommunication between mobile and land stations or between mobile stations.

Mobile station. A station in a mobile service intended to be used while in motion or during halts at unspecified points.

Necessary bandwidth of emission. The necessary bandwidth is the width of the frequency band which is necessary in the over-all system, including both transmitter and receiver, for the proper reproduction at the receiver of the desired information, and does not necessarily indicate the interfering characteristics of an emission.[4]

Point-to-point microwave radio service. A domestic public radio service rendered on microwave frequencies [5] by fixed station between points which lie within the continental limits of the United States or between points in its territories and possessions or to points in Canada or Mexico.

Private line service. A service whereby facilities for communication between two or more designated points are set aside for the exclusive use or availability for use of a particular customer and authorized users during stated periods of time.

Public correspondence. Any telecommunication which the offices and stations, by reason of their being at the disposal of the public, must accept for transmission.

Public message service. A service whereby facilities are offered to the public for communication between all points served by a carrier or by interconnected carriers on a non-exclusive message by message basis, contemplating a separate connection for each occasion of use.

Radiocommunication. Any telecommunication by means of Hertzian waves.

Radio station. A separate transmitter or a group of transmitters under simultaneous common control, including the accessory equipment required for carrying on a radiocommunication service.

Rated power output. The term "rated power output" of a transmitter means the normal radio frequency power output capability (Peak or Average Power) of a transmitter, under optimum conditions of adjustment and operation, specified by its manufacturer.

Record communication. Any transmission of intelligence which is reduced to visual record form at the point of reception.

Reference frequency. A frequency coinciding with or having a fixed and specified relation to the assigned frequency. This frequency does not necessarily correspond to any frequency in an emission.

Relay station. A fixed station used for the reception and retransmission of the signals of another station or stations.

Repeater station. A fixed station established for the automatic retransmission of radiocommunications received from one or more mobile stations and directed to a specified location.

Rural radio service. A domestic public radio service rendered by fixed stations on frequencies below 1000 Mc. used to provide (1) public message communication service between a central office and subscribers located in rural areas to which it is impracticable to extend service via landlines, or (2) public message communication service between landline central offices and different exchange areas which it is impracticable to interconnect by other means, or (3) private line telephone, telegraph, or facsimile service between 2 or more points to which it is impracticable to extend service via landline.

Rural subscriber station. A fixed station in the Rural Radio Service used by a subscriber for communication with a central office station.

Service area of base station. The limits of reliable service area of a base station are considered to be described by the field strength contour within which the reliability of communication service is 90 percent, i. e., within the area circumscribed by such contour, nine out of every ten calls initiated by the base station can be satisfactorily received by the mobile unit.

Signaling communication. One-way communication from a base station to a mobile receiver for the purpose of actuating a signaling device in the mobile unit or for communicating information to the desired mobile unit.

Standby transmitter. A transmitter installed and maintained for use in lieu of the main transmitter only during periods when the main transmitter is out of service for maintenance or repair.

Telegraphy. A system of telecommunication for the transmission of written matter by the use of signal code.

Telemetering. Automatic radiocommunication in a fixed or mobile service intended to indicate or record a measurable variable quantity at a distance.

Telephony. A system of telecommunication set up for the transmission of speech, or in some cases, other sounds.

Television. A system of telecommunication for transmission of transient images of fixed or moving objects.

Television non-broadcast pickup station. A mobile, except television pickup, station used for the transmission of television program material and related communications for non-broadcast purposes.

Television pickup station. A land mobile station used for the transmission of television program material and related communications from the scenes of events occurring at points removed from television broadcast station studios to television broadcast stations.

Television STL station (studio transmitter link). A fixed station used for the transmission of television program material and related communications from a studio to the transmitter of a television broadcast station.

SUBPART B—APPLICATIONS AND LICENSES

§ 21.10 *Station authorization required.* No radio transmitter shall be operated in the Domestic Public Radio Services except under and in accordance with a station authorization granted by the Federal Communications Commission.

§ 21.11 *General citizenship restrictions.* A station license may not be granted to or held by:

(a) Any alien or the representative of any alien.

(b) Any foreign government or the representative thereof.

(c) Any corporation organized under the laws of any foreign government.

(d) Any corporation of which any officer or director is an alien.

(e) Any corporation of which more than one-fifth of the capital stock is owned of record or voted by: aliens or their representatives; a foreign government or representatives thereof; or any corporation organized under the laws of a foreign country.

(f) Any corporation directly or indirectly controlled by any other corporation of which any officer or more than one-fourth of the directors are aliens, if the Commission finds that the public interest will be served by the refusal or revocation of such license.

(g) Any corporation directly or indirectly controlled by any other corporation of which more than one-fourth of the capital stock is owned of record or voted by aliens or their representatives, or by a foreign government or representative thereof, or by any corporation organized under the laws of a foreign government, if the Commission finds that the public interest will be served by the refusal or revocation of such license.

§ 21.12 *Place of filing applications and number of copies.* (a) To assure that necessary information is supplied in a consistent manner by all persons, standard forms are prescribed for use in connection with the majority of applications and reports submitted for Commission consideration. Standard numbered forms applicable to the Domestic Public Radio Services (other than Maritime Mobile) are discussed within this subpart and may be obtained from the Secretary, Federal Communications Commission, Washington 25, D. C. or from any of the Commission's engineering field offices, the addresses of which are listed in Section 0.40 of Part 0, Statement of Organization, Delegations of Authority, and other Information.

(b) Every application for a radio station authorization, except applications for stations located in the Territory of Alaska, and all correspondence relating thereto shall be submitted to the Commission's office at Washington 25, D. C., attention of the Secretary.

(c) Applications for station authorizations under this part in the Territory of Alaska shall be submitted to the Federal Communications Commission, Radio

[4] The necessary bandwidth for an emission may be calculated using the formulas in § 2.202 of this chapter.

[5] In certain cases, frequencies below the microwave spectrum, e. g., 27.255 Mc and 72-76 Mc may be used for control and auxiliary stations in this service.

District No. 14, Room 802, Federal Office Building, Seattle 4, Washington, attention of the Engineer-in-Charge. Applications for other stations governed by this part should be submitted to the Commission's office in Washington, D. C.

(d) Unless otherwise specified in a particular case, or for a particular form, each application, including exhibits and attachments thereto, shall be filed in duplicate.

(e) Each application, including exhibits and attachments thereto, for station authorization in the Territory of Alaska shall be filed with one copy more than the number of copies indicated in this part for stations located elsewhere.

§ 21.13 *Subscription and verification of applications.* One copy of each application for an authorization shall be signed under oath or affirmation by the applicant, if the applicant be an individual; by any one of the partners, if an applicant be a partnership; by an officer or duly authorized employee, if the applicant be a corporation; or by a member who is an officer, if the applicant be an unincorporated association: *Provided, however,* That applications may be signed by the attorney-in-fact for an applicant (a) in case of physical disability of the applicant, or (b) his absence from the continental United States. If it be signed by a person other than the applicant, such person must set forth in the verification the grounds of his belief as to all matters not stated upon his knowledge and the reason why it is not made by the applicant. Applications filed on behalf of eligible governmental entities such as states and territories of the United States and political subdivisions thereof, the District of Columbia, and units of local government including incorporated municipalities, shall be signed by such duly elected or appointed officials as may be competent to do so under the law of the jurisdiction. Where more than one copy of an application is required to be filed with the Commission, only the original need be signed and verified; the copies may be conformed.

§ 21.14 *Informal applications.* An application not submitted on a standard form prescribed by the Commission is an informal application. Each informal application shall be submitted in duplicate, normally in letter form in the manner prescribed in §§ 21.12 (b), (c), (d), (e) and 21.13. Each application shall be clear and complete within itself as to the facts presented and the action desired. Informal applications will be accepted only in those cases where standard forms are not applicable.

§ 21.15 *Content of applications.* (a) Each application, unless otherwise authorized, shall be specific with regard to frequency or frequencies, power, hours of operation, equipment, antenna height, antenna gain and orientation, points or areas of communication, location of the station (an application for authority to operate at temporary locations shall specify the general geographic area within which the operation will be confined), full and complete disclosures with regard to the real party or parties in interest, and shall set forth all matters and things required to be disclosed or answered by the application forms and the Commission's rules.

(b) Each application for construction permit for new or additional radio facilities shall be accompanied by a showing of the applicant's legal, financial, technical and other qualifications to be a licensee in the Domestic Public Radio Services except that:

(1) When simultaneous request is made for a multiplicity of radio stations by a single applicant, a single showing of legal, financial, technical and other qualifications may be made and incorporated by reference in the related applications.

(2) When any qualifications have once been established for an applicant, reference may be made thereto by specific identification and a statement indicating, if appropriate, that there has been no change in the reference facts or circumstances. If any material change has occurred, full disclosure thereof shall be made.

(c) Except in cases where such information is already on file with the Commission, applications in these services shall include a single copy of:

(1) The partnership agreement properly certified by each of the partners, if the applicant is a partnership.

(2) The by-laws and the acts or articles of incorporation (or charter) including any amendments thereto, if the applicant is a corporation, certified by an officer of the corporation. If it does not clearly appear on the charter that the corporation is authorized to operate as a communications common carrier, a statement of qualified legal counsel shall be furnished.

(3) The by-laws and articles of association, including any amendments thereto, certified by an appropriate officer of the organization, if the applicant is an unincorporated association.

(4) Where required by applicable local law, a certified copy of the franchise or other authorization issued by appropriate regulatory authorities. If no such local requirement exists, a statement to that effect should be included in the application.

(d) In establishing financial qualifications, a copy of the applicant's current balance sheet (within 90 days of the date of the application) should be furnished. If a loan or other credit arrangement is to be consummated to finance the establishment and operation of the proposed facilities, full particulars relative thereto should be disclosed, including the identity of the creditor.

(e) In establishing technical qualifications, a showing should be made of the arrangements to ensure the rendition of good public communication service, including maintenance and repair facilities, number and description of technical personnel.

(f) Each application for construction permit for a radio station situated at a specified fixed location which involves new antenna construction or modification of existing antenna construction shall be accompanied* by a properly executed FCC Form 401–A† in triplicate in all cases when:

(1) The antenna structures proposed to be erected will exceed an over-all height of 170 feet above ground level, except that where the antenna is mounted on top of an existing man-made structure other than an antenna structure and does not increase the over-all height of such man-made structure by more than 20 feet; no Form 401–A need be filed; or

(2) The antenna structures proposed to be erected will exceed an over-all height of 1 foot above the established airport (landing area) elevation for each 200 feet of distance, or fraction thereof, from the nearest boundary of such landing area, except that where the antenna does not exceed 20 feet above the ground or if the antenna is mounted on top of an existing man-made structure, other than an antenna structure, or natural formation and does not increase the over-all height of such man-made structure or natural formation by more than 20 feet, no Form 401–A need be filed; or

(3) The antenna structure proposed to be modified is already required to be marked or lighted as a navigation hazard to aircraft.

(g) Each application for construction permit for a radio station situated at a specified fixed location which involves new antenna construction or modification of existing antenna construction shall be accompanied by a sketch showing the details of the proposed antenna installation, including its relationship to any existing antenna on the same supporting structure; its height above ground; the ground elevation in feet above mean sea level at the site of such structure; the height or length of the antenna installed upon such structure; and the over-all height of the aggregate installation. The sketch shall be furnished in the same number of copies as required for the application form to which it pertains and, in addition, one extra copy shall be furnished in cases where FCC Form 401–A is required (see § 21.111).

(h) In cases where an applicant, permittee, or licensee desires to establish a receiving antenna or a passive reflector antenna to be associated with the facilities for which authorization is required by this part of the rules, FCC Form 401–A shall be submitted to the Commission for such antenna, in accordance with the criteria set forth in subsection (f), and approval therefor shall be obtained from the Commission prior to its construction.

(i) An application for mobile units to be licensed in the name of a person who is not the licensee of the base station with which the mobile units will be associated in the Domestic Public Land Mobile Radio Service shall be accompanied by the information indicated in paragraph (b) of this section together with an affirmative showing that:

(1) The mobile units for which authorization is sought are for the applicant's own use; and

(2) Definite arrangements have been made for the requested number of mo-

*See also § 21.111 (requirement for additional material in certain cases).

†For complete regulations relative to antenna clearance requirements, see Part 17 of this chapter.

bile units to obtain communication service, upon the frequencies requested, through the base stations specifically identified in the application; and

(3) Specific arrangements, the details of which should be set forth, have been made for installation, technical service and maintenance of the mobile units by licensed first or second class radio operators.

(j) Each application for construction permit for radio facilities which are to be used in rendering communication service for hire, if filed by an applicant not engaged in providing public wire line communication service, shall be accompanied by a statement showing the extent to which the applicant intends actively to participate in the day-to-day operation of the proposed facilities. In the event the applicant does not intend actively to participate in the day-to-day management and operation, he should state his reasons therefor and fully disclose the details of the proposed operations, including a showing of how control thereof will be retained by the applicant.

(k) Each application for construction permit for a developmental authorization shall be accompanied by pertinent supplemental information as required by § 21.405 in addition to such information as may be specifically required by this section.

(l) Each application for construction permit for a base station intended to be operated in the Domestic Public Land Mobile Radio Service by an applicant who is not engaged in providing public wire line communication service, which proposes to establish a new communication facility or make changes in the area of coverage of a station already authorized, shall be accompanied by technical engineering information with respect to:

(1) Type of antenna polarization used.

(2) Type of antenna used, including type number and manufacturer thereof.

(3) Antenna power gain expressed in decibels.

(4) Antenna radiation pattern (on letter size polar coordinate paper) showing the antenna power gain distribution in the horizontal plane expressed in decibels.

(5) Orientation of directional antenna array, expressed in degrees of azimuth, with respect to true north.

(6) Antenna height above average terrain (see also § 21.115).

(7) Antenna transmission line type, length, and radio frequency power transmission losses between the output of the transmitter and the antenna radiating system, expressed in decibels.

(8) Topographic maps (see also § 21.116) showing thereon:

(i) Exact station location.

(ii) Location of radials used in determining elevation of average terrain.

(m) In the Rural Radio Service and the Point-to-Point Microwave Radio Service, each application for initial installation of a radio station, or for installation of additional transmitters, or for authority to communicate with new points, shall be accompanied by the showing required by §§ 21.608 and 21.706, respectively.

(n) Each application requesting authority to establish operations on frequencies in the 72–76 Mc. band shall be accompanied by:

(1) A showing that the applicant agrees to eliminate any harmful interference which may be caused by his operation to television reception on either Channel 4 or 5, and if said interference cannot be eliminated within 90 days of the time the matter is first brought to his attention by the Commission, operation of the interfering fixed station will be immediately discontinued.

(2) In cases where it is proposed to locate a 72–76 Mc. fixed station less than 80, but more than 10, miles from the site of a television transmitter operating on either Channel 4 or 5, or from the post office of a community in which such channels are assigned but not in operation, a showing shall be made as to the number of family dwelling units (as defined by the United States Bureau of Census) located within a circle centered at the location of the proposed fixed station (family dwelling units of 70 or more miles distant from the television station antenna site are not to be counted) the radius of which shall be determined by use of the charts entitled, "Chart for Determining Radius From Fixed Station in 72–76 Mc. Band to Interference Contour Along Which 10 Percent of Service From Adjacent Channel Television Station Would Be Destroyed" (Charts for television channels 4 and 5 are set forth in § 21.103).

(3) In cases where more than 100 family dwelling units are contained within the circle (determined according to paragraph (2) of this section), the number of dwelling units therein shall be stated and a factual showing made that:

(i) The proposed site is the only suitable location.

(ii) It is not feasible, technically or otherwise, to use other available frequencies.

(iii) The applicant has a definite plan, which should be disclosed, to control any interference that might develop to television reception from his operations.

(iv) The applicant is financially able and agrees to make such adjustments in the television receivers affected as may be necessary to eliminate interference caused by his operations.

§ 21.16 *Additional statements.* The Commission may require an applicant or grantee to submit such documents and written statements of fact, under oath, as in its judgment may be necessary.

§ 21.17 *Form of amendments to applications.* Any amendment to an application shall be subscribed, verified, and submitted in the same manner, and with the same number of copies, as was the original application; provided, however, that amendments may be made in letter form, complying in all other respects with this rule.

§ 21.18 *Amendments of applications ordered.* The Commission may, upon its own motion or upon the motion of any party to a proceeding, order the applicant to amend his application so as to make the same more definite and certain.

§ 21.19 *Application for special temporary authorization.* (a) Special temporary authorization may be granted for the operation of a new or existing station in the Domestic Public Land Mobile Radio Services for a limited time, or in a manner and to an extent or for service other or beyond that authorized in an existing license upon proper application therefor.[a] Except as hereafter provided, no such request will be considered unless full particulars as to the purpose for which the request is made are stated and unless the request is received by the Commission at least 10 days prior to the date of proposed operation. A request received within less than 10 days may be accepted upon due showing of sufficient reasons for the delay in submitting such request. A request for special temporary authorization may be submitted as an informal application in the manner set forth in § 21.14.

(b) In cases of emergency found by the Commission, involving danger to life or property or due to damage of equipment, or during a national emergency proclaimed by the President or declared by the Congress or during the continuance of any war in which the United States is engaged and when such action is necessary for the national defense or safety or otherwise in furtherance of the war effort, or in cases of emergency where the Commission finds that it would not be feasible to secure renewal applications from existing licensees or otherwise to follow normal licensing procedure, the Commission will grant construction permits and station licenses, or modifications or renewals thereof, during the emergency found by the Commission or during the continuance of any such national emergency of war, as Special Temporary Licenses, only for the period of emergency or war requiring such action, without the filing of formal applications.

§ 21.20 *Defective applications.* (a) Applications which are defective with respect to completeness of answers to questions, execution or other matters of a formal character will not be received for filing by the Commission, unless the Commission shall otherwise permit, and will be returned to the applicant with a brief statement as to the omissions.

(b) Applications which are not in accordance with the Commission's rules, regulations or other requirements will be considered defective unless accompanied by a request of the applicant for a waiver of, or an exception to, any rule, regulation or requirement with which the application is in conflict. Such request shall show the nature of the waiver or exception desired and set forth the reasons in support thereof.

(c) Applications tendered for filing are given a file number. The assignment of a file number to an application is for the administrative convenience of the Commission and does not indicate the acceptance of the application for filing and processing.

§ 21.21 *Inconsistent or conflicting applications.* When an applicant has an application pending and undecided, no inconsistent or conflicting application

[a] If the request looks to the assignment of a frequency in a manner other than as provided in the Commission's Table of Frequency Allocations, see § 2.103 (e) of this chapter.

filed by the same applicant, his successor or assignee, or on behalf or for the benefit of said applicant, will be considered by the Commission.

§ 21.22 *Repetitious applications.* (a) Where an applicant has been afforded an opportunity for a hearing with respect to a particular application for a new station, or for an extension or enlargement of a service or facilities, and the Commission has, after hearing or default, denied the application or dismissed it with prejudice, the Commission will not consider a like application involving service of the same kind to the same area by the same applicant, or by his successor or assignee, or on behalf of or for the benefit of the original parties in interest, until after the lapse of 12 months from the effective date of the Commission's order. The Commission may, for good cause shown, waive the requirements of this section.

(b) Where an appeal has been taken from the action of the Commission denying a particular application, another application for the same class of station and for the same area, in whole or in part, filed by the same applicant or by his successor or assignee, or on behalf or for the benefit of the original parties in interest, will not be considered until the final disposition of such appeal.

§ 21.23 *Amendments of applications.* (a) Any application may be amended as a matter of right, prior to the designation of such application for hearing, merely by filing the appropriate number of copies of the amendments in question duly executed.

(b) Requests to amend an application after it has been designated for hearing will be considered only upon written petition properly served upon the parties of record, and will be granted only for good cause shown.

§ 21.24 *Dismissal of applications.* (a) Any application may be dismissed without prejudice as a matter of right prior to the designation of such application for hearing.

(b) Requests to dismiss an application without prejudice after it has been designated for hearing will be considered only before public notice of the issuance of a proposed decision proposing denial of the application, upon written petition properly served upon all parties of record, and will be granted only for good cause shown. Such petition must be accompanied by the affidavit of a person with knowledge of the facts as to whether or not consideration has been promised to or received by the petitioner, directly or indirectly, in connection with the filing of such petition.

(c) An applicant not desiring to prosecute his application may request the dismissal of same wtihout prejudice. A request of an applicant for the return of an application which has been accepted for filing will be considered as a request to dismiss the same without prejudice. Where an applicant fails to respond to official correspondence or request for additional material, the application will be dismissed without prejudice.

§ 21.25 *Partial grants.* Where the Commission, without a hearing, grants any application in part, or with any privileges, terms, or conditions other than those requested, or subject to any interference that may result to the station if a designated application or applications are subsequently granted, the applicant will be informed of the reasons for such action and the action of the Commission shall be considered as a grant of such application unless the applicant shall, within 20 days from the date on which public announcement of such grant is made, or from its effective date if a later date is specified, return the instrument of authorization and file with the Commission a written statement rejecting the grant as made and setting forth the reasons why the application should be granted as originally requested. Upon receipt of such statement, the Commission will vacate its original action upon the application and reconsider the same. Upon such reconsideration, it will either grant or set the application for hearing in the same manner as other applications are set for hearing.

§ 21.26 *Grants without a hearing.* (a) Where an application for radio facilities is proper upon its face and where it appears from an examination of the application and supporting data that (1) the applicant is legally, technically, financially and otherwise qualified; (2) a grant of the application would not cause harmful interference to an existing station or stations for which a construction permit is outstanding within its service area; (3) a grant of the application would not preclude the grant of any pending applications; and (4) a grant of the application would serve the public interest, convenience or necessity, the Commission will grant the application without a hearing.

(b) In making its determination pursuant to the provisions of paragraph (a) of this section, the Commission will not consider any other application as being mutually exclusive with the application under consideration unless such other application was tendered for filing with the Commission not later than the close of business one business day preceding the day on which the Commission takes action with respect to the application under consideration.

(c) When any instrument of authorization is granted without a hearing, such grant shall remain subject to protest for a period of 30 days. During such 30 days, any party in interest may file a protest under oath directed to such grant and request a hearing on such application. Such protest shall be served by the protestant upon the grantee, shall contain such allegations of fact as will show the protestant to be a party in interest, and shall specify with particularity the facts relied upon by the protestant as showing that the grant was improperly made or would otherwise not be in the public interest. Within 30 days from the date of filing of such protest, the Commission will make findings as to its sufficiency in meeting the above requirements; and, where it so finds, will designate the application for hearing upon issues relating to all matters specified in the protest as grounds for setting aside the grant, except with respect to such matters as to which the Commission, after affording protestant an opportunity for oral argument, finds, for reasons set forth in its decision, that, even if the facts alleged were to be proven, no grounds for setting aside the grant are presented. The Commission may, in such decision, redraft the issues urged by the protestant in accordance with the facts or substantive allegations in the protest, and may also specify that the application be set for hearing upon such further issues and it may prescribe, as well as whether it is adopting as its own any of the issues resulting from the matters specified in the protest. In any hearing subsequently held upon such application, issues specified by the Commission upon its own initiative, or adopted by it, shall be tried in the same manner as provided in section 309 (b) of the Communications Act of 1934, as amended, but, with respect to issues resulting from facts set forth in the protest and not adopted or specified by the Commission on its own motion, both the burden of proceeding with the introduction of evidence and the burden of proof shall be upon the protestant.

(d) Pending the hearing and determination of any case arising under paragraph (c) of this section, the effective date of the Commission's action to which protest is made will be postponed to the effective date of the Commission's decision after hearing, unless the authorization involved is necessary to the maintenance or conduct of an existing service, or unless the Commission affirmatively finds, for reasons set forth in its decision, that the public interest requires that the grant remain in effect, in which event the Commission will authorize the applicant to utilize the facilities or authorization pending the Commission's decision after hearing.

§ 21.27 *Designation for hearing.* (a) If, upon examination of any application, the Commission is unable to find that the public interest, convenience and necessity would be served by a grant thereof, it will forthwith notify the applicant and other known parties in interest of the grounds and reasons for its inability to make such findings. Such notice will advise the applicant and all known parties in interest of the objections made to the application as well as the source and nature of such objections. The applicant will be given a reasonable period of time from the date of such notice within which to reply thereto. If the Commission, after considering such reply, shall be unable to find that public interest, convenience or necessity would be served by the grant of the application, it will designate the application for hearing on the grounds or reasons then obtaining and will notify the applicant and all other known parties in interest of such action and the grounds and reasons therefor.

(b) The parties in interest, if any, who are notified by the Commission of its action with respect to a particular application may acquire the status of a party to the proceeding by filing a petition for intervention showing the basis for their interest at any time not less than 10 days prior to the date of hearing.

(c) At any hearing subsequently held, the applicant shall have both the burden of proceeding with the introduction of

evidence upon any issue specified by the Commission, as well as the burden of proof upon all such issues.

(d) Where a grant of the application would preclude the grant of an application or applications mutually exclusive with it, the Commission may, if public interest will be served thereby, make a conditional grant of one or more of such mutually exclusive applications and designate all of the mutually exclusive applications for hearing. Such conditional grant will be made upon the express condition that it is subject to being withdrawn if, at the hearing, it is shown that public interest will be better served by a grant of one of the other applications. Such conditional grants will be issued only where it appears:

(1) That some or all of the applications were not filed in good faith but were filed for the purpose of delaying or hindering the grant of another application; or

(2) That public interest requires the prompt establishment of radio service in a particular community or area; or

(3) The grant of one or more applications would be in the public interest and that a delay in making a grant to any applicant until after the conclusion of a hearing on all applications might jeopardize the rights of the United States under the provisions of an international agreement to the use of the frequency in question; or

(4) That a grant of one application would be in the public interest and that it appears from an examination of the remaining applications that they cannot be granted because they are in violation of provisions of the Communications Act, or of other statutes, or of the Commission's rules and regulations.

§ 21.28 *Transfer and assignment of station authorization.* A station authorization, the frequencies authorized to be used by the grantee of such authorization, and the rights therein granted by such authorization shall not be transferred, assigned, or disposed of in any manner, voluntary or involuntary, directly or indirectly, or by transfer of control of any corporation holding such authorization, to any person, except upon application to the Commission and upon finding by the Commission that the public interest, convenience and necessity will be served thereby. Requests for authority of the type referred to herein shall be submitted on the forms prescribed by § 21.29 (h) and shall be accompanied by the further showing required by § 21.29 (h).

§ 21.29 *Forms to be used*—(a) *Application for construction permit for base, auxiliary test and fixed stations.* A separate application for construction permit shall be submitted for each base, each auxiliary test, and each fixed station on FCC Form 401: *Provided, however,* That in the case of fixed stations to be installed at temporary locations, as set forth hereinafter in the applicable subparts of these rules, where the equipment utilized is of such design as to comprise a "packaged" unit which is ready for installation and use with only nominal construction, request may be made for waiver of the construction permit and for the immediate issuance of a license: *And provided further,* That an application for an auxiliary test station may be combined with that of the base station with which such auxiliary facility is to be associated when both are at the same location. Such applications shall be accompanied by the supplementary information set forth in § 21.15 as may be appropriate.

(b) *Application for license for mobile stations.* No construction permit is required for mobile stations. A separate application on FCC Form 401 shall be submitted for a license for the maximum number of mobile units expected to be placed in operation within the ensuing license period: *Provided, however,* In the Domestic Public Land Mobile Radio Service, an application for license for land mobile units to be licensed in the name of the base station licensee may be combined on the same application form with an application for the base station with which the land mobile units will be associated. In the preparation of such blanket applications, care should be exercised that data furnished therein in all particulars is clearly differentiated between the land mobile and base station installations. In any event, the mobile station license will be issued simultaneously with the issuance of the related base station license in the case of installations in the Domestic Public Land Mobile Radio Service. Applications for mobile stations in the Domestic Public Land Mobile Radio Service which are submitted by persons who propose to become subscribers to a common carrier service for public correspondence shall be accompanied by the supplementary showing set forth in § 21.15 (i).

(c) *Application for modification of construction permit.* Under circumstances requiring deviation from the terms of a construction permit, before such deviations are begun, application for modification of construction permit shall be submitted on FCC Form 401. No changes shall be effected until authorized by the Commission through issuance of an appropriate modified construction permit.

(d) *Application for extension of expiration date of construction permit.* Application for extension of time within which to complete construction of a station shall be filed on FCC Form 701 at least 30 days prior to the expiration date of such permit, if the facts supporting such application for extension are known to applicant in time to permit such filing. In other cases, such applications will be accepted upon a showing, satisfactory to the Commission, of sufficient reasons for filing within less than 30 days prior to the expiration date. Such applications will be granted upon a specific and detailed showing that the failure to complete was due to causes not under the control of the grantee, or upon a specific and detailed showing of other matters sufficient to justify the extension (see also § 21.31 (a)).

(e) *Application for station license.* Upon completion of construction or installation of a station in exact accordance with the terms and conditions set forth in the construction permit and upon satisfactory completion of equipment tests in accordance with § 21.212 (a), an application for license to operate the station should be filed on FCC Form 403 prior to the expiration date of the construction permit (see § 21.31 (a)).

(f) *Renewal of station license.* Unless otherwise directed or permitted by the Commission, each application for renewal of license other than special temporary authorizations shall be submitted on FCC Form 405 not less than 30 days nor more than 60 days prior to the expiration date of the license sought to be renewed. Expiring developmental authorizations may be renewed only upon a factual showing of need beyond the expiration date of the authorization sought be renewed. A blanket application may be submitted for renewal of a group of station licenses in the same service in those cases where the renewal requested is in exact accordance with the terms of the previous authorizations. The individual stations covered by such application shall be clearly identified therein, and sufficient copies of such blanket application shall be filed so as to provide at least two copies thereof for each station affected. Special temporary authorizations may be extended upon informal notarized requests. (See §§ 21.405 (b) and 21.511.)

(g) *Application for modification of station license.* An application for modification of any station license in these services may be filed at any time during the term of that license. Application for modification of a station license shall be made on FCC Form 403 and shall be submitted in duplicate not less than 60 days prior to the date contemplated for such modification, unless otherwise permitted.

(h) *Application for consent to assignment, or transfer of control of corporation holding radio station construction permit or license.* An application on FCC Form 702 or FCC Form 703, as the circumstances require, shall be submitted to the Commission when a construction permit or license, or the control of a corporation holding such permit or license, is to be transferred as a result of a voluntary act (contract or other agreement) or an involuntary act (death or legal disability) of the grantee of a permit or station license, or by involuntary assignment of the physical property of the station pursuant to a court decree in bankruptcy proceedings, or other court order, or by operation of law in any other manner. Applications filed on FCC Form 702 or FCC Form 703 shall be accompanied by a factual showing by the assignee of his legal, financial, technical and other qualifications to be the licensee of the radio facilities described in such application. Upon completion of an approved transfer, written notification thereof shall be filed with the Commission.

(i) *Application for authority to operate mobile units of Canadian registry in the United States.* Applications for authority to operate mobile units of Canadian registry within the United States shall be made upon FCC Form 410 which shall be filed with tse Secretary, Federal Communications Commission, Washington 25, D. C. Forms may be obtained from the FCC Secretary or from the Controller of Telecommunications, Department of Transport, Ottawa, Canada.

(j) *Applications for authority to operate mobile units in Canada.* Applications for authority to operate mobile units, which have been licensed in this service by the Commission, shall be made upon proper form and be filed with the Controller of Telecommunications, Department of Transport, Ottawa, Canada, from whom the application forms are obtainable.

§ 21.30 *Period of construction.* (a) Except for stations in the Point-to-Point Microwave Radio Service, each construction permit for a radio station in the Domestic Common Carrier Radio Services will specify a maximum of 60 days from the date of grant thereof as the time within which construction of the station shall begin, and a maximum of eight months from the date of grant as the time within which construction shall be completed and the station ready for operation, unless otherwise determined by the Commission upon proper showing in any particular case (see §§ 21.29 (d) and 21.31 (a)).

(b) For stations in the Point-to-Point Microwave Radio Service, the construction permit issued by the Commission will specify the date of grant as the earliest date of commencement of construction and a maximum of 18 months thereafter as the time within which construction shall be completed and the station be ready for operation, unless otherwise determined by the Commission upon proper showing in any particular case.

§ 21.31 *Forfeiture of station authorizations.* (a) A construction permit shall be automatically forfeited if construction has not been commenced within the time specified therein or if the station is not ready for operation within the term of the construction permit, or within such additional time as the Commission may have allowed upon a proper showing, upon FCC Form 701 filed prior to the date sought to be extended, that failure to commence or complete construction was due to causes not under the control of the permittee (see §§ 21.29 (d) and 21.30 (a)).

(b) A license or special temporary authorization shall be automatically forfeited upon the expiration date specified therein unless prior thereto an application for renewal of such license or authorization shall have been filed with the Commission (see § 21.29 (f)).

§ 21.32 *License period.* Licenses for stations in the Point-to-Point Microwave Radio and Local Television Transmission Services will be issued for a period not to exceed five years; licenses for stations in the Domestic Public Land Mobile Radio and Rural Radio Services will be issued for a period not to exceed three years; except that licenses for developmental stations will be issued for a period not to exceed one year.* The expiration date of licenses of miscellaneous common carriers in the Domestic Public Land Mobile Radio Service shall be the first day of April in the year of expiration; the expiration date of licenses of telephone company common carriers in the Domestic Public Land Mobile Radio Service shall be the first day of July in the year of expiration; the expiration date of licenses in the Rural Radio Services shall be the first day of November in the year of expiration; the expiration date of licenses in the Point-to-Point Microwave Radio and Local Television Transmission Services shall be the first day of February in the year of expiration; and the expiration date of developmental licenses shall be one year from the date of grant thereof. When a license is granted subsequent to the last renewal date of the class of license involved, the license shall be issued only for the unexpired period of the current license term of such class.

* In the case of common carrier Television-STL and Television Pickup stations to which are assigned frequencies allocated to the broadcast services, the authorization to use frequencies shall, in any event, terminate simultaneously with the expiration of the authorization for the broadcast station to which such service is rendered.

SUBPART C—TECHNICAL STANDARDS

§ 21.100 *Frequencies.* The frequencies available for use in the services covered by this part of the rules are listed in the applicable subparts of this part. Assignment of frequencies will be made only in such a manner as to facilitate the rendition of communication service on an interference-free basis in each service area. Unless otherwise indicated, each frequency available for use by stations in these services will be assigned exclusively to a single applicant in any service area. All applicants for, and licensees of, stations in these services shall cooperate in the selection and use of the frequencies assigned in order to minimize interference and thereby obtain the most effective use of the authorized facilities. In the event harmful interference occurs or appears likely to occur between two or more radio systems and such interference cannot be resolved between the licensees thereof, the Commission may specify a time sharing arrangement for the stations involved or may, after notice and opportunity for hearing, require the licensees to make such changes in operating techniques or equipment as it may deem necessary to avoid such interference. Frequency diversity transmission will not be authorized in these services in the absence of a factual showing, in each case, that the required communications cannot practicably be achieved by other means.

§ 21.101 *Frequency stability.* (a) The carrier frequency of each transmitter authorized in these services shall be maintained within the following percentage of the reference frequency, except as provided in paragraph (b) of this section:

Frequency range	Frequency tolerance [1] (percent)
Below 1,000 Mc	0.005.
1,000 to 10,000 Mc	0.05.
Above 10,000 Mc	To be specified in the authorization (but not less than 0.75).

[1] Equipment authorized to be operated by a station on frequencies below 50 Mc on Sept. 4, 1956, shall be permitted to operate until Jan. 1, 1959, with a frequency tolerance of 0.01 percent. Equipment authorized to be operated on frequencies between 890 and 940 Mc on Sept. 4, 1956, shall be required to maintain a frequency tolerance within 0.03 percent subject to the condition that no harmful interference is caused to any other radio station.

(b) Hand or pack carried transmitters having a final stage plate power input of less than 3 watts shall maintain their carrier frequency within the following percentage of the reference frequency:

Frequency range:	*Frequency tolerance (percent)*
Below 50 Mc	0.02
50 to 500 Mc	.01

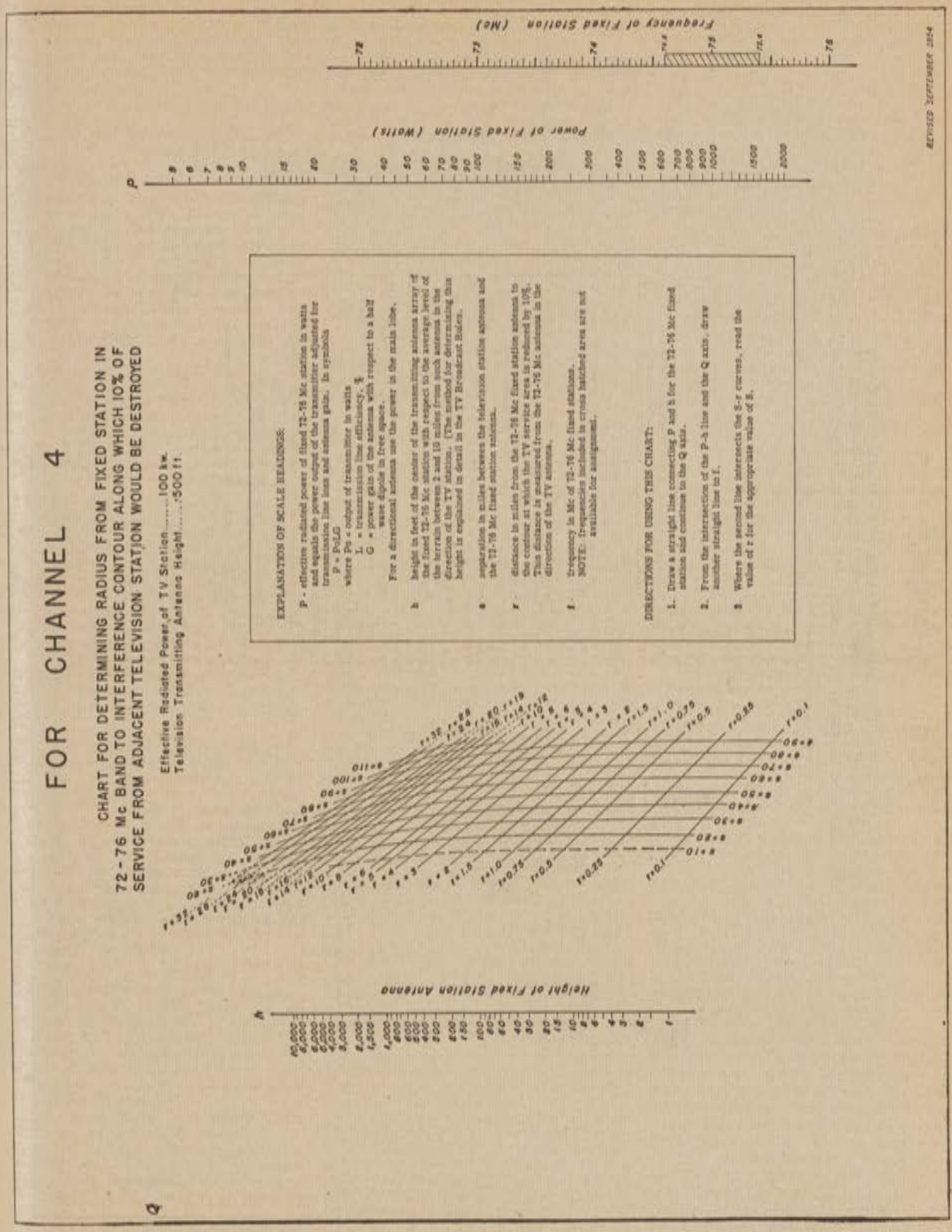
(c) The reference frequency of a station shall be deemed to be the assigned frequency, unless otherwise specified.

§ 21.102 *Frequency measuring or calibrating apparatus.* The frequency measuring or calibrating device used to determine compliance of transmitting equipment with the station authorization and the applicable rules and regulations shall be independent of the transmitter frequency control elements and shall have an accuracy within one-half of the allowed frequency tolerance of the transmitter being measured.

§ 21.103 *Standards and limitations governing authorization and use of frequencies in the 72–76 Mc band.* (a) Assignments on frequencies in the band 72–76 Mc will be made only to stations located 10 or more miles from a channel 4 or 5 television station (or from the post office of the city to which such television channels are allocated, in cases where a television station has not been authorized) and shall be subject to the condition that no harmful interference is caused to reception of such television stations. Applications for use of frequencies involving less than 10 miles separation from such television stations will be returned without action.

(b) Assignments on frequencies in the band 72–76 Mc will be made only upon the applicant's affirmative showing that he agrees to eliminate any harmful interference which may be caused by his operation to television reception on either channel 4 or 5 and, if said interference cannot be eliminated within 90 days of the time the matter is first brought to his attention by the Commission, operation of the interfering fixed station will be discontinued.

(c) In cases where it is proposed to locate a 72–76 Mc fixed station less than 80, but more than 10, miles from the site of a television transmitter operating on either channel 4 or 5 (or from the post office of a community to which such television channels are allocated, in cases where a television station has not been authorized), the fixed station shall be authorized only if there are fewer than 100 family dwelling units (as defined by the United States Bureau of Census) located within a circle centered at the location of the fixed station (family dwelling units 70 or more miles distant from the television station antenna site are not to be counted) the radius of which shall be determined by use of the following charts entitled "Chart For Determining Radius From Fixed Station In 72–76 Mc Band To Interference Contour Along Which 10 Percent of Service From Adjacent Channel Television Station Would Be Destroyed":

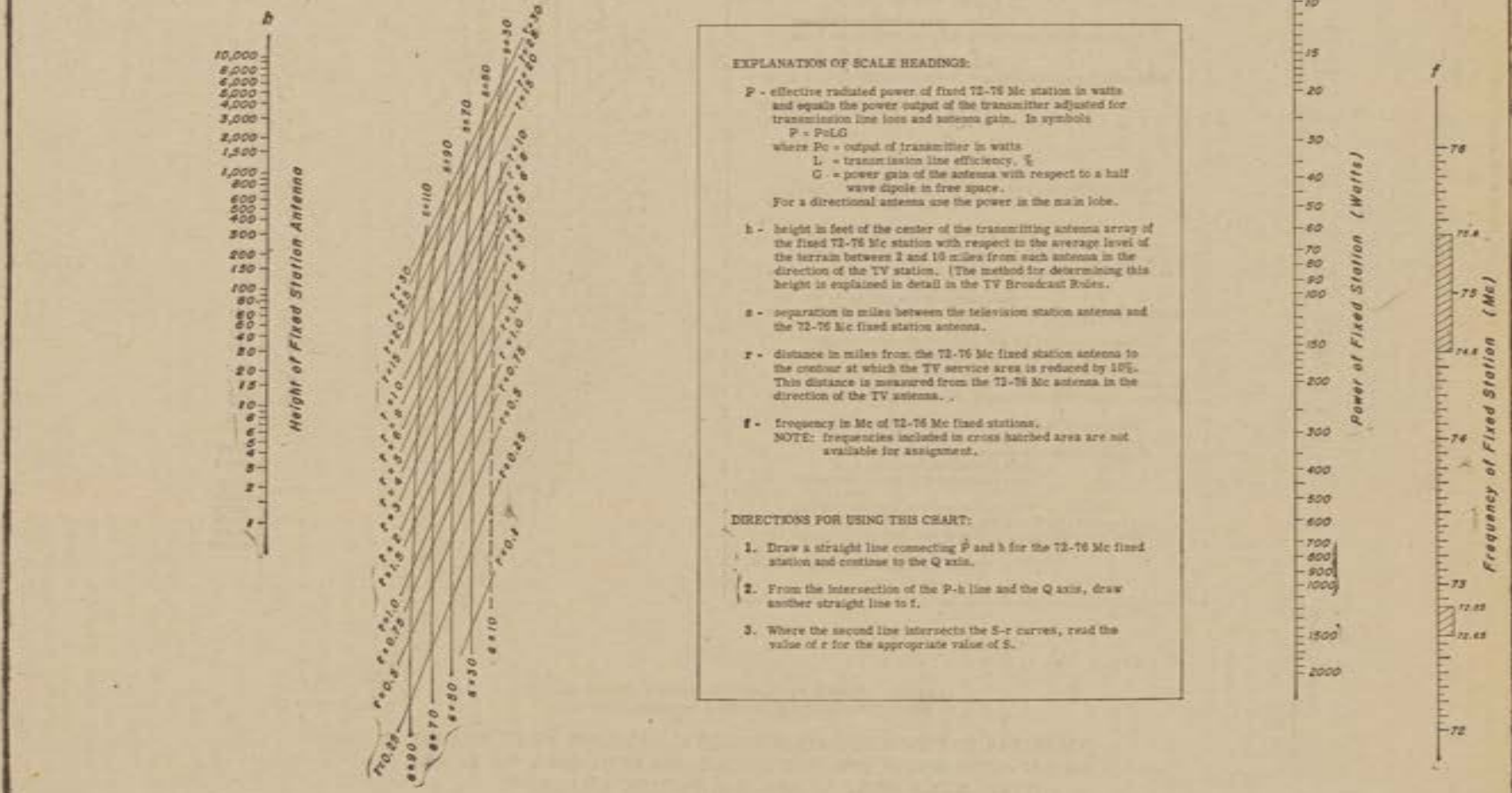

FOR CHANNEL 4
CHART FOR DETERMINING RADIUS FROM FIXED STATION IN 72-76 Mc BAND TO INTERFERENCE CONTOUR ALONG WHICH 10% OF SERVICE FROM ADJACENT TELEVISION STATION WOULD BE DESTROYED
Effective Radiated Power of TV Station.....100 kw.
Television Transmitting Antenna Height.....500 ft.
EXPLANATION OF SCALE HEADINGS:
P - effective radiated power of fixed 72-76 Mc station in watts and equals the power output of the transmitter adjusted for transmission line loss and antenna gain. In symbols
P = PoLG
where Po = output of transmitter in watts
L = transmission line efficiency, %
G = power gain of the antenna with respect to a half wave dipole in free space.
For a directional antenna use the power in the main lobe.
h height in feet of the center of the transmitting antenna array of the fixed 72-76 Mc station with respect to the average level of the terrain between 2 and 10 miles from such antenna in the direction of the TV station. (The method for determining this height is explained in detail in the TV Broadcast Rules.
s separation in miles between the television station antenna and the 72-76 Mc fixed station antenna.
r distance in miles from the 72-76 Mc fixed station antenna to the contour at which the TV service area is reduced by 10%. This distance is scaled from the 72-76 Mc antenna in the direction of the TV antenna.
f frequency in Mc of 72-76 Mc fixed stations.
NOTE: Frequencies included in cross hatched area are not available for assignment.
DIRECTIONS FOR USING THIS CHART:
1. Draw a straight line connecting P and h for the 72-76 Mc fixed station and continue to the Q axis.
2. From the intersection of the P-h line and the Q axis, draw another straight line to f.
3. Where the second line intersects the S-r curves, read the value of r for the appropriate value of S.
Power of Fixed Station (Watts)
Frequency of Fixed Station (Mc)
Height of Fixed Station Antenna
REVISED SEPTEMBER 1954

(See § 21.103)

FOR CHANNEL 5

CHART FOR DETERMINING RADIUS FROM FIXED STATION IN 72-76 Mc BAND TO INTERFERENCE CONTOUR ALONG WHICH 10% OF SERVICE FROM ADJACENT TELEVISION STATION WOULD BE DESTROYED

Effective Radiated Power of TV Station.....100 kw.
Television Transmitting Antenna Height.....500 ft.



EXPLANATION OF SCALE HEADINGS:

P - effective radiated power of fixed 72-76 Mc station in watts and equals the power output of the transmitter adjusted for transmission line loss and antenna gain. In symbols

$P = PoLG$

where Po = output of transmitter in watts
L = transmission line efficiency, %
G = power gain of the antenna with respect to a half wave dipole in free space.

For a directional antenna use the power in the main lobe.

h - height in feet of the center of the transmitting antenna array of the fixed 72-76 Mc station with respect to the average level of the terrain between 2 and 10 miles from such antenna in the direction of the TV station. (The method for determining this height is explained in detail in the TV Broadcast Rules.

s - separation in miles between the television station antenna and the 72-76 Mc fixed station antenna.

r - distance in miles from the 72-76 Mc fixed station antenna to the contour at which the TV service area is reduced by 10%. This distance is measured from the 72-76 Mc antenna in the direction of the TV antenna.

f - frequency in Mc of 72-76 Mc fixed stations.
NOTE: frequencies included in cross hatched area are not available for assignment.

DIRECTIONS FOR USING THIS CHART:

1. Draw a straight line connecting P and h for the 72-76 Mc fixed station and continue to the Q axis.
2. From the intersection of the P-h line and the Q axis, draw another straight line to f.
3. Where the second line intersects the S-r curves, read the value of r for the appropriate value of S.

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(See § 21.103)

(d) In cases where more than 100 family dwelling units are contained within the circle (determined according to paragraph (c) of this section), the Commission may, in a particular case, authorize the location of a fixed station upon a factual showing that:

(1) The proposed site is the only suitable location.

(2) It is not feasible, technically or otherwise, to use other available frequencies.

(3) The applicant has a definite plan, which should be disclosed, to control any interference that might develop to television reception from his operations.

(4) The applicant is financially able and agrees to make such adjustments in the television receivers affected as may be necessary to eliminate interference caused by his operations.

(e) No station assignments shall be made in the frequency range 74.6–75.4 Mc.

(f) No station assignments shall be made in the frequency range 72.65–72.85 Mc within 80 miles from the site of a television transmitter operating on channel 5 (or from the post office of a community to which such television channel is allocated, in cases where a television station has not been authorized).

§ 21.104 *Types of emission.* (a) The types of emission which the various stations in the Domestic Public Radio Services (other than Maritime Mobile) may use are specified in the rules in this part governing the particular service. (See § 2.201 of this chapter for information concerning the manner of designating various classes of emission.)

(b) The use of FO and AO emission in the 72–76 Mc band will not be authorized, except for temporary or short periods necessary for testing incident to the construction or maintenance of a radio station.

§ 21.105 *Bandwidth.* Each authorization issued pursuant to these rules will show, as the emission designator, a symbol representing the class of emission which shall be prefixed by a number specifying the necessary bandwidth in kilocycles. This figure does not necessarily indicate the bandwidth actually occupied by the emission at any instant. In those cases where Part 2 of this chapter does not provide a formula for the computation of the necessary bandwidth, the occupied bandwidth may be used in the emission designator.

§ 21.106 *Emission limitations.*[18] (a) Any emission appearing on any frequency removed from the carrier frequency (or from the center frequency of the emission when an asymmetrical emission is authorized) by 50 to 100 percent of the authorized bandwidth, shall be at least 25 db below the unmodulated output power of the transmitter.

(b) Any emission (including harmonic) appearing on a frequency removed from the carrier frequency (or from the center frequency of the emission when an asymmetrical emission is authorized) by 100 percent or more of the authorized bandwidth shall be attenuated at least $43+10 \log_{10}$ (output power in watts) decibels below the unmodulated output power of the transmitter.

(c) When an emission outside of the authorized bandwidth causes harmful interference, the Commission may, at its discretion, require greater attenuation than specified in the foregoing paragraphs of this section.

§ 21.107 *Transmitter power.* (a) The power which a station will be permitted to use in these services will be the minimum required for satisfactory technical operation commensurate with the size of the area to be served and local conditions which affect radio transmission and reception. In cases of harmful interference, the Commission may, after notice and opportunity for hearing, order a change in the effective radiated power of a station.

(b) The rated power output of a transmitter employed in these radio services shall not exceed the values shown in the following tabulation:

Frequency range:	*Rated power output*
Below 30 Mc	50 watts.
30 to 50 Mc	350 watts.
50 to 76 Mc	50 watts.
76 to 500 Mc	250 watts.
500 to 10,000 Mc	100 watts.
Above 10,000 Mc	Unlimited.

(c) The power of each transmitter shall be maintained as near as practicable to the power input or output, as the case may be, specified in the instrument of station authorization: *Provided*, That the power of each base station transmitter shall not deviate by more than 20 percent above and 25 percent below the authorized power. In the event it becomes impossible to operate within such limits of the authorized power, the station may be operated with reduced power for a period of 10 days or less, provided that if such operation continues longer than 10 days the Commission and the Engineer-in-Charge of the radio district in which the station is located shall be notified in writing immediately thereafter and also upon the resumption of normal power.

§ 21.108 *Directional antennas.* (a) Unless otherwise authorized upon specific request by the applicant, each station authorized under the rules of this part, other than base, mobile and auxiliary test stations operating in the Domestic Public Land Mobile Radio Service, shall employ a directional antenna adjusted with the center of the major lobe of radiation in the horizontal plane directed toward the receiving station with which it communicates: *Provided, however*, Where a station communicates with more than one point, a multi or omni directional antenna may be authorized, if necessary.

(b) Stations, other than base, mobile and auxiliary test stations in the Domestic Public Land Mobile Radio Service, which are required to operate with a directional antenna shall not radiate signals which exceed the following limits of beam width, measured in the horizontal plane at the half power points, for the major lobe of radiation:

Frequency range:	*Maximum beam width*
Below 500 Mc	80°
500 to 1,500 Mc	20°
1,500 to 5,000 Mc	12°
5,000 to 10,000 Mc	8°
Above 10,000 Mc	3°

(c) Each directional antenna system required by this section shall be adjusted so that in the horizontal plane the maximum radiation in any minor lobe is suppressed below the maximum level of signal in the major lobe by at least the amount shown below:

Frequency:	*Suppression of maximum signal in any secondary lobe below the maximum signal in the main lobe*
Below 500 Mc	10 db.
500 Mc and above	13 db.

(d) In cases where passive reflectors are employed in conjunction with transmitting antenna systems, the foregoing paragraphs of this section also shall be applicable thereto. However, in such instances, the center of the major lobe of radiation from the antenna normally shall be directed at the passive reflector.

§ 21.109 *Antenna changes.* (a) In the event harmful interference is caused to the operation of other stations, the Commission may, after notice and opportunity for hearing, order changes to be made in the height, orientation, gain and radiation pattern of the antenna system.

(b) No replacement or change of antenna shall be effected without prior authorization from the Commission if such replacement or change will alter the gain or directivity of the antenna in the horizontal plane or its height above ground.

§ 21.110 *Antenna polarization.* (a) Stations operating in the 72–76 Mc band and each base, mobile and auxiliary test station operating in the Domestic Public Land Mobile Radio Service shall employ an antenna which radiates a signal the electrical component of which is vertically polarized.

(b) Unless otherwise authorized, each station operating on frequencies below 500 Mc (other than base, mobile and auxiliary test stations in the Domestic Public Land Mobile Radio Service, and stations operating in the 72–76 Mc band) shall employ an antenna which radiates a signal, the electrical component of which is horizontally polarized: *Provided, however*, That Rural Subscriber stations communicating with base stations may employ vertical polarization.

(c) Upon a satisfactory showing in each particular case that improved transmission will result and potentially harmful interference to other radio installations would be reduced, the Commission may authorize a station operating on frequencies below 500 Mc. (other than base, mobile and auxiliary test stations in the Domestic Public Land Mobile Radio Service, and all stations operating in the 72–76 Mc. band) to employ an antenna which radiates a signal, the electrical component of which is circularly or otherwise polarized.

[18] Subject to determination of rule-making in Docket No. 11654.

(d) Stations operating in the Domestic Public Radio Services above 890 Mc are not limited as to the type of polarization of the radiated signal: *Provided, however,* That in the event harmful interference is caused to the operation of other stations, the Commission may, after notice and opportunity for hearing, order the licensee to change the polarization of the radiated signal.

§ 21.111 *Simultaneous use of common antenna structure.* The simultaneous use of common antenna structures by more than one Domestic Public Radio station, or by one or more Domestic Public Radio stations and one or more stations of any other class or service, may be authorized provided complete responsibility for maintaining the structure and for painting and illuminating the structure, when obstruction marking is required by the Commission, is assumed by one of the licensees. In each case involving the use of an antenna structure by more than one licensee, the applicant shall submit to the Commission, with his application, a signed and verified copy of the agreement between such parties setting forth which party has assumed the aforementioned responsibility (see § 21.15 (f)).

§ 21.112 *Marking of antenna structures.* No permittee or licensee who has been required to paint or light an antenna structure shall discontinue the required painting or lighting without having obtained prior written authorization therefor from the Commission.

§ 21.113 *Description of station location.* The location of the transmitting antenna shall be considered to be the station location. Applications for stations at specified fixed locations shall describe the transmitting antenna site by its geographical coordinates accurate to the nearest second of latitude and longitude, and also by conventional reference to street number, landmark, etc. Such coordinates shall be specified in terms of degrees, minutes and seconds.

§ 21.114 *Temporary fixed antenna height restrictions.* The antenna heights employed by mobile stations in the Local Television Transmission Service and by stations authorized to operate at temporary fixed locations shall not exceed the height criteria set forth in § 17.3 of this chapter, unless, in each instance, authorization for use of a specific maximum antenna height for each location has been obtained from the Commission prior to erection of the antenna. Requests for such authorization shall show the inclusive dates of the proposed operation and shall be accompanied by FCC Form 401–A completed in triplicate. (Complete information as to rules concerning the construction, marking and lighting of antenna structures is contained in Part 17 of this chapter.)

§ 21.115 *Method of determining average terrain elevation.* In determining the average elevation of the terrain, the elevations between 2 and 10 miles from the antenna site are employed. Profile graphs shall be drawn for 8 radials beginning at the antenna site and extending 10 miles therefrom. The radials should be drawn for each 45 degrees of azimuth starting with True North. At least one radial must include the principal community to be served even though such community may be more than 10 miles from the antenna site. Additionally, where feasible, radials should be drawn in the direction of any co-channel stations which are authorized within 75 miles of the antenna site. However, in the event none of the evenly spaced radials include the principal community to be served, or are in the direction of co-channel stations, such additional radials shall not be employed in computing the elevation of average terrain. Where the 2 to 10 mile portion of a radial extends in whole or in part over large bodies of water (e. g., ocean areas, gulfs, sounds, bays, large lakes, etc., but not rivers) or extends over foreign territory but the field intensity contour defining the limit of the service area in that direction encompasses land area within the United States (or territory under its jurisdiction) beyond the 10 mile portion of the radial, the entire 2 to 10 mile portion of the radial shall be included in the computation of elevation of average terrain. However, where the field intensity contour defining the limit of the service area in that direction does not so encompass United States land area (or territory under its jurisdiction) and (1) the entire 2 to 10 mile portion of the radial extends over large bodies of water or foreign territory, such radial shall be completely omitted from the computation of elevation of average terrain, and (2) where a part of the 2 to 10 mile portion of a radial extends over large bodies of water or over foreign territory, only that part of the radial extending from the 2 mile sector to the outermost portion of land area within the United States (or territory under its jurisdiction) covered by the radial shall be employed in the computation of elevation of average terrain. The profile graph for each radial should be plotted by contour intervals of from 40 to 100 feet and, where the data permits, at least 50 points of elevation (generally uniformly spaced) should be used for each radial. In instances of very rugged terrain where the use of contour intervals of 100 feet would result in several points in a short distance, 200 or 400 foot contour intervals may be used for such distances. On the other hand, where the terrain is uniform or gently sloping, the smallest contour interval indicated on the topographic map should be used, although only relatively few points may be available. The profile graphs should indicate the topography accurately for each radial, and the graphs should be plotted with the distance in miles as the abscissa and the elevation in feet above mean sea level as the ordinate. The profile graphs should indicate the source of the topographical data employed. The graph should also show the elevation of the center of the radiating system. The graph may be plotted either on rectangular coordinate paper or on special paper which shows the curvature of the earth. It is not necessary to take the curvature of the earth into consideration in this procedure. The average elevation of the 8 mile distance between 2 and 10 miles from the antenna site should then be determined from the profile graph for each radial. This may be obtained by averaging a large number of equally spaced points, by using a planimeter, or by obtaining the median elevation (that exceeded for 50 percent of the distance) in sectors and averaging those values.

§ 21.116 *Topographical data.* In the preparation of the profile graphs described in § 21.115, and in determining the location and height above sea level of the antenna site, the elevation or contour intervals shall be taken from United States Geological Survey Topographic Quadrangle Maps, United States Army Corps of Engineers maps or Tennessee Valley Authority maps, whichever is the latest, for all areas for which such maps are available. If such maps are not published for the area in question, the next best topographic information should be used. Topographic data may sometimes be obtained from State and municipal agencies. Data from Sectional Aeronautical Charts (including bench marks) or railroad depot elevations and highway elevations from road maps may be used where no better information is available. In cases where limited topographic data is available, use may be made of an altimeter in a car driven along roads extending generally radially from the transmitter site. Ordinarily, the Commission will not require the submission of topographical maps for areas beyond 15 miles from the antenna site, but the maps must include the principal community to be served. If it appears necessary, additional data may be requested. United States Geological Survey Topographic Quadrangle Maps may be obtained from the Department of the Interior, Geological Survey, Washington 25, D. C. Sectional Aeronautical Charts are available from the Department of Commerce, Coast and Geodetic Survey, Washington 25, D. C.

§ 21.117 *Transmitter location.* (a) Where appropriate to the kind of service to be afforded, the transmitter location should be as near to the center of the proposed service area as possible, consistent with the applicant's ability to find a site with sufficient elevation to provide reliable service throughout the area. Location of the antenna at a high point of elevation is desirable to reduce to a minimum the transmission shadow effect due to hills, buildings or other obstructions which may reduce materially the intensity of the station's signals in a particular direction. The transmitting site should be selected consistent with the purpose of the station, i. e., whether it is intended to serve a small city, a metropolitan area, a large region, or specified fixed points of communication. In providing the best service to an area, it is usually preferable to use a high antenna with low power rather than a lower antenna with higher power. The location should be so chosen that line-of-sight can be obtained from the antenna over the principal cities or specified fixed points of communication to be served.

(b) The transmitting location of a base station should be selected so that the area of interference-free service encompasses the urban population within the area to be served. It is recognized that topography, shape of the desired service area, and population distribution may make the choice of a transmitter location difficult. In such cases, consdieration may be given to the use of a directional antenna system although it is generally preferable to choose a site where a nondirectional antenna may be employed.

(c) The applicant shall determine, prior to filing an application for a radio station authorization, that the antenna site specified therein is adequate to render the service proposed. In cases of questionable antenna locations, it is desirable to conduct propagation tests to indicate the field intensity which may be expected in the principal areas or at the fixed points of communication to be served, particularly where severe shadow problems may be expected. In considering applications proposing the use of such locations, the Commission may require site survey tests to be made pursuant to a developmental authorization in the particular service concerned. In such cases, propagation tests should be conducted in accordance with recognized engineering methods and should be made with a transmitting antenna simulating, as near as possible, the proposed antenna installation. Full data obtained from such surveys and its analysis, including a description of the methods used and the name, address and qualifications of the engineer making the survey, must be supplied to the Commission.

(d) Antenna structures should be so located and constructed as to avoid making them hazardous to air navigation. (See Part 17 of this chapter for provisions relating to antenna structures.) Such installation shall be maintained in good structural condition together with any required painting or lighting.

§ 21.118 *Transmitter construction and installation.* (a) The equipment at the operating and transmitting positions shall be so installed and protected that it is not accessible to, or capable of being operated by, persons other than those duly authorized by the licensee. In general, each transmitter used in the Domestic Public Radio Services shall be so constructed or installed that all controls thereon which may cause off-frequency operation or result in any unauthorized emission shall be protected from access by other than duly authorized holders of first or second class radio operator licenses.

(b) In any case where the maximum modulating frequency of a transmitter is prescribed by the Commission, the transmitter shall be equipped with a low-pass or band-pass modulation filter of suitable performance characteristics. In those cases where a modulation limiter is employed, the modulation filter shall be installed between the transmitter stage in which limiting is effected and the modulated stage of the transmitter.

(c) Each transmitter, other than hand-carried or pack-carried transmitter, employed in these services shall be equipped with an appropriately labeled pilot lamp or meter which will provide continuous visual indication at the transmitter when its control circuits have been placed in a condition to activate the transmitter. In addition, facilities shall be provided at each transmitter to permit the transmitter to be turned on and off independently of any remote control circuits associated therewith.

(d) Each station in these services, which is required to have a licensed radio operator or permit holder on duty and in charge of the station's operations during the normal rendition of service, shall be provided with at least one control point. Prior authority from the Commission is required for the installation of any control point which is to be more than 100 feet from the transmitter or which is to be at an address different from that of the transmitter.

(e) At each transmitter control point the following facilities shall be installed:

(1) A carrier operated device which will provide continuous visual indication when the transmitter is radiating, or, in lieu thereof, a pilot lamp or meter which will provide continuous visual indication when the transmitter control circuits have been placed in a condition to activate the transmitter: *Provided, however,* That the provisions of this subparagraph shall not apply to hand-carried or pack-carried transmitters.

(2) Facilities which will permit the operator to turn transmitter carrier on and off at will.

(f) Transmitter control circuits from any control point shall be so installed that grounding or shorting any line in the control circuit will not cause the transmitter to radiate, provided, however, that this provision shall not be applicable to control circuits of stations which normally operate with continuous radiation or to control circuits which are under the effective operational control of a radio operator 24 hours per day.

(g) Each station operating on frequencies above 500 Mc, which is authorized to operate during the normal rendition of service without a licensed radio operator or permit holder on duty and in charge of its operation (see also § 21.205 (1)), shall be provided with automatic alarm facilities that announce and identify the following conditions to a specified attended alarm center responsible for immediately dispatching qualified service personnel to the station for correction of any unsatisfactory conditions:

(1) Transmitter frequency deviation outside of the station's prescribed limits.

(2) Outage of the station.

(3) Automatic transfer of communications to standby facilities whenever such facilities are provided.

(4) Failure of any antenna obstruction marking light.

§ 21.119 *Limitation on use of transmitters for other services.* Transmitters licensed for operation for services governed by this part may not be concurrently licensed or used for non-common carrier communication purposes.

§ 21.120 *Type acceptance of transmitters.* (a) Except for transmitters used at developmental stations, each transmitter authorized after January 1, 1957, shall be of a type which has been type accepted by the Commission for use under the applicable rules of this part: *Provided,* That this requirement shall become applicable January 1, 1960, to transmitters authorized prior to January 1, 1957 to the same licensee.

(b) Any manufacturer of a transmitter to be produced for use under the rules of this part may request type acceptance by following the type acceptance procedure set forth in Part 2 of this chapter. Type accepted transmitters are included in the Commission's "Radio Equipment List, Part C". Copies of this list are available for inspection at the Commission's Office in Washington, D. C., and at each of its field offices.

(c) Type acceptance for an individual transmitter may also be requested by an applicant for a station authorization, pursuant to the type acceptance procedure set forth in Part 2 of this chapter. An individual transmitter will not normally be included in the Radio Equipment List, Part C, but will be enumerated on the station authorization.

§ 21.121 *Replacement of equipment.* The licensee of a station in this service may replace equipment without authorization from the Commission, provided that the replacement equipment is on the Commission's list of transmitters acceptable for licensing (see § 21.120) and that such equipment conforms to the terms specified in the current instrument of authorization and the applicable rules and regulations. Requests for authority to make other changes in equipment shall be submitted to the Commission in appropriate applications for construction permits or modifications thereof as the case may require.

SUBPART D—TECHNICAL OPERATION

§ 21.200 *Station inspection.* The licensee of each station authorized in the Domestic Public Radio Services shall make the station and station records available for inspection by representatives of the Commission at any reasonable hour.

§ 21.201 *Posting of station authorizations.* (a) The station permit, license and any other instrument of authorization or order concerning the construction of a station at a specified fixed location or its manner of operation shall be posted so that all terms thereof are visible in a conspicuous place at the principal control point of the transmitter. At all other control points, a photocopy of such documents shall be posted in the aforementioned manner.

(b) If the station is authorized for mobile operation, the documents specified in paragraph (a) of this section shall be retained as a permanent part of the station record, but need not be posted.

§ 21.202 *Transmitter identification card.* An executed transmitter identification card (FCC Form 452–C, Revised) or a metal tag with the same information shall be affixed to each transmitter. In vehicular installations, it is preferred that the identification card or metal tag be affixed to the control equipment at the

transmitter operating position. The following information shall be entered on the card or metal tag by the permittee or licensee:

(a) Station call sign.

(b) Name of permittee or licensee.

(c) Location(s) of transmitter records.

(d) Frequency or frequencies on which the transmitter is adjusted to operate.

(e) Signature of the permittee, licensee, or responsible employee thereof. (The signature may be omitted when a metal tag is used.)

§ 21.203 *Posting of operator licenses.* (a) Whenever a licensed radio operator is required for the operation of a radio station, the license of each operator, other than an operator exclusively performing service and maintenance duties, shall be posted or kept immediately available at the place where he is on duty as an operator: *Provided, however,* That if an operator who is on duty holds a restricted radiotelephone operator permit of the card form (as distinguished from such document of the diploma form) or holds a valid license verification card (FCC Form 758–F) attesting to the existence of any other valid commercial radio operator license, he may have such permit or verification card in his personal possession or otherwise immediately available at the place where he is on duty as an operator.

(b) The license of every station operator who performs service and maintenance duties exclusively at that station shall be posted at the transmitter involved whenever the transmitter is in actual operation while service or maintenance work is being performed by him or under his immediate supervision and responsibility: *Provided,* That in lieu of posting his license, he may have on his person his license or a valid verification card.

§ 21.204 *FCC publications required for reference.* For reference purposes, the permittee or licensee of radio facilities in the Domestic Public Radio Services shall maintain and have available at its principal office in the city in which the facilities are located a current copy of Part 21 of this chapter (available at the Government Printing Office, Washington 25, D. C.).

NOTE: It is suggested that the following additional documents be obtained from the Government Printing Office and maintained for reference:

(1) Communications Act of 1934, as amended.

(2) Part 1 of this chapter, Practice and Procedure.

(3) Part 2 of this chapter, Frequency Allocations and Radio Treaty Matters; General Rules and Regulations.

(4) Part 13 of this chapter, Commercial Radio Operators.

(5) Part 17 of this chapter, Construction, Marking and Lighting of Antenna Structures.

(6) Part 45 of this chapter, Preservation of Records of Telephone Carriers.

(7) Part 61 of this chapter, Tariffs, Rules Governing the Construction, Filing and Posting of Schedules of Charges for Interstate and Foreign Communications Service.

(8) Part 63 of this chapter, Extension of Lines and Discontinuance of Service by Carriers.

§ 21.205 *Operator requirements.* (a) Any radio operator (including the holder of a restricted radiotelephone permit) in charge of a radio station in these services, shall be competent to maintain proper radio logs and records relative to such operations where they are required.

(b) When a radio station is radiating, all adjustments or tests during or coincident with the installation and servicing or maintenance of the transmitter and its associated radio equipment which may affect the quality of transmission or possibly cause the station radiation to exceed the limits specified in its instrument of authorization or in the rules pertaining to such station shall be made by or under the immediate supervision and responsibility of a person holding a first or second-class commercial (but not a temporary limited radiotelegraph second-class) radio operator license (either radiotelephone or radiotelegraph, or both, as may be appropriate for the type of emission being used), who shall be responsible for the proper functioning of the radio facilities.

(c) When a radio station is not radiating, any person may perform the above functions without direct supervision after having been authorized to do so by the station licensee. The facilities shall thereafter initially be placed in operation and be determined to be operating properly by a first or second-class licensed commercial (but not a temporary limited radiotelegraph second-class) radio operator.

(d) In all cases, except where manual radiotelegraph keying is employed, the person responsible for the technical installation, servicing and maintenance of a radio station in these services shall hold a first or second-class commercial radiotelephone license issued by the Commission.

(e) Where manual radiotelegraph keying is employed exclusively, the person responsible for the technical installation, servicing and maintenance of a radio station in these services shall hold a first or second-class commercial (but not a temporary limited radiotelegraph second-class radio operator license) radiotelegraph operator license issued by the Commission.

(f) In cases where manual radiotelegraph keying and other types of radio transmission are employed, the person responsible for the technical installation, servicing and maintenance of a radio station in these services shall hold a commercial (but not a temporary limited radiotelegraph second-class radio operator license) radiotelegraph operator license of first or second-class.

(g) During the course of normal rendition of service, a station employing manual radiotelegraph keying shall be operated only by a person holding a commercial radiotelegraph operator license or radiotelegraph operator permit issued by the Commission. Persons not holding such authorizations are forbidden to manipulate a manually operated telegraph key at such stations during periods of station operation.

(h) Any person may, after obtaining permission from the station licensee, operate the following types of stations during the course of normal rendition of service, under the circumstances set forth below:

(1) A mobile station, when communicating with or through a base station in the Domestic Public Land Mobile Radio Service.

(2) A base station, when operated from a dispatch point which is under the effective operational control of a licensed radio operator on duty at the transmitter control point.

(3) A rural subscriber or mobile station in the Rural Radio Service.

(i) Central office stations, Inter-office stations, Auxiliary test stations, and Base stations, including radio control stations which may be associated therewith, shall be operated during the course of normal rendition of service under the effective operational control of a person holding a valid restricted radiotelephone operator permit or higher class of commercial radio operator license issued by the Commission.

(j) TV-STL stations, TV Non-Broadcast Pickup stations, TV Pickup stations, Microwave Auxiliary stations, and Developmental stations shall be operated during the course of normal rendition of service under the effective operational control of a person holding a first or second-class commercial radiotelephone or radiotelegraph operator license (but not a temporary limited radiotelegraph second-class operator license) issued by the Commission.

(k) Notwithstanding any other provisions of this section, unless the transmitter and its associated equipment is so designed that none of the operations necessary to be performed during the course of normal rendition of service may cause off-frequency operation or result in any unauthorized radiation, such transmitter shall be operated by a person holding a first or second-class commercial radio operator license, either radiotelephone or radiotelegraph, as may be appropriate for the type of emission being used (but not a temporary limited radiotelegraph second-class license).

(l) Except under the circumstances specified in paragraphs (g) through (j) of this section, during the course of normal rendition of service, no person is required to be in attendance at a station installed at a specified fixed location when transmitting by self actuating means provided (1) licensed radio personnel responsible for the maintenance of the radio station are continuously available on call at a location which will assure expeditious performance of such technical servicing and maintenance as may be necessary, and (2) the quality of transmisison over such station is subject to the supervision of the licensee's responsible operating personnel for the radio system with which the unattended station is directly associated (see § 21.118 (g)).

(m) The provisions of this section authorizing certain unlicensed persons to operate mobile stations, rural subscriber stations, and base stations shall not be construed to change or diminish in any respect the responsibility of station licensees to have and to maintain effective operational control over the stations operating under their license (including all transmitter units thereof), or

for the proper functioning of those stations in accordance with the terms of the instrument of station authorization and applicable rules and regulations.

(n) Any reference in this section to a commercial radio operator license or permit of any class issued by the Commission shall not be construed to include Aircraft Radiotelephone Operator Authorizations.

(o) A licensee of radio facilities in these services shall be required to have available on call at all times (either as an employee or through appropriate contractual arrangement with a person holding the requisite class or radio operator license) a licensed first or second class commercial radio operator (either radiotelephone or radiotelegraph, as may be appropriate for the type of emission being used) to perform necessary technical servicing and maintenance of the radio facilities expeditiously.

§ 21.206 *Inspection and maintenance of antenna structure obstruction marking and associated control equipment.* The licensee of any radio station which has an antenna structure required to be painted or illuminated pursuant to the provisions of section 303 (q) of the Communications Act of 1934, as amended, or Part 17 of this chapter, operate and maintain the structure marking and associated control equipment in accordance with the following:

(a) The required lighting of the antenna structure shall be observed at least once each 24 hours, either visually or by observing an automatic and properly maintained indicator designed to register any failure of such lights, to insure that all such lights are functioning properly as required, or, alternatively, there shall be provided and properly maintained an automatic alarm system designed to detect any failure of the lights and to provide indication of such failure to the licensee.

(b) Any observed or otherwise known failure of a code or rotating beacon light or top light not corrected within thirty minutes shall be reported immediately by telephone or telegraph to the nearest Airways Communication Station or office of the Civil Aeronautics Administration. Further notification by telephone or telegraph shall be given immediately upon resumption of the required illumination.

(c) All automatic or mechanical control devices, indicators and alarm systems associated with the tower lights shall be inspected at intervals not to exceed three months to insure that such apparatus is functioning properly.

(d) All lighting shall be exhibited from sunset to sunrise unless otherwise specified in the instrument of station authorization.

(e) A sufficient supply of spare lamps shall be maintained for immediate replacement purposes at all times.

(f) All towers shall be cleaned or repainted as often as is necessary to maintain good visibility.

(g) Entries concerning the operation and maintenance of marked antenna structures shall be made in technical log of the station as set forth in Section 21.208 (f).

§ 21.207 *Transmitter measurements.* (a) The licensee of each station shall employ a suitable procedure to determine that the carrier frequency of each transmitter operating in these services is maintained within the tolerance prescribed in § 21.101 or in the instrument of station authorization. This determination shall be made, and the results thereof entered in the technical log of the station, in accordance with the following:

(1) When the transmitter is initially installed.

(2) When any change is made in the transmitting equipment which may affect the carrier frequency or the stability thereof.

(3) At intervals not to exceed one year, for transmitters employing crystal-controlled oscillators, or oscillators regulated by temperature-controlled or temperature-compensated cavities.

(4) At intervals not to exceed one month, for transmitters not employing crystal-controlled oscillators, or oscillators regulated by temperature-controlled or temperature-compensated cavities.

(b) The permittee or licensee of each station shall employ a suitable procedure to determine that the power of each transmitter which operates below 500 Mc from a specified fixed location conforms to the requirements of the station authorization and the rules of this part. Where the transmitter is so constructed that a direct measurement of plate current in the final radio stage is not practicable, the power may be determined from a measurement of the cathode current in the final radio stage. When the power is determined from a measurement of the cathode current, the required record entry shall indicate clearly the quantities that were measured, the measured values thereof, and the method of determining the power from the measured values. This determination shall be made, and the results thereof entered in the station records, in accordance with the following:

(1) When the transmitter is initially installed.

(2) When any change is made in the transmitter which may cause the power to deviate by more than 20 percent above and 25 percent below the authorized power specified in the instrument of station authorization.

(3) At intervals not to exceed one year.

(c) The permittee or licensee of each station shall employ a suitable procedure to determine that the modulation characteristics of each transmitter and the signal radiated therefrom conform to the terms of the instrument of station authorization and to the applicable rules of this part. This determination shall be made, and the results thereof entered in the technical log of this station in accordance with the following:

(1) When the transmitter is initially installed.

(2) When any change is made in the transmitter which may affect the modulation characteristics.

(3) At intervals not to exceed one year.

(d) In the case of mobile transmitters, the determinations required by paragraphs (a) and (c) of this section may be made at a test or service bench: *Provided,* That the measurements are made under load conditions equivalent to actual operating conditions; *And provided further,* That after installation in the mobile unit, the transmitter is given a routine check to determine that it is capable of being received satisfactorily by an appropriate receiver.

(e) The determinations required by paragraphs (a), (b), (c), and (d) of this section shall be made by, or under the immediate supervision of, a person holding a first or second-class commercial radio operator license (but not a temporary limited radiotelegraph or second-class radio operator) who shall authenticate the accuracy of such entries by signing his name in the technical log of the station together with the class, serial number and expiration date of his license: *Provided, however,* That the licensee of the station may optionally have the required determinations made by any qualified engineering measurement service, in which case the required record entries shall also show the name and address of the engineering measurement service.

(f) The use of a frequency monitor in lieu of frequency checks will be recorded in the station log in the same manner and at the same intervals as required in paragraph (a) (3) or (4) of this section. Where automatic frequency monitors are employed which have an accuracy of at least one half of the required frequency tolerance of the transmitters with which they are associated, their use shall be deemed to meet the frequency checking requirements for the period during which they were so used.

§ 21.208 *Station records.* (a) Station records shall be kept in an orderly manner, and in such detail that the data required is readily available. Key letters, abbreviations or symbols may be used if proper meaning or explanation is set forth in the record.

(b) Each entry in the records of a station shall be signed by a person qualified to do so, having actual knowledge of the facts to be recorded.

(c) No record or portion thereof shall be erased, obliterated, or wilfully destroyed within the required retention period. Any necessary correction may be made only by the person originating the entry who shall strike out the erroneous portion, initial the correction made and indicate the date of correction.

(d) The records required by this part shall be retained for a period of at least one year: *Provided,* That:

(1) Records involving communications incident to a disaster or which include communications incident to, or involved in, an investigation by the Commission and concerning which the licensee has knowledge, shall be retained by the licensee until specifically authorized in writing by the Commission to destroy them.

(2) Records incident to or involved in any claim or complaint of which the licensee has knowledge shall be retained by the licensee until such claim or com-

plaint has been fully satisfied or until the same has been barred by statute limiting the time for the filing of suits upon such claims.

(e) For each station in these services the licensee shall maintain, a technical log of the station operation showing:

(1) The results and dates of the transmitter measurements required by § 21.207, and the information concerning the identity of the person making such measurements as required by § 21.207 (e).

(2) Pertinent details concerning any servicing or maintenance performed on a transmitter which may affect its proper operation, including the date thereof, as well as the class, serial number and expiration date of the license of the responsible radio operator who shall authenticate the accuracy of such log by signing his name therein.

(3) Pertinent details concerning time and nature of any failure or erratic transmitter operation, including operation of automatic alarm facilities (see also § 21.118 (g)).

(f) For each station having an antenna structure which is required to be obstruction lighted, appropriate entries shall be made in the station's technical log as follows:

(1) The time the required obstruction lighting is turned on and off each day, if manually controlled.

(2) The time the daily check of the proper operation of the obstruction lights was made.

(3) In the event of any observed or otherwise known failure of an obstruction light:

(i) Nature of such failure.

(ii) Date and time the failure was observed or otherwise noted.

(iii) Date, time and nature of the adjustments, repairs, or replacements made.

(iv) Identification of Airways Communication Station (Civil Aeronautics Administration) notified of the failure of any code, rotating beacon or top light not corrected within thirty minutes, and the date and time such notice was given.

(v) Date and time notice was given to the Airways Communication Station (Civil Aeronautics Administration) that the required illumination was resumed.

(4) Upon performance of the three-month periodic inspection required by § 21.206 (c):

(i) The date of the inspection and the condition of all obstruction painting, lights and associated obstruction lighting control devices, indicators and alarm systems.

(ii) Any adjustments, replacements, repairs, or painting made to insure compliance with the lighting and marking requirements and the date such adjustments, replacements, or repairs were made.

(g) For each station which is required to be operated by a licensed radio operator or by the holder of a restricted radiotelephone operator permit during the course of normal rendition of service, an operation log book shall be kept showing:

(1) The time and signature, upon entering duty at the station and again upon leaving duty, of the person or persons responsible for the operation of the transmitting equipment each day together with the class, serial number and expiration date of their radio operator license or permit.

(2) The time and duration of each transmission and the identity of the station or point to which the transmission was directed: *Provided*, That in lieu thereof, a chronological record of such essential information in the form of traffic tickets, or on a separate sheet, is permissible. When such records are kept in lieu of entries in the operating log book, the minimum retention period shall be as prescribed in paragraph (d) of this section, provision for shorter retention periods in other parts of the Commission's rules notwithstanding.

(h) The log entries concerning the class, serial number and expiration date of the radio operator licenses of the persons responsible for the technical performance and operation of a station, as required by the rules of this part, are not required to be repeated in the case of persons who are regularly employed as operators on a full-time basis at the station. However, log entries shall be authenticated by the signature of such person.

(i) Each entry in the station log shall be legibly made: *Provided, however*, That in any case where it is impracticable to make such entries in the logs immediately, rough logs may be kept in the form of notes or memoranda which shall be transcribed into the station log as soon as possible by the person qualified to do so who has actual knowledge of such facts recorded. The person so transcribing shall authenticate the entries by signing the transcription.

§ 21.209 *Communications concerning safety of life and property.* (a) Handling and transmission of messages concerning the safety of life or property which is in imminent danger shall be afforded priority over other messages.

(b) No person shall knowingly cause to be transmitted any false or fraudulent message concerning the safety of life or property, or refuse upon demand immediately to relinquish the use of a radio circuit to enable the transmission of messages concerning the safety of life or property which is in imminent danger, or knowingly interfere or otherwise obstruct the transmission of such messages.

§ 21.210 *Operation during emergency.* The licensee of any station in these services may, during a period of emergency in which normal communication facilities are disrupted as a result of hurricane, flood, earthquake, or similar disaster, utilize such station for emergency communication service in a manner other than that specified in the instrument of authorization: *Provided*, (a) That as soon as possible after the beginning of such emergency use, notice be sent to the Commission at Washington, D. C., and to the Engineer-in-Charge of the radio district in which the station is located, stating the nature of the emergency and the use to which the station is being put, and (b) that the emergency use of the station shall be discontinued as soon as substantially normal communication facilities are again available, and (c) that the Commission at Washington, D. C. and the Engineer-in-Charge shall be notified immediately when such special use of the station is terminated, and (d) that, in no event, shall any station engage in emergency transmission on frequencies other than, or with power in excess of, that specified in the instrument of authorization or as otherwise expressly provided by the Commission, or by law, and (e) that the Commission may, at any time, order the discontinuance of any such emergency communication.

§ 21.211 *Suspension of transmission.* Transmission shall be suspended immediately upon detection by the station or operator licensee or upon notification by the Commission of a deviation from the technical requirements of the station authorization and shall remain suspended until such deviation is corrected, except for transmission concerning the immediate safety of life or property, in which case transmission shall be suspended immediately after the emergency is terminated.

§ 21.212 *Equipment, service and maintenance tests.* (a) When construction and installation or modification of a station has been completed in accordance with the terms of a construction permit, the technical provisions of the application therefor and the applicable provisions of this part, the permittee is authorized, during the term of such construction permit, to test the equipment for a period not to exceed 10 days, except that permittees of point-to-point microwave stations may conduct such tests for a period not to extend beyond the expiration date of the applicable construction permit: *Provided*, That:

(1) The Commission's Engineer-in-Charge of the radio district in which the station is located is notified not less than 2 days in advance of the date on which the transmitter will first be tested in such manner as to produce radiation, giving the name of the permittee, station location, call sign, frequencies, time and date on which tests are to be conducted.

(2) The Commission reserves the right to cancel, suspend, or change the date of beginning or duration of such tests when such action is in the public interest, convenience or necessity.

(3) All necessary precautions are taken to avoid interference to any other authorized station.

(4) No service to the public may be furnished over the facilities being tested during the equipment test period.

(b) When construction and equipment tests are completed in exact accordance with the terms of the construction permit, the technical provisions of the application therefor, and the other applicable provisions of this part, and after an application for station license has been filed with the Commission showing the station to be in satisfactory operating condition, the permittee is authorized to conduct service tests in exact accordance with the terms of the construction permit until the application for station license is granted or otherwise disposed of in accordance with the Commission's rules: *Provided*, That:

(1) The Commission's Engineer-in-Charge of the radio district in which the station is located is notified not less than 2 days in advance of the beginning of the tests of the time and date when such tests are scheduled to begin.

(2) The Commission reserves the right to cancel, suspend, or change the date of beginning or duration of such tests when such action is in the public interest, convenience or necessity.

(3) Service tests shall not commence after the expiration date of the construction permit.

(4) Charges for service furnished during the service test period shall be made, pursuant to the provisions of legally applicable tariffs (see § 61.62 of this chapter, Rules Governing the Construction, Filing and Posting of Charges for Interstate and Foreign Communication Service).

(c) When a construction permit and license, or a construction permit and modification of license are issued simultaneously for a mobile station, units of such station may be placed in operation without equipment and service test notification to the Commission's Engineer-in-Charge of the radio district in which the station is located, unless otherwise specifically required.

(d) The licensees of all stations in these services are authorized to make such tests as may be necessary for the proper maintenance of the station: *Provided*, That all necessary precautions are taken to avoid interference with other authorized services. The time taken for such tests shall be held to a minimum.

(e) The authorization for tests embodied in paragraphs (a) and (b) of this section shall not be construed as constituting a license to operate but as a necessary part of the construction.

§ 21.213 *Station identification.* (a) Each station in these services, except as hereinafter provided, shall identify itself by transmitting its assigned call sign in connection with each communication or exchange of communication. In the event of a prolonged series of communications, a station shall identify itself at least every half hour. However, stations continuously engaged in a public telephone message, telegraph, radiophoto, or program transmission shall not be required to transmit identifying call signs when such identification would interrupt the continuity of the message, radiophoto or program that is being transmitted. In any such case, the identifying call sign shall be transmitted immediately following the conclusion of the message, radiophoto or program: *Provided*, That the requirement for transmission of station identification is waived for fixed stations automatically retransmitting by self-actuating means, and for fixed stations employing continuous radiation with multi-channel transmission.

(b) In lieu of the use of an official call sign, as prescribed in paragraph (a) of this section, a station may identify itself as follows:

(1) A mobile station in the Domestic Public Land Mobile Radio Service or Rural Radio Service may identify itself by the special mobile unit designation assigned by the licensee or its assigned telephone number, provided adequate records are maintained by the licensee to permit ready identification of the mobile station.

(2) A rural subscriber station may identify itself by its assigned telephone number, provided adequate records are maintained by the licensee to permit ready identification of the rural subscriber station.

(3) A station at a specified fixed location may identify itself by the name of the city in which the station is located.

(4) A TV pickup or TV-STL station may identify itself by the call sign of the broadcast station for which it is rendering service.

(c) Wherever it appears that the manner of identification used by a licensee in lieu of the official call sign is unsatisfactory, the Commission may require the licensee to change the method of station identification.

(d) Where transmission of station identification is required such transmission shall be capable of being received and understood at an appropriate receiver without the use of special channeling or transmission unscrambling devices: *Provided*, That:

(1) Where telephony is employed, station identification shall be by aural transmission or automatic tone signalling.

(2) Where telegraphy, radiophoto or facsimile transmission is employed, the station identification shall be transmitted at a speed not to exceed 25 words per minute at least 3 times in the International Morse Code as "QRA do" followed by the station call sign.

(3) Where television transmission is employed, station identification shall be transmitted either aurally or visually for a period of not less than 5 seconds, or via telegraphic transmission at a speed not to exceed 25 words per minute at least 3 times in the International Morse Code as "QRA do" followed by the station call sign.

SUBPART E—MISCELLANEOUS

§ 21.300 *Business records.* Each licensee of radio facilities authorized under the rules of this part and required to file FCC Form L (see § 1.544 of this chapter) shall keep complete records of all phases of such operations distinctly separate and apart from any other business or activity conducted by the licensee.

§ 21.301 *National defense; free service.* Any common carrier authorized under the rules of this part may render to any agency of the United States Government free service in connection with the preparation for the national defense. Every such carrier rendering any such free service shall make and file, in duplicate, with the Commission, on or before the 31st of July and on or before the 31st of January in each year, reports covering the periods of 6 months ending on the 30th of June and the 31st of December, respectively, next prior to said dates. These reports shall show the names of the agencies to which free service was rendered pursuant to this rule, the general character of the communications handled for each agency, and the charges in dollars which would have accrued to the carrier for such service rendered to each agency if charges for such communications had been collected at the published tariff rates.

§ 21.302 *Answers to notices of violation.* Any person receiving official notice of a violation of the terms of the Communications Act of 1934, as amended, any other Federal statute or Executive Order pertaining to radio or wire communications or any international radio or wire communications treaty or convention, or regulations annexed thereto to which the United States is a party, or the rules and regulations of the Federal Communications Commission, shall, within 3 days from such receipt, send a written answer to the office of the Commission originating the official notice. If an answer cannot be sent, or an acknowledgment made within such 3-day period, acknowledgement and answer shall be made at the earliest practicable date with a satisfactory explanation of the delay. The answer to each notice shall be complete in itself and shall not be abbreviated by reference to other communications or answers to other notices. If the notice relates to some violation that may be due to the physical or electrical characteristics of transmitting apparatus, the answer shall state fully what steps have been taken to prevent future violations, and, if any new apparatus is to be installed, the date such apparatus was ordered, the name of the manufacturer, and promised date of delivery. If the installation of such apparatus requires a construction permit, the file number of the application shall be given or, if a file number has not been assigned by the Commission, such identification as will permit ready reference thereto. If the notice of violation relates to inadequate maintenance resulting in improper operation of the transmitter, the name and license number of the operator performing the maintenance shall be given. If the notice of violation relates to some lack of attention to, or improper operation of, the transmitter by other employees, the reply shall set forth the steps taken to prevent a recurrence of such lack of attention or improper operation.

§ 21.303 *Discontinuance, reduction or impairment of service.* (a) If the public communication service provided by a station in the Domestic Public Radio Services is involuntarily discontinued, reduced or impaired for a period exceeding 48 hours, the station licensee shall promptly give notification thereof in writing to the Commission at Washington 25, D. C., and the Commission's Engineer-in-Charge of the radio district in which the station is located. In such cases, the licensee shall furnish full particulars as to the reasons for such discontinuance, reduction or impairment of service, including a statement as to when normal service is expected to be resumed. When normal service is resumed, prompt notification thereof shall be given in writing to the Commission at Washington 25, D. C., and the Commission's Engineer-in-Charge of the radio district in which the station is located.

(b) No station licensee subject to Title II of the Communications Act of 1934, as amended, shall voluntarily discontinue, reduce or impair public communication service to a community or part of community without obtaining prior authorization from the Commission pursuant to the procedures set forth in Part 63 of this chapter. In the event that permanent discontinuance of service is authorized by the Commission, the station licensee shall immediately give notification of the effective date thereof in writing to the Commission's Engineer-in-Charge of the radio district in which the station is located and shall promptly send the station license to the Commission at Washington 25, D. C., for cancellation.

(c) Any station licensee, not subject to Title II of the Communications Act of 1934, as amended, who voluntarily discontinues, reduces or impairs public communication service to a community or part of a community shall give written notification to the Commission within 7 days thereof. In the event that service is permanently discontinued, the licensee shall give written notification thereof to the Commission's Engineer-in-Charge of the radio district in which the station is located and shall promptly send the station license to the Commission at Washington 25, D. C., for cancellation.

§ 21.304 *Tariffs, reports, and other material required to be submitted to the Commission.* Part 1 of this chapter, beginning with § 1.541, contains a summary of certain material and reports, including, but not limited to schedule of charges and accounting and financial reports, which must be filed with or submitted to the Commission.

§ 21.305 *Reports required concerning amendments to charters, bylaws, and partnership agreements.* Any amendments to charters, articles of incorporation or association, or partnership agreements shall promptly be filed with the Secretary, Federal Communications Commission, Washington 25, D. C. Such filing shall be directed to the attention of the Chief, Common Carrier Bureau.

§ 21.306 *Requirement that permittees and licensees respond to official communications.* All permittees and licensees in these services are required to respond to official communications from the Commission with reasonable dispatch and according to the tenor of such communications. Failure so to do will be given appropriate consideration in connection with any subsequent applications which the offending party may file and may result in the designation of such applications for hearing, or in appropriate cases, the institution of proceedings looking to the modification or revocation of the pertinent authorizations.

SUBPART F—DEVELOPMENTAL AUTHORIZATIONS

§ 21.400 *Eligibility.* Developmental authorizations for stations in the Domestic Public Radio Services will be issued only to existing and proposed communication common carirers who are legally, financially and otherwise qualified to conduct experimentation utilizing hertzian waves for the development of engineering or operational data, or techniques, directly related to a proposed Domestic Public Radio Service or to a regularly established radio service regulated by the rules of this part.

§ 21.401 *Scope of service.* Developmental authorizations may be issued for:

(a) Field strength surveys relative to or precedent to the filing of applications for construction permits, in connection with the selection of suitable locations for stations proposed to be established in any of the regularly established radio services regulated by the rules of this part; or

(b) Development of proposed Domestic Public Radio Services to be governed by the rules and regulations of this part.

§ 21.402 *Adherence to program of research and development.* The program of research and development, as stated by an applicant in the application for construction permit or license or stated in the instrument of station authorization, shall be substantially adhered to unless the licensee is otherwise authorized by the Commission.

§ 21.403 *Special procedure for the development of a new service or for the use of frequencies not in accordance with the provisions of the rules in this part.* (a) An authorization for the development of a new common carrier service not in accordance with the provisions of the rules in this part may be granted for a limited time, but only after the Commission has made a preliminary determination with respect to the factors set forth in this paragraph, as each case may require. This procedure also applies to any application that involves use of a frequency which is not in accordance with the provisions of the rules in this part, although in accordance with the Table of Frequency Allocations contained in Part 2 of this chapter. (An application which involves use of a frequency which is not in accordance with the Table of Frequency Allocations in Part 2 of this chapter should be filed in accordance with the provisions of Part 5 of this Chapter, Experimental Radio Services.) The factors with respect to which the Commission will make a preliminary determination before acting on an application filed under this paragraph are as follows:

(1) That the public interest, convenience or necessity warrants consideration of the establishment of the proposed service or the use of the proposed frequency;

(2) That the proposed operation appears to warrant consideration to effect a change in the provisions of the rules in this part; and/or

(3) That some operational data should be developed for consideration in any rule-making proceeding which may be initiated.

(b) Applications for construction permits for stations which are intended to be used in the development of a proposed service shall be accompanied by a petition to amend the Commission's rules with respect to frequencies and such other items as may be necessary to provide for the regular establishment of the proposed service.

§ 21.404 *Terms of grant; general limitations.* (a) Developmental authorizations normally shall be issued for one year, or such shorter term as the Commission may deem appropriate in any particular case, and shall be subject to cancellation without hearing by the Commission at any time upon notice to the licensee.

(b) Where some phases of the developmental program are not covered by the general rules of the Commission or by the rules of this part, the Commission may specify supplemental or additional requirements or conditions in each case as it may deem necessary in the public interest, convenience or necessity.

(c) Frequencies allocated to the service toward which such development is directed will be assigned for developmental operation on the basis that no interference will be caused to the regular services of stations operating in accordance with the Commission's Table of Frequency Allocations.

(d) The rendition of communication service for hire is not permitted under any developmental authorizations unless specifically authorized by the Commission.

(e) The grant of a developmental authorization carries with it no assurance that the developmental program, if successful, will be authorized on a permanent basis either as to the service involved or the use of the frequencies assigned or any other frequencies.

§ 21.405 *Supplementary showing required.* (a) Authorizations for development of a proposed radio service in the Domestic Public Radio Services will be issued only upon a showing that the applicant has a definite program of research and development, the details of which shall be set forth, having reasonable promise of substantial contribution to these services within the term of such authorization. In addition to showing that the applicant is financially qualified or that adequate provision has been made to underwrite the costs of the proposed venture, a specific showing should be made as to the factors which the applicant believes qualify him technically to conduct the research and development program, including a description of the nature and extent of engineering facilities which applicant has available for such purpose.

(b) Expiring developmental authorizations may be renewed only upon the applicant's compliance with the applicable requirements of paragraphs (a) and (b) of § 21.406 relative to the authorization sought to be renewed and upon a factual showing that further progress in the program of research and development requires further radio transmission and that the public interest, convenience or necessity would be served by renewal of such authorization.

§ 21.406 *Developmental report required.* (a) Upon completion of the program of research and development, or, in any event, upon the expiration of the instrument of station authorization under which such investigations were permitted, or at such times during the term of the station authorization as the Commission may deem necessary to

evaluate the progress of the developmental program, the licensee shall submit, in duplicate, a comprehensive report on the following items, in the order designated:

(1) Report on the various phases of the project which were investigated.

(2) Total number of hours of operation on each frequency assigned.

(3) Copies of any publication on the project.

(4) A listing of any patents applied for, including copies of any patents issued as a consequence of the activities carried forth under the authorization.

(5) Detailed analysis of the result obtained.

(6) Any other pertinent information.

(b) In addition to the information included in paragraph (a) above, the developmental report of a station authorized for the development of a proposed radio service shall include comprehensive information on the following items:

(1) Probable public support and methods of its determination.

(2) Practicability of service operations.

(3) Interference encountered.

(4) Pertinent information relative to merits of the proposed service.

(5) Propagation characteristics of frequencies used, particularly with respect to the service objective.

(6) Frequencies believed to be more suitable and reasons therefor.

(7) Type of signals or communications employed in the experimental work.

(c) Normally, development reports will be made a part of the Commission's public records. However, an applicant may request that the Commission withhold from the public certain reports and associated material relative to the accomplishments achieved under developmental authorization, and, if it appears that such information should be withheld, the Commission will so direct.

SUBPART G—DOMESTIC PUBLIC LAND MOBILE RADIO SERVICE

§ 21.500 *Eligibility.* Authorizations for base stations and auxiliary test stations to be operated in this service will be issued to existing and proposed communication common carriers. Authorizations for mobile stations on land or on board vessels will be issued to communication common carriers or to individual users of the service. Applications will be granted only in cases where it is shown that (a) the applicant is legally, financially, technically and otherwise qualified to render the proposed service, (b) there are frequencies available to enable the applicant to render a satisfactory service, and (c) the public interest, convenience or necessity would be served by a grant thereof.

§ 21.501 *Frequencies.* The following frequencies are available to the Domestic Public Land Mobile Radio Service for the use set forth in this section.

(a) For assignment, in accordance with the Zone Allocation Plan, to stations of communication common carriers which are also in the business of affording public landline message telephone service, for General and Dispatch Communications (provided that Signaling Communications may also be furnished by any facility rendering such General or Dispatch service). The frequencies specified may be used in adjoining zones within moderate distances of the respective zone boundaries to permit continuous service to mobile units transiting such zone boundaries.

Zone I—Base station frequency: 35.66 Mc, Mobile and Auxiliary Test station frequency: 43.66 Mc.

Connecticut	New Jersey.
Delaware.	New York.
District of Columbia	Pennsylvania.
Lake Ontario.	Rhode Island.
Maine.	Vermont.
Maryland.	Virginia.
Massachusetts.	West Virginia.
New Hampshire.	

Zone II—Base station frequency: 35.34 Mc, Mobile and Auxiliary Test station frequency: 43.34 Mc.

Alabama.	Mississippi.
Florida.	North Carolina.
Georgia.	South Carolina.
Louisiana.	

Zone III—Base station frequency: 35.42 Mc, Mobile and Auxiliary Test station frequency: 43.42 Mc.

Illinois.	Lake St. Clair.
Indiana.	Lake Superior.
Kentucky.	Michigan.
Lake Erie.	Ohio.
Lake Huron	Tennessee.
Lake Michigan.	Wisconsin.

Zone IV—Base station frequency: 35.54 Mc, Mobile and Auxiliary Test station frequency: 43.54 Mc.

Iowa.	North Dakota.
Minnesota.	South Dakota
Montana.	Wyoming.
Nebraska.	

Zone V—Base station frequency: 35.30 Mc, Mobile and Auxiliary Test station frequency: 43.30 Mc.

Arkansas.	Oklahoma.
Kansas.	Texas.
Missouri.	

Zone VI—Base station frequency: 35.38 Mc, Mobile and Auxiliary Test station frequency: 43.38 Mc.

Arizona.	Nevada.
California.	New Mexico.
Colorado.	Utah.

Zone VII—Base station frequency: 35.26 Mc, Mobile and Auxiliary Test station frequency: 43.26 Mc.

Idaho.	Washington.
Oregon.	

Zone VIII—Base station frequency: 35.50 Mc, Mobile and Auxiliary Test station frequency: 43.50 Mc.

Indiana.	New York.
Lake St. Clair.	Ohio.
Michigan.	Pennsylvania.
New Jersey.	The Great Lakes.

Zone IX—Base station frequency: 35.62 Mc, Mobile and Auxiliary Test station frequency: 43.62 Mc.

Arkansas.	Texas.
Oklahoma.	

(b) For assignment, to stations of communication common carriers engaged also in the business of affording public landline message telephone service, for General and Dispatch Communications (provided that Signaling Communications may also be furnished by any facility rendering such General or Dispatch service): [11]

Base station frequencies (Mc):	*Mobile and auxiliary test station frequencies (Mc)*
152.51	157.77
152.57	157.83
152.63	157.89
152.69	157.95
152.75	158.01
152.81	158.07
454.45	459.45
454.55	459.55
454.65	459.65
454.75	459.75
454.85	459.85
454.95	459.95

(c) For assignment to stations of communication common carriers not also engaged in the business of providing a public landline message telephone service for General and Dispatch Communications (provided that Signaling Communications may also be furnished by any facility rendering such General or Dispatch service): [11]

Base station frequencies (Mc):	*Mobile and auxiliary test station frequencies (Mc)*
152.03	158.49
152.09	158.55
152.15	158.61
152.21	158.67
454.05	459.05
454.15	459.15
454.25	459.25
454.35	459.35

(d) For assignment to base stations of communication common carriers for use exclusively in providing a one-way signaling service to mobile receivers:

35.58 Mc
43.58 Mc

(1) Wherever feasible, the frequency 35.58 Mc shall be assigned for use in any area prior to any assignment of the frequency 43.58 Mc.

(2) If an applicant for authorization to provide an exclusive one-way signaling service provides, or proposes also to provide, General or Dispatch service in accordance with paragraphs (a), (b), and (c) of this section, the application for a one-way facility should be supported with full information to show why the proposed signaling service could not be provided in connection with the base station facilities used for such General or Dispatch service.

[11] Control stations which were authorized to use these frequencies on September 4, 1956, may be authorized to continue operation on such frequencies until the investment in such facilities has been amortized, but in no event beyond April 1, 1961, under the condition that harmful interference is not caused to stations in the Domestic Public Land Mobile Radio Service and the Rural Radio Service. In any case where use of these frequencies is required by an applicant in the Domestic Public Land Mobile Radio Service or the Rural Radio Service for the purpose of providing any of the basic services relating thereto (i. e., for stations other than developmental or control), continued operation of control stations thereon will not be authorized beyond the term of the then effective authorization therefor.

(e) For assignment to stations using radio facsimile as an integral portion of common carrier message telegraph pick-up or delivery procedure:

Base, Mobile and Auxiliary Test Station Frequencies (Mc)

35.22
35.46
43.22
43.46

(f) The following frequencies are available for assignment to control and repeater stations functioning in conjunction with the Domestic Public Land Mobile Radio Service, on a shared basis with certain other radio services: [12]

72–76 Mc Band [1]

Mc	Mc	Mc	Mc
72.02	72.82	73.62	74.42
72.06	72.86	73.66	74.46
72.10	72.90	73.70	74.50
72.14	72.94	73.74	74.54
72.18	72.98	73.78	74.58
72.22	73.02	73.82	75.42
72.26	73.06	73.86	75.46
72.30	73.10	73.90	75.50
72.34	73.14	73.94	75.54
72.38	73.18	73.98	75.58
72.42	73.22	74.02	75.62
72.46	73.26	74.06	75.66
72.50	73.30	74.10	75.70
72.54	73.34	74.14	75.74
72.58	73.38	74.18	75.78
72.62	73.42	74.22	75.82
72.66	73.46	74.26	75.86
72.70	73.50	74.30	75.90
72.74	73.54	74.34	75.94
72.78	73.58	74.38	75.98

[1] Assignments made to stations on frequencies in this band are subject to the condition that no harmful interference will be caused to operational fixed stations or reception of television stations on channels 4 or 5. (See § 21.103.)

(g) For assignment to control and repeater stations functioning in conjunction with the Domestic Public Land Mobile Radio Service, on a shared basis with other radio services:

890–940 Mc Band

(Subject to determination of Docket No. 10797)

Mc	Mc	Mc	Mc
890.5	901.5	912.5	923.5
891.0	902.0	913.0	924.0
891.5	902.5	913.5	924.5
892.0	903.0	914.0	925.0
892.5	903.5	914.5	925.5
893.0	904.0	915.0	926.0
893.5	904.5	915.5	926.5
894.0	905.0	916.0	927.0
894.5	905.5	916.5	927.5
895.0	906.0	917.0	928.0
895.5	906.5	917.5	928.5
896.0	907.0	918.0	929.0
896.5	907.5	918.5	929.5
897.0	908.0	919.0	930.0
897.5	908.5	919.5	930.5
898.0	909.0	920.0	931.0
898.5	909.5	920.5	931.5
899.0	910.0	921.0	932.0
899.5	910.5	921.5	932.5
900.0	911.0	922.0	933.0
900.5	911.5	922.5	933.5
901.0	912.0	923.0	934.0

[12] A repeater station normally will not be authorized unless the land mobile radio system with which it is associated is continuously open for public correspondence and the emissions of the repeater station are under the operational surveillance of the land mobile system's licensed operating personnel.

890–940 Mc Band—Continued

Mc	Mc	Mc	Mc
934.5	936.0	937.5	939.0
935.0	936.5	938.0	939.5
935.5	937.0	938.5	

Stations operating on these frequencies will not be protected from such interference as may be experienced from the emission of industrial, scientific, and medical equipment on 915 Mc in accordance with § 2.104 (a) of this chapter.[13]

§ 21.502 *Classification of base stations.* Base stations of miscellaneous common carriers in the Domestic Public Land Mobile Radio Service shall be classified, as set forth below, according to their transmitting antenna height above average terrain, and according to their effective radiated power in the horizontal plane of the antenna.

Antenna height above average terrain (feet)	Class of station				
400 to 500	C	B	B	A	A
300 to 400	C	C	B	B	A
200 to 300	D	C	C	B	B
100 to 200	D	D	C	C	B
0 to 100	E	D	D	C	C
	30	60	120	250	500
	Effective radiated power (watts).				

§ 21.503 *Geographical separation of co-channel stations.*[14] Base stations of miscellaneous common carriers operating co-channel in this service shall normally be separated by not less than the distances shown below:

Class of station	Minimum mileage separation between co-channel stations				
A	75				
B	68	61			
C	64	56	48		
D	60	53	45	36	
E	56	50	42	29	23
	A	B	C	D	E
	Class of station				

In any particular case, where it appears that unusual radio wave propagation conditions are involved, the Commission may require greater separation than indicated in the above table, or make assignments at lesser station spacing.

§ 21.504 *Service area of base station.* The limits of reliable service area of a base station are considered to be described by a field strength contour of 37 decibels above one microvolt per meter for stations engaged in two-way communication service with mobile stations and 43 decibels above one microvolt per meter for stations engaged in one-way signaling service. Service within that area is generally expected to have an average reliability of not less than ninety percent.

[13] A repeater station normally will not be authorized unless the land mobile radio system with which it is associated is continuously open for public correspondence and the emissions of the repeater station are under the operational surveillance of the land mobile system's licensed operating personnel.

[14] Reference may be made to § 3.611 (d) of this chapter, Radio Broadcast Services, for methods of computing mileage separations between station locations.

§ 21.505 *Antenna height limit for base stations.* In view of the fact that the predominant need for mobile communication service can usually be met by base stations within the classification set forth in § 21.502, and because widespread coverage is undesirable in areas where no substantial need exists for mobile communication service through a distant base station, base stations will not be authorized to employ transmitting antennas in excess of 500 feet above average terrain unless, upon an affirmative showing by the applicant, circumstances are established which warrant authorization of an antenna structure of greater elevation.

§ 21.506 *Power limitations.* Stations in this service shall not be permitted to exceed 500 watts effective radiated power and shall not be authorized to use transmitters having a rated power output in excess of the limits set forth in § 21.107 (b). A base station standby transmitter having a rated power output in excess of that of the main transmitter of the base station, with which it is associated, will not be authorized.

§ 21.507 *Bandwidth and emission limitations.* (a) Stations in this service shall normally be authorized to use only type A3 or F3 emission for radiotelephony, and type A1, A2, F1 or F2 emission for selective signaling: *Provided,* That stations operating in accordance with the provisions of § 21.501 (e) shall also be authorized to employ type A4 or F4 emission. The authorization to use type A3, F3, A4 or F4 emission shall be construed to include the use of the tone signals or signaling devices whose sole function is to establish and maintain communication between stations using radiotelephony or facsimile transmission. Stations using selective signaling in the one-way signaling service must be authorized to employ telegraph type emission appropriate to the type of transmission employed. The use of F0 and A0 emission in the 72–76 Mc band will not be authorized, except for temporary or short periods necessary for testing incident to the construction or maintenance of a radio station. (Further reference should be made to §§ 21.103 to 21.105, inclusive.)

(b) The maximum bandwidths which will normally be authorized for the various types of emission permitted in this service on frequencies below 500 Mc are set forth as follows:

Type of emission:	*Authorized bandwidth*
A1	1 kc
A2	3 kc
A3	8 kc
A4	12 kc
F1	3 kc
F2	3 kc
F3	40 kc
F4	40 kc

(c) On frequencies above 500 Mc, the bandwidth authorized shall not exceed 400 kc for each derived communication channel and may be restricted to lesser bandwidth when appropriate to the type of operation involved in any particular case.

(d) Other types of emission or bandwidth in excess of those specified in para-

graph (b) of this section may be authorized upon an adequate showing of need therefor. An application requesting such authorization shall fully describe the modulation characteristics (for FM include maximum modulating frequency and maximum frequency deviation) emission and bandwidth desired, shall specify the bandwidth to be occupied, and shall state the reasons why such emission or bandwidth is required.

(e) The authorization to employ any of the various types of modulated emission in this service shall be construed to include authority to employ unmodulated emission only for temporary or short periods necessary for equipment testing incident to the construction and maintenance of a radio station.

§ 21.508 *Modulation requirements.* (a) The use of modulating frequencies higher than 3000 cycles per second for radiotelephony or tone signaling is not authorized on frequencies below 500 Mc.

(b) The use of modulating frequencies higher than 5000 cycles per second is not authorized for facsimile transmission on frequencies below 500 Mc.

(c) When amplitude modulation is used, the modulation percentage shall be sufficient to provide efficient communication and shall normally be maintained above 70 percent on peaks, but shall not exceed 100 percent on negative peaks.

(d) When phase or frequency modulation is used for radiotelephony on frequencies below 500 Mc, the deviation arising from modulation shall not exceed plus or minus 15 kc from the unmodulated carrier.

(e) Each single channel radiotelephone transmitter having more than 3 watts plate power input to the final radio frequency stage, initially authorized or installed at the station in this service after July 1, 1950, shall be provided with a device which will automatically prevent modulation which may be caused by greater than normal audio level and which is in excess of that specified in paragraphs (c) and (d) of this section.

(f) Upon a satisfactory showing that it is not technically feasible to employ a modulation limiter, as required by paragraph (e) of this section, and upon a satisfactory showing that other suitable measures will be observed to prevent modulation in excess of the limits specified in paragraphs (c) and (d) of this section, the Commission may authorize transmitters to operate without modulation limiters when used for facsimile transmission.

§ 21.509 *Permissible communications.* (a) Mobile stations in this service are authorized to communicate with and through base stations only. Such communication between base and mobile stations shall be upon frequencies which are paired in the manner set forth in §§ 21.501 (a), 21.501 (b), and 21.501 (c).

(b) Base stations in this service are normally authorized to communicate with associated land mobile stations in the same service: *Provided, however,* That base stations may also render service to properly licensed transient land mobile stations normally associated with another common carrier base station, including mobile units of Canadian registry. Under specific authorization from the Commission, service may be rendered to stations on board vessels. Authority to provide service to vessels may be granted upon a showing that the rendition of service to vessels will not degrade, by kind or extent of usage, the service which would be available, in the absence of service to vessels, to land vehicles receiving or subsequently requesting such services in the area: *Provided,* That any authorization to render service to vessels, other than itinerant vessels requiring service in other areas where VHF public coast service is not available, shall automatically terminate at the expiration of 60 days after inauguration of VHF public coastal service in the area involved. Applications for authority to communicate with vessels shall be accompanied by a showing of the following:

(1) The total number of land mobile units being served through the base station.

(2) The total number of land mobile units to which it is reasonably expected that such service will be furnished at any time in the next 12 months.

(3) The total number of stations on board vessels initially proposed to be served through the base station.

(4) The total number of stations on board vessels to which it is reasonably expected that such service will be furnished at any time in the next 12 months.

(5) Other public radio facilities available in the area providing service to mobile stations on board vessels.

(6) Such other information as may be deemed pertinent, showing that communication with vessels will not degrade or deny service to land vehicles receiving or requesting land vehicular communication service over the radio facilities of the base station, and that such service to vessels is necessary and desirable.

(c) Applications requesting renewal of authority to render service to vessels shall be accompanied by a current showing of information as required in paragraph (b) of this section.

(d) Mobile stations in this service may not be operated aboard aircraft.

(e) Base stations in this service may render one-way signaling service to receivers installed aboard vessels and aircraft without special authorization from the Commission.

(f) Base stations in this service may be authorized to communicate with Rural Subscriber stations in the Rural Radio Service, where the use of wire lines is not practicable or feasible. Authorization for the rendition of such service may be granted upon a satisfactory showing that it will not degrade the mobile communication service rendered by the base station. Applications for authority to communicate with a Rural Subscriber station shall be accompanied by a supplementary showing as set forth in § 21.608. Such showing, and the request for modification of the related base station license, may be incorporated in the application for construction permit for the fixed point to which communication is to be effected.

(g) The base and mobile station facilities authorized in this service shall not be used in connection with any taxicab operations wherein the license is directly or indirectly interested through stock ownership or otherwise.

(h) Pursuant to the provisions of the "Convention Between the United States of America and Canada, Relating to Operation by Citizens of Either Country of Certain Radio Equipment or Stations in the Other Country," United States licensed mobile units in this service which are in Canada may be authorized by the Canadian Government to communicate with or through Canadian licensed common carrier base stations in the land mobile radio service or with base stations licensed under the rules of this part. Canadian licensed mobile units in the common carrier land mobile radio service which are in the United States may communicate with and through United States licensed base stations in this service provided authority for such communication has been granted by the Commission upon proper application therefor. (See § 21.29 (i) and (j).)

(i) Unless otherwise prohibited by agreements, laws, rules, regulations, etc. of the foreign country concerned, base stations in this service are not prohibited from rendering trans-border communication service for hire to mobile units in that country which are properly licensed to operate in the common carrier land mobile service of either country.

(j) Auxiliary test stations in this service shall normally be operated upon mobile station frequencies only for the purpose of determining the performance of fixed receiving equipment remotely located from the base station with which it is associated or where the receiving equipment is located with the base station and both are remote from the control point of the station: *Provided, however,* That a transmitter used in an auxiliary test station may be used as a standby transmitter upon the frequency of the base station with which it is associated whenever such base station is out of service for maintenance or repair.

§ 21.510 *Base stations may be authorized only as part of integrated radio system.* Base stations will be authorized only as a part of an integrated communication system wherein mobile units associated therewith are also licensed to the base station licensee (see § 21.15 (i)).

§ 21.511 *Communication service to own mobile units.* (a) Upon filing an application for renewal of station license for a base station in this service, a miscellaneous common carrier applicant shall show that, during the preceding license period, at least an average of 50 percent of the mobile units on any channel to which communication service has been rendered by a base station have been used by persons not directly or indirectly controlling or controlled by, or under direct or indirect common control with the applicant. If an applicant is unable to meet such criterion, he shall show what efforts have been made to achieve use of the service by the public and offer such further showing or explanation as he may deem appropriate.

(b) Wire-line communications common carriers may be authorized to es-

tablish land mobile radio facilities under this part of the rules for the purpose of providing communication facilities for their own use incident to construction and maintenance of public communication facilities: *Provided, however,* That the use of the authorized facilities on such frequencies shall be on a secondary basis and subject to use by public subscribers at any time when required for the rendition of public communication service.

§ 21.512 *Priorities for service to subscribers.* (a) Subscriptions to mobile telephone service shall be afforded in the following order of precedence and in chronological order of filing of request for service within each of the following customer categories:

(1) *Category 1: Public safety and health.* Official federal, state, county and municipal government agencies protecting the public safety and health; private organizations and persons engaged primarily in protecting the public safety and health such as physicians, hospitals, ambulance services, volunteer fire departments, American Red Cross, licensed protective patrols and armored cars and similar agencies.

(2) *Category 2: Public service.* Contract carriers, common carriers, and public utilities (exclusive of taxicab and livery service), for communications other than correspondence of the general public.

(3) *Category 3: Quasi public service.* Emergency repair organizations, not included in Category 1, protecting health and property; press associations, newspapers and broadcasting stations.

(4) *Category 4: Physically handicapped.* Persons who because of physical handicaps, operate specifically equipped vehicles and are unable to leave such vehicles without assistance.

(5) *Category 5: Industrial.* Gas or oil producing or drilling operators; producers and distributors of fuel and lumber and other construction materials and equipment; food processing, distribution and storage organizations; producers of substantial quantities of food; business concerns engaged in construction of housing and industrial or public works; taxicabs and livery service.

(6) *Category 6: Traveling public.* Trains and watercraft where service is made available to passengers.

(7) *Category 7: All others.*

(b) After initial establishment of service in accordance with the table of priorities in paragraph (a) of this section when facilities in a given area are insufficient to furnish service to all who desire mobile radiotelephone service, applications for new or additional mobile units shall be ranked within the categories in order of date of filing and service shall be afforded such applicants as facilities become available, in descending order of precedence.

§ 21.513 *Location of message center.* The message center shall be so located that the major portion of the local exchange landline telephone calls, on behalf of subscribers to the service, to and from the message center, shall cost no more than the local message rate.

§ 21.514 *Responsibility for operational control and maintenance of mobile units.* (a) The licensee of a base station in this service shall be responsible for exercising effective operational control over all mobile units with which it communicates. The proper installation and maintenance of such mobile units shall be the responsibility of the respective licensees thereof.

(b) A mobile unit normally associated with and licensed to a specified base station will be deemed, when communicating with a different base station pursuant to legally effective tariff provisions, to be temporarily associated with and licensed to such different base station and the licensee of such different base station shall, for such temporary period, assume the same licensee responsibility for such mobile unit as if such unit were reguarly licensed to it.

§ 21.515 *Control points and dispatch points.*[35] (a) Dispatch points may be installed or removed without authorization. Dispatch point circuit facilities shall be installed in conformance with the requirements of paragraph (c) (2) of this section.

(b) To insure the maintenance of station control, means shall be provided whereby each dispatch point is maintained under the continuous effective operational supervision of one or more control points.

(c) At each control point for a base station or fixed station in this service, the following facilities will be installed:

(1) Equipment to permit the responsible radio operator to monitor aurally, at such intervals as may be necessary to insure proper operation thereof, all transmissions originating at dispatch points under his supervision and of stations with which the radio station communicates.

(2) Facilities which will permit the responsible radio operator either to disconnect immediately the dispatch point circuits from the transmitter or immediately to render the transmitter inoperative from any dispatch point associated therewith.

SUBPART H—RURAL RADIO SERVICE

§ 21.600 *Eligibility.* Authorizations for central office stations and interoffice stations will be issued to existing and proposed communication common carriers. Authorizations for rural subscriber stations will be issued to communication common carriers or to individual users of the service. Applications will be granted only in cases where it is shown that (a) the applicant is legally, financially, technically and otherwise qualified to render the proposed service, (b) there are frequencies available to enable the applicant to render a satisfactory service and (c) the public interest, convenience or necessity would be served by a grant thereof.

[35] Reference should be made to § 21.118 for additional control point requirements and also to § 21.205 concerning operator requirements.

§ 21.601 *Frequencies.*[36] (a) The following frequencies are available primarily to the Domestic Public Land Mobile Radio Service and, on a secondary basis, to stations in the Rural Radio Service, provided no harmful interference is caused to stations in the Domestic Public Land Mobile Radio Service:

Central office and Interoffice station frequencies (Mc):	*Rural subscriber and inter-office station frequencies (Mc)*
152.03	158.49
152.09	158.55
152.15	158.61
152.21	158.67
152.51	157.77
152.57	157.83
152.63	157.89
152.69	157.95
152.75	158.01
152.81	158.07
454.05	459.05
454.15	459.15
454.25	459.25
454.35	459.35
454.45	459.45
454.55	459.55
454.65	459.65
454.75	459.75
454.85	459.85
454.95	459.95

(b) The following frequencies are available for assignment to rural subscriber, central office and inter-office stations in this service on a shared basis with other radio services:

890–940 Mc Band[1]

(Subject to determination of Docket No. 10797)

Mc	*Mc*	*Mc*	*Mc*
890.5	903.0	915.5	928.0
891.0	903.5	916.0	928.5
891.5	904.0	916.5	929.0
892.0	904.5	917.0	929.5
892.5	905.0	917.5	930.0
893.0	905.5	918.0	930.5
893.5	906.0	918.5	931.0
894.0	906.5	919.0	931.5
894.5	907.0	919.5	932.0
895.0	907.5	920.0	932.5
895.5	908.0	920.5	933.0
896.0	908.5	921.0	933.5
896.5	909.0	921.5	934.0
897.0	909.5	922.0	934.5
897.5	910.0	922.5	935.0
898.0	910.5	923.0	935.5
898.5	911.0	923.5	936.0
899.0	911.5	924.0	936.5
899.5	912.0	924.5	937.0
900.0	912.5	925.0	937.5
900.5	913.0	925.5	938.0
901.0	913.5	926.0	938.5
901.5	914.0	926.5	939.0
902.0	914.5	927.0	939.5
902.5	915.0	927.5	

[1] Stations operating in the 890–940 Mc band will not be protected from such interference as may be experienced from the emissions of industrial, scientific, and medical equipment on 915 Mc, in accordance with § 2.104 (a) of this chapter.

[36] Inter-island and intra-island point-to-point telephone and point-to-point telegraph stations which were licensed, on September 4, 1956, in the Fixed Public Services outside the continental limits of the United States shall be licensed in this service and may be authorized to continue the use of the previously authorized frequencies on the condition that harmful interference will not be caused to services operating in accordance with the table of frequency allocations.

(c) In the Territory of Hawaii, the following frequencies are available for assignment to Inter-Office stations:

76–108 Mc Band

Mc	Mc	Mc	Mc
76.02	79.42	82.82	86.22
76.06	79.46	82.86	86.26
76.10	79.50	82.90	86.30
76.14	79.54	82.94	86.34
76.18	79.58	82.98	86.38
76.22	79.62	83.02	86.42
76.26	79.66	83.06	86.46
76.30	79.70	83.10	86.50
76.34	79.74	83.14	86.54
76.38	79.78	83.18	86.58
76.42	79.82	83.22	86.62
76.46	79.86	83.26	86.66
76.50	79.90	83.30	86.70
76.54	79.94	83.34	86.74
76.58	79.98	83.38	86.78
76.62	80.02	83.42	86.82
76.66	80.06	83.46	86.86
76.70	80.10	83.50	86.90
76.74	80.14	83.54	86.94
76.78	80.18	83.58	86.98
76.82	80.22	83.62	87.02
76.86	80.26	83.66	87.06
76.90	80.30	83.70	87.10
76.94	80.34	83.74	87.14
76.98	80.38	83.78	87.18
77.02	80.42	83.82	87.22
77.06	80.46	83.86	87.26
77.10	80.50	83.90	87.30
77.14	80.54	83.94	87.34
77.18	80.58	83.98	87.38
77.22	80.62	84.02	87.42
77.26	80.66	84.06	87.46
77.30	80.70	84.10	87.50
77.34	80.74	84.14	87.54
77.38	80.78	84.18	87.58
77.42	80.82	84.22	87.62
77.46	80.86	84.26	87.66
77.50	80.90	84.30	87.70
77.54	80.94	84.34	87.74
77.58	80.98	84.38	87.78
77.62	81.02	84.42	87.82
77.66	81.06	84.46	87.86
77.70	81.10	84.50	87.90
77.74	81.14	84.54	87.94
77.78	81.18	84.58	87.98
77.82	81.22	84.62	98.02
77.86	81.26	84.66	98.06
77.90	81.30	84.70	98.10
77.94	81.34	84.74	98.14
77.98	81.38	84.78	98.18
78.02	81.42	84.82	98.22
78.06	81.46	84.86	98.26
78.10	81.50	84.90	98.30
78.14	81.54	84.94	98.34
78.18	81.58	84.98	98.38
78.22	81.62	85.02	98.42
78.26	81.66	85.06	98.46
78.30	81.70	85.10	98.50
78.34	81.74	85.14	98.54
78.38	81.78	85.18	98.58
78.42	81.82	85.22	98.62
78.46	81.86	85.26	98.66
78.50	81.90	85.30	98.70
78.54	81.94	85.34	98.74
78.58	81.98	85.38	98.78
78.62	82.02	85.42	98.82
78.66	82.06	85.46	98.86
78.70	82.10	85.50	98.90
78.74	82.14	85.54	98.94
78.78	82.18	85.58	98.98
78.82	82.22	85.62	99.02
78.86	82.26	85.66	99.06
78.90	82.30	85.70	99.10
78.94	82.34	85.74	99.14
78.98	82.38	85.78	99.18
79.02	82.42	85.82	99.22
79.06	82.46	85.86	99.26
79.10	82.50	85.90	99.30
79.14	82.54	85.94	99.34
79.18	82.58	85.98	99.38
79.22	82.62	86.02	99.42
79.26	82.66	86.06	99.46
79.30	82.70	86.10	99.50
79.34	82.74	86.14	99.54
79.38	82.78	86.18	99.58

76–108 Mc Band—Continued

Mc	Mc	Mc	Mc
99.62	101.74	103.86	105.98
99.66	101.78	103.90	106.02
99.70	101.82	103.94	106.06
99.74	101.86	103.98	106.10
99.78	101.90	104.02	106.14
99.82	101.94	104.06	106.18
99.86	101.98	104.10	106.22
99.90	102.02	104.14	106.26
99.94	102.06	104.18	106.30
99.98	102.10	104.22	106.34
100.02	102.14	104.26	106.38
100.06	102.18	104.30	106.42
100.10	102.22	104.34	106.46
100.14	102.26	104.38	106.50
100.18	102.30	104.42	106.54
100.22	102.34	104.46	106.58
100.26	102.38	104.50	106.62
100.30	102.42	104.54	106.66
100.34	102.46	104.58	106.70
100.38	102.50	104.62	106.74
100.42	102.54	104.66	106.78
100.46	102.58	104.70	106.82
100.50	102.62	104.74	106.86
100.54	102.66	104.78	106.90
100.58	102.70	104.82	106.94
100.62	102.74	104.86	106.98
100.66	102.78	104.90	107.02
100.70	102.82	104.94	107.06
100.74	102.86	104.98	107.10
100.78	102.90	105.02	107.14
100.82	102.94	105.06	107.18
100.86	102.98	105.10	107.22
100.90	103.02	105.14	107.26
100.94	103.06	105.18	107.30
100.98	103.10	105.22	107.34
101.02	103.14	105.26	107.38
101.06	103.18	105.30	107.42
101.10	103.22	105.34	107.46
101.14	103.26	105.38	107.50
101.18	103.30	105.42	107.54
101.22	103.34	105.46	107.58
101.26	103.38	105.50	107.62
101.30	103.42	105.54	107.66
101.34	103.46	105.58	107.70
101.38	103.50	105.62	107.74
101.42	103.54	105.66	107.78
101.46	103.58	105.70	107.82
101.50	103.62	105.74	107.86
101.54	103.66	105.78	107.90
101.58	103.70	105.82	107.94
101.62	103.74	105.86	107.98
101.66	103.78	105.90	
101.70	103.82	105.94	

(d) Within the geographic areas in which the frequencies in paragraphs (a) and (b) of this section may be assigned, and under the same limitations of shared usage and reservations concerning interference set forth therein, such frequencies may also be assigned to radio relay stations in the Rural Radio Service upon a satisfactory showing as to why it is impracticable to achieve the requisite communication without the use of radio relay stations operating on such frequencies.

§ 21.602 *Transmitter power.* Stations in this service shall not be authorized to use transmitters having a rated power output in excess of the limits set forth in § 21.107 (b). A standby transmitter having a rated power output in excess of that of the main transmitter with which it is associated will not be authorized.

§ 21.603 *Types of emission.*[11] (a) Stations in this service within the continental limits of the United States normally shall be authorized to use only types A1, A2, A3 or F1, F2 and F3 emission for radiotelephony. However, multi-channel type of amplitude or frequency modulated emission for radiotelephony may be authorized upon a satisfactory showing of need therefor and provided that the criteria concerning bandwidth of emission set forth in § 21.604 (b) are satisfied.

(b) In addition to the types of emission which may be authorized under the provisions of paragraph (a) of this section, stations in this service outside the continental limits of the United States may be authorized to employ A4 and F4.

(c) The authorization for use of A3 and F3 emission shall be construed to include the use of tone signals or signaling devices whose sole function is to establish and maintain communication between stations.

(d) Other types of emission not described in paragraph (a) of this section may be authorized upon a satisfactory showing of need therefor. An application requesting such authorization shall fully describe the emission desired, shall indicate the bandwidth required for satisfactory communication, and shall state the purpose for which such emission is required.

§ 21.604 *Emission limitations.* (a) The maximum bandwidths which will normally be authorized for single channel operation in this service are set forth below:

Type of emission:	Authorized bandwidth
A1	1 kc
A2	3 kc
A3	8 kc
A4	12 kc
F1	3 kc
F2	3 kc
F3	40 kc
F4	40 kc

(b) Bandwidths of emission greater than shown in paragraph (a) of this section may be authorized for multichannel operation upon an adequate showing of need therefor and provided a showing is made that the efficiency of frequency utilization per derived communication channel is equivalent to or greater than on a single channel basis. An application requesting such authorization shall fully described the modulation, omission and bandwidth desired and shall specify the bandwidth to be occupied.

§ 21.605 *Modulation requirements.* (a) The use of modulating frequencies higher than 3000 cycles per second for single channel radiotelephony or tone signaling on frequencies below 500 Mc is not authorized.

(b) When amplitude modulation is used, the modulation percentage shall be sufficient to provide efficient communication and shall be normally maintained above 70 percent on peaks, but shall not exceed 100 percent on negative peaks.

(c) When phase or frequency modulation is used for single channel radiotelephony on frequencies below 500 Mc, the deviation arising from modulation shall not exceed plus or minus 15 kc from the unmodulated carrier.

(d) Each single channel radiotelephone transmitter having more than 3 watts plate power input to the final radio frequency stage and initially in-

[11] Further reference should be made to §§ 21.103 to 21.105, inclusive.

stalled at a station in this service after the effective date of these rules shall be provided with a device which will automatically prevent modulation in excess of that specified in paragraphs (b) and (c) of this section which may be caused by greater than normal audio level.

§ 21.606 *Permissible communications.* (a) Rural Subscriber stations normally are authorized to communicate with and through the central office station with which they are associated. However, where the establishment of central office station facilities in this service is shown to be impracticable, Rural Subscriber stations may be authorized to communicate with and through a specified base station in the Domestic Public Land Mobile Radio Service pursuant to the provisions of § 21.509 (f).

(b) Central Office stations may communicate only with Rural Subscriber stations.

(c) Inter-Office stations may communicate only with other Inter-Office stations.

(d) The foregoing paragraphs of this section shall not be construed to prohibit stations in this service from communicating through radio relay stations authorized pursuant to the provisions of § 21.601 (d).

§ 21.607 *Priority of service.* Within the Rural Radio Service, the frequencies set forth in § 21.601 are intended primarily for use in rendition of public message service between Rural Subscriber and Central Office stations and to provide radio trunking facilities between central offices. However, the frequencies may also be used for the rendition of private leased line communication service provided that such usage will not reduce or impair the extent or quality of communication service which would be available, in the absence of private leased line service, to the general public receiving or subsequently requesting public message service from a central office.

§ 21.608 *Supplementary showing required with application for inter-office stations.* (a) Each application for initial installation of a radio station in this service, or for installation of additional transmitters, or for authority to communicate with new points, shall be accompanied by a statement showing how the proposed construction, etc., will serve the public interest, convenience and necessity. (When a series of related applications is filed for authority to construct a coordinated radio system or additional channels thereon, the supporting data may refer to all of the proposed stations or transmitters in such system.) Among other things, such statement should include information concerning:

(1) The number of communication circuits (telephone, telegraph, etc.) to be derived initially from the radio facilities proposed to be established. In the case of a radio system involving one or more circuit branching points, indicate the number of such circuits to be derived in each section of the system.

(2) The availability, adequacy, and reliability of existing public communication facilities along the route or in the area proposed to be served by the proposed radio facilities, operated by the applicant or any other carrier, indicating:

(i) The type of each communication facility (open wire, cable, radio, etc.).

(ii) The number of communication circuits of each type, listed in paragraph (a) (1) of this section, currently being derived from each of these facilities in the limiting cross-section or cross-sections, as appropriate.

(iii) Current traffic load trends, as indicated by periodic traffic load studies, including an estimate as to future circuit requirements.

(iv) Where more than 24 circuits are to be derived from the proposed construction, list the principal circuit groups currently operated, the number of circuits in each group, and the estimated number of circuits required in each group to meet load demands for the ensuing one year, two year, or five year period, as may be appropriate in order to provide adequate justification for said increases.

(b) Where specific information required by paragraph (a) of this section has been submitted in connection with applications filed under Part 63 of this chapter, duplication information in support of applications submitted pursuant to this Part is not required provided appropriate references are made therein. After an application for the initial establishment of a radio station or for the addition of transmitters on an existing system has been granted, and where the number of communication circuits (i. e., telephone, telegraph, etc.) is to be expanded without otherwise affecting the terms of the applicable radio station authorization, authority to install necessary channelizing equipment shall be secured by an application filed pursuant to section 214 (a) of the Communications Act of 1934, as amended, and Part 63 of the Commission's rules and regulations, in those cases where the applicant is subject to the provisions of section 214.

§ 21.609 *Supplementary showing required with applications for central office stations and rural subscriber stations.* Each application in this service should be accompanied by a statement showing why it is impracticable to provide the required communication service by means of wire line facilities, including the estimated cost of such facilities as compared with radio facilities, operating or maintenance difficulties, or similar factors which indicate the desirability of providing service by means of radio facilities. Additionally, where it is proposed to provide rural subscriber service through a base station, a showing should be made that the proposed rural subscriber service will not adversely affect the availability or adequacy of service to mobile subscribers.

§ 21.610 *Rural subscriber and central office stations at temporary fixed locations.* (a) Authorizations may be issued upon proper application for the use of frequencies listed in § 21.601 (a) by rural subscriber stations and central office stations for rendition of rural radio service to subscribers at temporary locations under the following conditions:

(1) When a fixed station is to remain at a single location for less than six months, the location is considered to be temporary.

(2) When a fixed station authorized to operate at temporary locations is to remain at a single location for more than six months, an application for modification of the station authorization to specify the permanent location shall be filed within thirty days prior to expiration of the six month period.

(3) The station shall be used only for rendition of communication service at a remote point where the provision of wire telephone facilities is not practicable.

(4) The antenna height employed at any location shall not exceed the criteria set forth in § 17.3 of Part 17 of the rules unless, in each instance, authorization for use of a specific maximum antenna height for each location has been obtained from the Commission prior to erection of the antenna. Requests for such authorization shall be accompanied by FCC Form 401–A completed in triplicate.

(b) Applications for authorizations to operate rural subscriber stations and central office stations at temporary locations under the provisions of this section shall be made upon FCC Form 401, and may be accompanied by completed FCC Form 403 for simultaneous consideration provided the equipment to be used is of "packaged" design. Blanket applications may be submitted for the required number of rural subscriber and central office transmitters.

§ 21.611 *Notification of station operation at temporary locations.* The licensee of stations which are authorized pursuant to the provisions of § 21.610 shall notify the Commission's Engineer-in-Charge of the radio district wherein operation is to be conducted, at least two days prior to installation of the facilities, stating:

(a) The call sign and specific location of the transmitter.

(b) The identity and location of the station with which it will communicate.

(c) The exact frequency to be used.

(d) The commencement and termination dates of operation from each location. A copy of the foregoing notification shall be posted with the station license.

SUBPART I—POINT-TO-POINT MICROWAVE RADIO SERVICE

§ 21.700 *Eligibility.* Authorizations for stations in this service will be issued to existing and proposed communication common carriers. Applications will be granted only in cases where it is shown that (a) the applicant is legally, financially, technically and otherwise qualified to render the proposed service, (b) there are frequencies available to enable the applicant to render a satisfactory service, and (c) the public interest, convenience or necessity would be served by a grant thereof.

§ 21.701 *Frequencies.* (a) The following frequency bands are available for assignment to radio stations in this

service on a shared basis with stations in the Local Television Transmission Service:

3700–4200 Mc
5925–6425 Mc
10700–11700 Mc

(b) The following frequencies are allocated for assignment to fixed stations in this service on a shared basis with other radio services:

890–940 Mc Band[1]

Mc	Mc	Mc	Mc
890.5	903.0	915.5	928.0
891.0	903.5	916.0	928.5
891.5	904.0	916.5	929.0
892.0	904.5	917.0	929.5
892.5	905.0	917.5	930.0
893.0	905.5	918.0	930.5
893.5	906.0	918.5	931.0
894.0	906.5	919.0	931.5
894.5	907.0	919.5	932.0
895.0	907.5	920.0	932.5
895.5	908.0	920.5	933.0
896.0	908.5	921.0	933.5
896.5	909.0	921.5	934.0
897.0	909.5	922.0	934.5
897.5	910.0	922.5	935.0
898.0	910.5	923.0	935.5
898.5	911.0	923.5	936.0
899.0	911.5	924.0	936.5
899.5	912.0	924.5	937.0
900.0	912.5	925.0	937.5
900.5	913.0	925.5	938.0
901.0	913.5	926.0	938.5
901.5	914.0	926.5	939.0
902.0	914.5	927.0	939.5
902.5	915.0	927.5	

2450–2500 Mc[1]
16000–18000 Mc[2]
26000–30000 Mc

[1] Stations operating on these frequencies will not be protected from such interference as may be experienced from the emissions of industrial, scientific, and medical equipment on the frequency of 915 Mc, in accordance with § 2.104 (a) of this chapter.

[2] Stations operating on frequencies between 17850 Mc and 18000 Mc will not be protected from such interference as may be experienced from the emissions of industrial, scientific and medical equipment operating on the frequency 18000 Mc, in accordance with § 2.104 (a) of this chapter.

(c) The following frequencies are allocated for assignment to control stations in this service on a shared basis with other radio services, upon a satisfactory showing that it is impracticable to use wire lines:

72–76 Mc Band[1]

Mc	Mc	Mc	Mc
72.02	72.70	73.38	74.06
72.06	72.74	73.42	74.10
72.10	72.78	73.46	74.14
72.14	72.82	73.50	74.18
72.18	72.86	73.54	74.22
72.22	72.90	73.58	74.26
72.26	72.94	73.62	74.30
72.30	72.98	73.66	74.34
72.34	73.02	73.70	74.38
72.38	73.06	73.74	74.42
72.42	73.10	73.78	74.46
72.46	73.14	73.82	74.50
72.50	73.18	73.86	74.54
72.54	73.22	73.90	74.58
72.58	73.26	73.94	75.42
72.62	73.30	73.98	75.46
72.66	73.34	74.02	75.50

72–76 Mc Band—Continued

Mc	Mc	Mc	Mc
75.54	75.66	75.78	75.90
75.58	75.70	75.82	75.94
75.62	75.74	75.86	75.98

[1] Assignments made to stations on frequencies in this band are subject to the condition that no harmful interference will be caused to operational fixed stations or reception of television stations on channels 4 or 5 (see § 21.103).

(d) The frequency 27.255 Mc is available for assignment to microwave auxiliary stations in this service on a shared basis with other radio services. Assignments to stations on such frequency will not be protected from such interference as may be experienced from the emissions of industrial, scientific, and medical equipment operating on the frequency 27.12 Mc, in accordance with § 2.104 (a) of this chapter.

§ 21.702 *Transmitter power.* Stations in this service shall not be authorized to use transmitters having a rated power output in excess of the limits set forth in § 21.107 (b) and a standby transmitter having a rated power output in excess of that of the main transmitter with which it is associated will not be authorized.

§ 21.703 *Bandwidth and emission limitations.* (a) Stations in this service operating on frequencies in the 72–76 Mc band shall be authorized to employ only amplitude modulated or frequency modulated emission for radiotelegraphy, radiotelephony and facsimile.

(b) Stations in this service operating on the frequency 27.255 Mc shall be authorized to employ only amplitude modulated or frequency modulated emission for radiotelephony.

(c) Except as limited by paragraphs (a) and (b) of this section, stations operating in the frequency bands listed in § 21.701 may be authorized to use amplitude modulated, frequency modulated or pulse type of emission for radiotelegraphy, radiotelephony, facsimile and television. In addition, the use of unmodulated emission may be authorized in appropriate cases.

(d) The authorization to employ any of the various types of modulated emission below 890 Mc in this service shall be construed to include authority to employ unmodulated emission only for temporary or short periods necessary for equipment testing incident to the construction and maintenance of a radio station.

(e) The maximum bandwidths which will normally be authorized for single channel operation on frequencies below 500 Mc in this service shall not exceed the limits set forth below:

Type of emission:	*Authorized bandwidth*
A1	1 kc
A2	3 kc
A3	8 kc
A4	12 kc
F1	3 kc
F2	3 kc
F3	40 kc
F4	40 kc

(f) On frequencies in the 890–940 Mc band, the bandwidth authorized shall not exceed 400 kc for each derived communication channel and may be restricted to lesser bandwidth when appropriate to the type of operation involved in any particular case.

(g) The maximum bandwidth normally authorized in this service in the following frequency bands shall not exceed the limits set forth below:

Frequency band:	*Authorized bandwidth*
2450–2500 Mc	20 Mc
3700–4200 Mc	20 Mc
5925–6425 Mc	30 Mc
16000–18000 Mc	100 Mc
26000–30000 Mc	200 Mc

(h) The bandwidths authorized on frequencies above 500 Mc shall be appropriate to the type of operation in any particular case. An application requesting such authorization shall fully describe the modulation, emission, and bandwidth desired and shall specify the bandwidth to be occupied.

§ 21.704 *Modulation required.* (a) When amplitude modulation is used, the modulation percentage shall be sufficient to provide efficient communication and shall normally be maintained above 70 percent on peaks, but shall not exceed 100 percent on negative peaks.

(b) Each single channel transmitter operating on frequencies below 500 Mc shall be provided with a device which will automatically prevent modulation in excess of the maximum bandwidth specified in the instrument of station authorization.

§ 21.705 *Permissible communications.* Stations in this service are authorized to render any kind of communication service provided for in the legally applicable tariffs of the carrier, unless otherwise directed in the applicable instrument of authorization or limited by § 21.703.

§ 21.706 *Supplementary showing required with applications.* (a) Each application for initial installation of a radio station in this service, or for installation of additional transmitters, or for authority to communicate with new points, shall be accompanied by a statement showing how the proposed construction, etc., will serve the public interest, convenience and necessity. (When a series of related applications is filed for authority to construct a coordinated radio system or additional channels thereon, the supporting data may refer to all of the proposed stations or transmitters in such system.) Such statement must include information concerning:

(1) The nature and classification of the communication services to be provided (e. g., telegraph, telephone, program transmission for radio, television broadcasting, or theatre television, etc.).

(2) The number of communication circuits in each category (telephone, telegraph, etc.) to be derived initially from the radio facilities proposed to be established. In the case of a radio system involving one or more circuit branching points, indicate the number of such circuits to be derived in each of the controlling sections of the system.

(3) The availability, adequacy, and reliability of existing public communication facilities along the route or in the area to be served by the proposed radio facilities operated by the applicant, indicating:

(i) The type of each communication facility (open wire, cable, radio, etc.).

(ii) A list of the principal communication circuit groups currently being derived from each of these facilities in the limiting cross-section or cross-sections, as appropriate.

(iii) Current traffic load trends, as indicated by periodic traffic load studies, including an estimate as to future circuit requirements.

(iv) Where more than 24 circuits are to be derived from the proposed construction, list the principal circuit groups currently operated, the number of circuits in each group, and the estimated number of circuits required in each group to meet load demands for the ensuing one year, two year, or five year period, as may be appropriate in order to provide adequate justification for said increases.

(b) Where specific information required by paragraph (a) of this section has been submitted in connection with applications filed under Part 63 of this chapter, duplicate information in support of applications submitted pursuant to this Part is not required provided appropriate references are made therein. After an application for the initial establishment of a radio station or for the addition of transmitters on an existing system has been granted, and where the number of communication circuits (i. e., telephone, telegraph, etc.) is to be expanded without otherwise affecting the terms of the applicable radio station authorization, authority to install necessary channelizing equipment shall be secured by an application filed pursuant to section 214 (a) of the Communications Act of 1934, as amended, and Part 63 of this chapter, in those cases where the applicant is subject to the provisions of section 214.

§ 21.707 *Stations at temporary fixed locations.* (a) Authorizations may be issued upon proper application for the use of frequencies listed in §21.701 (a) and (b) by stations in the point-to-point microwave radio service for rendition of temporary service to subscribers under the following conditions:

(1) When a fixed station is to remain at a single location for less than six months, the location is considered to be temporary.

(2) When a fixed station authorized to operate at temporary locations remains at a single location for more than six months, an application for modification of the station authorization to specify the permanent location shall be filed within thirty days prior to expiration of the six month period.

(3) The station shall be used only for rendition of communication service at a remote point where the provision of wire facilities is not practicable.

(4) The antenna height employed at any location shall not exceed the criteria set forth in § 17.3 of Part 17 of the rules unless, in each instance, authorization for use of a specific maximum antenna height for each location has been obtained from the Commission prior to erection of the antenna. Requests for such authorization shall be accompanied by FCC Form 401–A completed in triplicate.

(b) Applications for authorizations to operate stations at temporary locations under the provisions of this section shall be made upon FCC Form 401, and may be accompanied by completed FCC Form 403 for simultaneous consideration provided the equipment to be used is of "packaged" design. Blanket applications may be submitted for the required number of transmitters.

SUBPART J—LOCAL TELEVISION TRANSMISSION SERVICE

§ 21.800 *Eligibility.* Authorizations for stations in this service will be granted to existing and proposed communication common carriers. Applications will be granted only in cases where it is shown that (a) the applicant is legally, financially, technically and otherwise qualified to render the proposed service, (b) there are frequencies available to enable the applicant to render a satisfactory service, and (c) the public interest, convenience or necessity would be served by a grant thereof.

§ 21.801 *Frequencies.* (a) The following frequencies are available for assignment to television pickup and television STL stations operated by communication common carriers:

7062.5 Mc
7087.5 Mc
7112.5 Mc

(b) In the event a television broadcast station licensee engages a communication common carrier to provide a pickup or STL service, the frequencies available to the broadcast station licensee under the apportionment set forth in § 4.602 (a) of Part 4 of this chapter pertaining to "Experimental and Auxiliary Broadcast Services" may be assigned, under the limitations set forth in Part 4, to the communication common carrier in the Local Television Transmission Service for the purpose of providing such service to the broadcast station licensee.

(c) The frequencies available for assignment under the provisions of paragraphs (a) and (b) of this section shall be used only for the transmission of program material, or communications immediately related thereto, intended for use by television broadcasting stations.

(d) On a shared basis with other radio services, frequencies in the following bands are available for assignment to television STL, television pickup, and television non-broadcast pickup stations in this service:

2450–2500 Mc
16000–18000 Mc
26000–30000 Mc

Stations operating on frequencies in the 2450–2500 Mc band will not be protected from such interference as may be experienced from the emissions of industrial, scientific, and medical equipment operating on the frequency 2450 Mc, in accordance with § 2.104 (a) of this chapter. Stations operating on frequencies between 17850 Mc and 18000 Mc will not be protected from such interference as may be experienced from the emissions of industrial, scientific, and medical equipment operating on the frequency 18000 Mc, in accordance with § 2.104 (a) of this chapter.

(e) On a shared basis with other radio services, frequencies in the following bands are available for assignment to television nonbroadcast pickup stations in this service:

3500–3700 Mc [1]
6425–6575 Mc [1]
11700–12200 Mc [1]

[1] Use of this frequency band is subject to the final action taken in Docket No. 10797.

(f) Frequencies in the following bands are available for assignment to television STL stations in this service on a shared basis with stations in the Point-to-Point Microwave Radio Service:

3700–4200 Mc
5925–6425 Mc
10700–11700 Mc

(g) On a shared basis with other radio services, frequencies in the following bands are available for assignment to television STL stations in this service:

16000–18000 Mc [1]
26000–30000 Mc

[1] Stations operating on frequencies between 17850 and 18000 Mc will not be protected from such interference as may be experienced from the emissions of industrial, scientific, and medical equipment operating on the frequency 18000 Mc, in accordance with § 2.104 (a) of this chapter.

(h) The following frequencies in the 27.23–27.38 Mc band are allocated for assignment to microwave auxiliary stations in this service on a shared basis with other radio services.

27.255 Mc [1]

[1] Assignments to stations in this band will not be protected from such interference as may be exeprienced from the emissions of industrial, scientific, and medical equipment operating on 27.255 Mc, in accordance with § 21.104 (a) of this chapter.

§ 21.802 *Assignment of frequencies to mobile stations.* The assignment of frequencies to mobile stations in this service shall not be limited to a single licensee within any area. However, geographical limits within which mobile units may operate may be imposed by the Commission.

§ 21.803 *Transmitter power.* Stations in this service shall not be authorized to use transmitters having a rated power output in excess of the limits set forth in § 21.107 (b) and a standby transmitter having a rated power output in excess of that of the main transmitter with which it is associated will not be authorized.

§ 21.804 *Bandwidth and emission limitations.* (a) Stations in this service operating on frequencies in the 27.23–27.28 Mc band shall be authorized to employ only amplitude modulated or frequency modulated emission for radiotelephony. The authorization to use such emission shall be construed to include authority to employ unmodulated

emission only for temporary or short periods necessary for equipment testing incident to the construction and maintenance of the station.

(b) Stations in this service operating on frequencies above 940 Mc may be authorized to use amplitude modulated, frequency modulated or pulse type of emission for radiotelephony and television. In addition, the use of unmodulated emission may be authorized in appropriate cases.

(c) The maximum bandwidths which will normally be authorized for single channel operation on frequencies below 500 Mc in this service shall not exceed the limits set forth below:

Type of emission:	Authorized bandwidth
A3	8 kc
F3	40 kc

(d) The maximum bandwidths which will normally be authorized in this service in the following frequency bands shall not exceed the limits set forth below:

Frequency band:	Authorized bandwidth
2450–2500 Mc	20 Mc
3500–4200 Mc	20 Mc
5925–6575 Mc	30 Mc
6875–7125 Mc	25 Mc
10700–12200 Mc	50 Mc
16000–18000 Mc	100 Mc
26000–30000 Mc	200 Mc

(e) The bandwidths authorized on frequencies above 500 Mc shall be appropriate to the type of operation in any particular case. An application requesting such authorization shall fully describe the modulation, emission, and bandwidth desired and shall specify the bandwidth to be occupied.

§ 21.805 *Modulation requirements.* (a) The use of modulating frequencies higher than 3000 cycles per second for single channel radiotelephony or tone signaling on frequencies below 500 Mc is not authorized.

(b) When amplitude modulation is used, the modulation percentage shall be sufficient to provide efficient communication and shall normally be maintained above 70 percent on peaks, but shall not exceed 100 percent on negative peaks.

(c) When phase or frequency modulation is used for single channel radiotelephony on frequencies below 500 Mc, the deviation arising from modulation shall not exceed plus or minus 15 kc from the unmodulated carrier.

(d) Each single channel radiotelephone transmitter having more than 3 watts plate power input to the final radio frequency stage and initially installed at the station in this service after the effective date of these rules shall be provided with a device which will automatically prevent modulation in excess of that specified in paragraphs (b) and (c) of this section which may be caused by greater than normal audio level.

§ 21.806 *Remote control operation of mobile television pickup stations.*[38] (a) Mobile television pickup stations (including non-broadcast) may be operated by remote control from fixed locations for periods not to exceed 6 months, provided the Commission's Engineer-in-Charge of the radio district wherein operation is to be conducted shall be notified in writing by the licensee prior to operation of the facilities by remote control. A copy of such notification shall be kept with the station license and shall contain the following information:

(1) The call sign and specific location of the transmitter.

(2) The exact frequencies to be used.

(3) The location of the transmitter control point.

(4) The commencement and termination dates of operation from the specified location.

(b) The Commission may, upon adequate showing by the licensee as to why the television pickup operations should not be conducted under a fixed station authorization, renew the authority granted under the provisions of paragraph (a) of this section.

[F. R. Doc. 56-4970; Filed, June 27, 1956; 8:45 a. m.]

[38] Reference should be made to § 21.114 concerning mobile station antenna height restrictions and to paragraphs (c), (f) and (g) of § 21.118 concerning control points.

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

[Departmental Reg. 108.290]

PART 2—FEES FOR SERVICES

Part 2 of Departmental Regulation 108.238 entitled "Fees for Services," published in the FEDERAL REGISTER of November 30, 1954 (19 F. R. 7720–7721), as amended, is amended to read as follows:

Sec.
2.1 Schedule of fees.
2.2 Requesting services and forwarding remittances.
2.3 Effective date.

AUTHORITY: §§ 2.1 to 2.3 issued under R. S. 161; 5 U. S. C. 22. Interpret or apply sec. 501, 65 Stat. 290; 5 U. S. C. 140.

CROSS REFERENCES: For fees in connection with passport services, see Part 51 and § 103.1 of this chapter. For fees in connection with visa services, see Part 44 and § 103.1 of this chapter. For the Tariff of United States Foreign Service Fees covering invoice services, passport services, visa services for aliens, services to vessels and seamen, and miscellaneous notarial and other services, see § 103.1 of this chapter. For regulations concerning deposit of funds, see Part 9 of this chapter.

§ 2.1 *Schedule of fees.*

Item No.	Description of service	Fee
1	a. For each search for a record and for making a copy or extract thereof, by photostat or otherwise (single page)	$1.50
	b. For each additional copy of the first page, for 25 copies or less, for each copy of the second page, for 25 copies or less and for each copy of each additional page, for 25 copies or less	.60
	c. For each copy in excess of the 25 copies of each page	.20
	(This fee does not apply to such customary activities as issuance of copies of records (1) from supplies kept for distribution, such as press releases and information leaflets; (2) as part of normal and generally reciprocal services performed by the Library of the Department at the request of similar agencies or institutions; or (3) in lieu of or as enclosures to letters with the purpose of saving costs in preparing mail.)	
	(The routine servicing of requests of persons having permission to do research in the records under section 183.2 of the Manual of Regulations and Procedures of the Department of State is not to be considered as searching within the meaning of this item. Any copying performed under this proviso, including the first copy of any first page, shall be at the rate indicated in Item No. 1b or 1c, and authenticating at the rate under Item No. 3.)	
2	For each signed statement of negative result of a search for a record (Item 1 above)	1.00
3	For certifying under official seal that a copy or extract made by the Department from its records is a true copy	1.00
	(Fees for searching and for copying, if required, are an additional charge under Item 1.)	
4	Authenticating a Federal, State or Territorial seal, or certifying to the official status of an officer of the United States Department of State or of a foreign diplomatic or consular officer accredited to or recognized by the United States Government, on any document submitted to the Department for that purpose	2.50
5	Any service described in Items 1, 2, 3, or 4 above, when—	
	a. Required for official use by an agency of the Federal Government or of any of the States or their subdivisions or of the District of Columbia, or of any of the territories and possessions of the United States	No fee
	b. Required for official use by a foreign government, or by an international agency of which the Government of the United States is a member, or by a foreign official to whom the United States has granted diplomatic or consular status, in circumstances where furnishing the service is an appropriate courtesy	No fee
	c. Performed in response to a subpoena or other order of a court. (However, fees are chargeable when the service is for the benefit of a party in interest and a court order or subpoena is issued in his behalf.)	No fee
	d. Performed in providing to a party in interest, one copy of the transcript of a hearing held before a panel, board, or other authority of the Department	No fee
	e. Performed in providing to a party in interest, for delivery to and retention by an agency of the Federal Government, one copy under seal of a personal document (viz., consular form report of birth, certificate of witness to marriage, or report of death of an American citizen, etc.)	No fee
	f. Performed in providing to a near relative or legal representative, one copy under seal of a consular form report of death of an American citizen	No fee

§ 2.2 *Requesting services and forwarding remittances.* (a) Request for services, accompanied by remittance of the exact total fee chargeable (as well as by a stamped addressed return envelope if certified mail, registered mail, air mail, or special delivery mail service is desired), shall be addressed to the Authentication Officer, Department of State, Washington 25, D. C.

(b) Remittances shall be in the form either of (1) check or bank draft drawn on a bank in the continental United States, or (2) postal money order, or (3) cash. Remittances shall be made payable to the order of the Department of State. The Department will assume no responsibility for cash which is lost in the mail.

(c) Fees must be paid in full prior to issuance of requested documents. If uncertainty as to the existence of a record, or as to the number of sheets to be copied, precludes remitting the exact fee charge-

able with the request the Department of State will inform the interested party of the exact amount required.

§ 2.3 *Effective date.* The charges hereby established will become effective on July 1, 1956 with respect to all services rendered pursuant to requests received in the Department of State on or after the effective date.

Dated: June 20, 1956.

I. W. CARPENTER, Jr.,
Assistant Secretary-Controller.

[F. R. Doc. 56-5119; Filed, June 27, 1956; 8:53 a. m.].

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[43 CFR Part 194]

POTASSIUM PERMITS AND LEASES

MISCELLANEOUS AMENDMENTS

Notice is hereby given that pursuant to the authority vested in the Secretary of the Interior under sections 1 to 7 of the act of February 7, 1927, as amended (44 Stat. 1057, 30 U. S. C. 281–287), it is proposed to amend certain sections of the potassium regulations approved May 6, 1955, as amended August 25, 1955. The proposed amendment of the sections is set forth as appendices to this notice.

Interested persons may submit, in triplicate, written comments, suggestions, or objections with respect to the proposed amendment of the sections to the Bureau of Land Management, Washington 25, D. C., within 30 days from date of publication of this notice in the FEDERAL REGISTER.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

JUNE 21, 1956.

1. Section 194.13 is amended by adding thereto new paragraph (c) as follows:

§ 194.13 *Reward for discovery.* * * *

(c) If the permittee dies before the lease is issued, the lease will be issued to the executor or administrator of the estate if probate of the estate has not been completed; if probate has been completed, or is not required, to the heirs or devisees; and if there are minor heirs or devisees, to their legal guardian or trustee in his name, provided there is filed in all cases the following information:

(1) Where probate of the estate has not been completed:

(i) Evidence that the person, who as executor or administrator submits forms of lease and bond, has authority to act in that capacity and to sign such forms.

(ii) Evidence that the heirs or devisees are the heirs or devisees of the deceased permittee and are the only heirs or devisees of the deceased.

(iii) A statement over the signature of each heir or devisee concerning citizenship and holdings similar to that required by § 194.4 (c) (1) and (4).

(2) Where the executor or administrator has been discharged or no probate proceedings are required:

(i) A certified copy of the will or decree of distribution, if any, and if not, a statement signed by the heirs that they are the only heirs of the permittee and citing the provisions of the law of the deceased's last domicile showing no probate is required.

(ii) A statement over the signature of each of the heirs or devisees with reference to citizenship and holdings similar to that required by § 194.4 (c) (1) and (4), except that if the heir or devisee is a minor, the statement must be over the signature of the guardian or trustee.

(3) Where there is a legal guardian or trustee:

(i) A certified copy of the court order authorizing the guardian or trustee to act as such and to fulfill in behalf of the minor or minors all obligations of the lease or arising thereunder; statements by the guardian or trustee as to the citizenship and holdings of each of the minors and as to his own citizenship and holdings, including his holdings for the benefit of other minors similar to that required by § 194.4 (c) (1) and (4).

2. Section 194.19 is amended, as follows:

§ 194.19 *Bid deposits.* The successful bidder at a sale by public auction must on the date of sale deposit with the Manager of the Land Office, or other officer conducting the sale, and each bidder at a sale by sealed bids must submit with his bid the following: Certified check, cashier's check, bank draft, money order or cash for one-fifth of the amount of the bid by him, and a statement over the bidder's own signature with respect to citizenship and interests held similar to that prescribed in § 194.4.

3. Section 194.20 is amended, as follows:

§ 194.20 *Award of lease.* Upon receipt of the high bid at, and at the close of, an oral auction, or the opening of the sealed bids, the Manager, subject to his right to reject any and all bids, will award the lease to the successful bidder, who will be notified accordingly. Four copies of the lease will be sent to the successful bidder, who will be required within 30 days from receipt thereof to execute them, pay the balance of the bonus bid, the first year's rental, and the cost of publication of the notice of lease offer as specified in § 194.18, and file a bond as required by § 194.15. If a bidder, after being awarded a lease, fails to execute it or otherwise comply with the applicable regulations, his deposit will be forfeited and disposed of as other receipts under the Mineral Leasing Act of February 25, 1920 (41 Stat. 437), as amended. If the lease awarded to the successful bidder is executed by an attorney acting in behalf of the bidder, the lease must be accompanied by evidence that the bidder authorized the attorney to execute the lease. If the bidder dies before the lease is issued, evidence such as specified in § 194.13 (c) must be filed before it can be determined to whom the lease may be issued.

4. Section 194.24 is amended by adding thereto new paragraphs (c) and (d), as follows:

§ 194.25 *Transfers, including subleases.* * * *

(c) No transfer will be approved if the transferee is not qualified to take and hold a permit or lease or if his bond is insufficient. A minor, except a minor heir or devisee of a permittee or lessee, is not qualified to hold a permit or lease and a transfer to a minor will not be approved.

(d) In order for the heirs or devisees of a deceased holder of a permit or lease, an operating agreement, or a royalty interest in a permit or lease, to be recognized by the Secretary as the holder of the permit or lease, agreement or interest, there must be furnished the appropriate showing required under § 194.13 (c).

[F. R. Doc. 56-5105; Filed, June 27, 1956; 8:50 a. m.]

Fish and Wildlife Service

[50 CFR Part 33]

TREMPEALEAU NATIONAL WILDLIFE REFUGE, WISCONSIN

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given pursuant to the Administrative Procedure Act approved June 11, 1946, that the Department of the Interior intends to rescind the regulations authorizing the hunting of deer on the Trempealeau National Wildlife Refuge, Wisconsin, as contained in §§ 33.251, 33.252, and 33.253, Title 50, Code of Federal Regulations (11 F. R. 11509).

All interested persons who desire to submit written data, views, or arguments in connection with the rescinding of the above regulations should file same with Mr. John L. Farley, Director, Fish and Wildlife Service, Washington 25, D. C., not later than 30 days after publication hereof in the FEDERAL REGISTER.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

JUNE 21, 1956.

[F. R. Doc. 56-5096; Filed, June 27, 1956; 8:48 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 940]

[Docket No. AO 102-A3]

HANDLING OF PEACHES GROWN IN THE COUNTY OF MESA IN COLORADO

DECISION WITH RESPECT TO PROPOSED AMENDMENTS TO AMENDED MARKETING AGREEMENT AND ORDER

Pursuant to the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders (7 CFR Part 900), a public hearing was held at Palisade, Colorado, on March 15, 1956, after notice thereof was published in the FEDERAL REGISTER (21 F. R. 1290), on proposed amendments to Marketing Agreement No. 88, as amended, and Order No. 40, as amended (7 CFR Part 940), hereinafter referred to as "marketing agreement" and "order," respectively, regulating the handling of peaches grown in the County of Mesa in the State of Colorado, to be made effective pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047).

On the basis of evidence introduced at the hearing, and the record thereof, the Deputy Administrator, Agricultural Marketing Service, on June 7, 1956, filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision in this proceeding. The notice of the filing of such recommended decision, affording opportunity to file written exceptions thereto, was published in the FEDERAL REGISTER (F. R. Doc. 56-4619; 21 F. R. 4016). No exception to said recommended decision was filed.

The material issues, findings and conclusions, and the general findings of the recommended decision set forth in the FEDERAL REGISTER (F. R. Doc. 56-4619; 21 F. R. 4016) are hereby approved and adopted as the material issues, findings and conclusions, and general findings of this decision as if set forth in full herein.

Marketing agreement and order. Annexed hereto and made a part hereof are two documents entitled, respectively, "Agreement Amending the Amended Marketing Agreement Regulating the Handling of Peaches Grown in the County of Mesa in the State of Colorado" and "Order Amending the Amended Order Regulating the Handling of Peaches Grown in the County of Mesa in the State of Colorado," which have been decided upon as the appropriate and detailed means of effecting the foregoing conclusions. These documents shall not become effective unless and until the requirements of § 900.14 of the aforesaid rules of practice and procedure governing proceedings to formulate marketing agreements and marketing orders have been met.

It is hereby ordered, That all of this decision except the agreement amending the amended marketing agreement be published in the FEDERAL REGISTER. The regulatory provisions of the said agreement amending the amended marketing agreement are identical with those contained in the attached order amending the amended order which will be published with this decision.

Dated: June 22, 1956.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

Order[1] Amending the Amended Order Regulating the Handling of Peaches Grown in the County of Mesa in the State of Colorado

§ 940.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations made in connection with the issuance of this order; and all of said previous findings and determinations are hereby ratified and affirmed except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to Public Act No. 10, 73rd Congress (May 12, 1933), as amended and as re-enacted and amended by the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and the applicable rules of practice and procedure governing proceedings to formulate the marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held at Palisade, Colorado, on March 15, 1956, upon proposed amendments to the Amended Marketing Agreement No. 88 and Amended Order No. 40 (7 CFR Part 940), regulating the handling of peaches grown in the County of Mesa in the State of Colorado. Upon the basis of evidence introduced at such hearing and the record thereof, it is found that:

(1) The said amended order, as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The said amended order, as hereby further amended, regulates the handling of peaches grown in the County of Mesa in the State of Colorado in the same manner as, and is applicable only to persons in the respective classes of industrial and commercial activity specified in, the marketing agreement upon which hearings have been held;

(3) The said amended order, as hereby further amended, is limited in its application to the smallest regional production area that is practicable, consistently with carrying out the declared policy of the act; and the issuance of several orders applicable to subdivisions of such production area would not effectively carry out the declared policy of the act; and

(4) There are no differences in the production and marketing of peaches grown in the production area covered by the said amended order, as hereby further amended, that make necessary different terms and provisions applicable to different parts of such area.

It is, therefore, ordered, That, on and after the effective date hereof, the handling of peaches grown in the County of Mesa in the State of Colorado as is in the current of commerce between the State of Colorado and any point outside thereof shall be in conformity to, and in compliance with, the terms and conditions of the aforesaid amended order, as hereby further amended; and such amended order is hereby further amended to read as follows:

1. Redesignate §§ 940.8, 940.9 and 940.10 as 940.9, 940.10, and 940.11, respectively, and insert the following new section:

§ 940.8 *Varieties.* "Varieties" means and includes all classifications and subdivisions, including customary and trade names thereof, of peaches according to those definitive characteristics now or hereafter recognized by the United States Department of Agriculture or the Colorado State Department of Agriculture, or such groupings of peaches according to such characteristics or types as may be established by the Committee with the approval of the Secretary.

2. Delete §§ 940.20 through 940.23 and substitute therefor the following:

§ 940.20 *Establishment and membership.* An Administrative Committee is hereby established consisting of nine members, each of whom shall have an alternate. Five of the members, one for each district, shall represent producers; three of the members shall represent cooperative associations that are handlers; and one of the members, hereinafter referred to as "independent" member, shall represent producers and handlers other than cooperative associations and members of such associations. The members of the committee and their respective alternates shall be nominated and selected, for the terms of office subsequent to February 28, 1957, in accordance with the provisions of §§ 940.21 through 940.24.

§ 940.21 *Nomination and selection of producer members.* (a) Nomination of producer members and their respective alternates shall be made at meetings of producers for each such district, at such times (on or before February 1 of each year) and places as the Administrative Committee shall designate. At each such meeting, the producers eligible to participate therein shall select a chairman and a secretary therefor. In the election of nominees, each producer shall be entitled to vote in accordance with the provisions of paragraph (b) of this section. The chairman of each meeting shall announce at such meeting the name of each person for whom votes have been cast, and the number of votes cast for each such person; and the chairman or the secretary of the meeting shall forthwith transmit such information to the Secretary.

(b) Only producers shall participate in the nomination of producer members and their alternates, and a producer may participate only in the meeting held for the district in which he produces

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure governing proceedings to formulate marketing agreements and orders have been met.

peaches. No producer shall participate in the nomination of producer members and their alternates for more than one district in any fiscal year. Each producer shall be entitled to cast but one vote on behalf of himself, his agents, partners, and representatives. Proxy voting shall be prohibited.

(c) At least twice as many persons shall be nominated as there are positions to be filled. Such nominees shall be ranked in the order of votes cast for each, and such ranking shall determine their standing in the order of importance of the positions to be filled. Member positions shall be considered of first importance. The Secretary shall select one member and one alternate from the nominees thus elected and ranked.

§ 940.22 *Nomination and selection of independent member.* (a) Nomination of an independent member and his alternate shall be made at a meeting of producers and handlers other than cooperative associations or members of such associations, at such time (on or before February 1 of each year) and place as the Administrative Committee shall designate. At each such meeting, the persons eligible to participate therein shall select a chairman and a secretary therefor.

(b) Only producers and handlers who are not cooperative associations nor members of such associations shall be eligible to participate in the nomination of the independent member and his alternate. Proxy voting shall be prohibited, but independent handlers having permanent facilities in Mesa County for the handling of peaches and having bona fide agents designated for carrying on business activities for such handlers may be represented at such nomination meetings by such agents and such agents may vote and be nominated; and, in a similar manner, such handlers may designate employees who may vote and be nominated. In the election of nominees for the independent member and his alternate, each person eligible to participate therein shall be entitled to cast but one vote on behalf of himself, his agents, partners, affiliates, subsidiaries, and representatives. The Administrative Committee, with the approval of the Secretary, may make rules and regulations defining permanent facilities and what shall constitute bona fide agents and employees for the purposes of this section, and in like manner may change such rules and regulations from time to time.

(c) At least twice as many persons shall be nominated as there are positions to be filled. Such nominees shall be ranked in the order of the votes cast, and such ranking shall determine their standing in the order of importance of the positions to be filled. Member positions shall be considered of first importance. The Secretary shall select a member and an alternate member from the nominees thus elected and ranked.

(d) The chairman of the meeting shall announce at such meeting the name of each person for whom votes have been cast, and the number of votes cast for each such person; and the chairman or the secretary of the meeting shall forthwith transmit such information to the Secretary.

§ 940.23 *Nomination and selection of cooperative handler members.* (a) Each of the two cooperative associations qualifying as a handler during the fiscal year beginning March 1, 1956, shall be entitled to nominate one member and one alternate member of the committee; and, in alternate years, each such association shall make an additional nomination for either a member or alternate member. The cooperative association represented by two cooperative handler members during the fiscal year beginning March 1, 1956, shall nominate one member and two alternates for the next succeeding fiscal year. The cooperative association represented by one cooperative handler member during the fiscal year beginning March 1, 1956, shall nominate two members and one alternate for the next succeeding fiscal year.

(b) Nomination of cooperative handler members and their respective alternates shall be made at a meeting or meetings of the members of such cooperative associations at such times (on or before February 1 of each year) and places as the respective associations shall designate with the concurrence of the Administrative Committee. At each such meeting, the association members eligible to participate therein shall select a chairman and secretary therefor unless such officers regularly serving the association are in attendance. In the election of nominees, each member of a cooperative association shall be entitled to cast but one vote on behalf of himself, his agents, partners, and representatives, for each member nominee to be elected. Proxy voting shall be prohibited.

(c) At least twice as many persons shall be nominated as there are positions to be filled. Such nominees shall be ranked in the order of votes cast for each, and such ranking shall determine their standing in the order of importance of the positions to be filled. Member positions shall be considered of first importance. The Secretary shall select the required number of members and alternates from the nominees thus elected and ranked.

(d) The chairman of each meeting shall announce at such meeting the name of each person for whom votes have been cast, and the number of votes cast for each such person; and the chairman or the secretary of such meeting shall forthwith transmit such information to the Secretary.

(e) The committee, with the approval of the Secretary, may provide for the reapportionment of the cooperative handler membership of the committee so as to more equitably provide representation to present and future cooperative associations engaged in handling Mesa County peaches should the need for such reapportionment of present cooperative handler positions arise. Any such reapportionment should be based, so far as practicable, upon the volume of peaches handled by the respective associations.

3. Delete paragraph (c) of § 940.24 and substitute therefor the following:

(c) The independent member of the Administrative Committee and the alternate for such member to be selected from the nominees of producers and handlers other than cooperative associations and members of such associations must be a producer or handler (including employees and bona fide agents designated for carrying on business activities for such handler) and shall not be a member or an employee of a cooperative association.

4. Delete § 940.30 and substitute therefor the following:

§ 940.30 *Compensation and expenses.* The members and alternate members of the Administrative Committee shall serve without salary but may be compensated for attendance at meetings at a rate not to exceed $5.00 per meeting plus mileage at not to exceed 10 cents per mile. Such members and alternates also may be reimbursed for reasonable expenses necessarily incurred by them in the performance of duties, specifically assigned by the committee, other than attendance at meetings.

5. Redesignate paragraphs (g), (h), (i), and (j) of § 940.32 as paragraphs (h), (i), (j), and (k), respectively, and insert the following new paragraph (g):

(g) To consult, cooperate, and exchange information with committees administering other marketing agreements and orders, with other governmental agencies, and with industry groups in connection with all proper committee activities and objectives under this part.

6. Delete §§ 940.50 and 940.52 and substitute therefor the following:

§ 940.50 *Regulation of shipments.* Whenever the Administrative Committee deems it advisable to regulate, during any period or periods, the shipment of one or more varieties of peaches by grades or sizes, or both, or by minimum standards of quality or maturity, or both, it shall so recommend to the Secretary.

§ 940.52 *Establishment of regulations*—(a) *By grades and sizes.* Whenever the Secretary finds, from any such recommendations and information or other available information, that to limit the shipment of the total quantity of any variety or varieties of peaches to particular grades or sizes, or both, thereof would tend to effectuate the declared policy of the act, he shall so limit the shipment of such variety or varieties during a specified period or periods. The Secretary shall promptly notify the committee of each such regulation; and the committee shall promptly give adequate notice thereof to handlers and producers.

(b) *By minimum standards of quality and maturity.* Whenever the Secretary finds, from any such recommendation and information or other available information, that to establish minimum standards of quality or maturity, or both, and to limit the shipment of any variety or varieties of peaches during any period or periods to those meeting such minimum standards would be in the public interest and would tend to effectuate the declared policy of the act,

he shall so limit the shipment of such variety or varieties during a specified period or periods. The Secretary shall promptly notify the committee of each such regulation; and the committee shall promptly give adequate notice thereof to handlers and producers.

7. After deleting the provisions of paragraph (b) of § 940.53 and redesignating paragraphs (c) and (d) of such section as paragraphs (e) and (f), respectively, insert the following:

(b) In the event the Secretary issues a regulation pursuant to § 940.52, the committee shall determine the percentage which each variety of peaches permitted to be shipped under the regulation bears to the total production of such variety; and the committee shall forthwith announce such percentage. The committee shall thereafter issue one or more exemption certificates to any producer who furnishes evidence satisfactory to the committee that, by reason of conditions beyond the control of a prudent grower and beyond his reasonable expectations, he will be prevented because of the regulation issued from shipping or having shipped as large a proportion of a particular variety of his peaches as the average proportion of all such peaches which may be so shipped. Causes regarded as within the control of a prudent grower include, but are not necessarily limited to, failure properly and adequately to prune, irrigate, thin, fertilize, spray, and cultivate according to accepted practices. Causes regarded as beyond the control of a prudent grower and beyond his reasonable expectation include, but are not necessarily limited to, exceptionally late spring and early frosts, ditch breaks, water shortages, general shortage of labor during the growing season, or illness of a kind causing inability to carry out the management of his crop in the manner of a prudent grower.

(c) The committee, with the approval of the Secretary, may include in the rules and regulations adopted pursuant to (a) of this section such refinement of definition as is deemed necessary with respect to causes beyond the control of a prudent grower and beyond a grower's reasonable expectation.

(d) The exemption certificates issued pursuant to this section shall permit the respective grower to whom the certificate is issued to ship or have shipped a percentage of his crop of a particular variety of peaches equal to the percentage determined pursuant to paragraph (b) of this section; but such exemption may be limited to the specific damage by reason of which the exemption is claimed, and the committee may establish special requirements with respect to the minimum grade, quality, size, and maturity which must be met by peaches shipped under such certificates.

8. Add after § 940.55 the following new section, preceded by a main heading entitled "Research and Development:"

§ 940.60 *Marketing Research and Development.* The committee, with the approval of the Secretary, may provide for the establishment of marketing research and development projects designed to assist, improve, or promote the marketing, distribution, and consumption of peaches. In a similar manner any such project may be modified, suspended, or terminated.

9. Immediately preceding the closing of the parenthesis at the end of § 940.2 *Act*, insert the following: "; 68 Stat. 906, 1047."

[F. R. Doc. 56-5090; Filed, June 27, 1956; 8:46 a. m.]

[7 CFR Part 957]

[Docket No. AO-150 A-2]

IRISH POTATOES GROWN IN CERTAIN DESIGNATED COUNTIES IN IDAHO AND MALHEUR COUNTY, OREGON

DECISION WITH RESPECT TO PROPOSED AMENDMENTS TO MARKETING AGREEMENT AND ORDER AS AMENDED

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended, 7 U. S. C. 601 et seq; 68 Stat. 906, 1047), and the applicable rules of practice and procedure governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held at Pocatello, Idaho, on January 19-21, 1956, pursuant to notice thereof, which was published December 21, 1955, in the FEDERAL REGISTER (20 F. R. 9825), upon proposed amendments to Marketing Agreement No. 98 and Marketing Order No. 57, as amended, regulating the handling of Irish potatoes grown in Malheur County, Oregon, and the counties of Adams, Valley, Lemhi, Clark, and Fremont in the State of Idaho, and all of the counties in Idaho lying south of the aforesaid counties in Idaho.

Upon the basis of the evidence introduced at the aforesaid hearing, and the record thereof, the Deputy Administrator, Agricultural Marketing Service, on May 18, 1956, filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision in this proceeding. The notice of the filing of such recommended decision, affording opportunity to file written exceptions thereof, was published May 23, 1956, in the FEDERAL REGISTER (21 F. R. 3421). No exceptions to the recommended decision have been filed.

Findings and conclusions. The material issues, the findings and conclusions, and the general findings of the recommended decision set forth in the FEDERAL REGISTER (F. R. Doc. 56-4047; 21 F. R. 3421) are hereby approved and adopted as the material issues, findings, and conclusions, and general findings of this decision as if set forth in full herein except that the last paragraph appearing at page 3423 of the FEDERAL REGISTER daily issue of May 23, 1956 (F. R. Doc. 56-4047), is modified to read as follows:

The proposed order contains revised definitions of the terms "handler" and "handle" or "ship." With respect to the definition of the term "handler," merely a conforming change is made which utilizes the synonym for the word "ship" as used in the second definition. Regarding the term "handle," its definition should expressly indicate that it covers not only the actual sale and transportation of potatoes, but also the causing thereof. The latter coverage should be made a part of the "handle" definition so as to include all persons responsible for the initiation and carrying out of the activities covered by that term. Those persons, in addition to owners and officers of a firm handling potatoes, should include individuals who, in a supervisory capacity, are directly responsible for the sale or transportation of potatoes. Hence, the term handler would mean any person (except a common or contract carrier of potatoes owned by another person) who handles potatoes or causes potatoes to be handled; and such term should not be limited to any particular handler. In other words, the term "handler" should include not only those persons who themselves sell or transport potatoes, but also persons, who, although they do not themselves sell or transport potatoes, nevertheless cause their sale or transportation. All persons coming within the meaning of such term should be responsible for complying with the obligations imposed by or pursuant to the proposed order so as to assure that all potatoes will be handled in accordance therewith.

Marketing agreement, as amended, and order, as amended. Annexed hereto and made a part hereof are two documents entitled, respectively, "Marketing Agreement, as Amended, Regulating the Handling of Irish Potatoes Grown in Certain Designated Counties in Idaho and Malheur County, Oregon," and "Order, as Amended, Regulating the Handling of Irish Potatoes Grown in Certain Designated Counties in Idaho and Malheur County, Oregon," which have been decided upon as the appropriate and detailed means of effectuating the foregoing conclusions. The aforesaid marketing agreement, as amended, and the aforesaid order, as amended, shall not become effective unless and until the requirements of § 900.14 of the aforesaid rules of practice and procedure governing proceedings to formulate marketing agreements and marketing orders have been met.

It is hereby ordered, That all of this decision, except the marketing agreement, as amended, be published in the FEDERAL REGISTER. The regulatory provisions of the said marketing agreement, as amended, are identical with those contained in the annexed order, as amended, which will be published with this decision.

Done at Washington, D. C., this 25th day of June 1956.

[SEAL] TRUE D. MORSE,
Acting Secretary.

Order, as Amended,[1] Regulating the Handling of Irish Potatoes Grown in Certain Designated Counties in Idaho and Malheur County, Oregon

Sec.
957.0 Findings and determinations.

[1] This order, as amended, shall not become effective unless and until the requirements of section 900.14 of the rules of practice and procedure governing proceedings to formulate marketing agreements and marketing orders have been met.

DEFINITIONS

Sec.
957.1 Secretary.
957.2 Act.
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957.6 Varieties.
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957.80 Reports.
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AUTHORITY: §§ 957.0 to 957.92 issued under 48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047.

§ 957.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations made in connection with the issuance of the aforesaid order and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to Public Act No. 10, 73d Congress (May 12, 1933), as amended, and as reenacted and amended by the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and in accordance with the applicable rules of practice and procedure governing proceedings to formulate marketing agreements and orders (7 CFR Part 900), a public hearing was held at Pocatello, Idaho, on January 19–21, 1956, upon proposed amendments to Marketing Agreement No. 98 and Order No. 57, as amended (7 CFR Part 957), regulating the handling of Irish potatoes grown in Malheur County, Oregon, and the Counties of Adams, Valley, Lemhi, Clark, and Fremont in the State of Idaho, and all of the counties in Idaho lying south of the aforesaid counties in Idaho. Upon the basis of the evidence introduced at such hearing, and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act with respect to potatoes produced in the production area (i) by establishing and maintaining such orderly marketing conditions therefor as will tend to establish, as prices to the producers thereof, parity prices, and by protecting the interest of the consumer (a) by approaching the level of prices which it is declared in the act to be the policy of Congress to establish by gradual correction of the current level of prices at as rapid a rate as the Secretary deems to be in the public interest and feasible in view of the current consumptive demand in domestic and foreign markets, (b) by authorizing no action which has for its purpose the maintenances of prices to producers of such potatoes above the parity level, and (c) by authorizing the establishment and maintenance of such minimum standards of quality and maturity, and such grading and inspection requirements as may be incidental thereto, as will tend to effectuate such orderly marketing of such potatoes as will be in the public interest;

(2) The said order, as amended, and as hereby further amended, regulated the handling of potatoes grown in the production area in the same manner as, and is applicable only to persons in the respective classes of industrial and commercial activity specified in, a marketing agreement upon which hearings have been held;

(3) The said order, as amended, and as hereby further amended, is limited in application to the smallest regional production area which is practicable, consistently with carrying out the declared policy of the act; and the issuance of several orders applicable to subdivisions of the production area would not effectively carry out the declared policy of the act;

(4) The said order, as amended, and as hereby further amended, prescribes, so far as practicable, such different terms, applicable to diffreent parts of the production area, as are necessary to give due recognition to the difference in the production and marketing of potatoes grown in the production area; and

(5) All handling of potatoes grown in the production area is in the current of interstate or foreign commerce or directly burdens, obstructs, or affects such commerce.

Order relative to handling. It is, therefore, ordered that on and after the effective time hereof, the handling of potatoes grown in Malheur County, Oregon, and in the Counties of Adams, Valley, Lemhi, Clark, and Fremont in the State of Idaho, and all counties in Idaho lying south thereof shall be in conformity to and in compliance with, the terms and conditions of the aforesaid order as amended, and as hereby further amended; and such terms and conditions are as follows:

DEFINITIONS

§ 957.1 *Secretary.* "Secretary" means the Secretary of Agriculture of the United States or any officer or employee of the Department to whom authority has heretofore been delegated, or to whom authority may hereafter be delegated, to act in his stead.

§ 957.2 *Act.* "Act" means Public Act No. 10, 73rd Congress, as amended and as reenacted and amended by the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047).

§ 957.3 *Person.* "Person" means an individual, partnership, corporation, association, or any other business unit.

§ 957.4 *Production area.* "Production area" means all territory included within Malheur County, Oregon, and the counties of Adams, Valley, Lemhi, Clark, and Fremont in the State of Idaho, and all of the counties in Idaho lying south of the aforesaid counties in Idaho.

§ 957.5 *Potatoes.* "Potatoes" means all varieties of Irish potatoes grown within the production area and does not include any products thereof.

§ 957.6 *Varieties.* "Varieties" means and includes all classifications or subdivisions of Irish potatoes according to those definitive characteristics now or hereafter recognized by the United States Department of Agriculture.

§ 957.7 *Certified seed potatoes.* "Certified seed potatoes" means and includes all potatoes officially certified and tagged, marked or otherwise appropriately identified, under the supervision of the official seed potato certifying agency of the State in which the potatoes are grown, or other seed certification agencies which the Secretary may recognize and approve.

§ 957.8 *Handler.* "Handler" is synonymous with "shipper" and means any person (except a common or contract

carrier of potatoes owned by another person) who handles potatoes.

§ 957.9 *Handle.* "Handle" is synonymous with "ship" and means to sell or transport potatoes, or cause potatoes to be sold or transported, within the production area or between the production area and any point outside thereof: *Provided,* That such term shall not include the movement of potatoes within the production area for the purpose of having such potatoes prepared for market, stored, or planted within such area.

§ 957.10 *Producer.* "Producer" means any person engaged in the production of potatoes for market.

§ 957.11 *Committee.* "Committee" means the administrative committee, called the Idaho-Eastern Oregon Potato Committee, established pursuant to § 957.25.

§ 957.12 *Fiscal period.* "Fiscal period" means the period beginning and ending on the dates approved by the Secretary pursuant to recommendations by the committee.

§ 957.13 *Prepare for market.* "Prepare for market" means to sort or separate potatoes into grades, sizes, qualities, or packs, or any combination thereof, for market purposes.

§ 957.14 *Grade and size.* "Grade" means any one of the officially established grades of potatoes, and "size" means any one of the officially established sizes of potatoes, as defined and set forth in:

(a) United States Standards for Potatoes issued by the United States Department of Agriculture (§§ 51.1540 to 51.1559 of this title), or amendments thereto, or modifications thereof, or variations based thereon;

(b) United States Consumer Standards for Potatoes issued by the United States Department of Agriculture (§§ 51.1575 to 51.1587 of this title), or amendments thereto, or modifications thereof, or variations based thereon; and

(c) Standards for potatoes issued by the State of Idaho or Oregon or amendments thereto, or modifications, or variations based thereon.

§ 957.15 *Pack.* "Pack" means a unit of potatoes in any type of container and which falls within specific weight limits or within specific grade limits, or both, recommended by the committee and approved by the Secretary.

§ 957.16 *Container.* "Container" means a sack, box, bag, crate, hamper, basket, carton, package, barrel, or any other type of unit used in the packaging, transportation, sale, shipment or handling of potatoes.

§ 957.17 *Export.* "Export" means shipment of potatoes beyond the boundaries of continental United States.

§ 957.18 *District.* "District" means each one of the geographical divisions of the production area established pursuant to § 957.27 or as reestablished pursuant to § 957.28.

§ 957.19 *Marketing season.* "Marketing season" is synonymous with "season" and means the period July 1 of any year to and including June 30 of the following year.

§ 957.20 *Process.* "Process" means to manufacture or convert potatoes into any of the products thereof.

COMMITTEE

§ 957.25 *Establishment and membership.* (a) The Idaho-Eastern Oregon Potato Committee consisting of eleven members, of whom seven shall be producers and four shall be handlers (including one handler from any district within the production area who may be a processor), is hereby established. For each member of the committee there shall be an alternate who shall have the same qualifications as the member.

(b) Each person selected as a producer member or alternate shall be an individual who (1) is a producer in the district for which selected or an officer or employee of a producer in such district, and (2) is also a resident of such district. A producer who handles potatoes other than of his own production shall qualify as a producer under this section, and §§ 957.29, 957.30, 957.32, and 957.34, only if the potatoes of his own production constituted 51 percent or more of the total quantity of potatoes handled by him during the portion of the then current season preceding his nomination.

§ 957.26 *Term of office.* (a) The term of office of committee members and alternates shall be for two years beginning June 1 and ending May 31. After June 1, 1956, and on an alternating basis in succeeding years, the terms of office shall be so determined that the tenure of three producer members and two handler members, and their respective alternates, shall terminate as of May 31 of one year and the tenure of four producer members and two handler members, and their respective alternates, shall terminate as of May 31 of the following year.

(b) Committee members and alternates shall serve during the term of office for which they are selected and have qualified, or during that portion thereof beginning on the date on which they qualify and continuing until the end of the term for which selected, and until their successors are selected and have qualified.

§ 957.27 *Districts.* For the purpose of selecting committee members, the following districts of the production area are hereby established:

(a) *District No. 1.* The counties of Oneida, Power, Bingham, Butte, Clark, and all counties lying east thereof in Idaho;

(b) *District No. 2.* Malheur County, Oregon, and counties of Owyhee, Elmore, Boise, Valley, and all counties lying west thereof in Idaho;

(c) *District No. 3.* The remaining designated counties in Idaho included in the production area, and not included in District No. 1 or District No. 2.

§ 957.28 *Redistricting.* The committee may recommend, and pursuant thereto the Secretary may approve, the reapportionment of members among districts, and the reestablishment of districts, set forth in § 957.27, within the production area. In recommending any such changes, the committee shall give consideration to: (a) Shifts in potato acreage within districts and within the production area during recent years; (b) the importance of new potato production in its relation to existing districts; (c) the equitable relationship between the committee membership and districts; (d) economies to result for producers in promoting efficient administration due to redistricting or reapportionment of members within districts; and (e) other relevant factors. No change in districting or in apportionment of members within districts may become effective within less than 60 days prior to the beginning of a fiscal period; and no recommendations for such redistricting or reapportionment may be made less than four months prior to such date.

§ 957.29 *Selection.* Members and alternates shall be selected on the following basis (unless otherwise apportioned pursuant to § 957.28): (a) Three producer members and two handler members, with their respective alternates, from District No. 1; (b) one producer member and one handler member, with their respective alternates from District No. 2; and (c) three producer members and one handler member, with their respective alternates, from District No. 3.

§ 957.30 *Nominations.* (a) The Secretary may select the members and alternates of the Idaho-Eastern Oregon Potato Committee from nominations which may be made in the following manner, or from other eligible persons; and nominations for members and alternates may be submitted by producers or handlers, including processors, as the case may be, or groups of either thereof, on an elective basis or otherwise:

(b) In order to provide nominations for committee members and alternates:

(1) The committee shall hold or cause to be held prior to April 1 of each year, one or more meetings of producers and of handlers in each of the districts designated in § 957.27, or pursuant to § 957.28, in which the then current terms of office will expire the following May 31; and

(2) In arranging for such meetings, the committee may, if it deems desirable, utilize the services and facilities of existing organizations and agencies, and may combine its meetings with others.

(c) Nominations shall be supplied to the Secretary, in such manner and form as he may prescribe, not later than 30 days prior to the expiration of the terms of office.

(d) Only producers may participate in designating nominees for producer members and alternates and only handlers, including those who are also processors, may participate in designating nominees for handler members and alternates.

(e) Regardless of the number of districts in which a person produces or handles potatoes, such person is entitled to cast only one vote on behalf of himself, his agents, subsidiaries, affiliates, and representatives, in designating nominees for committee members and alternates: *Provided,* That in the event a person is engaged in producing or handling potatoes in more than one district, such person shall elect the district within which

he may participate as aforesaid in designating nominees: *Provided further*, That an eligible voter's privilege of casting only one vote, as aforesaid, shall be construed to permit such voter to cast one vote for each position to be filled in the district in which he elects to vote.

§ 957.31 *Failure to nominate.* If nominations are not made within the time and in the manner and form specified by the Secretary pursuant to § 957.30, the Secretary may, without regard to nominations, select the committee members and alternates: *Provided*, That such selection shall be on the basis of the representation prescribed in this subpart.

§ 957.32 *Acceptance.* Any person selected by the Secretary as a committee member or as an alternate shall qualify by filing a written acceptance with the Secretary within ten days after being notified of such selection.

§ 957.33 *Vacancies.* To fill any vacancy occasioned by the failure of any person selected as a committee member or as an alternate to qualify, or in the event of the death, removal, resignation, or disqualification of any qualified member or alternate, a successor for his unexpired term may be selected by the Secretary from nominations made in the manner specified in § 957.30, or the Secretary may select such committee member or alternate from previously unselected nominees on the current nominee list from the district involved. If the names of nominees to fill any such vacancy are not made available to the Secretary within 30 days after such vacancy occurs, the Secretary may fill such vacancy without regard to nominations, which selection shall be made on the basis of the representation provided for in § 957.29.

§ 957.34 *Alternate members.* An alternate member of the committee shall act in the place and stead of the member for whom he is an alternate during such member's absence; and an alternate member may perform such other duties as assigned or requested by the committee. In the event of the death, removal, resignation, or disqualification of a member his alternate shall act for him until a successor to such member is selected and has qualified.

§ 957.35 *Procedure.* (a) Seven members of the committee shall be necessary to constitute a quorum; and at least seven concurring votes shall be required to pass any motion or approve any committee action. At any assembled meeting, all votes shall be cast in person.

(b) The committee may provide for meetings, by telephone, telegraph, or other means of communication and any vote cast at such meeting shall be confirmed promptly in writing.

§ 957.36 *Expenses and compensation.* Committee members and their respective alternates shall be reimbursed for reasonable expenses necessarily incurred by them in the performance of their duties and in the exercise of their powers under this subpart, and shall receive compensation at a rate to be determined by the committee and approved by the Secretary, not to exceed $10.00 for each day, or portion thereof, spent in attending to committee business: *Provided*, That at its discretion the committee may request the attendance of one or more alternates at any or all meetings, notwithstanding the expected or actual presence of the respective members, and may pay expenses and compensation, as aforesaid.

§ 957.37 *Powers.* The committee shall have the following powers:

(a) To administer the provisions of this subpart in accordance with its terms;

(b) To make rules and regulations to effectuate the terms and provisions of this subpart;

(c) To receive, investigate, and report to the Secretary complaints of violation of the provisions of this subpart; and

(d) To recommend to the Secretary amendments to this subpart.

§ 957.38 *Duties.* It shall be the duty of the committee:

(a) To act as intermediary between the Secretary and any producer or handler;

(b) To select a chairman and such other officers as may be necessary, to select subcommittees of committee members, and to adopt such rules and regulations for the conduct of its business as it may deem advisable;

(c) To appoint such employees, agents, and representatives as it may deem necessary and to determine the salaries and define the duties of each such person;

(d) To investigate, from time to time, and to assemble data on the growing, harvesting, shipping and marketing conditions with respect to potatoes;

(e) To furnish to the Secretary such available information as he may request;

(f) To keep minutes, books, and records which clearly reflect all of the acts and transactions of the committee and such minutes, books, and records shall be subject to examination at any time by the Secretary or his authorized agent or representative;

(g) To make available to producers and handlers the committee voting record on recommended regulations and on other matters of policy;

(h) At the beginning of each fiscal period, to submit to the Secretary a budget of its expenses for such fiscal period, together with a report thereon;

(i) To cause the books of the committee to be audited by a competent accountant at least once each fiscal period; and at such other time as the committee may deem necessary or as the Secretary may request; the report of such audit shall show the receipt and expenditure of funds collected pursuant to this subpart; a copy of each such report shall be furnished to the Secretary and a copy of each such report shall be made available at the principal office of the committee for inspection by producers and handlers; and

(j) To consult, cooperate, and exchange information when deemed desirable by the committee with other potato marketing committees and other individuals or agencies in connection with all proper committee activities and objectives under this subpart.

EXPENSES AND ASSESSMENTS

§ 957.40 *Expenses.* The committee is authorized to incur such expenses as the Secretary may find are reasonable and likely to be incurred during each fiscal period for its maintenance and functioning, and for such purposes as the Secretary, pursuant to this subpart, determines to be appropriate. Handlers shall share expenses upon the basis of a fiscal period. Each handler's share of such expense shall be proportionate to the ratio between the total quantity of potatoes handled by him as the first handler thereof during a fiscal period and the total quantity of potatoes handled by all handlers as first handlers thereof during the same period.

§ 957.41 *Budget.* At the beginning of each fiscal period, and as may be necessary thereafter, the committee shall prepare a budget of estimated income and expenditures necessary for the administration of this part. The committee may recommend a rate of assessment calculated to provide adequate funds to defray its proposed expenditures. The committee shall present such budget promptly to the Secretary with an accompanying report showing the basis for its calculations.

§ 957.42 *Assessments.* (a) The funds to cover the committee's expenses pursuant to § 957.40 shall be acquired by the levying of assessments upon handlers as provided in this subpart. Each handler who ships potatoes as the first handler thereof shall pay assessments to the committee upon demand, which assessments shall be in payment of such handler's pro rata share of such expenses.

(b) Assessments shall be levied upon handlers at rates established by the Secretary, but not to exceed $1.00 per carload. Such rates may be established upon the basis of the committee's recommendations or other available information.

(c) At any time during or subsequent to a given fiscal period, the committee may recommend the approval of an amended budget and an increase in the rate of assessment. Upon the basis of such recommendation, or other available information, the Secretary may approve an amended budget and increase the rate of assessment. Such increase shall be applicable to all potatoes which were regulated under this part and which were shipped by the first handler thereof during such fiscal period.

§ 957.43 *Accounting.* (a) All funds received by the committee pursuant to the provisions of this part shall be used solely for the purposes specified in this part.

(b) The Secretary may at any time require the committee, its members and alternates, employees, agents, and all other persons to account for all receipts and disbursements, funds, property, or records for which they are responsible. Whenever any person ceases to be a member or alternate of the committee, he shall account for all receipts, disbursements, funds, and property (including but not being limited to books and other records) pertaining to the committee's

activities for which he is responsible, and deliver all such property and funds in his hands to such successor, agency, or person as may be designated by the Secretary, and shall execute such assignments and other instruments as may be necessary or appropriate to vest in such successor, committee, or designated person, the right to all of such property and funds and all claims vested in such person.

(c) The committee may make recommendations to the Secretary for one or more of the members thereof, or any other person, to act as a trustee for holding records, funds, or any other committee property during periods of suspension of this part, or during any period or periods when regulations are not in effect; and if the Secretary determines such action appropriate, he may direct that such person or persons shall act as trustee or trustees for the committee.

§ 957.44 *Refunds.* Monies arising from the excess of assessments over expenses shall be accounted for as provided in this section. Each handler entitled to a proportionate refund of the excess assessments at the end of a fiscal period shall be credited with such refund against the operations of the following fiscal period unless he demands payment thereof, in which event such proportionate refund shall be paid to him. However, the Secretary, upon recommendation of the committee, may determine that it is appropriate for the maintenance and functioning of the committee that some of the funds remaining at the end of a fiscal period which are in excess of the expenses necessary for committee operations during such period may be carried over into following periods as a reserve for possible liquidation. Upon approval by the Secretary, such reserve may be used upon termination of this part to liquidate the affairs of the committee: *Provided*, That upon termination of this part any monies in the reserve for liquidation which are not required to defray the necessary expenses of committee liquidation shall, to the extent practical, be returned upon a pro rata basis to all persons from whom such funds were collected.

RESEARCH AND DEVELOPMENT

§ 957.47 *Research and development.* The committee, with the approval of the Secretary, may provide for the establishment of marketing research and development projects designed to assist, improve, or promote the marketing, distribution, and consumption of potatoes.

REGULATION

§ 957.50 *Marketing policy—(a) Preparation.* Prior to or at the same time as recommendations are made pursuant to § 957.51, the committee shall consider and prepare a proposed policy for the marketing of potatoes. In developing its marketing policy the committee shall investigate relevant supply and demand conditions for potatoes. In such investigations the committee shall give appropriate consideration to the following:

(1) Market prices for potatoes, including prices by grade, size, and quality in different packs, and in different containers;

(2) Supplies of potatoes by grade, size, and quality in the production area and in other production areas;

(3) The trend and level of consumer income;

(4) Establishing and maintaining orderly marketing conditions for potatoes;

(5) Orderly marketing of potatoes as will be in the public interest; and

(6) Other relevant factors.

(b) *Reports.* (1) The committee shall promptly submit a report to the Secretary setting forth the aforesaid marketing policy and shall notify producers and handlers of the contents of such report.

(2) In the event it becomes advisable to shift from such marketing policy because of changed supply and demand conditions, the committee shall prepare a new or revised marketing policy in the manner set forth in paragraph (a) of this section and this paragraph. The committee shall promptly submit a report thereon to the Secretary and notify producers and handlers of the contents of such report on the new or revised marketing policy.

§ 957.51 *Recommendation for regulations.* Whenever the committee deems it advisable that the handling of potatoes be regulated pursuant to § 957.52 or § 957.53, or both, it shall recommend such regulations to the Secretary, or amendment, thereto, or modification, suspension or termination thereof, whenever it finds that such regulations will tend to effectuate the declared policy of the act.

§ 957.52 *Issuance of regulations.* (a) The Secretary shall limit the handling of potatoes whenever he finds from the recommendations and information submitted by the committee, or from other available information, that such regulation would tend to effectuate the declared policy of the act. Such limitation may:

(1) Regulate in any or all portions of the production area, the handling of particular grades, sizes, qualities, or maturities, or any combination thereof, of any or all varieties of potatoes during any period;

(2) Regulate the handling of particular grades, sizes, qualities, or maturities of potatoes differently, for different varieties, for certified seed potatoes and other potatoes, for different outlets, for different portions of the production area, for different packs, for different containers, or for any combination of the foregoing, during any period.

(3) Provide a method, through rules and regulations issued pursuant to this part, for fixing the size, capacity, weight, dimensions, or pack of the container, or containers, which may be used in the packaging or handling of potatoes, or both;

(4) Regulate the handling of potatoes by establishing, in terms of grades, sizes, or both, minimum standards of quality and maturity; or

(5) Prohibit the handling of potatoes during a specified period or periods. No regulation issued pursuant to this subparagraph shall be applicable to the handling of potatoes (i) for processing, (ii) that were already loaded at the beginning of such period, or (iii) during any period other than between July 15 and September 15 of any marketing season. No such prohibition shall be deemed to limit the right of any person to sell or contract to sell any potatoes which are in conformity with the then current regulations, if any, that are in effect under this part. Further, no such prohibition shall be effective for more than 96 consecutive hours and at least 72 hours shall elapse between the termination of any such period of prohibition and the beginning of the next such period.

(b) In the event the handling of potatoes is regulated pursuant to § 957.52 (a) (5), no handler shall, except as otherwise permitted by said § 957.52 (a) (5), handle any potatoes that were prepared for market or loaded during the effective period of such regulation.

(c) The Secretary may amend any regulation issued under this part whenever he finds that such amendment would tend to effectuate the declared policy of the act. The Secretary may also terminate or suspend any regulation or amendment thereof whenever he finds that such regulation or amendment obstructs or no longer tends to effectuate the declared policy of the act.

§ 957.53 *Modification, suspension, or termination.* Whenever the Secretary finds, upon the basis of the recommendations and information submitted by the committee, or from other available information, that it will tend to effectuate the declared policy of the act, he shall modify, suspend, or terminate regulation under or pursuant to § 957.42, § 957.52, or § 957.65, or any combination thereof, in order to facilitate the handling of potatoes for the following purposes:

(a) Export;

(b) Relief or charity;

(c) Livestock feed within the production area;

(d) Certified seed potatoes;

(e) Processing into specified products; and

(f) Such other purposes which may be specified by the committee, with approval of the Secretary.

§ 957.54 *Minimum quantity exemption.* The committee, with the approval of the Secretary, may establish, for any or all portions of the production area, minimum quantities below which shipments will be free from regulations issued or in effect pursuant to §§ 957.40 to 957.65, inclusive, or any combination thereof.

§ 957.55 *Notification of regulation.* The Secretary shall notify the committee of any regulations issued or of any modification, suspension, or termination thereof. The committee shall give reasonable notice thereof to handlers.

§ 957.56 *Safeguards.* (a) The committee, with the approval of the Secretary, may prescribe adequate safeguards to prevent shipments pursuant to § 957.53 and other outlets from entering channels of trade for other than the specific purpose authorized therefor.

(b) Safeguards, as provided by this section, may include requirements that handlers:

(1) Shall obtain the inspection required by § 957.65 or pay the assessment provided by § 957.42, or both, in connection with the potato shipments effected in accordance with § 957.53; and

(2) Shall obtain certificates of privilege from the committee for shipments of potatoes effected or to be effected under provisions of § 957.53.

(c) The committee, with the approval of the Secretary, shall prescribe rules governing the issuance and the contents of certificates of privilege.

(d) The committee may rescind or deny to any handler certificates of privilege if proof satisfactory to the committee is obtained that potatoes shipped by him for the purposes stated in § 957.53 were handled contrary to the provisions of this part.

(e) The Secretary shall have the right to modify, change, alter, or rescind any safeguards prescribed and any certificates issued by the committee pursuant to the provisions of this section.

(f) The committee shall make reports to the Secretary, as requested, showing the number of applications for such certificates, the quantity of potatoes covered by such applications, the number of such applications denied and certificates granted, the quantity of potatoes shipped under duly issued certificates and such other information as may be requested by the Secretary.

INSPECTION AND CERTIFICATION

§ 957.65 *Inspection and certification.* (a) During any period in which regulations are issued pursuant to §§ 957.52, 957.53, or any combination thereof, no handler shall handle potatoes unless such potatoes are inspected by an authorized representative of the Federal-State Inspection Service, or such other inspection service as the Secretary may designate, and is covered by a valid inspection certificate, except when relieved from such requirements pursuant to recommendation by the committee and approval by the Secretary.

(b) Regrading, resorting, or repacking any lot of potatoes shall invalidate any prior inspection certificates covering such potatoes insofar as the requirements of this section are concerned. During any period in which shipments of potatoes are regulated, as aforesaid, no handler shall handle potatoes after they have been regraded, resorted, repacked, or in any way further prepared for market, unless such potatoes are inspected and covered by a valid inspection certificate as required in paragraph (a) of this section.

(c) Insofar as the requirements of this section are concerned, the length of time for which an inspection certificate shall be valid may be established by the committee with the approval of the Secretary; and such length of time may be different for shipments for different purposes.

(d) When potatoes are inspected in accordance with the requirements of this section, a copy of each inspection certificate issued shall be made available promptly to the committee by the inspection service.

EXEMPTIONS

§ 957.70 *Procedure.* The committee may adopt, subject to approval of the Secretary, the procedures pursuant to which certificates of exemption will be issued to producers or handlers.

§ 957.71 *Granting exemptions.* (a) The committee may issue certificates of exemption to any producer who applies for such exemption and furnishes adequate evidence to the committee: (1) That by reason of a regulation issued pursuant to § 957.52 or § 957.53, or both, he will be prevented from handling as large a proportion of his production as the average proportion of production handled by all producers in said applicant's immediate production area, and (2) that the grade, size, or quality of the applicant's potatoes have been adversely affected by acts beyond the applicant's control and by acts beyond reasonable expectation. Each certificate shall permit the producer to handle the amount of potatoes specified thereon. Such certificate shall be transferred with such potatoes at time of handling.

(b) The committee may issue certificates of exemption to any handler who applies for such exemption and furnishes adequate evidence to the committee: (1) That by reason of a regulation issued pursuant to § 957.52 or § 957.53, or both, he will be prevented from handling as large a proportion of his storage holdings of ungraded potatoes, acquired during or immediately following the digging season, as the average proportion of ungraded storage holdings handled by all handlers in said applicant's immediate shipping area, and (2) that the grade, size, or quality of the applicant's potatoes have been adversely affected by acts beyond the applicant's control and by acts beyond reasonable expectation. Each certificate shall permit the handler to handle the amount of potatoes specified thereon. Such certificate may be transferred with such potatoes at time of handling.

(c) The committee shall be permitted at any time to make a thorough investigation of any producer's or handler's claim pertaining to exemptions.

§ 957.72 *Appeal.* If any applicant for exemption certificates is dissatisfied with the determination by the committee with respect to his application, said applicant may file an appeal with the committee. Such an appeal must be taken promptly after the determination by the committee from which the appeal is taken. Any applicant filing an appeal shall furnish evidence satisfactory to the committee for a determination on the appeal. The committee shall thereupon reconsider the application, examine all available evidence, and make a final determination concerning the application. The committee shall notify the appellant of the final determination, and shall furnish the Secretary with a copy of the appeal and a statement of considerations involved in making the final determination.

§ 957.73 *Records, reports, and review of exemptions.* (a) The committee shall maintain a record of all applications submitted for exemption certificates, a record of all exemption certificates issued and denied, the quantity of potatoes covered by such exemption certificates, a record of the amount of potatoes shipped under exemption certificates, a record of appeals for reconsideration of applications, and such information as may be requested by the Secretary. Periodic reports on such records shall be compiled and issued by the committee upon request of the Secretary.

(b) The Secretary shall have the right to modify, change, alter, or rescind any procedure and any exemptions granted pursuant to §§ 957.70 to 957.73, inclusive.

MISCELLANEOUS PROVISIONS

§ 957.80 *Reports.* Upon the request of the committee, with approval of the Secretary, every handler shall furnish to the committee, in such manner and at such time as may be prescribed, such information as will enable the committee to exercise its powers and perform its duties under this subpart. The Secretary shall have the right to modify, change, or rescind any requests for reports pursuant to this section.

§ 957.81 *Compliance.* Except as provided in this part, no handler shall handle potatoes, the handling of which has been prohibited by the Secretary in accordance with provisions of this part, and no handler shall handle potatoes except in conformity to the provisions of this part.

§ 957.82 *Right of the Secretary.* The members of the committee (including successors and alternates), and any agent or employee appointed or employed by the committee, shall be subject to removal or suspension by the Secretary at any time. Each and every order, regulation, decision, determination or other act of the committee shall be subject to the continuing right of the Secretary to disapprove of the same at any time. Upon such disapproval, the disapproved action of the said committee shall be deemed null and void, except as to acts done in reliance thereon or in compliance therewith prior to such disapproval by the Secretary.

§ 957.83 *Effective time.* (a) The provisions of this subpart shall become effective at such time as the Secretary may declare above his signature attached to this subpart, and shall continue in force until terminated in one of the ways specified in this subpart.

(b) All rules and regulations issued by the Secretary pursuant to this part (Order No. 57, as amended), which are in effect immediately prior to the date of this amendment shall continue in effect under this subpart as originally issued, or subsequently modified, until such rules and regulations are changed, modified, or suspended in accordance with this subpart.

§ 957.84 *Termination.* (a) The Secretary may, at any time, terminate the provisions of this subpart by giving at least one day's notice by means of a press release or in any other manner which he may determine.

(b) The Secretary may terminate or suspend the operation of any or all of the provisions of this subpart whenever he finds that such provisions do not tend to effectuate the declared policy of the act.

(c) The Secretary shall terminate the provisions of this subpart at the end of any season whenever he finds that such termination is favored by a majority of producers who, during the preceding season, have been engaged in the production for market of potatoes: *Provided*, That such majority has, during such season, produced for market more than fifty percent of the volume of such potatoes produced for market; but such termination shall be effective only if announced on or before April 30 of the then current season.

(d) The provisions of this subpart shall, in any event, terminate whenever the provisions of the act authorizing them cease to be in effect.

§ 957.85 *Proceedings after termination.* (a) Upon the termination of the provisions of this subpart the then functioning members of the committee shall continue as trustees, for the purpose of liquidating the affairs of the committee, of all the funds and property then in the possession of or under control of the committee, including claims for any funds unpaid or property not delivered at the time of such termination. Action by said trusteeship shall require the concurrence of a majority of the said trustees.

(b) The said trustees shall continue in such capacity until discharged by the Secretary; shall, from time to time account for all receipts and disbursements and deliver all property on hand, together with all books and records of the committee and of the trustees, to such person as the Secretary may direct; and shall upon request of the Secretary execute such assignments or other instruments necessary or appropriate to vest in such person full title and right to all of the funds, property, and claims vested in the committee or the trustees pursuant thereto.

(c) Any person to whom funds, property, or claims have been transferred or delivered by the committee or its members, pursuant to this section, shall be subject to the same obligations imposed upon the members of the committee and upon the said trustees.

§ 957.86 *Effect of termination or amendments.* (a) Unless otherwise expressly provided by the Secretary, the termination of this subpart or of any regulation issued pursuant to this subpart, or the issuance of any amendments to either thereof, shall not (1) affect or waive any right, duty, obligation, or liability which shall have arisen or which may thereafter arise in connection with any provision of this subpart or any regulation issued under this subpart, or (2) release or extinguish any violation of this subpart or of any regulation issued under this subpart, or (3) affect or impair any rights or remedies of the Secretary or of any other person with respect to any such violation.

(b) Each person who is a committee member or alternate on the effective date of this subpart shall continue in office under this subpart until the end of such person's term of office, and until his successor has been selected and has qualified; and all effective rules and regulations issued pursuant to this subpart shall continue in effect until modified, suspended, or terminated by the Secretary in accordance with the provisions of this subpart.

§ 957.87 *Duration of immunities.* The benefits, privileges, and immunities conferred upon any person by virtue of this subpart shall cease upon the termination of this subpart, except with respect to acts done under and during the existence of this subpart.

§ 957.88 *Agents.* The Secretary may, by designation in writing, name any person, including any officer or employee of the United States, or name any agency in the United States Department of Agriculture, to act as his agent or representative in connection with any of the provisions of this subpart.

§ 957.89 *Derogation.* Nothing contained in this subpart is, or shall be construed to be, in derogation or in modification of the rights of the Secretary or of the United States to exercise any powers granted by the act or otherwise, or, in accordance with such powers, to act in the premises whenever such action is deemed advisable.

§ 957.90 *Personal liability.* No member or alternate of the committee, nor any employee or agent thereof, shall be held personally responsible, either individually or jointly with others, in any way whatsoever, to any handler or to any person for errors in judgment, mistakes, or other acts, either of commission or omission as such member, alternate, employee, or agent, except for acts of dishonesty.

§ 957.91 *Separability.* If any provision of this subpart is declared invalid, or the applicability thereof to any person, circumstance, or thing is held invalid, the validity of the remainder of this subpart, or the applicability thereof to any other person, circumstance, or thing, shall not be affected thereby.

§ 957.92 *Amendments.* Amendments to this subpart may be proposed, from time to time, by the committee or by the Secretary.

[F. R. Doc. 56-5132; Filed, June 27, 1956; 8:55 a. m.]

[7 CFR Part 957]

[Docket No. AO 150 A-2]

IRISH POTATOES GROWN IN CERTAIN DESIGNATED COUNTIES IN IDAHO AND MALHEUR COUNTY, OREGON

ORDER DIRECTING THAT A REFERENDUM BE CONDUCTED AMONG PRODUCERS; DESIGNATING AGENTS TO CONDUCT SUCH REFERENDUM; AND DETERMINATION OF A REPRESENTATIVE PERIOD

Pursuant to the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), it is hereby directed that a referendum be conducted among producers who, during the period July 1, 1955, through June 30, 1956 (which period is hereby determined to be a representative period for the purpose of such referendum), were engaged, in the production area comprising certain designated counties in Idaho and Malheur County, Oregon, in the production of potatoes for market, to determine whether such producers approve or favor the issuance of amendments to Order 57 (7 CFR Part 957) regulating the handling of Irish potatoes grown in Malheur County, Oregon, and the Counties of Adams, Valley, Lemhi, Clark, and Fremont in the State of Idaho, and all of the counties in Idaho lying south of the aforesaid counties in Idaho; and said amendatory order is annexed to the decision of the Secretary of Agriculture filed [1] simultaneously herewith.

The procedure applicable to the referendum shall be the "Procedure for the Conduct of Referenda Among Producers in Connection with Marketing Orders (except those applicable to milk and its products) to become effective pursuant to the Agricultural Marketing Agreement Act of 1937, as Amended" (15 F. R. 5176).

R. H. Eaton, E. E. Gallahue, Allan Henry, and R. L. Hawes of the Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, are hereby designated as agents of the Secretary of Agriculture to conduct said referendum jointly or severally.

Copies of the text of the aforesaid annexed order, of Order No. 57, as amended, of the aforesaid procedure (15 F. R. 5176), and of this order may be examined in the office of the Hearing Clerk, United States Department of Agriculture, Room 112, Washington, D. C., and at those places within the said production area announced by the referendum agents.

Ballots to be cast in the referendum and copies of the text of the said amendatory order may be obtained from any referendum agent and any appointee hereunder.

(48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047)

Done at Washington, D. C., this 25th day of June 1956.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 56-5133; Filed, June 27, 1956; 8:56 a. m.]

[7 CFR Part 940]

HANDLING OF PEACHES GROWN IN COUNTY OF MESA IN COLORADO

ORDER DIRECTING THAT REFERENDUM BE CONDUCTED; DESIGNATION OF REFERENDUM AGENTS TO CONDUCT SUCH REFERENDUM; AND DETERMINATION OF REPRESENTATIVE PERIOD

Pursuant to the applicable provisions of the Agricultural Marketing Agreement

[1] See F. R. Doc. 56-5132, supra.

Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.), it is hereby directed that a referendum be conducted among the producers who, during the period March 1, 1955, through February 29, 1956 (which period is hereby determined to be a representative period for the purpose of such referendum), were engaged, in the County of Mesa in the State of Colorado, in the production of peaches for market, to ascertain whether such producers favor the issuance of an order amending amended Order No. 40 (7 CFR Part 940), regulating the handling of peaches grown in the County of Mesa in the State of Colorado, which order is annexed to the decision of the Secretary of Agriculture filed simultaneously herewith. J. W. Gannaway and Roland G. Harris, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, are hereby designated agents of the Secretary to conduct said referendum severally or jointly.

The procedure applicable to this referendum shall be the "Procedure for the Conduct of Referenda Among Producers in Connection With Marketing Orders (Except Those Applicable to Milk and its Products) to Become Effective Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended" (15 F. R. 5176).

Copies of the aforesaid annexed order, of amended Order No. 40, of the aforesaid referendum procedure (15 F. R. 5176), and of this order may be examined in the Office of the Hearing Clerk, United States Department of Agriculture, Room 112, Administration Building, Washington, D. C.

Ballots to be cast in the referendum, and other necessary forms and instructions, may be obtained at the said office, or from any appointee hereunder.

(48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047)

Dated: June 22, 1956.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 56-5091; Filed, June 27, 1956; 8:46 a. m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 120]

TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

NOTICE OF FILING OF PETITIONS FOR ESTABLISHMENT OF EXEMPTIONS FROM NECESSITY OF TOLERANCES FOR CARBON DISULFIDE, CARBON TETRACHLORIDE, ETHYLENE DIBROMIDE, AND ETHYLENE DICHLORIDE

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408 (d) (1), 68 Stat. 512; 21 U. S. C. 346a (d) (1)), the following notice is issued:

Petitions have been filed by the following listed firms:

Olin Mathieson Chemical Corporation, Mathieson Building, Baltimore 3, Maryland.

Carbide and Carbon Chemicals Company, 30 East 42d Street, New York 17, New York.

Diamond Alkali Company, 300 Union Commerce Building, Cleveland, Ohio.

Dow Chemical Company, Midland, Michigan.

Food Machinery and Chemicals Corporation, 161 East 42d Street, New York 17, New York.

Stauffer Chemical Company, 380 Madison Avenue, New York 17, New York.

Union Carbide and Carbon Corporation, 30 East 42d Street, New York 17, New York.

These petitions propose that the pesticide chemicals carbon disulfide, carbon tetrachloride, ethylene dibromide, and ethylene dichloride be exempted from the requirement of a tolerance when used as fumigants for the following grains: Barley, corn, oats, popcorn, rice, rye, sorghum (milo), wheat.

The following methods are set forth in the petitions for determining residues of the chemicals:

Determination of carbon tetrachloride. The sample is added to acidified water and the mixture vigorously refluxed under a hot condenser. The carbon tetrachloride is swept from the boiling suspension by a gentle current of air and absorbed in acetone. The isolated carbon tetrachloride is determined colorimetrically by the Fujiwara reaction, essentially as modified in the method of Rogers and Kay (Journal of Industrial Hygiene and Toxicology, Vol. 29, pages 229–232 (1947)).

An organic chlorine method for the determination of carbon tetrachloride and ethylene dichloride. The carbon tetrachloride and ethylene dichloride are isolated from the sample, using the same general technique and the same apparatus as described in the method outlined above for the determination of carbon tetrachloride. However, the absorber solvent is a mixture of dioxane and ethanolamine, 5:1, instead of acetone. Carbon tetrachloride and ethylene dichloride trapped in this solvent are decomposed and determined according to the method of Winteringham, Journal of the Society of Chemical Industry (London), Volume 61, pages 186–192 (1942), by refluxing the solution at first directly, then with sodium. The resulting inorganic chloride is measured by the Volhard titration.

Determination of ethylene dibromide. The ethylene dibromide is isolated from the sample and decomposed, together with carbon tetrachloride and ethylene dichloride if present, using the same procedure described in the preceding paragraph. The solvent is evaporated, and the organic matter is destroyed by ashing. The resulting inorganic bromide is oxidized to bromate and measured by a modified Kolthoff titration. ("Analytical Methods for Methyl Bromide," by V. R. Stenger, S. A. Shrader, and A. W. Beshgetoor, in Industrial and Engineering Chemistry, Analytical Edition, Volume 11, page 121 (1939), and Official Methods of Analysis of the Association of Official Agricultural Chemists, 7th Edition (1950), page 279, sec. 16.16 (f), (g), (k), (l), and (n).)

Colorimetric determination of carbon bisulfide. The carbon bisulfide is aspirated from a boiling suspension of the sample in 1:1 HCl and absorbed in Viles reagent, with which it reacts to produce cupric diethyldithiocarbamate. This compound forms an intense yellow solution suitable for colorimetric measurement. The apparatus and technique in general are those described by Lowen for the dithiocarbamates, which are estimated by the quantity of CS_2 liberated upon decomposition with acid. (Analytical chemistry, Vol. 23, pages 1846–1850 (1951))

Dated: June 22, 1956.

[SEAL] GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 56-5095; Filed, June 27, 1956; 8:47 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Document 15]

CALIFORNIA

CHANGE OF LOCATION OF SACRAMENTO, CALIF., LAND OFFICE

JUNE 19, 1956.

Notice is hereby given that the Sacramento, California, Land Office of the Bureau of Land Management will be moving from its old headquarters, Room 352, New Post Office Building, Eighth and I Streets, Sacramento, California, to a new location in Room 1000, California Fruit Building, Fourth and J Streets, Sacramento, California, on July 14 and 15. The office will be open to the public on July 16 with new office hours beginning at 10:00 a. m. and closing at 3:00 p. m., local time.

R. R. BEST,
State Supervisor.

[F. R. Doc. 56-5100; Filed, June 27, 1956; 8:49 a. m.]

COLORADO

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LANDS

JUNE 21, 1956.

The United States Forest Service of the Department of Agriculture has filed an application, Serial No. 011662, for the withdrawal of the lands described below, from all forms of appropriation under the public land laws, including the general mining laws but not the mineral

leasing laws, subject to existing valid claims.

The applicant desires the land for use either as administrative sites, camp grounds or recreational areas, within Routt National Forest.

For a period of thirty (30) days from the date of publication of this notice, persons having cause may present their objections in writing to the undersigned official of the Bureau of Land Management, Department of the Interior, 357 New Custom House, P. O. Box 1018, Denver 1, Colorado.

If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

SIXTH PRINCIPAL MERIDIAN, COLORADO

ROUTT NATIONAL FOREST

Lynx Pass Administrative Site:
T. 2 N., R. 83 W.,
Sec. 27: NE¼.
Crosho Lake Recreation Area:
T. 2 N., R. 86 W.,
Sec. 4: Lots 16 and 20;
Sec. 5: E½SE¼.
Pyramid Administrative Site:
T. 2 N., R. 88 W.,
Sec. 12: NE¼SW¼, E½NW¼SW¼, N½S½SW¼, SW¼SE¼SW¼, S½SW¼SW¼, NW¼NW¼SE¼;
Sec. 13: NW¼NE¼NW¼, N½NW¼NW¼.
Vaughn Lake Recreation Area:
T. 2 N., R. 88 W.,
Sec. 22: Area located in approximately NE¼ Sec. 22 (unsurveyed). West end of centerline of reservoir dam bears N. 8°04'14" E., 6413.09 feet to section corner common to Secs. 10, 11, 14, and 15, T. 2 N., R. 88 W., Beginning at west end of centerline of dam; thence west 1270 feet, thence south 2000 feet, thence east 2000 feet, thence north 2000 feet and thence west 730 feet to point of beginning.
Oak Creek Administrative Site:
T. 3 N., R. 87 W.,
Sec. 36: W½ Lot 10, E½SE¼SW¼.
Parkview Camp Ground:
T. 5 N., R. 78 W.,
Sec. 23: E½SE¼SE¼;
Sec. 24: W½SW¼SW¼;
Sec. 25: W½NW¼NW¼;
Sec. 26: E½NE¼NE¼.
Bundy Park Camp Ground:
T. 5 N., R. 80 W.,
Sec. 14: SW¼SW¼.
Yampa View Camp Ground:
T. 5 N., R. 84 W.,
Sec. 26: SE¼SW¼NE¼, SW¼SE¼NE¼, NE¼NW¼SE¼, NW¼NE¼SE¼.
Pines Camp Ground:
T. 6 N., R. 77 W.,
Sec. 14: W½NW¼SW¼;
Sec. 15: E½NE¼SE¼.
Teal Lake-Tiago Lake Recreation Area:
T. 7 N., R. 82 W.,
Sec. 16: NW¼NW¼NE¼, NE¼NW¼, SE¼NW¼NW¼, NE¼SW¼NW¼, W½SW¼NW¼, N½SE¼SW¼NW¼, NW¼NW¼SW¼.
Rainbow Lake Recreation Area:
T. 8 N., R. 82 W.,
Sec. 19: E½SE¼;
Sec. 20: SW¼, NW¼SE¼.

Seedhouse Administrative Site:
T. 9 N., R. 84 W.,
Sec. 2: Lots 6 and 7, SW¼NE¼, SE¼NW¼.
California Park Administrative Site:
T. 9 N., R. 87 W.,
Sec. 2: W½NW¼NW¼;
Sec. 3: NE¼NE¼.
T. 10 N., R. 87 W.,
Sec. 34: SE¼SE¼;
Sec. 35: W½SW¼SW¼.
Slater Park Camp Ground:
T. 10 N., R. 87 W.,
Sec. 9: N½NW¼NE¼.
Summit Creek Administrative Site:
T. 11 N., R. 86 W.,
Sec. 25: SE¼.
Hog Park Administrative Site:
T. 12 N., R. 84 W.,
Sec. 16: Lots 1 and 2;
Sec. 21: N½NE¼.
Whiskey Park Administrative Site:
T. 12 N., R. 85 W.,
Sec. 27: SW¼SW¼NW¼, W½NW¼SW¼;
Sec. 28: SE¼SE¼NE¼, E½NE¼SE¼.
Whiskey Creek Camp Ground:
T. 12 N., R. 85 W.,
Sec. 22: W½SE¼SW¼, E½SW¼SW¼.

Total area, 1903.70 acres.

MAX CAPLAN,
State Supervisor.

[F. R. Doc. 56-5101; Filed, June 27, 1956; 8:49 a. m.]

Bureau of Reclamation

KLAMATH PROJECT, CALIFORNIA

ORDER OF REVOCATION

FEBRUARY 3, 1956.

Pursuant to the authority delegated by Departmental Order No. 2765 of July 30, 1954 (19 F. R. 5004), I hereby revoke Departmental Orders of July 9, 1904, February 28, 1905, and July 21, 1911, insofar as said orders affect the following described lands; provided, however, that such revocation shall not affect the withdrawal of any other lands by said orders or affect any other orders withdrawing or reserving the lands hereinafter described:

MOUNT DIABLO MERIDIAN, CALIFORNIA

T. 46 N., R. 7 E.,
Sec. 6, SW¼;
Sec. 7, Lots 3, 4, SW¼NE¼, E½W½;
Sec. 21, SW¼NE¼, W½, W½SE¼;
Sec. 24, NE¼NE¼, S½NE¼, E½SW¼, SE¼;
Sec. 25, all;
Sec. 26, S½NE¼, E½SW¼, SW¼SW¼, SE¼;
Sec. 27, SE¼SW¼, S½SE¼;
Sec. 28, N½NE¼, NW¼, NW¼SW¼.
T. 47 N., R. 7 E.,
Sec. 11, NE¼, W½, NW¼SE¼;
Sec. 12, E½, NW¼, N½SW¼, SE¼SW¼;
Sec. 13, NW¼NE¼;
Sec. 14, NW¼, W½SW¼;
Sec. 16, N½;
Sec. 17, N½;
Sec. 18, N½, SW¼, W½SE¼, NE¼SE¼;
Sec. 19, Lot 1, NW¼NE¼, E½NW¼;
Sec. 22, N½NE¼;
Sec. 30, SW¼SW¼.
T. 46 N., R. 8 E.,
Sec. 5, E½SE¼;
Sec. 9, E½, E½NW¼;
Sec. 17, SW¼NE¼, NW¼NW¼, S½NW¼, S½;
Sec. 18, Lots 3, 4, E½, E½W½;
Sec. 19, all.
T. 47 N., R. 8 E.,
Sec. 3, all;
Sec. 4, all;
Sec. 5, Lot 4, S½N½, S½;
Sec. 7, Lots 1, 2, 3, NE¼, E½NW¼, NE¼SW¼, N½SE¼;
Sec. 8, W½NW¼, E½SE¼;
Sec. 9, all;
Sec. 10, all;
Sec. 14, W½NE¼, NW¼, S½;
Sec. 15, all;
Sec. 17, E½;
Sec. 20, NE¼NE¼;
Sec. 21, E½, NW¼NW¼, E½SW¼;
Sec. 22, all;
Sec. 23, all;
Sec. 28, E½, NE¼NW¼, S½NW¼, SW¼;
Sec. 29, SE¼NE¼.

The above areas aggregate 15,352.10 acres.

E. G. NIELSEN,
Acting Commissioner.

[70848]

JUNE 22, 1956.

I concur. The released lands are within the Modoc National Forest and have been open to applications and offers under the mineral-leasing laws. They will be open to such other applications, selections, and locations, as are permitted on national forest lands effective at 10:00 a. m. on July 28, 1956.

DEPUE FALCK,
Acting Director,
Bureau of Land Management.

[F. R. Doc. 56-5103; Filed, June 27, 1956; 8:49 a. m.]

Office of the Secretary

[Order 2640, Amdt. 10]

NATIONAL PARK SERVICE

POLICE PROTECTION OVER AGRICULTURAL PARK SERVICE

Order No. 2640, as amended (16 F. R. 5846, 11934; 17 F. R. 482, 964; 18 F. R. 2832, 6789; 19 F. R. 1327, 1937; 20 F. R. 657; 21 F. R. 3067), is further amended by the addition of a new section, numbered 39 and reading as follows:

SEC. 39. *Police protection over Agricultural Research Center.* (a) The Director, National Park Service, is authorized, subject to the provisions of paragraph (b) of this section, to provide protection, through the United States Park Police, over the Agricultural Research Center, bisected by the Baltimore-Washington Parkway, as requested by the Department of Agriculture in a letter dated November 4, 1955.

(b) The authority granted in paragraph (a) of this section shall be exercised in accordance with the act of March 17, 1948 (62 Stat. 81), authorizing policing of Federal reservations in the environs of the District of Columbia with the concurrence of the agency having jurisdiction or control over such a reservation, and in accordance with the applicable regulations promulgated by this Department for National Capital Parks as contained in Chapter 1, Part 3, of National Park Service regulations

published in Title 36 of the Code of Federal Regulations.

FRED A. SEATON,
Secretary of the Interior.

JUNE 21, 1956.

[F. R. Doc. 56-5104; Filed, June 27, 1956; 8:50 a. m.]

DEPARTMENT OF COMMERCE

Maritime Administration

LYKES BROS. STEAMSHIP CO., INC.

NOTICE OF APPLICATION

Notice is hereby given of the application of the Lykes Bros. Steamship Co., Inc., for written permission of the Maritime Administrator under section 805 (a) of the Merchant Marine Act, 1936, as amended, 46 U. S. C. 1223, to permit said Company to load on or about July 3, 1956, on one voyage, approximately 2,500 long tons of cement at Ponce, Puerto Rico for discharge at Port Everglades, or Miami, Florida.

Any person, firm, or corporation having any interest in such application and desiring a hearing on issues pertinent to section 805 (a) should within three (3) days from the date of publication of this notice in the FEDERAL REGISTER notify the Secretary, Maritime Administration, and file petition for leave to intervene in accordance with the rules of practice and procedure of the Maritime Administration.

If no request for hearing and petition for leave to intervene is received within the specified time, the application will be processed without a hearing.

By order of the Maritime Administrator.

Dated: June 26, 1956.

[SEAL] A. J. WILLIAMS,
Secretary.

[F. R. Doc. 56-5162; Filed, June 27, 1956; 8:57 a. m.]

GENERAL SERVICES ADMINISTRATION

[Project 3-DC-01]

FEDERAL OFFICE BUILDINGS

PROSPECTUS FOR PROPOSED BUILDINGS IN SOUTHWEST REDEVELOPMENT AREA OF DISTRICT OF COLUMBIA

EDITORIAL NOTE: This prospectus of proposed Project Number 3-DC-01 is published pursuant to section 412 (f) of the Public Buildings Purchase Contract Act of 1954 as amended by Public Law 150, 84th Congress, which requires publication in the FEDERAL REGISTER, for a period of ten consecutive days from date of submission to the Committees on Public Works of the Senate and House of Representatives.

Project Number 3-DC-01 (Revised)

MARCH 14, 1956.

FORMAL PROSPECTUS FOR PROPOSED BUILDING UNDER TITLE I PUBLIC LAW 519, 83D CONGRESS, 2D SESSION

FEDERAL OFFICE BUILDING, WASHINGTON, D. C.

1. *Brief description of proposed building.* The project contemplates the erection of a group of three Federal Office Buildings on a site to be acquired by the Government facing on the proposed Tenth Street Mall in the southwest redevelopment area of Washington, D. C. Each building will be multistoried. An aggregate of approximately 643,000 square feet of net assignable space will be provided.

2. *Estimated maximum cost and financing.* a. Maximum cost of site and buildings, $25,250,000.

b. Proposed contract term, 30 years.

c. Maximum rate of interest on purchase contract, 4 percent.

3. *Certificates of need.* As the project is intended to provide relocation of numerous Federal agencies now in temporary buildings, no specific allocation of space can be made at this time. Upon completion of the facility, assignment and reassignment will be made in accordance with existing law. Therefore, requirement for Certificate of Need otherwise required by section 411 (e) of the Public Buildings Purchase Contract Act of 1954 was waived in Public Law 150, 84th Congress. Certification is hereby made as to the need for service and garage space.

4. *Non-availability of existing space.* Suitable space owned by the Government is not available; and suitable rental space is not available at a price commensurate with that to be afforded through the contract proposed.

5. *Estimated annual managerial, custodial, heat, and utility costs.* (Services to be supplied by Government), $675,000.

6. *Estimated annual tax liability, upkeep and maintenance.* a. Taxes, post construction (contract period), $321,625.

b. Upkeep and maintenance (to be provided by Government), $96,000.

7. *Current annual housing costs.* Rents and other housing costs currently paid by the Government for agencies to be housed in the building to be erected, $509,000 p. a.

Determination of need. It has been determined that (1) the needs for space for the permanent activities of the Federal Government in this particular area cannot be satisfied by utilization of any existing suitable property now owned by the Government, and (2) the best interests of the United States will be served by taking action hereunder.

Submitted at Washington, D. C., on June 1, 1956.

Approved:

FRANKLIN G. FLOETE,
Administrator of General Services.

8. *Statement of Director, Bureau of the Budget.* Reflected in letter (copy attached).

EXECUTIVE OFFICE OF THE PRESIDENT

BUREAU OF THE BUDGET

WASHINGTON 25, D. C.

JUNE 13, 1956.

Project 3-DC-01 (Revised 3-14-56).
3 Multi-storied Federal Office Buildings.
Southwest Redevelopment Area, Washington, D. C.

MY DEAR MR. FLOETE: Pursuant to section 411 (e) (8) of the Public Buildings Purchase Contract Act of 1954 (Public Law 519), the (Revised March 14, 1956) proposal for a group of three Federal Office Buildings, transmitted with your letter of June 1, 1956, has been examined and in my opinion "is necessary and in conformity with the policy of the President." This approval is given with the following understanding:

1. Revision reflects the application of more definite plans for integration of the facility with the proposed Tenth Street Mall developed subsequent to approval of the project last July. Effective integration requires construction of three building units in lieu of one, as originally proposed. Garage space of 134,250 square feet not contemplated in original project is provided. Number of employees, utilization of space and cost factors are relatively the same.

2. That the stated project cost of $25,250,000 (including $2,500,000 for a site to be acquired) is a maximum figure.

3. That the reported annual operating cost of existing Tempos 4, 5, and T; i. e., $1.00 per square foot, represents minimum maintenance in anticipation of demolition, and that temporary Government buildings actually cost more to maintain than the proposed new buildings.

4. That the proposed buildings will house approximately 10% of Federal employees presently housed in temporary buildings, and that the specific allocation of agencies in the proposed buildings is to be determined later by General Services Administration.

5. That every effort will be made to design and construct space conducive to maximum efficient utilization of both site and buildings and to take advantage of any revision of cost downward which may be found possible as the plans develop and negotiations are advanced.

6. That this approval supersedes Mr. Hughes' letter of July 22, 1955.

You appreciate, of course, that this project will receive a more detailed review as to cost and space utilization prior to the approval of the lease-purchase agreement.

Sincerely yours,

(Signed) PERCIVAL BRUNDAGE,
Director.

Hon. FRANKLIN G. FLOETE,
Administrator,
General Services Administration,
Washington 25, D. C.

[F. R. Doc. 56-4860; Filed, June 18, 1956; 11:38 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 7782]

EASTERN AIR LINES, INC.

NOTICE OF HEARING

In the matter of Eastern Air Lines, Inc., enforcement proceeding.

Notice is hereby given pursuant to the Civil Aeronautics Act of 1938, as amended, that hearing in the above-entitled matter is assigned to be held on July 18, 1956, at 10:00 a. m., e. d. s. t., in Room E-210, Temporary Building No. 5, Sixteenth Street and Constitution Avenue NW., Washington, D. C., before Examiner Barron Fredricks.

Dated at Washington, D. C., June 25, 1956.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 56-5134; Filed, June 27, 1956; 8:56 a. m.]

[Docket Nos. 7941, 7946]

CALIFORNIA AIR CHARTER, INC., AND TRANS-ALASKAN AIRLINES, INC.

NOTICE OF HEARING

In the matter of California Air Charter, Inc. enforcement proceeding.

In the matter of Trans-Alaskan Airlines, Inc. enforcement proceeding.

Notice is hereby given pursuant to the Civil Aeronautics Act of 1938, as amended, that hearing in the above-entitled matters is assigned to be held on July 13, 1956, at 10:00 a. m., e. d. s. t., in Room E-224, Temporary Building No. 5, Sixteenth Street and Constitution Ave-

nue NW., Washington, D. C. before Examiner Joseph L. Fitzmaurice.

Dated at Washington, D. C., June 25, 1956.

[SEAL] FRANCIS W. BROWN, *Chief Examiner.*

[F. R. Doc. 56-5135; Filed, June 27, 1956; 8:56 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 11399, 11400; FCC 56M-622]

NEW BRITAIN BROADCASTING CO. (WKNB-TV) ET AL.

ORDER CONTINUING HEARING CONFERENCE

In re applications of The New Britain Broadcasting Company (WKNB-TV), New Britain, Connecticut, for modification of construction permit (Channel 30), Docket No. 11399, File No. BMPCT-2787; Julian Gross, et al. (Transferors) and National Broadcasting Company, Inc. (Transferee), for transfer of control of The New Britain Broadcasting Company (WKNB and WKNB-TV), Docket No. 11400, File No. BTC-1896.

Upon the oral request of counsel for Elm City Broadcasting Corporation for a continuance of the further prehearing conference in the above-entitled proceeding now scheduled for June 22, 1956, and with the consent of counsel for the other parties to a continuance of such further prehearing conference: *It is ordered*, This 21st day of June 1956, that the further prehearing conference is continued; and

It is further ordered, Upon the Hearing Examiners' own motion, that the further prehearing conference is continued indefinitely and to a date to be fixed by subsequent order.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS, *Secretary.*

[F. R. Doc. 56-5123; Filed, June 27, 1956; 8:54 a. m.]

[Docket No. 11743; FCC 56-572]

CONFEDERATE RADIO CO. (WPGA)

MEMORANDUM OPINION AND ORDER DESIGNATING APPLICATION FOR HEARING ON STATED ISSUES

In re application of Confederate Radio Company (WPGA), West Point, Georgia, for modification of construction permit; Docket No. 11743, File No. BMP-7066.

1. The Commission has before it for consideration the above-captioned application by Confederate Radio Company for a modification of permit to change the antenna-transmitter-studio location of Station WPGA to 0.35 mile north of the city limits of West Point, Georgia, from Avenue B, West Point, Georgia, as authorized in construction permit BP-9883 for a new standard broadcast station to operate on 910 kilocycles with a power of 500 watts, daytime only, granted on October 19, 1955.[1]

2. WPGA is technically and otherwise qualified, except as may appear from the issues specified below, to operate its station as proposed but because of alleged misrepresentations and non-disclosures of material facts in its above-referenced application for construction permit; its application, File No. BMP-7014, for modification of permit, granted on November 15, 1955; and in affidavits to the Commission, dated January 27 and February 25, 1956, substantial questions of fact are raised as to whether WPGA is legally qualified to become a licensee and whether WPGA is financially qualified to construct and operate its proposed station. A brief history of the subject application follows: Section 309 (c) protests by the licensee of WRLD[2] to grants of the construction permit (October 19, 1955) and modification of permit to change type of transmitter (November 15, 1955) for WPGA were dismissed by the Commission in separate Memorandum Opinion and Orders.[3] In the latter, the Commission stated that it would direct a letter to WPGA to inquire into the allegations in the WRLD protests that WPGA made misrepresentations and non-disclosures in the above-referenced applications in order to make a showing that it was financially qualified to construct and operate the proposed station. Such a letter was directed to WPGA on January 13, 1956.

3. On January 9, 1956, WRLD filed a "Petition To Designate (subject) Application For Hearing" on substantially the same grounds of misrepresentations and lack of financial qualifications by WPGA as was alleged in the WRLD protests.[4]

4. In substance, it is alleged by WRLD in the above-described pleadings that WPGA made misrepresentations and non-disclosures in its application for construction permit to mislead the Commission into a finding that it was financially qualified to receive the grant and that, because of these misrepresentations and non-disclosures and others made in the WPGA application for modification of permit (BMP-7014) and letters dated January 27, February 25 and April 4, 1956, under oath, to the Commission, serious questions are raised as to the legal qualifications of WPGA to receive a grant of the subject application; and that WPGA was not, and is not, financially qualified to construct and operate the proposed station. Although WRLD alleges numerous misrepresentations by WPGA, the core of WRLD's contentions can be summarized as follows: That to construct and operate the station with its capital of $10,000, WPGA showed that it would (1) lease its land and building for $150 per month; (2) use a tower which it had on hand; and (3) use other equipment which it had on hand and which was valued at $7,000 and allegedly purchased from WRLD. However, WRLD claims that (1) the land was available only at a purchase price of $10,000, and, since there was no building on the land, a suitable structure would cost WPGA an additional $5,000; (2) the tower on hand was not usable for the frequency specified and an additional $3,000 would be required to provide a usable tower; and (3) that WRLD has sold no equipment to WPGA.

5. Specifically, WRLD alleges that WPGA, in its application for construction permit, misrepresented that it would lease land and buildings for its station for $150 per month, whereas the land was available only at a purchase price of $10,000 and there was no building on the land. WPGA stated, in its affidavit of January 27, 1956, that its three stockholders had planned to purchase the land for $10,000 as individuals, have a building constructed thereon for $3,500 and to lease the land and building to WPGA for $150 per month. In WRLD's pleading filed on February 15, 1956 it is stated that this is a further misrepresentation by

[1] WPGA has also requested a waiver of § 3.30 (a) of the Commission rules to identify the station as "West Point, Georgia", although the station is located outside the city limits. However, § 3.30 (a) provides, in pertinent part, that "each station shall maintain a studio * * * in the place where the station is located: *Provided*, That the main studio may be located at the transmitter site whether or not the transmitter site is in the place where the station is located." Since the WPGA studio would be located at the transmitter site, no waiver of § 3.30 (a) appears necessary.

[2] WRLD, Lanett, Alabama-West Point, Georgia, is licensed to Valley Broadcasting Company, Inc.

[3] WRLD's protest to the WPGA construction permit (File No. BP-9883) was tendered after 5 p. m. of the last day for filing. The Commission ordered that it was accepted for filing as of the following day (Order adopted November 23, 1955). In a Memorandum Opinion and Order adopted on December 21, 1955, the WRLD protest was dismissed as not timely filed. WRLD's petition for reconsideration of the Commission's Order of November 23, 1955, was denied in a Memorandum Opinion and Order adopted on January 4, 1956 in which the Commission also dismissed WRLD's protest to WPGA's modification of permit (File No. BMP-7014) on the ground that no injury resulted to WRLD from WPGA's changing type of transmitter. WRLD appealed the Commission's dismissals of its protests.

[4] WPGA, on January 23, 1956, filed a "Motion To Dismiss [WRLD petition]" on the grounds that WRLD had no standing to oppose the subject application and that WRLD's allegations would be answered by WPGA in its response to the Commission's letter of January 13, 1956, relative thereto. WPGA replied to the Commission's letter on January 27, 1956. In response to this reply, WRLD filed on February 15, 1956 a "Supplement To Petition To Designate For Hearing". A further reply was filed by WPGA on February 25, 1956. In a section 309 (b) letter dated March 8, 1956, WPGA was notified that its replies to the Commission's letter of January 13, 1956 did not appear to satisfactorily resolve the questions raised therein with respect to whether WPGA had made misrepresentations of material facts and that additional information was necessary to determine whether WPGA is financially qualified. WPGA replied to the 309 (b) letter on April 4, 1956 and also tendered an amendment to its original application, its application for modification of permit (BMP-7014) and the subject application. WRLD filed comments to this reply on April 30, 1956.

WPGA because the attorney for the land owners recited in a letter to WRLD on November 28, 1955 that negotiations for the land were by WPGA and not the stockholders as individuals; that the option to purchase the land was drawn by WPGA's attorney in favor of WPGA, and not the stockholders as individuals; and that a part of the security for the property was to be equipment belonging to WPGA and not to the stockholders as individuals. WRLD contends that if WPGA's explanation were to be accepted, a further misrepresentation was made by WPGA when it answered "no", under oath, to the question in paragraph 22 (g), page 5, section II of the application on whether there were any contracts or understandings relative to ownership of the facilities proposed; and that such an understanding by WPGA should also have been disclosed in response to paragraph 4, page 2, section II of the application which required a detailed statement from all persons who were to furnish anything of value to the station or who were to assist in any manner in financing the station. WPGA submitted an affidavit from its local attorney stating that two copies of the option agreement had been drawn, one in favor of WPGA and another in favor of the three stockholders as individuals, and that the copy in favor of WPGA had been submitted to the landowners. WRLD further contends that regardless of how many other proposed options had been drawn up by the attorney for WPGA, it was the copy drawn in favor of WPGA and submitted to attorneys for the land owners on which all parties were relying and on which negotiations proceeded. WRLD claims, further, that the negotiations were in fact between the land owners and WPGA, and not the three stockholders as individuals, inasmuch as part of the security for the property was to have been equipment owned by WPGA and not by the stockholders as individuals.

6. Moreover, WRLD alleges that although WPGA stated in its application for construction permit that its power was "on hand", the tower was not usable for the frequency specified and that an additional $3,000 would be required to get a usable tower. WPGA explained that the tower was usable for the frequency first specified, but after amending to a different frequency, it was undecided whether to add to the height of the tower "on hand" or buy another. However, it is noted that no additional expense for either plan was listed by WPGA.

7. WRLD further alleges that if WPGA has the equipment which it listed in its application as purchased from WRLD, it was obtained by WPGA without the knowledge of any responsible official of WRLD and that, certainly, no money was ever received by WRLD for such equipment. In an affidavit of February 25, 1956, Clement J. Murphy, Jr., President and 45% stockholder of WPGA, stated that while he was manager of WRLD he sold various items of "junk equipment" to Albert Stancel, who was then chief engineer at WRLD, for $240 and gave other items, "which had no sale value", to Mr. Stancel. In an affidavit of February 25, 1956 Albert Stancel, Secretary-treasurer and 35% stockholder of WPGA, stated that he repaired said equipment and later "sold Mr. Murphy a half interest in all the equipment * * * for the total price of $300." It is to be noted that WPGA issued stock to Mr. Murphy and Mr. Stancel in the amount of $7,000 on said equipment, and it is stated in the application that the value of the equipment is $7,000. WRLD submitted with its supplemental petition of February 15, 1956 affidavits by its secretary-auditor and by an independent certified public accountant that the corporate books of WRLD show no entry for money paid to it by Mr. Murphy for the equipment he claims to have sold Mr. Stancel. Also submitted was an affidavit by the president of WRLD that no authorized official of the company gave Mr. Murphy permission to sell the equipment in question. WRLD filed a detinue action in the Circuit Court of Chambers County, Alabama, for recovery of the equipment from Albert Stancel. Mr. Stancel requested that a jury hear the case, and judgment was rendered in favor of Mr. Stancel. However, WRLD has filed an appeal from this judgment on the ground, inter alia, that the verdict of the jury is not sustained by the great preponderance of evidence. No date to hear the appeal has been set by the Court. In an affidavit of April 28, 1956 by the president of WRLD it is stated that Mr. Stancel testified at the above trial that the equipment in question was junk and worthless when he got it and most of it still is. A copy of the transcript of the trial is submitted in support of the statement. In the affidavit, it is pointed out that, although Mr. Stancel claimed in his testimony that the equipment in question is junk and worthless, this is equipment with which WPGA proposes to operate its station; on which it placed a market value of $7,000 in its application for construction permit; and for which it issued $7,000 in stock to Mr. Murphy and Mr. Stancel.

8. WRLD further alleges that WPGA misrepresented in its affidavit dated April 4, 1956 to the Commission that $5,000 shown in Mr. Stancel's balance sheet was acquired from savings. WRLD points out that during the year 1955 Mr. Stancel borrowed $500 from WRLD after a showing to WRLD "that no funds were available to him from any other source and that he needed the sum of $500 under an arrangement whereby it was to be repaid to [WRLD] at the rate of $10 a week." Affidavits filed by WPGA on June 6, 1956 indicate that Mr. Stancel acquired his $5,000 from savings and that Mr. Murphy, Jr., acquired his $5,000 from sale of property given him by his mother.

9. In an affidavit of April 28, 1956 by J. C. Henderson, president of WRLD, it is stated that "the stockholders [of WPGA] have veiled their intentions by misrepresentations to the Commission * * * by repeated denials that they had any intention of operating a radio station, regardless of their application before the Commission, because they did not feel that the market area was sufficient to support two stations"; that, after the WPGA construction permit was granted, Mr. Murphy and Mr. Stancel made a proposal to Mr. Henderson "to 'buy out' WRLD and they would then forget about their own application before the Commission"; that Mr. Murphy and Mr. Stancel said, to do this, they could borrow $12,000 among the three stockholders; and that Mr. Stancel stated he had no cash in the bank and that Mr. Murphy and Mr. Mize would have to raise the money to buy WRLD.

10. In the Commission's section 309 (b) letter of March 8, 1956 WPGA was requested to justify its unusually low estimated cost of construction and yearly operating expenses for the type of station proposed, $10,784.40 and $22,400, respectively. In its reply of April 4, 1956, WPGA stated that "[WPGA] erred in reporting to the Commission only $10,784.40 as the approximate construction cost"; that "in its simplest form, the $10,784.40 was the additional cost to be incurred by [WPGA] in addition to what was expended and what was already owned by [WPGA]." With its reply of April 4, 1956 WPGA tendered an amendment to its original application (BP-9883), modification of permit (BMP-7014) and subject application, in which the cost of construction is estimated at $25,012.63. Also, in its reply of April 4, 1956 WPGA stated that its yearly operating expenses were estimated at only $22,400 because salaries of the employees (a staff of 8 were proposed in the application for construction permit) would be held to $10,320 yearly; that Mr. Murphy would manage the station for no weekly salary but receive a yearly bonus of 25 percent of the net profit of the station; that Mr. Stancel would serve as chief engineer for $40 per week; that Mr. Mize would serve as commercial manager for $25 per week plus 10 percent commission on all advertising he sold; that the program director would be paid $30 per week; that an engineer-announcer would be hired for $55 per week; and that a part-time copywriter would be hired for $20 per week. WRLD contends, in its comments submitted on April 30, 1956, that this proposal by WPGA is completely unrealistic; that a qualified engineer-announcer cannot be obtained for $55 a week because the "going rate" in the area for such personnel is $75 for a 40 hour week; that a qualified program director cannot be obtained for $30 per week; that there is no assurance that WPGA will show a profit on which Mr. Murphy would receive his compensation; that the plan whereby the working wives of the three stockholders would combine their salaries with what their husbands make from WPGA, and that Mr. Murphy would move in with his father-in-law, Mr. Mize, and receive his rent free, points out that WPGA is financially not capable of operating the station. Moreover, WRLD claims in its said letter that WPGA's estimated operating expenses do not take into consideration such items as: advertising (for promotion and "logs" in the newspaper); auto; dues; programming (packaged shows such as WPGA proposes); music, records, transcriptions; office supplies; technical supplies and maintenance; telephone and telegraph. WRLD estimates, from the

operation of its own station, that these expenses would total approximately $971 a month for WPGA and leave WPGA with a net loss of $255.34 per month; and that WPGA does not have enough money to sustain such a monthly loss. WRLD points out that WPGA, in its reply of April 4, 1956, lists $9,035.80 as the total construction costs not paid, and cash on hand and in banks totalling $9,811.69, a balance of $775.89, which is insufficient to meet the WPGA payroll for the first month's operation of the station.

11. Further examination of the application by WPGA for construction permit, filed on May 23, 1955, reveals that in response to Table II, Section II, it is stated that Clement J. Murphy, Jr., was employed as General Manager of Station WRLD from August 1951 to April 1955, and that Albert L. Stancel, Jr. was employed as Chief Engineer of Station WRLD from July 1953 to April 1955; whereas in affidavits of February 25, 1956, to the Commission Mr. Murphy and Mr. Stancel state that the above employment continued at WRLD until November of 1955. Furthermore, in response to paragraph 19, section II of the WPGA application for construction permit, a negative answer was given to the question of whether any party to the applicant has, or had, a connection with a standard broadcast, FM, or television station, whereas both were then employed by WRLD.

12. WRLD alleges in its above-described petition that the Lanett, Alabama-West Point, Georgia market cannot support two radio stations because of the limited amount of advertising revenue available in the market. We have carefully considered this matter as raised in WRLD's petition. We do not, however, believe that a showing has been made therein that the public interest would not be served by the granting of an application for a construction permit for a second station in the market in question. The Communications Act contemplates the free entry into the radio broadcasting field by persons legally, technically, financially and otherwise qualified to construct and operate stations even where competition from such stations might have an adverse economic effect upon existing stations or other media of mass communications. See Federal Communications Commission v. Sanders Bros., 309 U. S. 470. Certainly, no persuasive showing has been made by WRLD that the competition between the two stations would result in both stations ceasing operation or deprivation of total programing service to the area. In re Voice of Cullman 6 RR 164.

13. We think it is clear from the foregoing that there are substantial questions of fact as to whether WPGA has made misrepresentations and nondisclosures in its above-described applications and letters filed with the Commission which questions have not been resolved by the aforementioned affidavits and letters.[1]

14. Accordingly, *It is ordered*, That, pursuant to section 309 (b) of the Communications Act of 1934, as amended, the above-captioned WPGA application is designated for hearing, at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine whether Confederate Radio Company misrepresented or failed to disclose to the Commission in its application for construction permit, File No. BP-9883; its application for modification of permit, File No. BMP-7014; and its letters of January 27, February 25, and April 4, 1956, material facts; including but not limited to such matters as its leasing of land and building at Avenue B, West Point, Georgia; its having on hand a tower which could be used on the frequency specified without incurring additional expense; its having on hand usable equipment purchased from Valley Broadcasting Company, Inc.; and the $5,000 listed in the balance sheet of Albert J. Stancel, Jr., as acquired from savings.

2. To determine whether, in light of the evidence adduced pursuant to the foregoing issue, the officers, directors, and stockholders of the Confederate Radio Company possess the necessary character and other qualifications to be the licensee of a standard broadcast station.

3. To determine whether the Confederate Radio Company is financially qualified to construct and operate its proposed station.

4. To determine whether, in light of the evidence adduced pursuant to the foregoing issues, a grant of the subject application would serve the public interest.

It is further ordered, That Valley Broadcasting Company, Inc., licensee of Station WRLD, Lanett, Alabama-West Point, Georgia, is made a party to the proceeding.

Adopted: June 20, 1956.

Released: June 25, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-5124; Filed, June 27, 1956; 8:54 a. m.]

[Docket No. 11744; FCC 56-575]

W. WRIGHT ESCH ET AL.

MEMORANDUM OPINION AND ORDER DESIGNATING APPLICATION FOR ORAL ARGUMENT

In the matter of W. Wright Esch, et al. (transferor), and WCOA, Inc. (transferee), Docket No. 11744, File No. BTC-2175; for transfer of control of Telrad, Inc., Permittee of Station WESH-TV, Daytona Beach, Florida.

1. The Commission has before it for consideration (a) a "Protest" filed on May 21, 1956, pursuant to section 309 (c) of the Communications Act of 1934, as amended, by Theodore Granik and William H. Cook, directed against the Commission's action of April 25, 1956 granting without hearing the above-entitled application; (b) an "Opposition to Protest" filed on May 31, 1956 by WCOA, Inc., and Telrad, Inc.; (c) a letter dated June 5, 1956, submitted by counsel for Granik and Cook, requesting that the Commission "stay the effectiveness of the transfer of control" and withdraw any authorizations issued to Telrad, Inc., while under the control of the transferee; and (d) a letter of opposition thereto, filed under date of June 7, 1956 by counsel for WCOA, Inc., and Telrad, Inc.

2. On July 8, 1954, the Commission issued a construction permit to Telrad, Inc., for a new television station to be located at Daytona Beach, Florida. The application for construction permit, as amended, indicated that W. Wright Esch owned two shares (40 percent) of the then five issued and outstanding shares of stock of Telrad, Inc., and had subscribed for 120 of the 495 authorized additional shares. Mr. Esch was also the licensee of Station WMFJ, Daytona Beach, Florida, and on June 29, 1955, the Commission granted an application (BAL-2029) for its consent to the assignment of the license of Station WMFJ from W. Wright Esch to WMFJ, Inc. Thereafter, Messrs. Granik and Cook filed a protest against said grant in which they alleged, in substance, that on October 20, 1954, they entered into a written agreement with Mr. Esch whereby they acquired an option to purchase Station WMFJ and to obtain the assignment to them of the station's license, but that Mr. Esch had breached the option agreement. By action of August 29, 1955, the Commission denied said protest on the ground that protestants were not parties in interest. However, an appeal was taken and the Commission's action was reversed, the Court holding that protestants had established standing to protest. Theodore Granik and William H. Cook v. Federal Communications Commission, Docket No. 12909, U. S. App. D. C., decided May 31, 1956.[1] The above-entitled application requests Commission consent to a transaction whereby WCOA, Inc., will acquire control of Telrad, Inc., through the issuance to WCOA, Inc., of 495 shares of Telrad stock. It was granted on April 25, 1956, and on May 2, 1956, the Commission was notified that the transfer of control authorized by its grant had been consummated on April 28, 1956. On May 29, 1956, the Commission issued a Special Temporary Authorization to Telrad, Inc., to operate Station WESH-TV temporarily on a commercial basis for the period ending June 30, 1956, said operation to be in accordance with the station's construction permit. The Commission was advised by letter of June 12, 1956 from the attorneys for the permittee that, pursuant to the said authorization, regular commercial program service was commenced on June 11, 1956.

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[1] Pursuant to section 309 (b) of the Communications Act of 1934, as amended, the subject applicant was advised by letter dated March 8, 1956, of these questions and that the Commission was unable to conclude that a grant of the subject application would be in the public interest. The applicant filed a timely reply on April 4, 1956. Comments on WPGA's said reply were filed by WRLD on April 30, 1956.

[1] See footnote 4, *infra*.

3. In the instant protest, Messrs. Granik and Cook allege, in substance, that also under the above option agreement of October 20, 1954, W. Wright Esch agreed to cause Telrad, Inc., permittee of Station WESH–TV, to assign the construction permit for that station to Granik and Cook; that on December 15, 1954, Granik and Cook exercised said option; that Esch, however, attempted to abrogate the agreement although it contained no provision for unilateral abrogation; that by a letter to the Commission dated June 2, 1955, counsel for Esch denied the existence of a valid agreement between Esch and the protestants; that the protestants have instituted a pending lawsuit in the Florida Courts to protect their rights under the agreement; that the Supreme Court of Florida has affirmed an interlocutory decision of the trial court that Granik and Cook had stated a proper cause of action against Esch; that a grant of the above-entitled application will affect the protestants' interests and rights derived from the agreement; and that the protestants will suffer substantial and irreparable injury from a grant of the above-entitled application and are therefore parties in interest under section 309 (c) of the Communications Act. Moreover, the protestants charge that Esch intentionally and wilfully broke the agreement, disregarding his legal and moral obligations, and that Esch's actions therefore demonstrate that he is lacking in the character qualifications necessary to be a broadcast licensee.

4. The protestants assert further that in connection with the application for the construction permit for Station WESH–TV, Esch represented to the Commission that he was to be the majority stockholder of Telrad, Inc.; that after the construction permit was granted, Esch represented to Granik and Cook that he was the "principal stockholder" thereof; that the application for a construction permit contemplated that all the funds for the construction of Station WESH–TV would come from Esch; and that Esch did in fact assume control of Telrad, Inc. However, the protestants point out that the above-entitled application for transfer of control indicated that at the time of the Commission's grant, Esch owned only two shares (40 percent (out of a total of the five issued and outstanding shares of stock of Telrad, Inc.; and that on February 16, 1956, Esch surrendered his rights to subscribe for an additional 120 shares. The protestants contend that an unauthorized transfer of control of Telrad, Inc., thereby resulted in that control was no longer in Esch, but in three persons; namely, Adelaide B. Esch, Louis Ossinsky, Sr., and W. Wright Esch, and no prior consent of the Commission as required by section 310 (b) of the Communications Act of 1934, as amended, was requested or obtained. The protestants state that the surrender of the subscription rights and the transfer of control are being used in the Florida Court action to lend color to Esch's defense that he did not have authority to bind Telrad, Inc., on October 20, 1954; and that the surrender of subscription rights and transfer of control constitute fraudulent acts designed to circumvent the rights of the petitioners. The protestants request that the Commission postpone the effective date of its grant and designate the above-entitled application for hearing.

5. In their "Opposition to Protest" WCOA, Inc., and Telrad, Inc., allege, in substance, that on March 31, 1956, the Circuit Court of Volusia County, Florida, entered an order disallowing an application of Granik and Cook for a temporary injunction against the transfer of control of Telrad, Inc., to WCOA, Inc.; that the first among several reasons given by the Court for its action was that "the [October 20, 1954] document was not signed by Telrad, Inc., or a majority of its directors or stockholders"; that subsequently, the Supreme Court of Florida denied a motion by Granik and Cook for issuance of a Constitutional Stay Writ on appeal from the action of the Circuit Court disallowing the application for a temporary injunction; that the Commission's grant of the above-entitled application was purely permissive rather than mandatory or self-executing and the protestants can in no way be legally injured or hurt by an action of the Commission which is purely permissive and compels nothing; that because the document relied upon by the protestants shows on its face that Telrad, Inc., is not bound thereby, protestants have no standing to protest the issuance of the 495 shares of Telrad stock to WCOA, Inc.; that the protestants' claim rests upon an attempt to gain recognition by the Commission of their third-party rights to the WESH–TV construction permit, whereas section 310 (b) of the Communications Act provides that the "Commission may not consider whether the public interest, convenience or necessity might be served by the transfer, assignment or disposal of the permit or license to a person other than the proposed transferee or assignee"; and that in view of the foregoing, the protestants are not parties in interest under section 309 (c) of the Communications Act.

6. With respect to the alleged unauthorized transfer of control, the applicants point out that full information regarding Mr. Esch's ownership interest in Telrad, Inc., has been continuously on file with the Commission. Moreover, it is argued, the Esch subscription to Telrad stock was one in which the Board of Directors of the corporation was given the discretion and right to determine how much stock, if any, and when, the subscriber would be called upon to purchase; that such a subscription is a unilateral offer and is distinguishable from a subscription in which the subscriber and the corporation are by mutual promises bilaterally bound; that in any event, the status of a stockholder and a subscriber are not the same since the stockholder is entitled to all the rights pertaining to that status, whereas the subscriber is entitled to none, not even voting rights; and that without the authority to exercise voting rights, there could be no control of the corporation. Finally, the opposition attacks the propriety and pertinency of the issues, and requests that the grant remain in effect and that the request for a stay be denied.[2]

7. In the letter of June 5, 1956, counsel for Granik and Cook argue that by virtue of the decision of the Court of Appeals in the WMFJ case, protestants are parties in interest to the transfer of control of Telrad, Inc., and their protest is required to be granted; that no special circumstances are present in this case which would warrant refusal to stay the effectiveness of the Commission's grant of the transfer application; that this case is identical with the Camden case[3] in which the Commission stayed the effectiveness of a similar transfer; and that under the circumstances, the Commission must withdraw the Special Temporary Authorization which has been issued to Telrad, Inc.

8. In their opposing letter of June 7, 1956, counsel for WCOA, Inc., and Telrad, Inc., argue that the filing of the protestants' letter of June 5, 1956 was irregular and contrary to proper procedure in that it was filed after the expiration of the 30-day protest period provided for by statute and was, consequently, untimely if intended to raise a new question concerning the subject application or to supplement or enlarge the statement made in the protest; that the protest failed to state grounds for staying the effective date of the grant of the application and the letter of June 5, 1956 is intended to cure that deficiency; that this case is distinguishable from the WMFJ case; that the Camden case is not in point because it was controlled by the provisions of section 309 (c) of the Communications Act prior to its amendment on January 20, 1956, by Pub-

[2] Attached to the Opposition is a copy of the Circuit Court's "Order Disallowing Injunction" and an affidavit of John H. Perry, Jr. In his affidavit Mr. Perry discusses the extent of Telrad's construction and alleges, in substance, that at the time of the transfer, the studio transmitter building was completed, that the base and anchor station for the tower had been installed and seasoned, and the steel for the tower was on hand; and that the balance of the equipment had been ordered from RCA but no shipment had been made. Since the transfer was consummated, Mr. Perry affirms, WCOA, Inc., or its affiliated companies have made loans to Telrad, Inc., totaling more than $34,000, of which amount $25,000 has been applied as a down payment on the equipment ordered from RCA; the RCA contract has been activated and all equipment has been delivered or is en route to the station; installation of all equipment was expected to be complete by June 1, 1956; progress has been made towards staffing of the station; a film contract involving $8,775 has been signed, with negotiations under way for additional film contracts; and negotiations are in progress for a network affiliation with NBC and for a possible affiliation with ABC. Mr. Perry states that since April 26, 1956, Telrad, Inc., has made expenditures of more than $13,700, exclusive of expenditures under the RCA contract, expenses of the company's officers and others in connection with the transfer, construction and legal matters, salaries of certain of the technical personnel working at the station, and substantial indebtedness incurred for which invoices have not been received.

[3] Presumably, reference is made to the case of Camden Radio, Inc., v. Federal Communications Commission, 220 F. 2d 191.

lic Law 391, 84th Congress, 2d session; that WESH-TV provides an existing service; and that the protestants have not shown how anyone other than WCOA, Inc., could legally own Telrad, Inc., or be in a position to continue the present operation of the station.

9. We have given careful consideration to the arguments of the applicants that the instant case, as compared with the WMFJ case, presents stronger circumstances for a finding that protestants are not parties in interest. We are of the opinion that the differences in the two factual situations are not such as to bring the instant case outside the holding of the Court of Appeals in the WMFJ case. There, Esch transferred the station itself. Here, there is being transferred control of the corporation which holds the construction permit. The following language of the Court of Appeals in the WMFJ case is equally applicable to the facts before us:

> We think Granik and Cook had standing to protest under section 309 (c) and to petition for reconsideration under section 405. By contract, they had secured an interest in Esch's ownership of the license. The proceedings on Esch's application to the Commission were calculated to lead to Commission action inconsistent with appellants' interests, which were known to the Commission * * *

In light of the above, we find that protestants are "parties in interest" within the meaning of section 309 (c) of the Act. Granik, et al., v. FCC, supra; [1] FCC v. Sanders, 309 U. S. 470. We find further that the protestants have specified with particularity the facts upon which they rely to show that the Commission's grant was not in the public interest. A question is thus presented as to the type of hearing which is required with respect to protestants' issues. In this connection, section 309 (c) of the Communications Act of 1934, as amended, states as follows:

> The Commission shall, within thirty days of the filing of the protest, render a decision making findings as to the sufficiency of the protest in meeting the above requirements; and, where it so finds, shall designate the application for hearing upon issues relating to all matters specified in the protest as grounds for setting aside the grant, except with respect to such matters as to which the Commission, after affording protestant an opportunity for oral argument, finds, for reasons set forth in the decision, that, even if the facts alleged were to be proven, no grounds for setting aside the grant are presented.

The instant protest contains allegations of fact, and conclusions drawn therefrom by the protestants. The facts alleged are, in substance, the same as facts which were alleged in pleadings and correspondence filed by the protestants prior to the Commission's grant of the above-entitled application. Upon consideration of these facts, the Commission then found that a grant of the application would be in the public interest. We have given further consideration to the facts alleged in the protest and upon such consideration, it appears that even if those facts were proven, no grounds would be presented for setting aside our grant. Therefore, we shall afford the parties an opportunity at oral argument to discuss the question of how those facts may bear upon the public interest in a grant. With respect to the litigation in the Florida Courts, it has been the general policy of the Commission not to deny applications because of the pendency of litigation involving private disputes, subject to the rights of the parties as subsequently determined by the state courts. As to the alleged unauthorized transfer of control, we pointed out in a letter to the protestants, dated April 25, 1956, that the Commission's records indicate that full information regarding Esch's ownership interest in Telrad, Inc., has been continuously on file with the Commission; that there is no evidence that Esch attempted to conceal from the Commission any pertinent facts concerning the ownership of the permittee corporation; that although Esch owned only 40% of the stock of the permittee and surrendered his rights to subscribe for a majority interest, all of the remaining shares of stock continued to be held by Esch's wife and attorney; and that, consequently, although a technical transfer of control may have taken place, there was not a violation of the Communications Act or the Commission's Rules sufficiently serious to warrant designating the application for hearing. These questions should be among those to which the parties should address themselves in the argument, as well as any others they deem relevant.

10. Protestants' Issue Number 5 reads as follows: "To determine all the matters and facts incident to the agreement of February 16, 1956 between W. Wright Esch and WCOA, Inc., for transfer of control of Telrad, Inc." No facts are alleged in the protest in support of the above issue. However, since we are designating the application for oral argument, we are including protestants' Issue Number 5 for the purpose of affording the parties an opportunity for argument as to its pertinency.

11. A final question is presented as to whether we should stay the effective date of our grant of the above-entitled application. In this connection, we believe it relevant to point out that the only television service available in Daytona Beach is that provided by Station WESH-TV. On April 25, 1956, the date of the grant of Commission consent, WESH-TV was not on the air. The Commission's records indicate that subsequent to the transfer of control to WCOA, Inc., Station WESH-TV has commenced operation. At the time of the grant of the transfer of control application, the Commission's records indicated that while the studio-transmitter building was complete and the tower foundations had been installed, the tower had not been erected and the transmitter and studio equipment had not been delivered to the station. It is apparent, therefore, that the installation of the necessary equipment to put the station on the air has taken place since WCOA, Inc., assumed control of the permittee. If we were to postpone the effective date of our grant of the transfer of control application, it is extremely doubtful whether the transferors would be in a position to continue operation of the station with facilities installed by the transferees.

12. In view of our finding that a stay of the effective date of our grant of the above-entitled application is not warranted, no basis exists for withdrawing the Special Temporary Authorization which has been issued to Telrad, Inc.

13. In view of the foregoing, *It is ordered*, That, pursuant to section 309 (c) of the Communications Act of 1934, as amended, the above-entitled application is designated for oral argument at the offices of the Commission in Washington, D. C., on the question whether, if the facts alleged in the protest were to be proven, grounds have been presented for setting aside the grant of said application.

14. *It is further ordered*, That the protestants and the Chief, Broadcast Bureau, are hereby made parties to the proceedings herein and that:

(1) The oral argument shall commence at 10:00 a. m. on the 16th day of July, 1956, and shall be held before the Commission en banc;

(2) The parties intending to participate in the oral argument shall file their appearances not later than July 9, 1956;

(3) The parties to the proceeding have until the date of oral argument to file briefs or memoranda of law.

15. *It is further ordered*, That protestants' request for withdrawal of the Special Temporary Authorization issued to Telrad, Inc., on May 29, 1956, is denied.

Adopted: June 20, 1956.

Released: June 25, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-5125; Filed, June 27, 1956; 8:54 a. m.]

[1] The time to seek certiorari in that case has not expired. We note therefore that our application of the decision here does not necessarily mean that further review by the Supreme Court of the Court of Appeals' decision will not be sought.

FEDERAL POWER COMMISSION

[Docket No. E-6683]

LOWER COLORADO RIVER AUTHORITY

NOTICE OF DECLARATION OF INTENTION

JUNE 22, 1956.

Public notice is hereby given that lower Colorado River Authority (Declarant), of Austin, Texas, as agency and political sub-division of the state of Texas, filed on May 24, 1956, a declaration of intention pursuant to section 23 (b) of the Federal Power Act (16 U. S. C. 817) to construct two hydroelectric developments on the Lower Colorado River in Colorado County, Texas. The Columbus development proposed by declarant is to be located at river mile 139, four miles upstream from the City of Columbus, Texas, and would consist of a concrete gravity dam 700 feet long with a maximum height of 84 feet, comprising a gated spillway section, non-overflow sections, and a power intake section; two

earth dike abutment structures with a total length of 8,500 feet; a reservoir with total storage capacity of 130,400 acre feet and an area of 11,600 acres at pool elevation 216 feet; a canal about 12,250 feet long extending from the dam to a forebay; and a power house with two generating units each having a capacity of 20,000 KVA, operating at a head of 58 feet. The Altair development proposed by declarant is to be located at river mile 119, approximately 16 miles downstream from the City of Columbus, and would consist of a concrete gravity dam 630 feet long with a maximum height of 46 feet comprising a gated spillway section, non-overflow sections and an intake section; a reservoir with total storage capacity of 9,200 acre feet and an area of 940 acres; and a powerhouse with two generating units each having a capacity of 5,000 KVA, operating at a head of 16 feet. The Commission will investigate the proposed construction and determine whether a license under the Federal Power Act is required or whether the hydroelectric developments may be constructed merely upon compliance with State laws. Any communication from persons interested in this matter may be submitted on or before July 31, 1956, to the Federal Power Commission, Washington 25, D. C. The declaration of intention is on file with the Commission for public inspection.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc 56-5106; Filed, June 27, 1956; 8:50 a. m.]

[Docket No. G-10101, etc.]

MILLS BENNETT ESTATE ET AL.

NOTICE SETTING DATE OF HEARING

JUNE 22, 1956.

In the matters of Mills Bennett Estate, Docket No. G-10101; Edwin W. Pauley, Operator, Docket No. G-10109; Renwar Oil Corporation, et al., Docket No. G-10112; Roy H. Bettis and G. Frederick Shepherd d. b. a. Bettis and Shepherd, Docket No. G-10120; George R. Brown, Docket No. G-10124; Hidalgo Gas Production Corporation, Docket No. G-10132; Heep Oil Corporation, Docket No. G-10140; George W. Graham, et al., Docket No. G-10178; Arkansas Fuel Oil Corporation, Docket Nos. G-10186 through G-10190, inclusive; Forest Oil Corporation, Docket Nos. G-10225 and G-10226; L. A. Douglas, Operator, Docket No. G-10229; Sinclair Oil and Gas Corporation, Docket No. G-10269; Panhandle Oil Corporation, Docket No. G-10312.

Take notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on July 10, 1956, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by the respective applications in the above-entitled matters: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicants to appear or be represented at the hearing.

Due notice of the applications filed herein has been published in the Federal Register on May 22, 1956 (21 F. R. 3397-98). No protests or petitions to intervene have been received.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 56-5107; Filed, June 27, 1956; 8:50 a. m.]

[Docket Nos. G-3471, G-9275]

PHILLIPS PETROLEUM CO. AND PACIFIC NORTHWEST PIPELINE CORP.

NOTICE OF APPLICATIONS AND DATE OF HEARING

JUNE 22, 1956.

Take notice that Phillips Petroleum Company (Phillips), a Delaware corporation with principal place of business at Bartlesville, Oklahoma, filed, on September 27, 1954, as amended December 1, 1954, and as further amended August 30, 1955, an application for a certificate of public convenience and necessity, pursuant to section 7 (c) of the Natural Gas Act, authorizing Phillips to sell natural gas as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Concurrently with the aforesaid filing of August 30, Pacific Northwest Pipeline Corporation (Pacific Northwest), a Delaware corporation with principal place of business at 905-A M & M Building, Houston 2, Texas, filed, on August 30, 1955, an application for a certificate of public convenience and necessity, pursuant to section 7 (c) of the Natural Gas Act, authorizing Pacific Northwest to sell natural gas as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Phillips sells natural gas in interstate commerce from certain block-type units and spacing units in the San Juan Basin Area, San Juan and Rio Arriba Counties, New Mexico, to El Paso Natural Gas Company (El Paso) for resale subject to a contract between Phillips and Pacific Northwest dated January 9, 1953 providing for the assignment of said acreage together with operating rights therein to Pacific Northwest upon (a) Pacific Northwest obtaining a certificate of public convenience and necessity in Docket No. G-1429 for the construction and operation of a pipeline from San Juan Basin Area to the Pacific Northwest Area of the United States and (b) Pacific Northwest obtaining financing for this project. Phillips interests in this acreage was pledged to Pacific Northwest's project in Docket No. G-1429.

By Commission order of June 16, 1954, Opinion No. 271, Docket No. G-1429, Pacific was authorized to construct and operate the aforesaid pipeline. On May 4, 1955, Pacific acquired a substantial portion of the required financing and commitments for the balance.

In the last amendment to its application, viz., August 30, 1955, Phillips states that the transfer and assignment to Pacific Northwest of the aforesaid acreage, as described in Phillips' application and first amendment, was completed on May 5, 1956, as provided in the aforesaid contract of January 9, 1953.

Phillips, by letter dated August 26, 1955, transmitted for filing notices of cancellation of certain of its FPC Rate Schedules covering the aforesaid gas sales to El Paso. Subsequently, by letter dated October 13, 1955, these notices were accepted for filing by the Commission to be effective upon the date of termination authorization at Docket No. G-3471.

By letter dated October 13, 1955, the Commission authorized Pacific Northwest, pending the final disposition of its application as required by the record, to sell natural gas in interstate commerce to El Paso for resale as proposed in Docket No. G-9275 until commencement of operation of Pacific Northwest's interstate pipeline system authorized in Docket No. G-1429. This authorization covered, inter alia, the same sales heretofore made by Phillips to El Paso as hereinbefore described under the blanket authority of § 157.23 (a) of the Commission's regulations providing for service pending action by the Commission upon an application.

Pacific Northwest proposes to sell natural gas from certain block-type units and spacing units[1] in the San Juan Basin Area, San Juan and Rio Arriba Counties, New Mexico, under contracts dated July 15, 1955, and July 25, 1955, to El Paso for resale on a temporary basis pending completion of Pacific Northwest's interstate pipeline system as authorized in Docket No. G-1429.

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on Monday, July 23, 1956, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved

[1] Pacific Northwest's predecessors in interest in these properties were: (a) prior to May 4, 1955, Sinclair Oil and Gas Company, Colorado Oil and Gas Corporation and Skelly Oil Company; (b) prior to May 5, 1955, Phillips Petroleum Company; (c) prior to July 1, 1955, Stanolind Oil and Gas Company and (d) prior to November 3, 1954 in the Dena Riddle Well No. 1, Sinclair Oil and Gas Company and Colorado Oil and Gas Company.

in and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicants to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before July 10, 1956. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-5108; Filed, June 27, 1956; 8:50 a. m.]

[Docket No. G-10020]

PHILLIPS PETROLEUM CO.

NOTICE OF APPLICATION AND DATE OF HEARING

JUNE 22, 1956.

Take notice that Phillips Petroleum Company (Applicant), a Delaware corporation with principal place of business at Bartlesville, Oklahoma, filed, on February 29, 1956, an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant proposes to sell natural gas in interstate commerce from production of its undivided 24.46 percent interest in the Erath Field Unit,[1] Erath Field, Vermilion Parish, Louisiana, to United Fuel Gas Company for resale.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's Rules of Practice and Procedure, a hearing will be held on Monday, July 23, 1956, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for applicant to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before July 10, 1956. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-5109; Filed, June 27, 1956; 8:51 a. m.]

[Docket No. G-10213]

ALGONQUIN GAS TRANSMISSION CO.

NOTICE OF APPLICATION AND DATE OF HEARING

JUNE 22, 1956.

Take notice that Algonquin Gas Transmission Company (Applicant), a Delaware corporation with principal place of business at 25 Faneuil Hall Square, Boston 9, Massachusetts, filed, on April 9, 1956, an application for a certificate of public convenience and necessity, pursuant to section 7 (c) of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant proposes to sell and deliver, in addition to the presently authorized volume of 8,300 Mcf per day, an additional volume of natural gas (viz., 700 Mcf per day) in interstate commerce to Brockton Taunton Gas Company (Brockton) for resale for the purpose of meeting the increased natural gas requirements of Brockton.

The application states that no additional natural gas facilities will be required in order to enable Applicant to make the proposed additional sale and that prior to the deduction of the 700 Mcf required by the present application, Applicant at present has an unallocated sales capacity in the amount of 3,404 Mcf per day based upon the assumption that all of Applicant's customers request their maximum authorized quantities on the same day. Applicant will enter into a new service agreement with Brockton as of September 1, 1956 to supply Brockton up to a maximum daily quantity of 9,000 Mcf under Applicant's existing F-1 Rate Schedule on file with the Commission.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on Monday, July 23, 1956, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* that the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before July 10, 1956. Failure of any party to appear at and participate in the hearing shall be construed as waiver of a concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-5110; Filed, June 27, 1956; 8:51 a. m.]

[Docket Nos. G-1142, G-2210, G-9547]

UNITED GAS PIPE LINE CO.

ORDER CONSOLIDATING PROCEEDINGS FOR PURPOSE OF ORAL ARGUMENT AND FIXING DATE THEREOF

Tyler Gas Service Company (Tyler Gas), an intervener in the proceedings, on May 15, 1956, filed a motion for an order of the Commission "directing United Gas Pipe Line Company to refund to Tyler Gas Service Company all of the increased rates and charges made effective as of December 25, 1953 in Docket No. G-2210 not heretofore refunded pursuant to paragraph (D) of the ordering portion of Opinion and Order No. 277, issued November 2, 1954, with interest at the rate of 6 percent per annum from date of payment until refunded, and further directing United to bear all costs incident to the making of said refund."

After reciting the history and circumstances under which Tyler Gas has purchased and now purchases natural gas from United Gas Pipe Line Company (United), Tyler Gas alleges that United's increased rate filings in Docket No. G-2210 were unilaterally made in violation of United's existing contract with Tyler Gas, and that the rule of Federal Power Commission v. Mobile Gas Service Corporation, 350 U. S. 332, is applicable here. Tyler Gas states that under that rule United's increased rates are a nullity insofar as they purport to change the rates established in the contract between Tyler Gas and United.

It appears from the May 15, 1956, motion that Tyler Gas seeks to recover the difference between the rates payable to United under the applicable rate schedules for gas delivered to Tyler Gas for resale for other than industrial use only as set forth in United's conversion tariff filed in 1952 and which were effective on December 24, 1953, and the rates col-

[1] Unit operated by The Texas Company. See Docket No. G-3646.

lected by United under the applicable rates set forth in Rate Schedule DG-C of United's FPC Gas Tariff, First Revised Volume No. 1. The latter rates were filed pursuant to the order accompanying Opinion No. 277 in the proceedings in Docket Nos. G-1142 and G-2210. They were prescribed and filed in lieu of rates proposed by United in Docket No. G-2210, which became effective, under bond and subject to refund, on December 25, 1953. Tyler Gas seeks recovery for payments made by it for natural gas received from United in the period commencing December 25, 1953 and continuing through January 1956, which payments, as noted, were in excess of rates in effect on December 24, 1953. It appears that for gas received in February 1956 and thereafter Tyler Gas has tendered payment on the basis of its contract with United and has demanded refund, with interest at 6 percent per annum, of all amounts paid in excess of amounts said to be due under the contract. Tyler Gas states that United has returned such tenders, and has requested immediate payment on the basis of rate on file with the Commission; that is, those previously mentioned rates filed pursuant to the order accompanying Opinion No. 277, and on the basis of billings pursuant to rates proposed by United in Docket No. G-9547, in which proceeding United filed a motion on March 20, 1956, to make the rates effective.

United, on May 23, 1956, filed its answer to the May 15, 1956 motion of Tyler Gas. In support of its answer, United avers that the facts and circumstances underlying the sale of natural gas by United to Tyler Gas require the latter to pay the filed and legal rate. United states that the contract relied upon by Tyler Gas has been adjudicated to have been superseded and replaced by the conversion tariff and the applicable rate schedules contained therein and superseding schedules now on file with the Commission. It points to the decisions in Tyler Gas Service Company v. United Gas Pipe Line, C. A. No. 1622, United States District Court for the Eastern District of Texas, Tyler Division, decided December 29, 1953, and Tyler Gas Service Company v. United Gas Pipe Line Company, 217 F. 2d 73, wherein the United States Court of Appeals for the Fifth Circuit affirmed the District Court's judgment. It appears from the pleadings filed with the Commission that the litigation involved a suit brought by Tyler Gas and the City of Tyler, Texas, also an intervener in these proceedings before the Commission, to enjoin United from making effective the rates suspended in Docket No. G-2210. United contends that these judgments are final and such decisions are obligatory upon Tyler Gas and United.

Further, United avers that the Mobile decision does not assist Tyler Gas. United concludes with a request that the Commission sustain the answer of United; that the motion of Tyler Gas be in all things denied; that Tyler Gas be forthwith ordered and directed to pay the full amount of the billings of United in accordance with the filed rates until such time as such rates may be superseded and replaced by rates filed with the Commission as required and permitted by the Natural Gas Act.

Tyler Gas, in its May 15, 1956, motion also alludes to the fact that in its petition to intervene in Docket No. G-2210 it "challenged the legality of United's proposed rate increases on the ground that they were in violation of the obligations of United under contracts among it, Tyler Gas, and the City of Tyler, Texas."

As noted previously, the proceedings in Docket Nos. G-1142 and G-2210 resulted in the Commission's Opinion No. 277. By the order accompanying the aforesaid Opinion we provided that the rate investigation proceeding in Docket No. G-1142 remain open insofar as it related to the rates and charges of United applicable to Tyler Gas. Further, we provided in such order that the proceeding in Docket No. G-2210 remain open, because of the appeal of Tyler Gas then pending in the United States Court of Appeals for the Fifth Circuit, for a determination of the issues raised by the petitions to intervene of Tyler Gas and the City of Tyler, Texas.

On September 30, 1955, United filed other increased rate, including increased rates and charges applicable to the sales of gas to Tyler Gas. These increased rates and charges were suspended until April 1, 1956, by order of the Commission issued in Docket No. G-9547, except insofar as they related to the sale of gas for resale for industrial use only. Tyler Gas, on October 21, 1955, filed a motion for an order of the Commission rejecting United's increased rates in Docket No. G-9547 relating to sales of natural gas to Tyler Gas. In support of the motion, Tyler Gas again relies upon the Mobile case and upon the decision of the United States Supreme Court in Federal Power Commission v. Sierra Pacific Power Company, 350 U. S. 348.

United, on October 26, 1955, filed a motion to dismiss and answer to Tyler Gas' motion in Docket No. G-9547.

It appears abundantly clear from the various pleadings of Tyler Gas and United in the proceedings in Docket Nos. G-1142, G-2210, and G-9547 that the underlying facts and circumstances are largely without dispute. Tyler Gas and United differ only as to the legal significance to be placed upon such facts and circumstances. The pleadings referred to raise questions which are not completely resolved.

Moreover, inasmuch as the pleadings of Tyler Gas and United raise substantially the same question in each of these proceedings, it is appropriate that the matters involved and the issues presented by such pleadings be resolved at the same time.

The Commission finds: It is necessary and appropriate in carrying out the provisions of the Natural Gas Act and for the proper administration thereof that oral argument be had concerning the matters involved and the issues presented by the May 15, 1956, motion of Tyler Gas and the answer of United in the proceedings in Docket Nos. G-1142 and G-2210, the petitions to intervene of Tyler Gas and the City of Tyler, Texas, in such proceedings, and by the October 21, 1955 motion of Tyler Gas and the answer of United in the proceeding in Docket No. G-9547; and that the proceeeding in Docket No. G-9547 be consolidated with the proceedings in Docket Nos. G-1142 and G-2210 solely for purpose of oral argument upon the pleadings described above.

The Commission orders:

(A) The proceeding in Docket No. G-9547 be and it is hereby consolidated with the proceedings in Docket Nos. G-1142 and G-2210 solely for the purpose of the oral argument provided for in Paragraph (B) hereof.

(B) Oral argument be had before the Commission on July 13, 1956, at 10:00 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning only the matters involved and the issues presented by the pleadings of Tyler Gas Service Company, City of Tyler, Texas, and United Gas Pipe Line Company in the proceedings in Docket Nos. G-1142, G-2210, and G-9547.

(C) Parties to the proceedings who intend to participate in the oral argument shall notify the Secretary of the Commission on or before July 3, 1956, of such intention and the time requested for presentation of their arguments.

Issued: June 22, 1956.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-5111; Filed, June 27, 1956; 8:51 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 70-3315]

LOUISIANA POWER & LIGHT CO. AND LOUISIANA GAS SERVICE CORP.

ORDER AUTHORIZING THE PAYMENT OF LEGAL FEES AND EXPENSES

JUNE 22, 1956.

Louisiana Power & Light Company ("Louisiana Power"), a public utility subsidiary of Middle South Utilities, Inc. ("Middle South"), a registered holding company, and Louisiana Gas Service Corporation ("Louisiana Gas"), a subsidiary of Louisiana Power, have heretofore made a joint filing with this Commission under the Public Utility Holding Company Act of 1935 ("act") concerned in large part with the sale by Louisiana Power and the acquisition by Louisiana Gas of all the non-electric properties of Louisiana Power and thereafter the issuance and private sale by Louisiana Gas, to The Connecticut Mutual Life Insurance Company of Hartford, Connecticut ("Connecticut Mutual"), of up to $6,500,000 aggregate principal amount of first mortgage bonds.

On December 13, 1954, this Commission issued a Notice of Filing in respect of these and the related transactions embraced in said filing. Thereafter, during the period of notification provided for in said notice, Louisiana Public Service Commission ("Public Service Commission") filed a petition which, among other things, requested that a public hearing be held in respect of the proposals of Louisiana Power and Louisiana Gas. Additionally, Public Service Commission petitioned this Commission to reopen the record in a previous proceeding which had resulted in a directive of this Commission requiring Louisiana Power to divest itself of all nonelectric properties. On September 13, 1955, after the filing of an Offer of Proof and a brief in support thereof by Public Service Commission and answering briefs by the staff of the Division of Corporate Regulation and Jefferson Parish, Louisiana, both latter briefs being in opposition to the petition to reopen the previous record, and hearing oral argument in the matter, this Commission denied the request of Public Service Commission to reopen the record. Thereafter, Public Service Commission filed a petition for review of this Commission's order of September 13, 1955, in the United States Court of Appeals for the Fifth Circuit. That matter is still pending.

In connection with the proposed sale of mortgage bonds by Louisiana Gas, representatives of that company undertook to pay the fee of counsel for Connecticut Mutual, such counsel being Robinson, Robinson and Cole, Hartford, Connecticut. The contract between Louisiana Gas and Connecticut Mutual expired by its terms on August 15, 1955. Robinson, Robinson and Cole have submitted a bill for fees of $2,250.00 and expenses of $43.95, the total aggregating $2,293.95; representatives of Louisiana Gas have stated that they believe the fee is fair and reasonable under the circumstances and have urged that an appropriate order be adopted by this Commission permitting Louisiana Gas to pay such fees and expenses.

The Commission has considered the matter, including the statement from Robinson, Robinson & Cole in respect of its activities in this matter, the general complexity of the problems considered by the firm, and the time expended by members and associates of the firm in connection with the performance of these duties, and on the basis of all the factors considered in respect thereof the Commission finds that the proposed fees and expenses are not unreasonable;

It is therefore ordered, That the request of representatives of Louisiana Gas seeking authorization of this Commission for the payment of the above-described fees and expenses be, and hereby is, granted.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-5116; Filed, June 27, 1956; 8:52 a. m.]

[File No. 812-1016]

CANADIAN INTERNATIONAL GROWTH FUND LTD.

NOTICE OF APPLICATION BY CANADIAN INVESTMENT COMPANY FOR ORDER PERMITTING ITS REGISTRATION AND SALE OF ITS SECURITIES IN UNITED STATES

JUNE 22, 1956.

Notice is hereby given that Canadian International Growth Fund Limited ("Applicant"), an investment company proposed to be chartered under The Companies Act of Canada, has filed an application under section 7 (d) of the Investment Company Act of 1940 (the "act") and Rule N-7D-1 thereunder, seeking an order of the Commission permitting Applicant to register as an investment company under the act and to make a public offering of its securities in the United States.

Section 7 (d) of the act prohibits a foreign investment company from selling its securities to the public through the mails or any means or instrumentalities of interstate commerce unless the Commission issues a conditional or unconditional order permitting such company to register under the act and to make a public offering of its securities in the United States. To issue such an order the Commission must find that, by reason of special circumstances or arrangements, it is both legally and practically feasible effectively to enforce the provisions of the act against such company and that the issuance of such order is otherwise consistent with the public interest and the protection of investors.

Applicant was organized on June 14, 1956, for the purpose of carrying on business as an investment company, concentrating its investments in securities of issuers whose interests are in Canada and other countries of the Free World outside the United States. Its authorized capital stock consists of 5,000,000 Common Shares of $1 par value and 100 Deferred Shares of $1 par value. Common Shares and Deferred Shares have the same rights except that Deferred Shares have no redemption rights. Applicant does not intend to issue its Deferred Shares. Applicant intends to make an initial public offering of its Common Shares to realize in excess of $1,000,000. Within sixty days following the date upon which $1,000,000 has been received by the Applicant for the issuance of its shares, the Common Shares will become redeemable pursuant to Applicant's letters Patent ("Charter") and Applicant proposes then to operate as a diversified open-end management investment company.

The application contains certain undertakings and agreements, all as specified in Rule N-7D-1, which together with the provisions of the Applicant's Charter and By-Laws, are proposed by the Applicant as "special circumstances and arrangements" justifying the entry of the requested order.

Applicant's Charter and By-Laws contain, in substance and effect, the substantive provisions of the act applicable to open-end investment companies, which provisions the Applicant has agreed may be enforced as a matter of contract right in the United States or Canada by Applicant's shareholders.

Applicant's By-Laws also contain, among other things, provisions summarized as follows: (1) That all of its securities and cash, other than cash in an amount necessary to meet Applicant's current administrative expenses, will be maintained in the sole custody of a bank in the United States; (2) that at least a majority of Applicant's directors and of its officers will be citizens of the United States of whom a majority will be residents of the United States; (3) that Applicant will retain an independent public accountant with a permanent office and place of business in the United States; (4) that Applicant's investment adviser will maintain its books and records relating to Applicant in the United States; and (5) that Applicant's principal underwriter will be a resident and citizen of the United States and a member of a securities association registered under the Securities Exchange Act of 1934.

Applicant has undertaken and agreed in its application, among other things, (i) that its Charter and By-Laws will not be amended in material respects without authorization of the Commission; (ii) that Applicant's present and future officers, directors, investment advisers, principal underwriters and custodian will enter into agreements to comply with the Act, Applicant's Charter, By-Laws, and the undertakings and agreements contained in the instant application; (iii) that Applicant's agreements shall inure to the benefit of Applicant's shareholders as parties and beneficiaries; (iv) that breach of the aforesaid agreements or violation of the Act by any of the contracting parties will permit revocation of the requested order and the liquidation and distribution of Applicant's assets; and (v) that the original or duplicate copy of its books and records will be maintained in the United States.

Other agreements and undertakings contained in the application are designed to facilitate the enforcement of the act by the Commission or Applicant's shareholders. To that end each of the contracting parties who are not citizens and residents of the United States will appoint, irrevocably, an agent within the United States for service of process. To ensure the applicability of the act to purchase and sales of portfolio securities not made on established securities exchanges, Applicant has agreed that its custodian will consummate such transactions only in the United States and that the mails or means of interstate commerce will be employed.

Notice is further given that any interested person may, not later than July 5, 1956, at 5:30 p. m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing

thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application may be granted as provided in Rule N-5 of the rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-5117; Filed, June 27, 1956; 8:52 a. m.]

[24W-1647]

LABORATORY OF ELECTRONIC ENGINEERING, INC.

ORDER VACATING ORDER OF SUSPENSION

JUNE 22, 1956.

Laboratory of Electronic Engineering, Inc., a Maryland corporation, with principal offices located at 413 L Street NW., Washington, D. C., filed with the Commission on November 25, 1953, a Notification on Form 1-A and an Offering Circular, and subsequently filed amendments thereto, relating to a proposed offering of 17,523 shares of $10 par Class A common stock at par, for the purpose of obtaining an exemption from the registration requirements of the Securities Act of 1933, as amended, pursuant to the provisions of section 3 (b) thereof and Regulation A promulgated thereunder.

The Commission on June 5, 1956 ordered, pursuant to Rule 223 (a) of the general rules and regulations under said act, that the conditional exemption under Regulation A be temporarily suspended on the grounds that said issuer had failed to file reports of sales on Form 2-A as required by Rule 224 of Regulation A and had ignored requests by the Commission's staff for such reports.

The issuer, having, subsequent to the action temporarily suspending the exemption under Regulation A, filed reports as required by Rule 224 and having amended the filing to reduce the offering by the amount of the unsold portion of securities under said filing; and

It appearing to the Commission that a hearing is not necessary or appropriate in the public interest or for the protection of investors and that the basis for said temporary order for suspension, as aforesaid, no longer exists;

It is ordered, Pursuant to Rule 223 (b) of the general rules and regulations under the Securities Act of 1933, as amended, that said temporary order for suspension be, and it hereby is, vacated.

It is further ordered, That this order shall be served upon Laboratory of Electronic Engineering, Inc., and Mr. Carl Mayfield, 23 Riggs Road NE., Washington, D. C., personally or by registered mail or by confirmed telegraphic notice, and shall be published in the FEDERAL REGISTER.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-5118; Filed, June 27, 1956; 8:52 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

CHRISTOPHER PAUL D'ALMADA E CASTRO

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Christopher Paul D'Almada e Castro, Official Administrator of the Supreme Court of Hongkong and Administrator of the Estate of Naoroz Hormusji Naoroju Mody, deceased, Hongkong, Claim No. 46260; $3,055.20 in the Treasury of the United States.

Dated at Washington, D. C., on June 21, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON, *Deputy Director, Office of Alien Property.*

[F. R. Doc. 56-5131; Filed, June 27, 1956; 8:55 a. m.]

ENDVALD OLSEN BJORÖEN BERGE

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Endvald Olsen Bjoröen Berge, Administrator of the Estate of Sigurd J. Odnaes, deceased, Oslo, Norway, Claim No. 5125; Vesting Order No. 672; $11,147.73 in the Treasury of the United States, and property described in Vesting Order No. 672 (8 F. R. 5020, April 17, 1943) relating to United States Letters Patent No. 1,598,199.

Executed at Washington, D. C., on June 21, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON, *Deputy Director, Office of Alien Property.*

[F. R. Doc. 56-5128; Filed, June 27, 1956; 8:55 a. m.]

ITALO FILIPPA

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Italo Filippa, Via M. Bianchi 8, Alessandria, Italy; Claim No. 42981; Vesting Order No. 201; property described in Vesting Order No. 201 (8 F. R. 625, January 16, 1943) as amended (9 F. R. 461, January 12, 1944), relating to United States Letters Patent No. 2,191,562; subject, however, to a royalty free nonexclusive License Agreement dated June 14, 1944 (License No. 828-1) by and between the Alien Property Custodian and Raytheon Manufacturing Company, Newton, Massachusetts, relating to United States Letters Patent No. 2,191,562.

Executed at Washington, D. C., on June 21, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON, *Deputy Director, Office of Alien Property.*

[F. R. Doc. 56-5126; Filed, June 27, 1956; 8:54 a. m.]

FRANCOISE LEGENDRE-FREUND

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Francoise Legendre-Freund, 18, rue Ste. Marthe, Paris, France; Claim No. 44981; Vesting Order No. 3125; $1,634.52 in the Treasury of the United States.

Executed at Washington, D. C., on June 21, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON, *Deputy Director, Office of Alien Property.*

[F. R. Doc. 56-5130; Filed, June 27, 1956; 8:55 a. m.]

EDUARDO BIANCO

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any in-

crease or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Eduardo Bianco, Public Music Ravasini, Galleria del Corso 2, Milano, Italy, Claim No. 63695; $417.37 in the Treasury of the United States.

All right, title, interest and claim of whatsoever kind of nature in and to every copyright, claim of copyright, license, agreement, privilege, power and every right of whatsoever nature, including but not limited to all monies and amounts, by way of royalty, share of profits or other emolument, and all causes of action accrued or to accrue, relating to the musical compositions entitled Supplication (Plegaria), Cancion de Cuna and Evocacion, by Eduardo Bianco, as listed in Exhibit A to the Vesting Order No. 3430 (9 F. R. 6464, June 13, 1944), to the extent owned by Eduardo Bianco immediately prior to the vesting thereof by the aforementioned vesting order.

Dated at Washington, D. C., on June 21, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-5129; Filed, June 27, 1956; 8:55 a. m.]

GIUSEPPE BENETTI AND MARIA PANELLI

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Giuseppe Benetti, Lucca, Italy, Claim No. 63102; Maria Panelli, Lucca, Italy, Claim No. 63103; Vesting Order No. 3805; all right, title, interest, and claim of any kind or character whatsoever of Giuseppe Benetti and Maria Panelli and each of them in and to the Estate of Vincenzo Benetti, also known as V. Benetti, deceased, which property was acquired by the Attorney General as successor to the Alien Property Custodian pursuant to Vesting Order No. 3805.

The property and interests hereinbefore described are property which is in the process of administration by Arturo Benetti, Administrator, acting under the judicial supervision of the Superior Court of the State of California, in and for the County of San Joaquin.

Executed at Washington, D. C., on June 21, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-5127; Filed, June 27, 1956; 8:54 a. m.]